



Tender Reference Number

MAHAIT/RTS2.0/001/2025/080

**RFP for Selection of System Integrator for Implementation of
Maharashtra RTS Aaple Sarkar 2.0 for Government of
Maharashtra**

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Invitation for Proposal

Maharashtra Information Technology Corporation Limited (A Government of Maharashtra Enterprise) (hereinafter referred to as “MahaIT” or the “Purchaser”) invites e-tenders for “Selection of System Integrator for Implementation of Maharashtra Right to Services (RTS): Aaple Sarkar 2.0 portal” for a period of nine (9) months for delivery and three (03) subsequent years (36 months) of operations, maintenance, and support. Bidders are advised to study this Request for Proposal (hereinafter referred to as “RFP”) Document carefully before submitting their proposals in response to the RFP Notice. Submission of a Proposal in response to this RFP Notice shall be deemed to have been done after careful study and examination of this RFP Document with full understanding of its terms, conditions, and implications.

The complete RFP Document has been published on <https://mahatenders.gov.in> for the purpose of downloading. The downloaded RFP Document shall be considered valid for participation in the Electronic Tendering (hereinafter referred to as “e-Tendering”) Process subject to the submission of required Tender Fee and Earnest Money Deposit (hereinafter referred to as “EMD”).

Please note that the interested Bidders will have to access the website <https://mahatenders.gov.in> (hereinafter referred to as “e-Tendering Portal”) and get themselves registered so as to enable them to participate in the e-Tendering Process before due date. Bidders are also advised to refer “Bidders Manual Kit” available at <https://mahatenders.gov.in> for further details about the e-Tendering Process. For any technical queries related to the e-Tendering Portal, please contact 0120-4001002, 0120-4001005 or 0120-6277787 or write email to support-eproc@nic.in.

Bidders have to follow the submission process for a four-envelop (Tender Fee and EMD, Pre-Qualification Bid, Technical Bid and Commercial Bid) system on the e-Tendering Portal in order to submit their response to this RFP.

Bidders (through their authorized signatory) shall submit their offer online in electronic formats for pre-qualification, technical and financial proposal provided in this RFP Document. However, Tender Fees and EMD shall be paid as per the details provided in the RFP Document. Purchaser shall not be responsible for delay in online submission by any Bidder due to any reason. Hence, Bidders are requested to upload the complete response to the RFP Document (hereinafter referred to as “Bid”) well in advance so as to avoid issues like slowing down of upload speed of the e-Tendering Portal due to heavy load or any other unforeseen problems.

Bids submitted without EMD shall be treated incomplete and non-responsive and the same shall not be considered. EMD shall be discharged / returned to Unsuccessful Bidders within thirty (30) days from the finalization of the tender. However, for the Successful Bidder, EMD shall be discharged on executing the Contract and furnishing the Performance Bank Guarantee.

Pre-Bid meeting will be held on 13/08/2025 at 12:00 PM at the Board Room, Maharashtra Information Technology Corporation Limited, 3rd Floor, Apeejay House, Churchgate, Mumbai, Maharashtra – 400 020, for any suggestions or doubts regarding the RFP Document. The minutes of the Pre-Bid meeting conducted, shall be published online. Purchaser shall not be bound to furnish any answers thereafter. All the terms and conditions mentioned in the RFP Document are binding on Bidders.

Place: Mumbai, MahaIT

Date:

Disclaimer

1. The Purchaser has issued this RFP for “Selection of System Integrator for Implementation of Maharashtra Right to Services (RTS): Aaple Sarkar 2.0 portal” on such terms and conditions as set out in this RFP Document, including but not limited to the Technical Specifications set out in different parts of this RFP Document.
2. This RFP has been prepared with an intention to invite prospective Bidders and to assist them in making their decision of whether to submit a Bid or not. It is hereby clarified that this RFP is not an agreement by and between Purchaser and the prospective bidders or any other person. The purpose of this RFP is to provide the prospective Bidder(s) with information to assist them in the formulation of their Bids. This RFP Document does not purport to contain all the information that Bidders may require. This RFP Document may not be appropriate for all the prospective Bidders, and it is not possible for the Purchaser to individually consider the investment objectives, financial situation, and particular needs of each Bidder.
3. The Purchaser has taken due care in preparation of the information contained herein. However, this information is not intended to be exhaustive. Interested Bidders are required to make their own inquiries. This RFP Document includes statements which reflect various assumptions and assessments arrived at by the Purchaser in relation to the Project (Implementation of Maharashtra Right to Services (RTS): Aaple Sarkar 2.0 portal). Such assumptions, assessments and statements do not purport to contain all the information that each Bidder may require.
4. The information contained in this RFP Document is provided on the basis that it is not binding to the Purchaser, or any of its authorities or agencies, or any of their respective officers, employees, agents, or advisors. The Purchaser makes no representation or warranty and shall incur no liability under any law as to the accuracy, reliability or completeness of the information contained in this RFP document. Each Bidder is advised to consider this RFP Document as per their understanding and capacity. The Bidders are also advised to do appropriate examination, enquiry and scrutiny of all aspects mentioned in the RFP Document before submitting their Bids. Bidders are encouraged to take professional help of experts on financial, legal, technical, taxation, and any other matters / sectors appearing in this RFP document or specified work. Bidders are also requested to go through the RFP Document in detail and bring to the notice of the Purchaser any kind of error, misprint, inaccuracies, or omission in the RFP document. The Purchaser reserves the right not to proceed with the Project, to alter the timetable reflected in this RFP Document, or to change the process or procedure to be applied. The Purchaser also reserves the right to decline to discuss the Project further with any prospective Bidder submitting a Bid.
5. No reimbursement of cost of any type shall be paid to persons, entities, submitting a Bid. The Bidders shall bear all costs arising from, associated with, or relating to the preparation and submission of their Bids including but not limited to preparation, copying, postage, delivery fees, expenses associated with any demonstrations or presentations which may be required by the Purchaser, or any other costs incurred in connection with or relating to their Bids.

6. The issue of this RFP Document does not imply that the Purchaser is bound to pre-qualify Bids further evaluation or to select and / or appoint the Selected Bidder for the Project. The Purchaser reserves the right to reject all or any of the Bids without assigning any reasons whatsoever.
7. The Purchaser may, in its absolute discretion, but without being under any obligation to do so, update, amend or supplement the information, assessment or assumptions contained in this RFP Document.
8. The Purchaser, its employees and advisors make no representation or warranty and shall have no liability (for any cost, damage, loss or expense which may arise from or is incurred or suffered on account of anything contained in this RFP Document, or otherwise, including; but not limited to, the accuracy, adequacy, correctness, completeness or reliability of the RFP Document and any assessment, assumption, statement or information contained therein, or deemed to be part of this RFP Document, or arising in any way concerning the eligibility of a Bidder for participating in the Tendering Process) towards any Bidder or a third person, under any law, statute, rule, regulation or tort law, principles of restitution or unjust enrichment or otherwise.
9. Purchaser also accepts no liability of any nature whether resulting from negligence, or otherwise, howsoever, caused arising from reliance of Bidder(s) upon the statements contained in this RFP Document.
10. Interested parties, after careful review of all the clauses of this 'Request for Proposal', are encouraged to send their suggestions in writing to the Purchaser. Such suggestions, after review by the Purchaser, may be incorporated into this 'Request for Proposal' as a corrigendum which shall be uploaded onto the e-Tendering Portal: <https://mahatenders.gov.in>.

Definitions and Acronyms

Sr. No.	Term / Acronyms	Description
1	APIs	Application Programming Interface
2	Applicable Law	Means the laws and any other instruments having force of law in India as they may be issued force and in force from time to time.
3	BCP	Business Continuity Plan
4	Bid	Offer by the Bidder to fulfil the requirement of the Purchaser for an agreed price. It shall be a comprehensive technical and commercial response to the RFP

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Sr. No.	Term / Acronyms	Description
5	Bidder	Means the primary bidder exclusive of its Subcontracting partner responding to this bid.
6	BOM	Bill of Material
7	CMMI	Capability Maturity Model Integration
8	CMO	Chief Minister office
9	Committee	Means committee set up by Purchaser
10	Competent Authority	Means the Managing Director, Maharashtra Information Technology Corporation Limited, Government of Maharashtra
11	Consortium	Association of 2 or 3 companies for successful execution of this project
12	Contract	Means the Contract signed by the parties along with the entire documentation specified in the RFP
13	Contract Price	Means the price payable to the firm/company/agency under the Contract for the complete and proper performance of its contractual obligations.
14	COTS	Commercial Off-the-Shelf
15	CSV	Comma Separated Values
16	Day	Means Working Day of Government of Maharashtra
17	DBA	Database Administrator
18	DC	Data Centre
19	Deliverables	Products, infrastructure, and services agreed to be delivered by the Bidder in pursuance of the agreement as defined more elaborately in the RFP, Implementation and the Maintenance phases and includes all documents related to the user manual, technical manual, design, process and operating manuals, service mechanisms, policies, and guidelines (such as security related, data migration related), inter alia payment and/or process related etc., source code and all its modifications.
20	DR	Disaster Recovery
21	Effective Date	The date on which the Contract Agreement for this RFP comes into effect
22	EMD	Earnest Money Deposit
23	FRS	Functional Requirement Specifications
24	G2C	Government to Citizens
25	GoM	Government of Maharashtra
26	GoM/Government	Government of Maharashtra
27	GST	Good and Services Tax
28	HO	Head Office
29	ICT	Information and Communication Technology
30	ISO	International Organization for Standardization
31	IT	Information Technology
32	KPI	Key Performance Indicator
33	LOI/LOA	Letter of Intent/Letter of Award
34	MAF	Manufacturer Authorization Form
35	MahaIT	Maharashtra Information Technology Corporation Limited
36	MHUCDH	Maharashtra Unified Citizen Data Hub

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Sr. No.	Term / Acronyms	Description
37	ODBC	Open Database Connectivity
38	OEM	Original Equipment Manufacturer In the scope of RTS 2.0, SI Bespoke Solutions, Enterprise Open-Source Software and Proprietary Third-Party Software may all be categorized as an OEM
39	PBG	Performance Bank Guarantee
40	PII	Personally, Identifiable Information
41	SADT	State API Development Team
42	SI	System Integrator
43	SLA	Service Level Agreement

Fact Sheet

#	Information	Details
1.	RFP Issuing Authority	Maharashtra Information Technology Corporation Limited (A Government of Maharashtra Enterprise)
2.	Method of Selection	The method of selection is Quality and Cost Based Selection (QCBS) (i.e., Bidder with highest Composite Score shall be adjudged as the Successful Bidder). Prices inclusive of taxes (including GST) will be considered for arriving at the Composite Score.
3.	Date of RFP issuance	07/08/2025
4.	Availability of RFP documents	The RFP can be downloaded from the e-Tendering Portal: https://www.mahatenders.gov.in
5.	Consortium	Consortium is Not allowed.
6.	Tender Fee (Non- Refundable)	INR 25,000/- (Indian Rupees Twenty-Five Thousand only) to be paid at e-Tendering Portal: https://www.mahatenders.gov.in
7.	Earnest Money Deposit (EMD)	INR 1,00,00,000 /- (Indian Rupees One Crore only) in form of Bank Guarantee as per format provided in Annexure of this volume of the RFP.
8.	Last Date and Time for submission of Pre-bid Queries for Clarifications	13/08/2025 and 12:00 tender@mahait.org Queries for Clarifications sent through any other medium shall not be considered.
9.	Date, Time and Venue of Pre-bid Conference	18/08/2025 and 12:00 Venue: Board Room, Maharashtra Information Technology Corporation Limited, 3rd Floor, Apeejay House, Churchgate, Mumbai, Maharashtra – 400 020
10.	Portal where responses to Pre-bid Queries for Clarifications shall be published	https://www.mahatenders.gov.in
11.	Last Date and Time for submission of Bids in response to this RFP (Submission Deadline)	Online submission of Proposal: 28/08/2025 and 17.00 Hrs https://www.mahatenders.gov.in
12.	Date, Time and Venue of opening of Bids received in response to this RFP	29/08/2025 and 12:00 Maharashtra Information Technology Corporation Limited, 3rd Floor, Apeejay House, Churchgate, Mumbai, Maharashtra – 400 020.

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#	Information	Details
13.	Date of Presentation	To be informed later
14.	Commercial Bid Opening Date and Time	To be informed later
15.	Name and Address for communication	Managing Director, Maharashtra Information Technology Corporation Limited, 3rd Floor, Apeejay House, Churchgate, Mumbai, Maharashtra – 400 020. E-mail: tender@mahait.org
16.	Language	Proposals should be submitted in English only .
17.	Bid validity	Proposals must remain valid up to 180 (One Hundred and Eighty) days from the Last Date of submission of the Bid.
18.	Currency	Only in Indian Rupees (INR) .
19.	Taxes	Only Goods and Services Tax (GST) shall be paid by the Purchaser to the System Integrator as part of payments being made under the Contract that shall ensue in effect of this RFP Document.
20.	Payment Terms	1. Payments during the Implementation phase (9 months) will be based on milestones. 2. Payments during the Operations, Support and Maintenance phase (36 months) will be made on quarterly basis.

1 Project Objectives

The State Government departments offer numerous services to the citizen, notified under the Maharashtra Right to Services Act, 2015. These services cut across various categories associated with issuance of certificates and licenses etc. Information and application to some of these notified government services is currently being offered on the Aaple Sarkar 1.0 portal. However, the portal is facing challenges in terms of functionality and operations, lacks standardization, does not allow seamless API integration, and uses inefficient storage technology. The challenges faced by Aaple Sarkar 1.0 portal are listed below:

- **Complex User Interface and Experience:** The portal doesn't have a user-friendly interface and intuitive navigation for citizens to easily access the services they need. Also, the UI design of the existing website seems to be bland and cluttered.
- **Non-Availability of services:** The Aaple Sarkar Portal provides about 387 services online but many of these services are not completely digitalized. All the notified services should be digitalised to achieve end-to-end digital processing of service applications. Moreover, the process of onboarding a new Standard or Gateway Department on existing Aaple Sarkar portal is complex, due to different portals/URLs of each of the department.
- **Lack of seamless API integration:** The existing Aaple Sarkar portal doesn't allow seamless API integration with Gateway Departments. Hence, there is no real time / time bound exchange of data for better monitoring and analysis of service delivery by the senior authorities.
- **Technical Issues:** The portal experiences technical glitches, slow loading times, or compatibility problems with different browsers or devices. These issues are hampering the user experience and are deterring the applicants from using the website effectively.
- **Redundant Storage Technology:** The current portal requires citizens to upload the same set of supporting documents multiple times when availing services. This leads to unnecessary consumption of storage resources. Additionally, the existing storage infrastructure for Aaple Sarkar is hosted on the Maharashtra State Data Centre, which suffers from limited data exchange speeds and scalability constraints.
- **Maintenance and Upgrades:** The current Aaple Sarkar portal is not undergoing regular maintenance, bug fixing, and feature enhancements, which are necessary to keep the portal running smoothly. Without proper maintenance and updates, the portal may become outdated, less secure, and lead to dissatisfaction among users.
- **Inadequate Capacity Building:** There is a need for periodic capacity building of the service offering Departments and Government agencies for digitalization of their current and future notified services. This shall also require effective and frequent communication between the administrator (or Central Project Management Unit) with all the Departments and Government agencies.
- **Limited number of Delivery Channels:** Presently citizens can access Aaple Sarkar services on Web Portal, Mobile app (available only for Citizens) and VLE's Aaple Sarkar Seva Kendra. Hence, there is no facility to avail services at doorstep especially for the elderly citizens, bedridden or persons with disability.

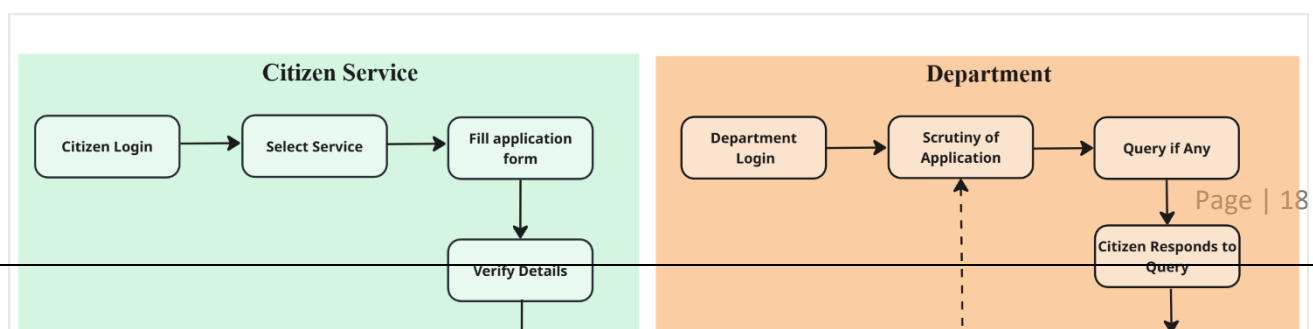
The Aaple Sarkar 2.0, will be a citizen-centric government service delivery portal which will serve a crucial role by addressing a multitude of needs and challenges faced by both citizens and the government. Firstly, it shall

prioritize citizen convenience by offering a user-friendly platform for accessing a wide array of notified government services and information. Transparency and accountability shall be bolstered as the portal opens the government's notified services to public use and scrutiny, fostering trust and responsibility. Moreover, it will ensure accessibility for all citizens, including those with disabilities and the elderly, by offering the necessary features and extend service delivery penetration by providing additional delivery channels. In times of crises, such a portal can swiftly disseminate vital information and resources. In essence, Aaple Sarkar 2.0 portal will embody modern & good governance, prioritizing citizen needs and participation in an increasingly interconnected world.

The broad objectives of the envisaged Aaple Sarkar 2.0 portal are given below:

- To create a 360-degree view and seamless end-to-end experience of availing the notified services for the applicant
- To provide a one stop destination for the applicants to avail notified services from all the government departments and agencies through online application.
- To provide Government services in a transparent, efficient and paperless manner.
- To provides a hassle-free service delivery through reduced turnaround time, minimal clicks to avail services.
- To provide the citizens, village level entrepreneurs (VLEs) and Government department users with a user-friendly, feature packed, informative and smooth user interface.
- To prepare a highly accessible portal, keeping in mind the elderly and disable users.
- To provide dashboard and MIS facility to the Commissioners Right to Services and to all the Department and Regional Heads for monitoring and ensuring effective & efficient service delivery.
- To reduce document upload requirements and increase convenience to the applicant, by integrating various databases (UIDAI, Maha DBT, API Setu, Aaple Sarkar 1.0, etc.) and by consensual use & storage of applicant's profile & document information.
- To provide citizens with the ability to view and apply for utility services through third-party integrations.
- To expand the delivery channels and offer service delivery through website, mobile application, VLEs & call center in the Aaple Sarkar 2.0 portal. Also, to introduce doorstep service delivery using the VLE network through appointment booking method.

2 Current Process/Workflow of Aaple Sarkar 1.0



Services:

The Government of Maharashtra passed the Maharashtra Right to Public Services Act (MRTPS) on 28th April 2015, which provides for transparent and accountable governance for the citizens of the State. In accordance with this, the Aaple Sarkar Service Portal was launched for providing online services to the public. Currently, Maharashtra offers the maximum number of services in online mode. This platform is not only useful for availing services but also provides real-time data regarding online services offered by the departments, the number of services made available to the public by the concerned department, applications received, applications disposed of, and the number of pending applications. As of March 2023, 13,57,66,009 applications have been received online, and 12,89,51,917 have been processed by the concerned Designated Officers. Out of 511 notified services, 387 services are available online, and the process for onboarding the remaining 124 services is ongoing.

However, there are still some challenges with the process employed by the Aaple Sarkar Portal at present. These are listed below:

- All services are application based
- 360-degree view of the services availed by citizen is not available
- Documents & data is collected afresh for every service. This increases the service delivery time and the associated storage & infrastructure cost
- Types of services which are event based do not get auto triggered
- The portal has maintained records only for registered citizens and does not have an exhaustive database of all eligible residents of the State
- Household level details on services delivered are not available

Citizen Login:

Citizens in the state of Maharashtra can register on Aaple Sarkar to avail themselves of various government services. During registration, they need to create a username using an OTP sent to their respective mobile numbers. After registration, users can log in to the platform and select the specific government service they require, which includes applying for certificates, licenses, permits, registrations, permissions, etc. Citizens can track the progress of their applications and receive updates accordingly. The status of the application will be displayed on the home page whenever they log in to their profile.

The citizen can select to apply for the first, second and third appeal in case their service application is rejected or delayed by a Department. Also, if a Department has their own website/ portal (Outside Aaple Sarkar portal), citizens can select a service from that Department which will redirect them to the application page of that particular service on their website/ portal. Citizen must fill out the necessary forms and provided relevant information for a selected service. The platform allows them to upload supporting documents digitally. If the selected service involves any fees or charges, users have to make the payment online through secure payment gateways integrated in the platform.

After the successful processing of the application, the Department would deliver the requested service or certificate to the citizen through appropriate means (on the citizen's account). For example, if a certificate is issued, it will be available for download. Also, in case of any issues or concerns, users could raise grievances through the Aaple Sarkar Grievance portal.

Department/ Government Login:

The concerned official logs in to the Aaple Sarkar portal and has access to service applications of the citizens, to all the reports and the appeal section. There are different desks within the Department/ field office which receives the applications based on the services assigned under the respective desk. The official on the assigned desk then processes the applications accordingly. The official checks the provided details (application form) and reviews all supporting documents uploaded by the applicant which involves further internal checks and evaluations. The evaluation process may involve multiple levels of officials depending on the service. For context, there can be one level of approval for a service while there can be three levels for the other. On average, there are three levels of approvals for most services available at the portal.

If the requested service involves any fees or charges, the Department verifies the payment made by the applicant through the Aaple Sarkar portal. After reviewing the application and ensuring that all requirements are met, the Department approves the application. The applicant's eligibility for the service is confirmed at this stage. Once the application is approved, the Department proceeds with the issuance & delivery of the requested service or certificate to the citizen. The official also has the right to reject or deny any application if he finds any valid problem in the application. Throughout the process, the portal updates the application status, and citizens can track the progress of their applications online.

VLE Login:

VLE login in Aaple Sarkar refers to the login portal for Village Level Entrepreneurs (VLEs) who work as facilitators to provide various government services to citizens in rural areas of Maharashtra, India. VLEs act as intermediaries between the government and the rural population, helping them access and utilize the services offered through the Aaple Sarkar platform.

Initially, VLEs need to register themselves with the Aaple Sarkar platform as service providers. They must provide their personal details, contact information, and other necessary information during the registration process (at the concerned collector office).

Once the registration is complete, the information provided by the VLE is verified by the concerned authorities to ensure the authenticity and eligibility of the applicant.

After verification, the VLE is issued with login credentials, which typically consist of a unique username and a password. Sometimes, a One-Time Password (OTP) may be sent to the registered mobile number or email for additional security during the login process. After successful login, the VLE gains access to their dashboard.

The dashboard provides an interface where VLEs can manage the citizen services and view updates related to the same. In case of VLES, the citizens essentially approach the VLE to apply for a service they need.

The VLE then uses their login credentials to access the Aaple Sarkar portal, select service the citizen needs, fills the service application form and uploads supporting documents on behalf of the citizen. VLEs review the documents submitted by citizens to ensure they meet the required criteria and are valid for the service application. The VLE also keeps track of the application status through the portal and informs the citizen about any updates or changes in the application process. Once the application is processed and approved by the Department, the VLE assists the citizen in obtaining the service or certificate from the portal. VLEs maintain records of the services they assist citizens with and provide periodic reports to the authorities, which may include the number of applications processed and the types of services availed. The VLEs maintain a payment wallet using which they pay the citizen's service application fees. They can top up a certain amount of balance in their payment wallet (as per their needs). The application fees are then collected from the citizens (applicant) and kept by the VLEs. The deducted amount from the VLE's payment wallet is collected and then disbursed by the Central Project Management Unit (CPMU) or the administrator according to the fixed percentages amongst the Rajya Setu, District Setu, Administrator and the ASSK Administrator.

3 Aaple Sarkar 2.0

The aim of the new portal i.e., Aaple Sarkar 2.0 is to provide a paperless, timebound and efficient service delivery to the applicant. The Aaple Sarkar 2.0 portal shall provide greater accessibility and a smooth end-to-end service delivery experience to the applicant. The portal shall be built upon latest technological advancements and solutions to ensure smooth operations and maintenance. It shall be designed to cater to the needs of all the stakeholders by reimagining the entire frontend and backend processes including all the new and necessary components and features. The Aaple Sarkar 2.0 portal shall focus on considerable improvement of user interface of all the stakeholders, 24X7 help availability, standardization & simplification of backend processes and increased accessibility.

The new portal shall also harbour a better infrastructure and plans to leverage state of the art storage infrastructure and other hardware components.

The Aaple Sarkar 2.0 having the same concept as of the Aaple Sarkar 1.0 portal, will consider and combat all the challenges faced by the latter. The new portal will ensure a hassle-free experience to the citizen, VLE, Department and CRTS users by offering a clutter free, practical, and user-friendly platform.

The portal on the data front will have more seamless data transfer with the integrated Standard and Gateway Departments which will provide quality real time information. Many new modules such as the interactive dashboards & MIS system shall help monitor the quality-of-service delivery. Also, the process of enabling new services shall be defined to ensure quick, easy & effective onboarding of the same. The Aaple Sarkar 2.0 portal shall also expand accessibility of service delivery by offering the same through mobile application, call centre, VLEs, Kiosks and now also through doorstep delivery.

The development of Aaple Sarkar 2.0 portal was initiated with a vision to:

- Create a cutting-edge digital platform that empowers citizens with seamless access to government services and its information. Through the integration of new technology, the portal aims to enhance user experience and foster efficiency.

- The portal shall provide a unified space for citizens to access a variety of government services and information, streamlining and simplifying processes, enhancing experience for all stakeholders.
- Enable efficient and end-to-end digitalized delivery of notified government services to citizens, through optimal data provisioning, and controlled data and process flow management.

4 Instruction to Bidders

4.1 General

1. While every effort has been made to provide comprehensive and accurate background information and requirements and specifications, Bidders must form their own conclusions about the solution needed to meet the requirements. Bidders and recipients of this RFP Document may wish to consult their own legal advisers in relation to this RFP.
2. The roadmap provided by Bidders may be treated as contractually binding on the Bidders, on successful award of the assignment by the Purchaser based on this RFP.
3. No commitment of any kind, contractual or otherwise shall exist unless and until a formal written contract has been executed by or on behalf of the Purchaser. Any notification of preferred bidder status by the Purchaser shall not give rise to any enforceable rights by the Bidder. The Purchaser may cancel this public procurement at any time prior to a formal written contract being executed by or on behalf of the Purchaser.
4. This RFP supersedes and replaces any previous public documentation and communications, and Bidders should place no reliance on such communications.
5. The Bidder shall be deemed to have carefully examined the Terms and Conditions, Scope, Service Levels, Requirements Specifications, and Schedules of this RFP. Shall the Bidder have any doubt as to the meaning of any portion of these Conditions or of the specifications he shall, before the last date for Submission of Pre-Bid Queries, set forth in the Fact Sheet thereof, and submit them to the Purchaser in writing in order that such doubt may be removed.
6. Bids shall be received by the Purchaser through the e-Tendering system before the time and date specified in the Fact Sheet provided in this RFP Document. The Purchaser may, at its discretion, extend this deadline for submission of offers by issuing corrigendum and uploading the same on e-Tendering Portal.
7. Bids received through telex, cable, facsimile, in person (other than those identified for physical submission) or email will be rejected.

4.2 Eligible Bidders

Bids may be submitted by either of the following categories of bidders only:

1. **Sole Bidder**

The Sole Bidder must be a System Integrator company which has the capabilities to deliver the entire scope as mentioned in the RFP.

4.3 Compliant Bids / Completeness of Response

Bidders are advised to study all instructions, forms, terms, requirements, and other information in the RFP Document carefully. Submission of the Bid shall be deemed to have been done after careful study and examination of the RFP Document with full understanding of its implications

Bidders must comply with below requirements subject to the deviations submitted by the bidder if the deviations do not impact the scope as set out in this RFP.

1. Include all documentation along with the supporting as specified in this RFP.
2. Follow the formats as prescribed in this RFP and respond to each element in the order as set out in this RFP to maintain uniformity.
3. Comply with all requirements as set out within this RFP.
4. Bidders should not propose multiple options for any system, software, or other infrastructure / model for operations against Solution envisaged in this RFP. Only one set of system, software or other infrastructure / model for operations shall be proposed.
5. For all the components, wherever applicable, the Bidder shall be required to provide datasheets of relevant products.

4.4 Code of Integrity

No official of the Purchaser or a Bidder shall act in contravention of the codes which includes:

- 1) prohibition of:
 - (a) Making offer, solicitation or acceptance of bribe, reward or gift or any material benefit, either directly or indirectly, in exchange for an unfair advantage in the procurement process or to otherwise influence the procurement process.
 - (b) Any omission, or misrepresentation that may mislead or attempt to mislead so that financial or other benefit may be obtained, or an obligation avoided.
 - (c) Any collusion bid rigging or anti-competitive behavior that may impair the transparency, fairness, and the progress of the procurement process.
 - (d) Improper use of information provided by the Purchaser to the Bidder with the intent to gain unfair advantage in the procurement process or for personal gain.
 - (e) Any financial or business transactions between the Bidder and any official of the Purchaser related to tender or execution process of contract, which can affect the decision of the procuring entity directly or indirectly.
 - (f) Any coercion or any threat to impair or harm, directly or indirectly, any party or its property to influence the procurement process.
 - (g) Obstruction of any investigation or auditing of a procurement process.
 - (h) Making false declaration or providing false information for participation in a tender process or to secure a contract.
- 2) Disclosure of conflict of interest.
- 3) Disclosure by the Bidder of any previous transgressions made in respect of the provisions of sub-clause (1) with any entity in any country during the last three years or of being debarred by any other procuring entity.

In case of any reported violations, the Purchaser, after giving a reasonable opportunity of being heard, comes to the conclusion that a Bidder or prospective Bidder, as the case may be, has contravened the code of integrity, may take appropriate measures like termination of contract with penalty and damages and claims, blacklisting the bidder, etc.

4.5 Pre-bid meeting and Clarification

4.5.1 Bidders Queries

1. Any clarification regarding the RFP document and any other items related to this Project can be submitted to the Purchaser as per the submission method and in accordance with timelines specified in the Fact Sheet.
2. The Purchaser shall not be responsible for ensuring that the Bidders' queries have been received by them.
3. Any requests for clarifications after the indicated Date and Time shall **NOT** be entertained by the Purchaser. Further, the Purchaser reserves the right to issue clarifications to Pre-bid Queries for Clarifications received.
4. Pre-bid Queries for Clarifications of only those Bidders shall be considered who submit the same through e-mail provided in the Fact Sheet. Pre-bid Queries for Clarifications received through any other medium shall **NOT** be considered for issuing clarifications.
5. It shall be **MANDATORY** to submit Pre-bid Queries for Clarifications in both, PDF, and Excel format (editable), along with Name and details of the Organization submitting the Pre-bid Queries for Clarifications as specified in Annexures.
6. Bidders shall ensure that there is no difference between the Pre-bid Queries for Clarifications submitted in PDF and Excel format (editable). Pre-bid Queries for Clarifications that have a difference between the PDF and Excel format (editable) shall **NOT** be considered for issuing clarifications.

4.5.2 Pre-Bid Conference

1. The Purchaser shall hold a pre-bid meeting with the prospective Bidders as specified in the Fact Sheet.
2. The Bidders will have to ensure that their queries for pre-bid meeting should reach the Purchaser at the address specified, through the medium specified, on or before the date and time specified in the Fact Sheet.

4.5.3 Responses to Pre-Bid Queries and Issue of Corrigendum

1. The Purchaser will organize a pre-bid conference and will respond to any request for clarification or modification of the bidding documents. The Purchaser shall formally respond to the pre-bid queries after the pre-bid conference. No further clarifications shall be entertained after the date and time of submission of queries.
2. The Purchaser shall endeavor to provide timely response to all queries. However, the Purchaser makes no representation or warranty as to the completeness or accuracy of any response made in good faith. The Purchaser does not undertake to answer all the queries that have been posed by the Bidders.
3. Any modifications of the Bidding Documents, which may become necessary as a result of the Pre-Bid Conference or are made to the RFP document by the Purchaser on their own accord, shall be made exclusively through a Corrigendum. Any such corrigendum shall be deemed to be incorporated into this RFP. However, in case of any such amendment, the bid submission date may be extended at the discretion of the Purchaser.
4. Any corrigendum / notification issued by the Purchaser, subsequent to issue of RFP, shall only be available / hosted on the e-Tendering Portal mentioned in the Fact Sheet.

5. Any such corrigendum shall be deemed to be incorporated into this RFP.
6. It shall be the responsibility of the Bidders to check the e-Tendering Portal from time to time for any corrigenda to / amendments in the RFP document. In case of failure to get the corrigenda / amendments, if any, the Purchaser shall not be responsible.
7. In order to provide prospective Bidders reasonable time for taking the corrigendum into account, the Purchaser may, at its discretion, extend the last date for the receipt of Bids.

4.6 Right to Terminate the Process

1. The Purchaser may terminate the Tendering Process at any time and without assigning any reason. The Purchaser makes no commitments, express or implied, that this process will result in a business transaction with anyone.
2. This RFP does not constitute an offer by the Purchaser. Bidder's participation in this process may result in the Purchaser selecting the Bidder to engage towards execution of Contract.

4.7 Tender Fee

1. RFP document can be downloaded from the e-Tendering Portal specified in the Fact Sheet by paying the requisite Tender Fees.
2. Tender Fee for the amount specified in the Fact Sheet shall be paid online through e-Tendering portal. The Tender Fee shall be non-refundable.
3. Bids received without, or with inadequate payment of the Tender Fee through online mode at the e-Tendering Portal shall be rejected.

4.8 Earnest Money Deposit (EMD)

Bidders are required to submit an Earnest Money Deposit (EMD) in the form of Bank Guarantee for the required amount valid for at least thirty (30) days beyond the Bid Validity Period. The bank guarantee must be submitted in the format specified in this RFP. Offers, made without EMD, will be treated incomplete and non-responsive and the same will not be considered. EMD will be discharged / returned to Unsuccessful Bidders within thirty (30) days of the Bidder being notified as being unsuccessful. However, for successful bidder, EMD will be discharged on executing the Contract and furnishing the Performance Bank Guarantee (PBG).

The EMD may be forfeited in any of the following circumstances:

1. If a bidder withdraws its bid during the period of bid validity.
2. In case of a successful bidder if the bidder fails to:
 - i. Provide the Performance Bank Guarantee as specified in this RFP.
 - ii. Sign the Contract in accordance with this RFP.
3. The Bidder being found to have indulged in any suppression of facts, furnishing of fraudulent statement, misconduct, or other dishonest or other ethically improper activity, in relation to this RFP

4.9 Local Conditions

1. It will be incumbent upon each Bidder to fully acquaint himself with the local conditions and other relevant factors which would have any effect on the performance of the Contract and / or the cost.

2. Bidders are expected to obtain for themselves, on their own responsibility, all relevant information that may be necessary for preparing the Bid and entering into Contract. Obtaining such information shall be at Bidders' own cost.
3. Failure to obtain the information necessary for preparing the Bid and / or failure to perform activities that may be necessary for the providing services before entering into Contract will in no way relieve the Successful Bidder from performing any work in accordance with these RFP documents.
4. It will be imperative for each Bidder to fully inform themselves of all legal conditions and factors which may have any effect on the execution of Contract as described in these RFP documents. The Purchaser shall not entertain any request for clarification / relaxation from Bidders regarding such conditions.
5. It is the responsibility of Bidders that such factors have properly been investigated and considered while submitting the Bids and that no claim whatsoever including those for financial adjustment to the Contract awarded under these RFP documents will be entertained by the Purchaser and that neither any change in the time schedule of the Contract nor any financial adjustments arising thereof shall be permitted by the Purchaser on account of failure of Bidders to appraise themselves of local laws and site conditions.

4.10 Structure of Proposal and Contents of the Bid

Bidders shall submit their responses as per the format given in this RFP in the following manner:

1. Pre-Qualification Proposal (Online submission at e-Tendering Portal as specified in the Fact Sheet).
2. Technical Proposal (Online submission at e-Tendering Portal as specified in the Fact Sheet).
3. Commercial Proposal (Online submission at e-Tendering Portal as specified in the Fact Sheet).

The four envelop system shall be followed by the e-Tendering Portal to allow submission of Bids by Bidders. Overview of documents to be submitted in each envelop is provided below.

Envelop No.	Name of Document	Content
One	Tender Fee and Earnest Money Deposit (EMD)	1. Tender Fee receipt 2. Scanned copy of Earnest Money Deposit (EMD).
Two	Pre-Qualification Bid	1. Pre-Qualification Bid Covering Letter. 2. Pre-Qualification Bid Checklist as per format specified in Annexures. 3. Response to Pre-Qualification Criteria along with the required supporting documents and all relevant formats specified in Annexures. 4. Declarations as per formats specified in Annexures.
Three	Technical Bid	1. Technical Bid Covering Letter. 2. Technical Bid Checklist as per format specified in Annexures. 3. Response to Technical Criteria along with the required supporting documents and all relevant formats specified in Annexures. 4. Declarations as per formats specified in Annexures.
Four	Commercial Bid	1. Commercial Bid Covering Letter. 2. Response to Commercial Bid in BOQ format.

Physical submission of **ONLY** the following documents shall be accepted by the Purchaser in accordance with details specified in the Fact Sheet:

1. Bank Guarantee of EMD (Original).
2. Power of Attorney in the name of the person executing the Bid, authorizing the Signatory (Original).
3. Non-Disclosure Agreement (NDA) (Original).

All the required documentation must be uploaded in the format specified for this RFP and as per the specified folder structure in the e-Tendering Portal. The Purchaser will **NOT** accept submission of the Bid or any other documents related to the Bid by telex, cable, facsimile, in person (other than those identified for physical submission) or email.

The Bidder must ensure that the Bid is digitally signed by the Authorized Signatory of the bidding firm and has been duly submitted within the submission timelines. The Purchaser shall in no case be responsible if the Bid is not submitted online within the specified timelines.

All the pages of the Bid document(s) must be sequentially numbered and must contain the list of contents with page numbers. Any deficiency in the documentation may result in the rejection of the Bid.

Please note that, prices / discounts / financial counteroffers / reference to Commercial Model shall not be indicated in the Technical Bid. These details shall be indicated in the Commercial Bid **ONLY**.

The original Bid shall be prepared in indelible ink. It shall contain no interlineations or overwriting, except as necessary to correct errors made by the Bidder itself. Any such corrections must be initialled by the person (or persons) who sign(s) the Bid.

All pages of the Bid shall be initialled and stamped by the person or persons who sign the Bid.

Failure to submit Bid on time shall cause it to be rejected.

4.11 Only One Proposal and One Solution

Bidders shall note that they cannot submit more than one (01) Bid, including more than one (01) solution or alternative offer with different components within the same solution. In case of non-compliance, such a Bidder shall be disqualified.

4.12 Total Responsibility

Bidders shall issue a statement of undertaking for total responsibility for the defect free operation of the proposed solution as per the format mentioned in Annexure.

4.13 Language

The Bid should be prepared by the Bidders in **ENGLISH LANGUAGE ONLY**. If any submitted supporting documents are in any language other than English, translation of the same in English language is to be duly attested by the Bidder. For purposes of interpretation of the documents, the English translation shall govern.

4.14 Key Personnel

The Purchaser has identified certain key positions and minimum qualifications for each of the positions that should be part of Project Team of the Successful Bidder (hereby referred to as “Key Personnel”). Details of these key positions are provided in the RFP document.

4.14.1 Initial Composition; Full Time Obligation; Continuity of Personnel

Successful Bidder shall ensure that each Key Personnel devotes requisite time as per the staffing schedule / manpower plan to perform the services, to which that person has been assigned as per their Bid.

Successful Bidder shall **NOT** make any changes to the composition of the Key Personnel and not require or request any member of the Key Personnel to cease or reduce his or her involvement in the provision of the Services during the Term:

1. Unless that person resigns, is terminated for cause, dies, is long-term disabled, is on permitted mandatory leave under Applicable Law or retires; or
2. Without the Purchaser's prior written consent.

Bidder should ensure that atleast 50% of the proposed resources as per resource plan should be on its payroll as on date of bid submission

4.14.2 Evaluations

Successful Bidder shall carry out an evaluation of the performance of Key Personnel in connection with the Services at least once in a year during the Term of the Contract. Bidder shall provide reasonable written notice to the Purchaser of the date of each evaluation of Key Personnel. The Purchaser shall be entitled to provide inputs to the Successful Bidder for each such evaluation. Successful Bidder shall promptly provide the results of each evaluation to the Purchaser, subject to Applicable Law.

4.14.3 Replacement

In case a member of the Key Personnel resigns, the Successful Bidder shall be required to inform the Purchaser within one week of such resignation.

The Successful Bidder shall promptly initiate a search for a replacement to ensure that the role of any member of the Key Personnel is not vacant at any point in time during the Term of the Contract; subject to reasonable extensions requested by the Successful Bidder to the Purchaser.

Before assigning any replacement of a member of the Key Personnel for providing of the Services, the Successful Bidder shall provide the Purchaser with:

1. A resume, curriculum vitae and any other information about the candidate that is reasonably requested by the Purchaser; and
2. An opportunity to interview the candidate.

The Bidder must provide replacement resource of equal or better qualification and experience as per the requirements of this RFP.

If the Purchaser objects to the appointment, Bidder shall not assign the individual to that position and shall seek an alternative candidate in accordance with the resource requirements of this RFP.

The Successful Bidder needs to ensure at least 4 weeks of overlap period in such replacements. The Purchaser will not be responsible for any knowledge transition to the replacement resource and any impact / escalation of cost incurred by the Successful Bidder due to resource replacement.

4.14.4 High Attrition

In the first 12-month period from the Effective Date of the Contract and in any rolling 12 months period during the Term of the Contract, if ten (10) percent or more of the members of the Key Personnel cease or reduce their involvement in the Services for any reason other than with the Purchaser's prior written consent, the Successful Bidder shall:

1. Provide the Purchaser with a reasonably detailed explanation as to the reasons for such change, including, where applicable and permitted, notes from any exit interviews conducted by the Successful Bidder with any departing member of the Key Personnel; and
2. If such change to Key Personnel has or is likely to have any material adverse impact on the provision of the Services or any substantial part thereof, undertake, at its own costs, such remediation acts as are reasonably necessary in order to improve the retention of the Key Personnel including making reasonable changes to the human resources policies and procedures applicable to the Key Personnel (including those related to compensation, benefits and other conditions so that they are competitive with the market) as may be necessary to ensure that such policies and procedures comply with Good Industry Practice.

4.15 Bid Price

1. Bidders shall indicate Total Bid Price of all the equipment / software / services that they have proposed to provide under this Contract, along with all required details of all applicable taxes (except GST), duties, other levies, and charges etc. in relation to the transaction under this Contract, in the Commercial Bid format provided in the Annexure to this RFP.
2. Bidders shall prepare their Bids based on details provided in this RFP Document. It must be clearly understood that the Scope of Work is intended to give the Bidders an idea about the order and magnitude of the Work and is not in any way exhaustive and guaranteed by the Purchaser. Bidders shall carry out all the tasks in accordance with the requirement of this RFP Document. It shall be the responsibility of Bidders to fully meet all the requirements specified in this RFP Document.
3. Bidders shall quote for the entire Scope of Work on an "Overall Responsibility" basis such that the Total Bid Price covers all obligations of the Bidder mentioned in this RFP or to be reasonably inferred from the Bid documents in respect of providing the product / services.
4. If at any stage, during the Contract, the Purchaser identifies that the approach / project plan / schedule / work conducted does not meet the functional requirements, conceptual design, performance requirements / SLA, and other requirements specified in this RFP, then the Successful Bidder shall be required to revise their work plan / approach / quality of Work in accordance with the specifications of the Purchaser as contained in RFP. No additional cost shall be reimbursed for the Successful Bidder for the same.
5. All taxes, duties, charges, and levies payable under respective statutes, **except GST (Goods and Services Tax)**, shall be borne by the Successful Bidder.
6. The Price Bid shall be submitted in **Indian Rupees (INR)** only.

4.16 Firm Prices

1. Bidders shall note that this is a **Fixed Price Bid**. Hence, Commercials; including any taxes (except GST), duties, fees, levies, works contract tax and other charges as may be applicable in relation to the activities proposed to be carried out, shall be accepted as part of Bids submitted by the Bidder as part of this Bid.
2. Prices quoted by the Bidder shall remain constant throughout the period of the contract and shall not be subject to any modifications, on any account whatsoever. A Bid submitted with an adjustable price quotation shall be treated as nonresponsive and rejected.
3. Any changes in Government Statutes on changes in taxes (except GST) and levies and introduction of new taxes and levies shall be borne by the bidder.
4. Technical Bids submitted with pricing or conditional Bids shall be treated as non-responsive and the Bid may be rejected.

4.17 Discount / Financial Counteroffers

The Bidders are **NOT** expected to provide any further discounts / financial counter-offers (in any other formats) as part of their Commercial Bids.

4.18 Cost of Bidding

The Bidder shall bear all costs associated with the preparation and submission of its Bid, and the Purchaser will in no case be responsible or liable for these costs, regardless of the conduct or outcome of the Tendering Process.

4.19 Modification and Withdrawal of Bids

Withdrawal of original Bid shall not be allowed. No Bid can be modified by the Bidder, subsequent to the Last Date and Time for submission of Bids.

4.20 Deviations and Exclusions

Bids shall be submitted **strictly** in accordance with the requirements, and terms and conditions of this RFP. The Bidder shall submit applicable Certificate as per the format mentioned in Annexure for Deviations. Bids with significant deviation(s) are liable for **rejection**.

4.21 Venue and Deadline for Submission of Proposals

1. Bids, in their complete form and accurate in all respects as specified in this RFP, must be submitted online to the Purchaser through the e-Tendering Portal specified in the Fact Sheet provided in this RFP.

4.22 Authentication of Bids

1. The Bid should be accompanied by the following specified Power-of-Attorneys:
 - (a) Power of Attorney in the name of the person executing the Bid, authorizing the Signatory
2. Hardcopy of both the afore-specified Power of Attorneys shall be submitted as specified in the Datasheet provided in this RFP and the softcopy of the same shall be uploaded online at the e-Tendering Portal as part of the Bid that are submitted by Bidders in response to this RFP.
3. Furthermore, the Bid must also be submitted online after being digitally signed by an authorized representative of the Sole Bidder / Lead Bidder firm.

4.23 Late Bids

1. Late submission of Bids will not be entertained and will not be permitted by the e-Tendering Portal. Bids submitted by post / telex / telegram / fax / e-mail etc. shall not be considered. No correspondence will be entertained on this matter.
2. The Purchaser shall not be responsible for any non-receipt / non-delivery of the documents due to technical snag whatsoever at the Bidder's end. No further correspondence on the subject will be entertained.
3. The Purchaser reserves the right to modify and amend any of the above-stipulated condition / criterion depending upon project priorities vis-à-vis urgent commitments.

4.24 Confidentiality

All the material / information sent to the Bidder shall be treated as confidential and should not be disclosed in any manner to any unauthorized person under any circumstances. The employees of the Successful Sole Bidder who are proposed to be deployed on the Project need to furnish a Non-Disclosure Agreement (NDA) as per this RFP.

4.25 Corrupt or Fraudulent Practices

The Purchaser requires that the Bidders bidding for this Bid should observe the highest standards of ethics during the procurement and execution of such contracts. The Purchaser will reject a proposal for award if it determines that the bidder recommended for award has engaged in corrupt practices or fraudulent practices or coercive practices or undesirable practices or restrictive practices in competing for the contract in question.

In pursuance of this policy, the Purchaser defines the terms set forth as follows:

“Corrupt practice” means (i) the offering, giving, receiving or soliciting of anything of value to influence the action of the public official in award of the tender. or (ii) save as provided herein, engaging in any manner whatsoever, whether during the Evaluation and Selection Process or after the issue of the LOI or after the execution of the Contract, as the case may be, any person in respect of any matter relating to the Project or the Award or the Contract, who at any time has been or is a legal, financial or technical consultant / adviser of the Purchaser in relation to any matter concerning the Project;

“Fraudulent practice” means a misrepresentation of facts in order to influence award of contract to the detriment of the Purchaser, and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive level and to deprive the Purchaser of the benefits of the free and open competition;

“Coercive practice” means impairing or harming or threatening to impair or harm, directly or indirectly, any persons or property to influence any person's participation or action in the Selection Process;

“Undesirable practice” means (i) establishing contact with any person connected with or employed or engaged by the Purchaser with the objective of canvassing, lobbying or in any manner influencing or attempting to influence the Selection Process; or (ii) having a Conflict of Interest; and

“Restrictive practice” means forming a cartel or arriving at any understanding or arrangement among Bidders with the objective of restricting or manipulating a full and fair competition in the Selection Process.

4.26 Conflict of Interest

1. A Bidder shall not have a conflict of interest that may affect the Selection Process or the Solution delivery (the "Conflict of Interest"). Any Bidder found to have a Conflict of Interest shall be disqualified. In the event of disqualification, the Purchaser shall forfeit and appropriate the EMD, if available, as mutually agreed genuine pre-estimated compensation and damages payable to the Purchaser for, inter alia, the time, cost and effort of the Purchaser including consideration of such Bids, without prejudice to any other right or remedy that may be available to the Purchaser hereunder or otherwise.
2. The Purchaser requires that the Bidder provides solutions which always hold the Purchaser's interest paramount, avoid conflicts with other assignments or its own interests, and act without any consideration for future work. The Bidder shall not accept or engage in any assignment that would be in conflict with its prior or current obligations to other clients, or that may place it in a position of not being able to carry out the assignment in the best interests of the Purchaser.
3. A Bidder eventually appointed to implement IT solutions for this Project, its Associates, and affiliates, shall be disqualified from subsequently providing goods or works or services resulting from or directly related to the Project and any breach of this obligation shall be construed as Conflict of Interest, unless otherwise indicated in the RFP.

4.27 Non-Conforming Bids

A Bid may be construed as a non-conforming proposal and ineligible for consideration:

1. If it does not comply with the requirements of this RFP.
2. If a Bid appears to be "canned" presentations of promotional materials that do not follow the format requested in this RFP or do not appear to address the particular requirements of the solution.

4.28 Conditional offers by the Bidders

Bidders should abide by the terms and conditions specified in this RFP Document. If Bidders submit conditional offers, it shall be liable for outright rejection.

4.29 Acceptance / Rejection of Bids

1. The Purchaser reserves the right to reject in full or part, any, or all Bids without assigning any reason thereof. The Purchaser reserves the right to assess the Bidder's capabilities and capacity. The decision of the Purchaser shall be final and binding.
2. Bid should be free of over writing. All erasures, correction or addition must be clearly written both in words and figures and attested.
3. Bids not submitted in prescribed manner or submitted after due date and time are liable for rejection.
4. In the event of any assumptions, presumptions, key points of discussion, recommendation or any points of similar nature submitted along with the Bid, the Purchaser reserves the right to reject the Bid and forfeit the EMD.
5. If the Sole Bidder do not meet even one of the Pre-Qualification criteria, the Bidder shall be disqualified, and the entire Bid shall be rejected.
6. If there is any discrepancy in the Commercial Bid, it will be dealt as per the following:
 - (a) If, in the price structure quoted for the required goods / services / works, there is discrepancy between the Unit Price and Total Price (which is obtained by multiplying the Unit Price with the quantity), the Unit Price shall prevail and the Total Price corrected accordingly.

- (b) If there is an error in a Total corresponding to the addition or subtraction of Subtotals, the Subtotals shall prevail, and the Total shall be corrected.
- (c) If there is a discrepancy between words and figures, the amount in words shall prevail.
- (d) If there is such discrepancy in an offer, the same shall be conveyed to the Bidder with target date up to which the Bidder has to send his acceptance on the above lines and if the Bidder does not agree to the decision of the Purchaser, the Bid is liable to be ignored and will be rejected.

4.30 Disqualification

Bids are liable to be disqualified in case of any of the below-specified events / circumstances.

4.30.1 General criteria

1. Bids not qualifying under eligibility criteria.
2. Bids submitted without or improper EMD or Tender Fees.
3. Bids received through Telex / Telegraphic / Fax / E-Mail / in-person (other than those documents listed for physical submission).
4. Bids which do not confirm the requirement of unconditional validity of the Bid as prescribed in the RFP.
5. Bids are signed digitally (through a Digital Signature Certificate) by a different person than that authorized to sign the Bid.
6. Bids are submitted with initials and ink signatures of a different person than that authorized to sign the Bid.
7. If the information provided by the Bidders is found to be incorrect / misleading at any stage / time during the Tendering Process.
8. Any effort on the part of a Bidders to influence the Purchaser's bid evaluation, bid comparison or contract award decisions.
9. Bids received by the Purchaser after the last date for receipt of bids prescribed in the Fact Sheet.
10. Bids without signature of person (s) duly authorized on required (specified) pages of the Bid.
11. Bids without power of authorization and any other document consisting of adequate proof of the ability of the signatory to bind the Bidders.
12. Technical Bid containing commercial details or any such hints / calculations / extrapolations / records.
13. Revelation of Prices in any form or by any reason before opening the Commercial Bid.
14. Failure to furnish all information required by the RFP or submission of a Bid not substantially responsive to the RFP document in every respect.
15. Bidders not quoting for the complete Scope of Work as indicated in the RFP documents, addendum (if any) and any subsequent information given to the Bidders.
16. Bidders not complying with the Terms and Conditions as stated in the RFP documents.
17. The Bidders not confirming unconditional acceptance of full responsibility of providing services in accordance with the Scope of work and Service Level Agreements of this RFP.

4.30.2 Commercial Criteria

1. Incomplete Commercial Bid.
2. Commercial Bids that do not conform to the RFP's format.

3. Total Bid Price quoted by the Bidders does not include all statutory taxes and levies applicable.
4. If there is an arithmetic discrepancy in the Commercial Bid calculations the Purchaser shall rectify the same. If the Bidder does not accept the correction of the errors, its bid may be rejected.

5 Evaluation and Selection Process

5.1 Opening of Bids

The Proposals shall be opened by the Purchaser in presence of those Bidders or their representatives who may be present at the time of opening.

The representatives of the Bidders should be advised to carry the identity card or a letter of authority from the Bidder for attending the event of opening of Bids.

There will be three bid-opening events:

1. **Set 1 (Tender Fee and EMD) and Set 2 (Pre-Qualification Bid)**
2. **Set 3 (Technical Bid)**
3. **Set 4 (Commercial Bid)**

The venue, date, and time for opening the Pre-qualification Bid are specified in the Fact Sheet.

The date and time for opening of Technical and Commercial Bids would be communicated separately to the qualified Bidders only.

All the Bids shall be opened in the presence of the Bidders' representatives who choose to be present at the specified date, time and location.

The Technical Bids of only those Bidders will be opened who clears the Pre-qualification Bid evaluation.

The Commercial Bids of only those Bidders will be opened who score equal to or more than qualifying marks in Technical Bid evaluation.

5.2 Preliminary Examination of Bids

The Purchaser shall examine the Bids to determine whether they are complete, whether the documents have been properly signed and whether the Bids are generally in order. Any Bids found to be nonresponsive for any reason or not meeting any criteria specified in the RFP, shall be rejected by the Purchaser and shall not be included for further consideration.

Preliminary examination of Bids shall be held, and Bids will be treated as non-responsive, if Bids are:

1. Not submitted in format as specified in the RFP document.
2. Received without the Letters of Authorization (Power of Attorneys).
3. Not submitted with or submitted with EMD Bank Guarantee of inadequate amount or duration.
4. Found with suppression of details.
5. With incomplete information, subjective, conditional offers and partial offers submitted.
6. Submitted without the documents requested.
7. Non-compliant to any of the clauses mentioned in the RFP.
8. Submitted digitally through the DSC (Digital Signature Certificate) of a different person than that authorized to sign the Bid.
9. Submitted with signature and initials of a different person than that authorized to sign the Bid.

5.3 Clarification on Bids

During the evaluation of Bids, the Purchaser may, at its discretion, ask Bidders for any clarification(s) regarding their respective Bid. The clarification and the response shall be in writing, and no change in the price or substance of the Bid shall be sought, offered, or permitted.

5.4 Pre-Qualification Criteria

The Pre-qualification criteria are as follows:

S.N.	CRITERIA	SUPPORTING DOCUMENTS
1	SYSTEM INTEGRATOR	
1.1	Sole Bidder must be registered under Indian Companies Act, 1956 / 2013 or partnership firms registered or under Limited Liability Partnerships (registered under LLP Act, 2008)	- Copy of Certificate of Incorporation - Registration Certificate as issued by Registrar of Firms
1.2	Sole Bidder must be in the business of IT/ITeS and should have successfully undertaken software development or IT project implementation anywhere in India atleast in 7 (seven) years prior to date of bid submission.	Work Order of the latest software development or customization or IT implementation project awarded to the Bidder for a work in India (clearly indicating date of award)
1.3	Average annual turnover of Sole Bidder; during the immediate three preceding financial years ending on 31st March 2025 which have been audited, should be at least INR 250 Cr <i>NOTE: For the purpose of this criterion, standalone turnover of only the bidding entity will be considered. Turnover of any parent, subsidiary, associated or other related entity will not be considered.</i>	- Certified copies of audited financial statements / extracts from the audited balance sheet and profit and loss statements for the last three financial years. AND - Certificate from Chartered Accountant in Practice for turnover for last three financial years.
1.4	The Net Worth of Sole Bidder should be Positive for each of the last three financial years ending on 31st March 2025.	Certificate from the Statutory Auditor/ Chartered Accountant of Sole Bidder.
1.5	Sole Bidder must have been awarded IT Turnkey Projects for Central Govt. / State Govt. / Urban Local Bodies / Government Corporations/ Government companies/ PSUs sector in India during the 7 years prior to the date of submission of bids: - One (01) project, amount > INR 50 Cr.; OR - Two (02) projects, amount for each is	- Work Order + Completion Certificates from the client OR - Work Order + Phase Completion Certificate from the client Note: Cumulative value for additional/extension/change request of new service/scheme for the same project will be

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S.N.	CRITERIA	SUPPORTING DOCUMENTS
1	SYSTEM INTEGRATOR	
	> INR 30 Cr.; OR • Three (03) projects, amount for each is > INR 20 Cr.;	considered.
1.6	Sole Bidder should have Experience of Design, Development and implementing minimum two (2) projects in delivery of citizen services or schemes in the 7 (seven) years prior to the date of submission of bid.	• Work Order + Completion Certificates from the client OR • Work Order + Phase Completion Certificate from the client
1.7	Sole Bidder must not be under a declaration of ineligibility / banned / blacklisted by any State or Central Government / any other Government institutions in India for any reason as on last date of submission of the Bid or convicted of economic offence in India for any reason as on last date of bid Submission.	• Affidavit signed by authorized signatory/ies of Sole Bidder in the format prescribed in Annexures.
1.8	Sole Bidder must have the following certifications: 1. CMMI Level 5 (in development) 2. ISO 9001 3. ISO 20000 4. ISO 27001	• Copy of the Valid Certificate issued by the Competent Authority which needs to be self-signed and stamped by the authorized signatory of Sole Bidder. NOTE: 1. In case the certificate is under renewal, the Bidder to provide the last valid certificate along with a self-declaration from authorized signatory that the renewed certificate will be made available at least by the time of opening of commercial bids. 2. In case the certificate is not provided by the mentioned time, the Bidder shall be disqualified, and their commercial bids will not be considered for evaluation. Commercial bids of such bidders will remain un-opened in the eProcurement System. 3. The CMMI certificate should be verifiable on the link: https://cmminstitute.com/pars
1.9	Sole Bidder must be registered with the Goods and Service Tax (GST) Authorities.	• Valid Goods and Service Tax (GST) • Registration Certificate.

S.N.	CRITERIA	SUPPORTING DOCUMENTS
1	SYSTEM INTEGRATOR	
1.10	Board resolution/Power of attorney in favor of authorized signatory of Sole Bidder (in the name of the person executing the bid, authorizing the signatory to commit the Bidder).	- Board resolution; OR - Power of attorney with appropriate supporting documents.
1.11	Sole Bidder must have at least 100 resources delivering IT / ITeS-related services on its payroll since 1st April 2022 to bid submission date. Sole Bidder must have at the time of bidding an office having at least 100 seats in India.	- Certificate from HR Department of Sole Bidder and PF certificate/statement needs to be submitted. - The Sole Bidder submit an undertaking for the same confirming that the bidder has at the time of bidding an office having at least 100 seats in India.
1.12	Sole Bidder shall have an office of 20 seats within the limits of Mumbai Metropolitan Region (MMR). In case the Sole Bidder, does not have an existing office, they shall submit an undertaking indicating that they shall set-up the indicated office within 15 days of being awarded the work.	- Letter from the Sole Bidder indicating their presence within the limits of Mumbai Metropolitan Region (MMR) along with complete address of the facility and contact details of facility administrator. OR - Undertaking indicating that the Sole Bidder shall open the set-up the indicated office within 15 days of being awarded the work.
		Undertaking for compliance of all labour laws

5.5 Technical Qualification Criteria

The Technical Qualification criteria are as follows (Please refer annexure for scenarios of how the TQ marks will be calculated based on the below criteria):

S.N	CRITERIA	MAX. MARKS	SUPPORTING DOCUMENTS
1	TECHNICAL QUALIFICATION System Integrator	46	
1.1	Average annual turnover of Sole Bidder during the immediate three preceding financial years ending on 31st March 2025 which have been audited, should	12	Certificate from Chartered Accountant in practice mentioning the annual turnover for the past 3 years ending as on 31 st March 2025.

	be at least INR 250 Cr.		Copy of the audited Balance sheet, for the concerned years needs to be submitted along with the Certificate.
	>=250Crores to <300 Crores	7	
	>=300 Crores to <350 Crores	10	
	>=350 Crores	12	
1.2	Sole Bidder has Experience of Design, Development and implementing minimum two (2) end-to-end Service Delivery for scheme delivery projects with State or Central Government/Government subsidiaries in 07 (seven) years prior to the date of submission of bid. If the number of projects is: (Max 8 marks) 2 Projects: 3 Marks 3 Projects: 5 Marks 4 or more Projects: 8 Marks If, value of the largest claimed project is: (max 7 marks) >=15 Crores to < 35 Crores: 5 Marks >=35 Crores: 7 Marks	15	• Work Order + Completion Certificates from the client OR • Work Order + Phase Completion Certificate from the client
1.3	Sole Bidder should have successfully delivered minimum 75,00,000 service or scheme transactions in each project with citizen interface for any of the Central/State Government / municipal corporations in the last 07 (seven) years prior to the date of submission of bid. 1 Project: 5 Marks 2 Projects: 9 Marks	9	• Work Order + Completion Certificates from the client OR • Work Order + Phase Completion Certificate from the client
PS 1.4	Sole Bidder should have successfully onboarded at least 300 citizen services or schemes for any of the Central/State Government / municipal corporations/public authorities in the	10	• Work Order + Completion Certificates from the client OR

	last 07 (seven) years prior to the date of submission of the bid. 300 to 400 citizen services/schemes: 5 Marks 401 to 500 citizen services/schemes: 7 Marks > 501 citizen services/schemes: 10 Marks		Work Order + Phase Completion Certificate from the client
2	TECHNICAL MARKING Proposed Solution	20	
2.1	Proposed solution should have been implemented or be under implementation in at least one project of citizen service or scheme delivery in at least one State/ City in India	4	- Purchase Order Copies OR Agreement Copies OR Work Order - Scope of Work (from RFP or agreement or similar document)
2.2	System proposed to be deployed as part of this project shall fulfill Functional Requirement Specifications provided to in the RFP section 12.	10	Response to Functional Requirement Specifications provided in this RFP. These are provided in the "Technical Specifications" section of this RFP NOTE: - Each 'Functional Requirement Specification' shall be responded with either 'Available' or 'Not available' labels. - Scoring for each 'Minimum Technical Specification' shall be as follows: - Available: 1 mark - Not Available: 0 marks - The total score shall be normalized to 10 marks and be considered for further evaluation. - Any of the requirements which have been answered in affirmative can be asked to be demonstrated during the technical presentation (Refer clause 2.1 of Technical Qualification criteria of this RFP)
2.3	Experience of utilizing Machine Learning or Artificial Intelligence for Central/State Government / municipal corporations/ Public authority/ Public Listed Entity (BSE/NSE) in the last 03 years from	3	Purchase Order Copies OR Agreement Copies OR Work Order and Letter from Client confirming use of AI at any stage during the lifecycle (Application to end delivery).

	the date of submission of bid. 1 Project – 1 Marks 2 Projects – 2 Marks 3 or more projects – 3 Marks		
2.4	Experience of executing projects which includes integration with following in the last 07 (seven) years prior to the date of submission of the bid. • Digi Locker – 1 mark • Payment gateway – 1 mark • UIDAI – 1 Marks	3	• Purchase Order Copies OR Agreement Copies OR Work Order. • Scope of Work (from RFP or agreement or similar document)
3	PROFILE OF PROPOSED LEAD RESOURCES	4	Proposed team members need to be made available for deployment on the project
3.1	Project Manager	1	CVs submitted NOTE: 1) Bidder is expected to highlight the following in each CV submitted: a) No. of years of relevant experience b) Details of project and role presented as part of relevant experience 2) Bidder is expected to submit only the exact no. of CVs that are required. In case additional CVs are submitted, only the required no. of CVs in the order of submission shall be considered. 3) The team members need to be on rolls of the bidder on the day of bid submission
	12 - 14 years of experience	0.15	
	14 + years of experience	0.25	
	15 + years of experience	0.5	
	Experience of managing 1 – 2 projects in Govt. sector	0.15	
	Experience of managing 3 – 4 projects in Govt. sector	0.25	
	Experience of managing 5 or more projects in Govt. sector	0.5	
3.2	Technical Project Manager	1	
	10 - 12 years of experience	0.15	
	12 + years of experience	0.25	
	15 + years of experience	0.5	
	Experience of managing 1 - 2 projects in Govt. sector	0.15	
	Experience of managing 3 - 4 projects in Govt. sector	0.25	
	Experience of managing 5 or more projects in Govt. sector	0.5	
3.3	Solution Architect	1	
	> 12 - 15 years of experience	0.25	
	15+ years of experience	0.5	
	Relevant technology certifications	0.25	
	Experience of architecting –1-2 projects for services / scheme delivery	0.15	

	Experience of architecting 3 or more projects for services / scheme delivery	0.25	
3.4	Data Architect	1	
	Degree/Certificate in relevant field of Data Science/ Data Analytics	0.5	
	5 to 7 years of experience	0.25	
	7+ years of experience	0.5	
4	APPROACH & METHODOLOGY	30	Technical Proposal
4.1	Technical Presentation	15	Presentation in accordance with the agenda below: 1. Technical Presentation on demonstration of • Understanding of requirements • Proposed Technology Solution • Overall Approach and Methodology • Handholding, Training and Capacity Building • Proposed Project Plan 1. Proposed Resource Deployment Plan- 2 Marks 2. Demonstration of a few selected functionalities answered affirmative in the section "Technical Specification" can be requested during this demonstration. – 5 marks 3. Case study of similar projects executed in the past by the Bidder– 3 marks 4. Relevant POC/prototype of project done of citizen service onboarding on a portal – 5 marks
4.2	Technical Proposal • Understanding of requirements • Proposed Technology Solution • Overall Approach and Methodology • Handholding, Training and Capacity Building • Proposed Project Plan • Proposed Resource Deployment Plan	15	Technical Proposal shall be scored out of 100 marks. Break-up of marks allocated to each point to be covered under the Technical Proposal. Marks achieved by the Bidder in Technical Proposal shall be normalized to 15 marks for the purpose of TQ Criteria evaluation. Formula that shall be used for normalization is: Normalized score = (Score of Bidder / 100) * 15. Technical Proposal.

		NOTE: 1. Bidders are expected to structure the Technical Proposal as per the instructions specified in the RFP. Technical Proposal shall have minimum of the following sections: a. Understanding of Requirements – 10 marks. b. Proposed Technology Solution – i. Mapping of functional requirements to proposed Solution – focus on pre-built libraries and- flexible workflows, easy and simplified service onboarding, how they will be utilized for project deployment, how configuration of workflows will help achieve proposed requirements (5 marks) ii. Proposed Solution Architecture – focus must be on presenting all components including application, web layer, database, integrations, etc. in logical view, process view, development view, physical view, and scenarios. Development view shall indicate pre-built and custom developed libraries, tables and interfaces at minimum (5 marks) iii. Security considerations to be deployed (5 marks). c. Overall Approach and Methodology – 20 marks (total) i. Method of on boarding citizen services, creating application forms, workflows and output certificates Appellate mechanism etc. (7 marks) ii. Proposed analytics functions – tentative list of proposed views and reports (7 marks)
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Summary of marks awarded for Technical Qualification (TQ):

		iii. Approach from transition of the system from the current to proposed system (3 marks) iv. Proposed Exit Strategy (3marks). d. Handholding, Training and Capacity Building –20 marks (total) i. Proposed Training Plan (5 marks) ii. Proposed methodology for handholding initial departments in understanding the RTS 2.0 system (5 marks) iii. Structure and tentative contents of online help section of the system (5 marks) iv. Sample TOCs of training manuals that will be prepared for this Project (5 marks). e. Proposed Project Plan (indicating timelines along with internal external dependencies, and list of Technical and Project Management documentation that will be prepared) – 20 marks. f. Proposed Resource Deployment Plan – 15 marks. 2. All sections and points specified in the RFP and required for scoring shall be covered and highlighted appropriately in the Technical Proposal submitted. Bidder is expected to refer to instructions and utilize the formats specified in Annexure of this Volume and other sections of the RFP, for the purpose of responding to this Section. 3. Technical Proposal shall be scored out of 100 marks. Break-up of marks allocated to each point to be covered under the Technical Proposal Marks achieved by the Bidder in Technical Proposal shall be normalized to 15 marks for the purpose of TQ Criteria evaluation.
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			Formula that shall be used for normalization is: Normalized Score = (Score of Bidder / 100) * 15
Criteria			Marks
Technical Qualification: System Integrator			46
Technical Qualification: Proposed Solution			20
Profile Of Proposed Team Members			4
Approach & Methodology			30
Total Marks			100

Note:

- Projects submitted by the Bidder as part of experience towards eligibility and technical qualification criteria should have been undertaken by the bidding entity as a Sole Bidder. The Bidder must submit the documentary evidence / agreement showing roles and responsibilities.
- All work order values inclusive of GST will be considered.

5.6 Evaluation

The Bids from bidders will be evaluated based on evaluation parameters mentioned below:

- This is a Quality and Cost Based Selection (QCBS). **The technical evaluation marks would be given 70% weightage and commercial evaluation marks would be given 30% weightage to arrive at a composite score.** QCBS ensures a better technical solution by assigning higher weightage to the technical process of the bidder.
- The Bidder with the highest composite score shall be awarded the Contract. However, the Purchaser reserves the right to confirm the Bidder with the highest composite score as Successful Bidder subject to approval of the Competent Authority.

The steps for evaluation are elaborated in following sub-sections.

5.6.1 Stage 1: Pre-Qualification

- The Purchaser shall validate the Set 1 “Tender Fee and Earnest Money Deposit (EMD)”.
- If the contents of the Set 1 are as per requirements, the Purchaser shall open the “Pre-Qualification Bid” (Set 2).
- Bidders would be informed of their qualification / disqualification based on the Pre-Qualification criteria through E-mail.
- Technical Bids of unsuccessful Bidders shall NOT be considered for the subsequent steps.

5.6.2 Stage 2: Technical Evaluation

- Set 3 “Technical Bid” will be evaluated only for those Bidders who succeed in Stage 1.
- The Purchaser will evaluate the Technical Bids of the short-listed Bidders to determine whether the Technical Bids are substantially responsive. Bids that are not substantially responsive are liable to be disqualified at the Purchaser’s discretion.

- The Bidders' technical solutions proposed in the Bid document shall be evaluated as per the requirements specified in the RFP and technical evaluation framework as mentioned in this RFP.
- Bidders may be asked to give demonstration of the envisaged solution to the Purchaser as per the demo scripts that shall be shared with the Bidders who qualify the Pre-Qualification Stage.
- Bidders shall present the Bid to the Purchaser as per the agenda mentioned in this RFP.
- Each Technical Bid will be assigned a technical score (adjusted to two decimal places) out of a maximum of 100 marks. Only the Bidders who get a Technical score of 70% or more will qualify for Commercial evaluation stage. Failing to secure minimum marks shall lead to technical rejection of the Bid and Bidder.
- Commercial Bids of unsuccessful Bidders shall NOT be opened in the e-Tendering Portal.

5.6.3 Stage 3: Commercial Evaluation

- The Financial Bids of technically qualified Bidders will be opened on the prescribed date in the presence of Bidder representatives.
- If a firm quotes NIL charges / consideration, the bid shall be treated as unresponsive and will not be considered.
- The Bidder with lowest qualifying financial bid (L1) will be awarded 100% score (amongst the Bidders which did not get disqualified on the basis of point b above). Financial Scores for other than L1 Bidders will be evaluated using the following formula:
 - Financial Score of a Bidder (Fn) = {(Commercial Bid of L1/Commercial Bid of the Bidder) X 100}
 - *Adjusted to two decimal places.*
- Only fixed price financial bids indicating total price for all the deliverables and services specified in this bid document will be considered.
- The bid price will include all taxes, duties, charges and levies payable under respective statutes, except GST (Goods and Services Tax) and shall be in Indian Rupees and mentioned separately.
- Any conditional bid would be rejected
- Errors and Rectification: Arithmetical errors will be rectified as per the details provided in section 4.30 of this RFP.

5.6.4 Stage 4: Combined and Final Evaluation

- The technical and financial scores secured by each Bidder will be added using weightage of 70% and 30% respectively to compute a Composite Bid Score.
- The Bidder securing the highest Composite Bid Score will be adjudicated as the most responsive Bidder for award of the Project. The overall score will be calculated as follows: -
- $B_n = 0.70 * T_n + 0.30 * F_n$

Where

B_n = overall score of Bidder

T_n = Technical score of the Bidder (out of maximum of 100 marks)

F_n = Normalized financial score of the Bidder

- In the event, the highest composite bid scores of more than one Bidders are 'equal', the Bidder securing the highest Technical Score will be adjudicated as the Successful Bidder for award of the Project.

Even though the Bidders meet the above qualifying criteria, they are subject to be disqualified if they have:

- Made misleading or false representation in the forms, statements and attachments submitted in proof of the qualification requirements; and/or
- Record for poor performance such as abandoning the works, not properly completing the contract, inordinate delays in completion, litigation history, or financial failures etc.

Note: All the proforma given in the document needs to be filled.

6 Award of Contract

6.1 Award Criteria

The Purchaser will award the Contract to the Successful Bidder whose Bid has been determined to be substantially responsive and has been determined as the most responsive Bid as per the process outlined in the previous section.

6.2 Right to Accept Any Proposal and To Reject Any or All Proposal(s)

The Purchaser reserves the right to accept or reject any Bid, and to annul the Tendering Process and reject all Bids at any time prior to award of Contract, without thereby incurring any liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders of the grounds for the Purchaser's action.

6.3 Notification of Award

Prior to the expiration of the validity period, Purchaser will notify the Successful Bidder in writing by email that their Bid has been accepted by issuing a Letter of Intent (hereinafter referred to as "LOI"). In case the Tendering Process has not been completed within the stipulated period, the Purchaser, may request the Bidders to extend the validity period of their Bids.

The decision to extend the validity period of their Bid shall be the Bidder's sole prerogative.

6.4 Contract finalization and award by the Purchaser

The Purchaser shall reserve the right to negotiate with the Successful Bidder whose Proposal has been ranked best value bid on the basis of Technical and Commercial Evaluation to the proposed Project, as per the guidance provided by Central Vigilance Commission (CVC), and procurement rules and guidelines of the Government of Maharashtra and the Government of India. On this basis the draft contract agreement would be finalized for award and signing.

6.5 Performance Bank Guarantee (PBG)

Within thirty (30) days from the date of issuance of LOI, the Successful Bidder shall, at their own expense, submit an unconditional and irrevocable Performance Bank Guarantee (hereinafter referred to as "PBG") to the Purchaser.

The Performance Bank Guarantee shall be for an amount equivalent to ten (10) % of Total Contract Value. The PBG shall be from a Nationalized Bank or a Scheduled Commercial Bank in the format prescribed in the RFP, payable on demand, for the due performance and fulfilment of the Contract by the Bidder. and shall have an extended validity of a hundred and eighty (180) days after end of the Operation and Maintenance (O&M) phase.

If required, Sole Bidder / Lead Bidder may have to extend the validity period of Performance Bank Guarantees, without any condition, as per the directions of the Purchaser. In the event of any Contract amendment, the Bidder shall, within thirty (30) days of receipt of such amendment, furnish the revised PBG, rendering the same validity for the duration of the Contract, as amended.

In case the Successful Bidder fails to submit Performance Bank Guarantee within the time stipulated, the Purchaser may at its sole discretion cancel the Letter of Intent (LOI) without giving any notice and encash the EMD furnished by the Bidder, in addition to any other right available to it under this RFP. The PBG furnished

by the successful Bidder shall be in the manner prescribed in Annexures of this RFP. The Successful Bidder shall ensure, the PBG is valid at all times during the Term of the subsequent Contract (including any extensions; if any) and for the extended periods beyond all contractual obligations (as specified in the RFP), including warranty terms.

The Purchaser may invoke the PBG in the event of a material breach by the Successful Bidder leading to termination for material breach.

In the event of the Bidder being unable to service the Contract for whatever reason(s), the Purchaser shall have the right to invoke the PBG Notwithstanding and without prejudice to any rights whatsoever of the Purchaser under the Contract in the matter, the proceeds of the PBG shall be payable to the Purchaser as compensation for any loss resulting from the Bidder's failure to perform / comply its obligations under the Contract.

The Purchaser shall notify the Successful Bidder in writing of the exercise of its right to receive such compensation within 40 days, indicating the contractual obligation(s) for which the Bidder is in default. The Purchaser shall also be entitled to make recoveries from the Bidder's bills, Performance Bank Guarantee, or from any other amount due to him, an equivalent value of any payment made to him due to inadvertence, error, collusion, misconstruction, or misstatement.

In addition, PBG shall be invoked by the Purchaser, in the events where the Bidder:

- a) Fails to meet the overall penalty condition as mentioned in the RFP or any changes agreed between the parties,
- b) Fails to perform the responsibilities and obligations as set out in the RFP to the complete satisfaction of the Purchaser,
- c) Misrepresents facts / information submitted to the Purchaser.

The Performance Bank Guarantee may be discharged / returned by the Purchaser upon being satisfied that there has been due performance of the obligations of the Bidder under the Contract.

NO interest shall be payable on the Performance Bank Guarantee

6.6 Failure to agree with the Terms and Conditions of the RFP

Failure of the Successful Bidder to agree with the Terms and Conditions of the RFP shall constitute sufficient grounds for the annulment of the award, in which event the Purchaser may award the contract to the next best value bidder or call for new proposals.

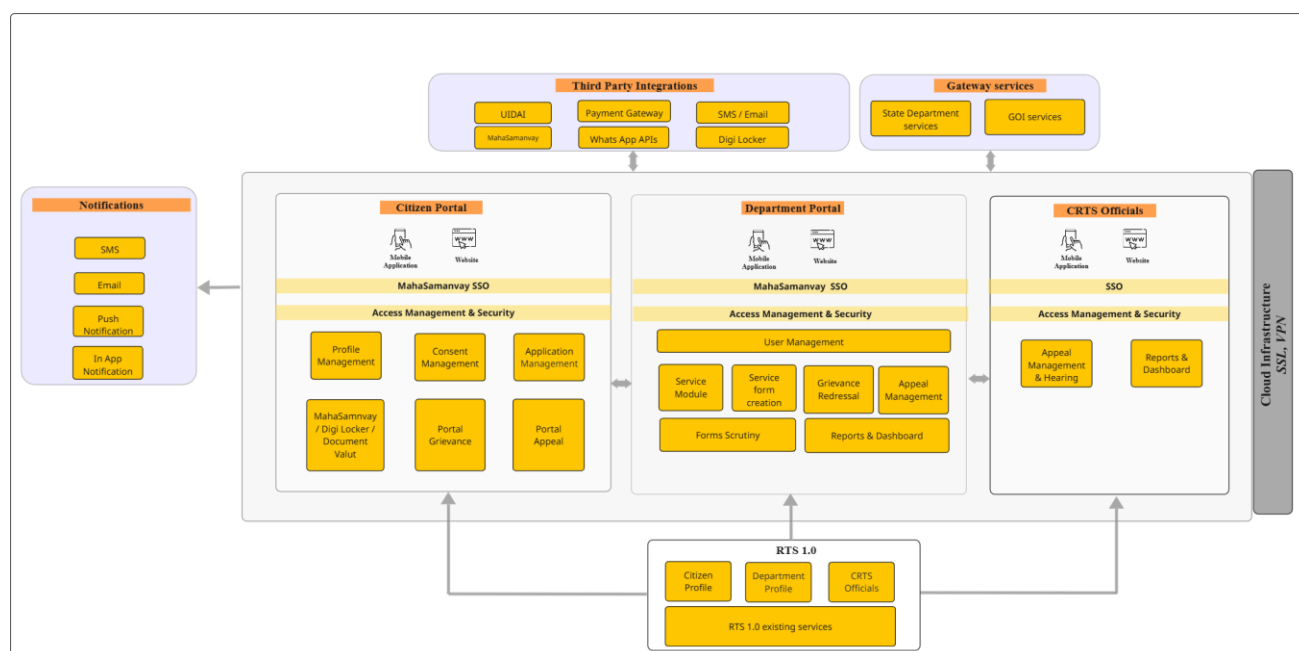
In such a case, the Purchaser shall invoke the PBG of the Successful Bidder.

7 Scope of Work

7.1 Architecture of Aaple Sarkar 2.0

The proposed overall solution framework is presented in this section, depicting the overall 'Big Picture' of the functional modules and their inter-relationships. This would be used as a communication tool that provides a snapshot of the overall goal / direction to be taken up for implementation of Aaple Sarkar 2.0 portal to which all the stakeholders could relate to. The proposed Aaple Sarkar 2.0 portal should have complete integration between different modules and an efficient data sharing mechanism so that each module can showcase a complete automated functionality for a seamless backend processing.

The indicative diagram below shows the architecture and main functional modules of RTS Aaple Sarkar 2.0 portal.



This section outlines the scope of functional modules for the proposed RTS 2.0 portal which includes configuration, customization/development, testing, deployment, and maintenance:

The selected bidder should propose a comprehensive solution where the entire RTS 2.0 workflow should be configurable. All upgradations / customizations / maintenance to the solution would be the responsibility of the selected bidder for the duration of the contract period. Post completion of the contract period, the entire source code for the platform and all relevant rights is to be handed over to the purchaser with knowledge transfer. The selected bidder will provide relevant documentation for the same as part of the handover.

If any services are not able to onboard due to existing workflow of the configurable solution, then the selected Bidder has to customize the requirement and modify the framework accordingly.

It is proposed that in future, there must be one core modular, fully integrated, and automated RTS Aaple Sarkar 2.0 portal for Government of Maharashtra, having interface for various types of Users viz. Citizens, Department/Government officials, Village Level Entrepreneurs (VLE's), Department/ Regional Heads, Commissioners Right to Services. A Central Project Management Unit (CPMU)/ Administrator will be responsible for all the operations & management of the Aaple Sarkar 2.0 Portal. The responsibility for

onboarding services on RTS 2.0 lies with the user departments. The selected bidder must provide training and support to both the user departments and Purchaser. If a user department is unable to configure the service on RTS 2.0, the MahaIT / DIT team will assist them in doing so post Go Live. Prior to Go Live, any assistance required by user departments will be provided by the selected Bidder.

Also, it comprises of specifying the construction details of the system, each system component's interaction with other components and external systems, and the interface that allows end users to operate the system and its functions.

The solution proposed should be developed in such a manner that it is not be dependent on any native services of CSP proposed by selected Bidder. The solution should be compatible with other CSPs.

7.1.1 Delivery Channels

The following delivery channels have been proposed for service delivery by the Departments in the proposed system.

Channel	Stakeholders	Description
Web Portal	• Citizens • Department officials • VLE • CRTS • Department/Regional Heads	A web portal of Aaple Sarkar 2.0 to provide end-to-end service delivery. The web portal would be accessed by all stakeholders of the system on digital platform. The new portal should have fluid web designs, interactive and user-friendly interfaces, compatible with all the internet browsers, resolutions, and platforms.
Mobile Application	• Citizens • Department officials • VLE • CRTS • Department/Regional Heads	A Lite version of the Aaple Sarkar 2.0 portal should be available for smart phones. The stakeholders shall be able to avail all the services through the Mobile application installed on the user's mobile handset. The mobile application shall be compatible with both Android and iOS platforms. It shall have all the features and modules as that on the website.
Aaple Sarkar Seva Kendra (ASSK/ Setu Kendra/ VLE)	• Citizens	Digitally enabled Aaple Sarkar Seva Kendra (ASSK) and Setu Kendra – a single window access at ground level. Citizens can visit their nearest Aaple Sarkar seva kendra/ Setu Kendra to avail notified services. The ASSK has the ability and capacity to assist citizens for all the service delivery and queries. The transaction fees would be paid to the Aaple Sarkar Seva kendra operator. The ASSK/ VLE would also be offering Doorstep delivery to citizens.
Chatbot messaging	• Citizens • Department officials • VLE • CRTS • Department/Regional Heads	A chatbot would be available on the website, mobile app as well as the kiosk to provide government services information and increase accessibility. The chatbot would also guide the user in booking a Doorstep delivery service, finding & applying to a certain service, feedback on service availed etc. The chatbot shall be an AI (Artificial Intelligence) enabled chatbot where the chatbot will be populated with historic data to have contextual awareness as well as use machine learning to answer all dynamic queries raised.
Call Centre	• Citizens • Department officials • VLE • CRTS	The call center will cater to inbound calls for the following three purposes, Information of a service: These calls will be made to avail Aaple Sarkar portal services related information through

Channel	Stakeholders	Description
	Department/Regional Heads	call center executive. Applicants would be provided with information of the service like how they can apply to the service, documents required for the service, fees, etc. The applicants will also be guided about their nearest ASSK/ Setu Kendra details. Additionally, the ASSK's would be provided the details of the citizen (if they opt for the same) who are willing to avail Departmental service through the ASSK. The applicant can also book a Doorstep service delivery by contacting the call centre. Support/Helpdesk: The call centre services will also provide help/support/assist to the applicants for the issues faced while availing the services. The centralized helpdesk module will be established to capture all the support queries and the responses.
IVR	- Citizens - VLE	IVR (Interactive voice response) using advanced speech recognition with state-of-art NLU (natural language understanding) and integrating Bhashini to provide service information, service application status information, feedback and surveys, etc. digital services in the regional language.
Self-service Kiosk	Citizens	Self-service Kiosk would be available to deliver new standards of convenience and efficiency for the citizens in availing services. Self-service Kiosk would be fully automated for easy use by citizens. All the notified services available on Aaple Sarkar 2.0 portal would be made available on self-service kiosk that would be setup in MahaIT approved sites.

7.1.2 Stakeholders of Aaple Sarkar 2.0 Portal

As shown in the architecture, it is proposed that the integrated core RTS Aaple Sarkar 2.0 portal should have following access points:

1. Citizen user interface (service application module)
2. Department user interface (service application scrutiny and appeal management module)
3. Village level entrepreneur (VLE) user interface (service application module)
4. Appeal Management interface for CRTS / Department Heads/ Regional Heads
5. Monitoring dashboard for CRTS/ Department Heads/ Regional Heads
6. Central Project Management Unit (CPMU) interface (for configuration of all of the above including users, levels, services, scrutiny levels etc)

Definitions:

The terms (and their definitions) used below are used for ease understanding and restricted to the context of this document.

1. **Government or State Government:** "Government" or "State Government" means the Government of Maharashtra;

2. **Department:** “Department” means a Department of the State Government or of a Public Authority, as the case may be;
3. **Public Authority:** Public Authority means,-
 - a. any Department or authorities of the Government;
 - b. any organization or authority or body or corporation or institution or a local authority, established or constituted,—
 - i) by or under the Constitution of India, in the State;
 - ii) by any other law made by the State Legislature;
 - iii) by notification issued by the Government;
 - c. and includes,—
 - i) an institution, a co-operative society, a Government Company or an authority owned, controlled or financed by the State Government; or
 - ii) any non-Governmental organization receiving financial assistance from the State Government;
4. **Department user:** A Department user means an officer who is required to provide public services to the eligible person. The officer may belong to a Department of the State Government or of a Public Authority.
5. **Citizen user:** The citizen user means any “Eligible Person” as mentioned in the Maharashtra Right to Services Act, 2015. “Eligible Person”, means a person who is eligible for obtaining a Public service and also includes a legal person as per the definition in the Maharashtra Right to Services Act, 2015.

7.1.3 Onboarding of Departments in RTS 2.0 Aaple Sarkar

The proposed solution should be capable of seamless onboarding of government Departments providing citizen services on Aaple Sarkar 2.0 Portal. Government Departments with respect to Aaple Sarkar are majorly categorised as:

- i. Standard Departments
- ii. Gateway Departments

Standard Department: Standard Departments are those which are integrated and are a part of the Aaple Sarkar portal 1.0. An applicant can apply to the services offered by these Standard Departments on the Aaple Sarkar portal itself. Now, the service delivery mechanism for each of these Standard Departments is to be revisited & developed along with the revamping of the Aaple Sarkar portal.

In case of these Departments, the System Integrator’s scope (SI) shall include developing the service application management, scrutiny workflow, appeal management workflow, grievance redressal, dashboards & reports, feedback and suggestions mechanism, Department user interface, payment gateway, notification & alert mechanism, user registration & sign on modules and any other aspect included in an end-to-end service delivery mechanism as a part of Aaple Sarkar 2.0 portal.

Gateway Department: The Gateway Departments are those Departments, who have their own independent website/ application/ portal providing end-to-end delivery of their services. SI would be responsible to develop the comprehensive Application Program Interface (API) to integrate with these Gateway Departmental website/ application/ portals ensuring bidirectional data flow/ status exchange with them. The Appeal management (as elaborated in section – 7.2.2.8) would be applicable to both Standard Department and Gateway Department services. The API should ensure real time updates with respect to information like number of notified services applications (according to the RTS Act 2015) received, number of notified services

applications disposed of & number of notified services applications ongoing and all other details pertaining to the notified services as are expected from the Standard Department offered services.

The scope of the SI should be preparing the end-to-end service delivery mechanism for the existing Standard Departments and bi-directional integration of Gateway Departments through API. It shall be noted that the SI would be responsible for training & undertaking capacity building of the administrator/ CPMU who would be responsible for future onboarding of Standard and Gateway Departments.

7.1.4 Service Enablement by SI

In the envisaged new RTS Aaple Sarkar 2.0 portal, the SI shall be responsible for service enablement process of enhancing and expanding the range of government services available to citizens through the single one stop window (on Aaple Sarkar 2.0 portal) where the citizens can access all the government services.

7.1.4.1 Services on Aaple Sarkar 2.0 portal

- As described in section 7.1.3 pertaining to the development of end-to-end service delivery mechanism of Standard Departments, the SI shall consider the following: The SI should migrate the data of the services (offered by Standard services) already being digitized on the Aaple Sarkar 1.0 portal to the database of new RTS 2.0 Aaple Sarkar portal for the citizens or department officials, wherever the services are end to end digitalized. In case, services are not yet digitalized end to end on Aaple Sarkar 1.0, these services need to be configured on Aaple Sarkar 2.0 Portal. For Standard Department services, the citizens shall be able to complete their application procedure for a service and the department official shall be able to process (scrutinize) the same (end-to-end) within the Aaple Sarkar 2.0 portal itself (As is done in existing Aaple Sarkar 1.0 portal).
- SI is expected to provide a configurable workflow engine, which will be used by Department Administrators for configuration of services on the portal from the front, without any coding and backend intervention.
- In case any new notified service is to be offered by a Standard Department, the CPMU (administrator) or Department administrator shall be responsible for preparing the application workflow of the service. The CPMU or Department Administrator will be responsible for cooperating with the concerned Department while configuring the new service's application workflow. The configuration of a new service workflow shall involve but not be restricted to the following:
 - a. Defining Citizen Service – Name, short Description, Gazette notification, etc.
 - b. Define levels of Scrutiny for each service application (as per Department's requirement).
 - c. Configure desks for each scrutiny level.
 - d. Configure Acceptable documentation/parameter for service delivery (as per Department requirement).
 - e. Configure of Forms and Fields, integration/validation with Third party databases such as PAN, Aadhaar etc.
 - f. Defining the status – Approve, in Process, Query Raised, Reject, etc.
 - g. Payment- Fee structure
 - h. Generation of the Document/ Certificate of the applied service.

The SI's solution should be efficient enough that the creation and onboarding of new notified services workflows (on Aaple Sarkar 2.0 portal) by the CPMU can be done within minimal time by configuration on front end, without any backend development.

- In case of Gateway Department notified services, the proposed solution's integration shall be such that it redirects the citizens to the Gateway Department's website/ application/ portal to complete the procedure of their application (offered by Gateway Departments).
- As for the role of CPMU for any Gateway Department service, the role would be restricted to:
 - a. Integrate the Gateway Department in Aaple Sarkar 2.0 portal such that the citizen gets redirected to the Gateway Department's website/ application/ portal. (Citizen application Form, Department workflow scrutiny is performed outside Aaple Sarkar 2.0)
 - b. Define Citizen Service – Name, short Description, Gazette notification
 - c. Status of the application would be exchanged through API integration.

- d. Sharing of the issued service or certificate from the Gateway Department's website/ application/ portal into the citizen's (Aaple Sarkar 2.0 portal) account.
 - e. Sharing of information as required by RTS MIS.
- The list of existing citizen services (Standard and Gateway) available on Aaple Sarkar 1.0 is enclosed in the Annexure for reference (Annexure-1).
- The SI shall prepare a comprehensive inventory of all the notified services available on the existing Aaple Sarkar portal (offered by both, Standard & Gateway Departments) and record each service's details including application processes, required documents, eligibility criteria, and service-specific /guidelines, etc.
- Using robust APIs to facilitate data transfer and communication between the new portal and the backend systems of each notified service (Standard & Gateway), the SI shall create a data migration plan to transfer all relevant service data, including existing user profiles (1,25,00,000 unique user profiles), application histories, and service-related information, from the old portal to the new one.
- The SI shall Implement a phased rollout approach where
 - All "Notified and digitized services" to be migrated in implementation phase prior to go-live.
 - "To-be notified services" are on-boarded in operations phase based on priority of the department.
- The SI can suggest & discuss with the Departments to implement process automation using workflow management tools, Artificial intelligence, machine learning, blockchain and algorithms to reduce manual intervention, minimize processing times, and ensure consistent service delivery.

7.1.4.2 Third Party Services (Utility Payment)

- The proposed Solution shall provide facilities for the citizen/ VLE to make payment of other utility services of the Government. The portal shall provide Government utilities payments including but not limited to Payment of Water Bill, Property tax, Electricity Bill, Mahanagar gas bill etc.
- By clicking on each utility bill payment, citizens should be required to fill in the requisite information pertaining to the utility service. The citizen's basic/demographic details if applicable would be auto fetched from the RTS Aaple Sarkar 2.0 profile details as elaborated in section 7.2.2.3 of this document.
- Establishing collaborations and partnerships with these utility service providers to enable payment integrations with the Aaple Sarkar 2.0 portal.
- The integration with payment gateway would be required such that it supports various payment methods (e.g., credit/debit cards, net banking, mobile wallets, UPI's) to facilitate utility bill payments. The detailed scope for payment gateway is elaborated in section 7.2.2.14 of this document.
- SI should be developing APIs or data integration mechanisms to exchange utility bill data from respective service providers in real-time. This ensures accurate bill amounts are reflected on the Aaple Sarkar 2.0 Portal and ensures timely updates pertaining to the same.

7.1.5 Integration with Third party applications & Databases

The proposed solution should be capable of seamless integration with internal and external systems/agencies to allow for exchange of data and communication with those systems. The primary integration of new RTS 2.0 Aaple Sarkar portal would be with Aaple Sarkar 1.0, Maha DBT system, Payment Gateways, UIDAI and

MahaSamanvay system. The new RTS Aaple Sarkar 2.0 portal shall allow flowing/exchange of data for effective utilisation of the citizen data.

SI shall also have a provision for integration with other external systems/agencies. SI must design the APIs for the same. Also, integrate mapping services to provide citizens with location-based information, such as the nearest Aaple Sarkar Seva Kendras/ VLE service centres or government offices. The major third-party databases/ applications/ systems/ portals, shall include but shall not be restricted to:



Sr. No	Illustrative Data Source
1	Aaple Sarkar 1.0
2	MahaSamanvay (prev. MHUCDH)
3	Aadhaar, Maharashtra
4	DigiLocker
5	MahaDBT
6	Property Card
7	Vahan
8	7/ 12 Mahabhulekh
9	Caste Certificate
10	Sevaarth
11	MahaVitaran
12	Sarathi
13	MAITRI
14	All other government applications & databases

7.2 General components and design, development, customization & features of Aaple Sarkar Portal 2.0 and stakeholder interface

7.2.1 General Portal Interface

The Aaple Sarkar 2.0 portal's general interface shall be accessed by all the stakeholders right from the citizen, Village Level Entrepreneur, Department officials to Department/ Regional Governance Heads and the

Commissioners Right to Services. Hence the portal should be designed with a focus on ease of use, content availability, accessibility and information security and privacy.

The portal shall ensure the following attributes:

1. Configurability

The Aaple Sarkar 2.0 portal should be developed to enable users to configure all aspects of service onboarding, service application form, service application parameters, service application documents, scrutiny users, scrutiny levels and delivery mechanism using no coding mechanism (no backend intervention).

2. Responsive Design

The portal should be responsive across various devices such as desktops, laptops, tablets, and smartphones, to ensure seamless access for all users. It should also ensure utilization of auto-format while designing the portal to provide device independence for adjustment across tablets, iPads, mobiles etc.

3. Browser Adaptability

The portal should work efficiently across all the mainstream internet browsers like Google Chrome, Mozilla Firefox, Opera, Safari, etc.

4. Multi-language Support

For the ease of understanding and to improve accessibility, the option to switch between the English, Marathi or the Hindi language shall be provided. The Aaple Sarkar 2.0 should be integrated with Bhashini (MeitY, Gol) for other language support.

5. Accessibility

The portal shall be designed with accessibility standards in mind, ensuring all users, including those with disabilities, can access and use the services. Features such as adjustable font sizes & colour contrast, key board navigation, text to read and speech to text should be integrated to improve accessibility.

6. Search Engine Optimization

Information should be organized logically, and the portal should have an efficient search function to help users find what they need quickly. Along with a search bar function, single or multiple filters shall be provided to easily search the necessary services (citizen/ business services or category of services) shall be provided.

7. Clear Navigation

The design shall have a well-organized navigation bar that is easy to understand and allows users to quickly find the information they're looking for. Use clear labels and consider grouping related pages together. Sections should include Home, About Us, Services, Dashboard, Business, Appeal, FAQs, Contact Us, Ease of Doing Business etc. The portal shall also provide a site map of the portal.

8. User-Friendly Interface

The portal shall have a clean, intuitive, and easy-to-navigate interface that allows users to access the information and services they need without confusion. The portal's interface shall harbour the following components:

- The homepage/ landing page of the portal should have all the necessary information and clear sections for sign in/ log in (for citizens/ Department officials/ VLEs/ CRTS/ Department/ Regional Heads). This section would comprise of a single sign on mechanism which is described in 7.2.2.1.
- A section denoting the number of Departments and Public Authorities onboarded, the number of notified services (along with the number of services offered online out of the total notified services), number of citizen registrations and number of VLE registrations.
- A section displaying newly onboarded services.
- A section displaying popular or most availed services.
- Services according to various categories (e.g., Health & Well Being services, Transport, Agriculture, Water, Utility Payments, Ease of Doing Business etc.)
- A section to access 'track application' for citizens.
- A section to access 'Authenticate your certificate' facility enabling the applicant to verify their document/ certificate.
- A section for the user to file a complaint regarding any aspect pertaining to service delivery.
- A section for the user to provide feedback about their experience on the portal.
- Any other section that might be relevant.

Find my service:

- The proposed solution should create a 'Find my Service' feature on the general portal interface.
- The feature should involve a convenient three- step process for the citizens where government services relevant to them will be recommended:
 - Step 1 - The user enters his / her attributes such as demographic, income, social details, etc.).
 - Step 2 – The RTS Aaple Sarkar 2.0 portal finds the relevant services from hundreds of services for the user.
 - Step 3 - The user can select from the list of suggested services, get more information about the service and even apply to the same (after logging in).

9. Content Availability

Availability of information of last updated timestamp on each page of the portal as of current year and availability of statistics about website usage by no. of visitors should be ensured.

10. General Dashboard

A dedicated dashboard will be a part of the portal, for citizens to view all the statistics pertaining to the services and the government agencies. This dashboard will show real-time data and shall be continuously updated.

The portal's dashboard should encompass the following information in the form of text and infographics:

- a. Total number of citizen (user) registration on the portal (Cumulative 5 years). (Infographic- Line graph format).
- b. Total number of applications (applied through the portal) received till date. (Cumulative 5 years) (Infographic- Line graph format)
- c. Total number of notified services that can be availed online according to the number of Departments integrated/ onboarded. (Till date) (in a table format)
- d. Total number of notified services that can be availed online according to the number of Urban local bodies integrated/ onboarded. (Till date) (in a table format)
- e. Total number of notified services that can be availed online according to the number of Rural local bodies integrated/ onboarded. (Till date) (in a table format)
- f. Any other relevant statistical representations as determined by the Purchaser from time to time.

11. Contact Information

The portal shall display the contact details of the toll-free call centre, email support, address of Divisional RTS offices and the central RTS office and other necessary contact information. This information shall be prominently visible, making it easy for users to get in touch if they have questions or concerns.

12. User Support and Help Resources

The landing page/ home page shall have access to comprehensive help resources like, FAQs, user guides, call centre details.

13. Visual Content

Incorporate images, videos, infographics, and other visual elements to engage users and convey information more effectively.

14. Useful/ Important Links

A section shall be available portraying all the relevant and important links for the user to access the same.

15. Disclaimer & Policy

The portal shall provide a section for viewing the disclaimers, Terms of Use and the web policy.

7.2.2 General Components

The Aaple Sarkar portal 2.0 shall have various levels of user access along with different but defined roles and responsibilities. Each of this user access will have a defined set of features and user interface modules but some of these modules shall be common across all the levels of user access. The following modules which shall be common for all levels of user access i.e., at the citizen user, village level entrepreneur user, Department user, Commissioner Right to Services and Department/ Regional Head levels.

7.2.2.1 User Registration and Single Sign on

Citizen Login

The proposed solution should be integrated to the MahaSamanvay (Previously MHUCDH) SSO which can provide the following options to citizen to login on Aaple Sarkar portal

1. By using Aadhaar Number
2. By using MahaID
3. By using Username & Password

The new user registration on Aaple Sarkar portal shall be done through the MahaSamanvay SSO only.

For Department login (Department Head, Regional Head)

The proposed solution should be integrated with the MahaSamanvay SSO portal, allowing department users to log in using their existing username and password.

For VLEs

The proposed solution should be integrated to the MahaSamanvay SSO with their existing username & password to login on Aaple Sarkar 2.0 portal

Disclaimer

For SSO there will be no license cost, licenses are already purchased under MahaSamanvay project, only integration will be done in Aaple Sarkar 2.0

Each of the users across all the levels shall have the user registration module, however, the requirement of information shall vary according to the roles of the user. The process and information field/ requirements for each of the user during a new registration are listed below:

1. Citizen user:

a. New Citizen user:

- The proposed solution should have one time user registration for RTS Aaple Sarkar 2.0. using MahaSamanvay Single Sign on application. The citizens shall be able to Login using their Aadhaar Number, MahaID, User Name, password, etc..
- The necessary disclaimers shall be provided to the citizen on the Sign in page.

b. Existing Citizen user (on Aaple Sarkar 1.0):

i. Department user:

- In case of the Department users, the proposed solution should have one time registration for RTS Aaple Sarkar 2.0 using MahaSamanvay Single Sign on application.
- Note: The existing user data of Department users from Aaple Sarkar 1.0 portal shall be migrated to the new portal by the SI.
- If the Department user does not have a MahaSamanvay SSO login, such user will have to register for the same.
- Also, for the registration of a new Department user, the Designated officer of the concerned Department shall convey the same to the Administrator (CPMU) who shall then record the required details for profile management purposes.
- The solution shall be able to authenticate and authorize the Department users to login via role-based access.
- Any changes in the Department user login will be conveyed to the Administrator by the concerned Department.

2. VLE user:

- In case of VLE login, the process shall be such, that the applicant willing for being a VLE, shall apply for the necessary permissions and approvals to the concerned District Administration. The District Administration shall then conduct due scrutiny and on approval send the required details to the Central Project Management Unit (CPMU).
- The details to be provided by the district administration to the CPMU shall include valid phone number, full name, VLE's residence address, VLE's office address, district, taluka, email ID and other details.
- The VLEs shall be able to login using their existing log in credentials/ MahaSamanvay credentials to log in SSO.
- If the VLE user does not have an existing account/ MahaSamanvay, such user will have to register for the same.

3. CRTS user: (The process as described for department User)

- If the CRTS user does not have a MahaSamanvay SSO account, he shall register for the same.
- The solution shall be able to authenticate and authorize the Commissioners to login via role-based access.
- Commissioners for Right to Services shall be accorded the rights to perform the required business operations according to the roles and authorized functionality.
- Any changes in the CRTS login will be conveyed to the Administrator by the concerned Commissioner.

4. Department/Regional Head user:

- MHUDDH SSO functionality for the Secretary (& above), Divisional Commissioner, District Collector, CEO Zilla Parishad and the Municipal commissioner (or equivalent) shall be made available.

7.2.2.2. Access Management and Security

Implementing access management for role-based user logins in the Aaple Sarkar 2.0 portal shall be a crucial aspect for maintaining security and ensuring that all the users have appropriate permissions based on their roles and responsibilities. Below is a general outline of the components to be involved in setting up role-based access management:

1. User Authentication:

The proposed solution shall offer a robust user authentication mechanism. This could involve integration with MahaSamanvay SSO.

2. User Roles and Permissions:

The solution should define the roles that all the users can have within the portal. The role-based access shall include "Citizen," "Village Level Entrepreneur (VLE)", "Department user", "Commissioner for Right to Service (CRTS)", "Department or Regional Head", & "Central Project Management Unit (CPMU)". The solution should allow the administrator, in this case the CPMU, to assign specific permissions to each role, based on the actions, they should be allowed to perform on the portal.

3. Role-Based Access Control (RBAC):

The solution should allow the CPMU to implement RBAC to manage access to different parts of the portal. RBAC ensures that various users can only access the features and data that are relevant to their roles. This can be achieved by associating each user with one or more roles.

4. Authorization Mechanism:

The solution should consist of an authorization mechanism that enforces permissions based on the user's role. When a user tries to perform an action, the system should check their role and the associated permissions to determine if the action is allowed.

5. User Profile and Role Assignment:

The solution should be developed with an admin interface, in this case the CPMU, where administrators can assign roles to or change roles of users. This could involve selecting roles from a predefined list and associating them with specific users.

6. Secure User Data:

The solution should ensure state of the art security with respect to handling, processing & storage of sensitive user data, such as passwords and personal information. Use of industry-standard encryption practices to protect this information shall also be mandatory.

7. Performance Audit Trails and Logging:

The solution should provide for implementation of logging and audit trails to track various user performance & activities within the portal. The right to conduct audit trails and logging shall be given to the CPMU. This shall help in improving service delivery operations, facilitate decision making by the competent authority with responsibility to oversee or initiate corrective action, and contribute to accountability. This shall also enable monitoring and identifying of conventional and any unauthorized access or suspicious activities.

8. Error Handling:

The solution shall be developed with proper error handling mechanisms to manage situations where users attempt to access resources, they don't have permission for.

9. User Training and Documentation:

The System Integrator (SI) shall prepare detailed documentation and conduct training for users and administrator (CPMU) to understand the role-based access system, how permissions work, and how to use the portal securely. Said documents shall be prepared in English and Marathi with relevant diagrams and user flows with updated screenshots of the portal by the SI and submitted to the Purchaser for review.

10. Scalability and Performance:

The solution shall ensure that the access management system is designed to handle a growing number of users and roles without compromising performance or security.

11. Ongoing Maintenance:

The System Integrator (SI) shall continuously provide security updates, patches, or improvements for the system. As the portal shall evolve, the access management system should be updated accordingly.

7.2.2.3. Profile Management

The proposed solution should have capabilities to create profile of all stakeholders in RTS Aaple Sarkar 2.0. The profile management would vary for each of the stakeholders based on their roles defined in the system. The below section elaborates the creation/updating of user profiles for each of the stakeholders of Aaple Sarkar 2.0.

1. Citizen Profiles

- The Citizen user profiles already created in Aaple Sarkar 1.0 need not be created again in RTS Aaple Sarkar 2.0. These are expected to be migrated from Aaple Sarkar 1.0 to Aaple Sarkar 2.0 by the SI before go-live. Only the additional information shall be requested from the citizens. If a citizen already exists in Aaple Sarkar 1.0, he must validate his profile using MahaID/Aadhaar no./PAN/Driving license against their profile. For new users, MahaID/Aadhaar no./PAN/Driving license authentication is required to create a new profile.
- To manage the unique profile of every user, the platform shall maintain the following key information for each citizen on the platform including demographic data such as Age, Gender, Date of Birth (minimum 1-year age), Profile Picture, Occupation (drop down), Education (drop down), etc. These will be fetched from MahaSamanvay in the Aaple Sarkar 2.0 portal. These fields shall be dynamic in nature and will be updated from time to time as necessary by fetching latest data from MahaSamanvay. Profile data filled by the user shall be helpful while availing of any services on RTS Aaple Sarkar 2.0 since the profile details can be fetched and auto populated.
- Citizens shall have provision to verify their identity through MahaID/PAN/ Aadhaar Number/ Driving License before proceeding further with the application This would be the mandatory step for the citizens.
- Note: The charges as applicable and levied for authentication and verification of any of the above-mentioned documents by their concerned regulating authority is to be borne by the MahaIT for the Contract period and may be budgeted for in the Total Contract value of this Project.

- Profile management should provide the facility to the citizens to update, enrich, & modify their profile data at any given point of time.

2. VLE Profiles

- The VLE onboarding would be through CPMU as elaborated in section 7.3.
- The VLE user profiles already created in Aaple Sarkar 1.0 need not be created again in RTS Aaple Sarkar 2.0. These are expected to be migrated from Aaple Sarkar 1.0 to Aaple Sarkar 2.0 by the SI before go-live. Only the additional information on top of the information migrated, shall be filled by the VLE.
- The new VLE users shall create profiles of themselves after signing in which would have details such as – Name, Residential address, Contact No., email ID, Aaple Sarkar Seva Kendra location along with GPS (as provided to the concerned District authority and CPMU), Wallet details, etc.
- Profile management should provide the facility to the VLEs to update, enrich, & modify their personal data, which may require verification and approval of district administrative authority, CPMU and/ or of any other competent authority.

3. Department user Profiles:

- The Department user profiles already created in Aaple Sarkar 1.0 need not be created again in RTS Aaple Sarkar 2.0. These are expected to be migrated from Aaple Sarkar 1.0 to Aaple Sarkar 2.0 by the SI before go-live. Only the additional information on top of the information migrated, shall be requested from the user.
- The new Department users shall have profile details prepopulated after signing in which would have details such as their phone number, full name, office address, district, taluka, designation, Department name, official email ID, etc of the concerned official (which is used as username to access the Department login through MahaSamanvay SSO).
- Any change request regarding this must be conveyed to the concerned Department for recording and management purposes and to the Administrator (CPMU) who shall then make these changes.

4. Commissioner for Right to Service (CRTS):

- The CRTS users shall prepopulate their profile and provide details like their valid phone number, full name, division, office address, etc during user registration which will reflect in their profile.
- The CRTS users shall have the editing rights for making any profile changes.
- Any changes made in this information of the user must be conveyed to the Administrator (CPMU) for recording and management purposes.

5. Department/ Regional Head:

- The Department or Regional Head users shall have their profiles prepopulated and fill out details like their valid phone number, full name, division, office address, designation, etc which will reflect in their profile.
- Department/Regional Heads shall have the editing rights for making any profile changes.
- Any changes made in this information of the user must be conveyed to the Administrator (CPMU) for recording and management purposes.

7.2.2.4 Document Vault and Consent Management

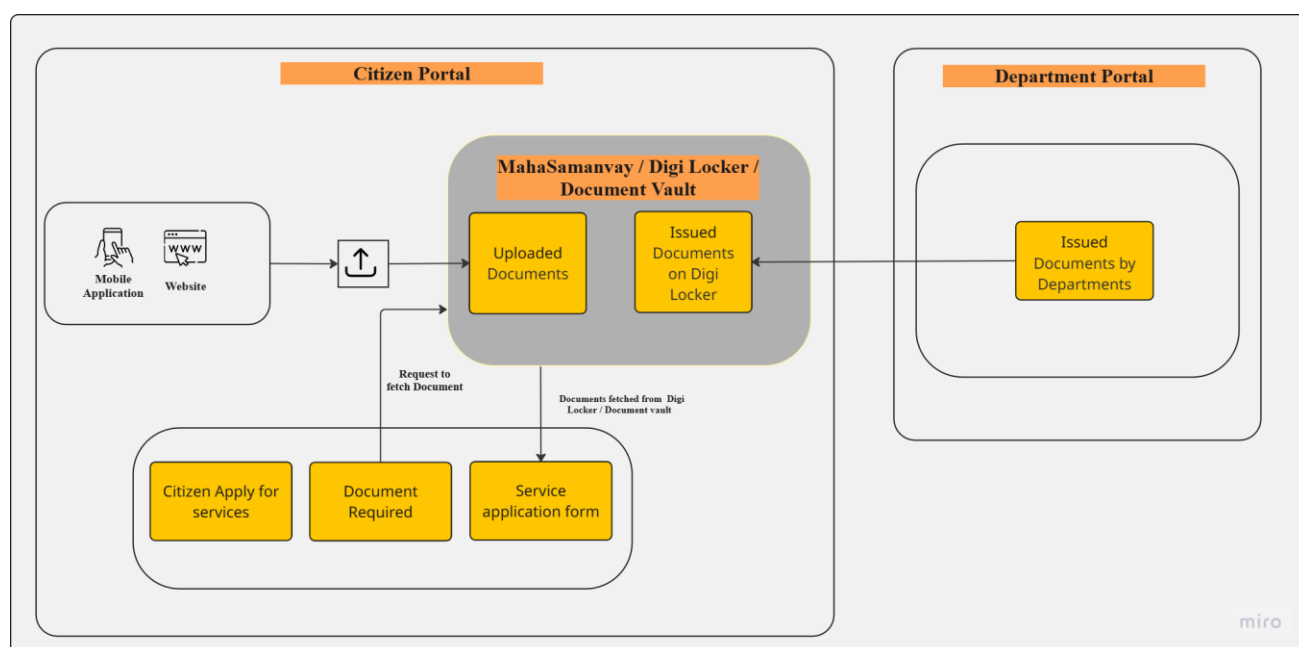
Document Vault:

- The proposed solution shall comprise a major component called the “Document Vault,” which shall act as a secure repository for storing and sharing sensitive documents of the applicant. This document vault shall

be integrated with many of the verified government applications and databases (National and State) through API after taking the necessary approvals from the concerned database owning authority. The databases that shall be considered for integration have been listed in paragraph 7.1.5.

- The Document Vault shall exclusively be a part of Citizens and VLE users' interface and application management module.
- The purpose of the vault is to provide a safe storage space for the citizen's documents and allow the citizens and VLEs to fetch these documents after verification and consent. This shall obviate the need for the citizen and the VLE to manually upload the same document every time while availing of a service.
- Citizen: The document vault shall play a role in both the front end as well as the backend system in case of the citizen. When a citizen applies for a certain service, after verifying his identity and filing out the service form details, the citizen has to upload the requisite and necessary documents for scrutiny. The citizen shall have four options during this step:
 - 1) To fetch data from MahaSamanvay
 - 2) To fetch the required documents from his DigiLocker account,
 - 3) To fetch the documents from his Document Vault
 - 4) Manually upload the documents on a) DigiLocker b) Document Vault
- Note: The workflow should give preference to DigiLocker. The documents being fetched from their DigiLocker account should follow the requisite authentication mechanism every time documents are to be fetched for a service application.
- Every time a citizen uploads the required documents for a service, these documents fetched either from their DigiLocker account or those uploaded manually by the citizen shall be stored in their Document Vault. Citizen shall receive a disclaimer notifying them about their documents being safely stored in the Document Vault and that those documents shall be available for fetching during a new service application.
- The next time the citizen applies for a service, they shall have the facility to fetch the documents from first Digi Locker and if not available then Document Vault which they had uploaded (and which got stored in their Document Vault) during the previous service applications.
- The citizen shall also get a disclaimer or alert while applying for a service, about a certain document being present in DigiLocker or in their Document Vault and that they can fetch it from the same without the need to upload the document manually again.
- Any document that is being issued by any Departments or Public authority of the State Government shall also get sent and stored in the DigiLocker and then respective attributes for the said issued documents to MahaSamanvay portal of that citizen. This document as mentioned above shall be available to be fetched during a service application.
- VLE: The document vault shall play a role in the backend system in case of the VLE. When a VLE applies on the behalf of a citizen for a certain service, after verifying the citizen's identity through verification of identification documents and filing out the service form details of the citizen, the VLE has to upload the citizen's requisite and necessary documents for scrutiny. The VLE shall have four options during this step:
 - 1) To fetch data from MahaSamanvay
 - 2) To fetch the required documents from the citizen's DigiLocker account
 - 3) To fetch the documents from the citizen's Document Vault and finally
 - 4) Manually upload the citizen's documents on a) DigiLocker b) Document Vault
- Note: The documents being fetched from the DigiLocker account should follow the requisite authentication mechanism every time documents are to be fetched for a service application.
- Every time the VLE uploads a citizen's required documents for a service, these documents fetched either from the citizen's DigiLocker account or those uploaded manually by the VLE shall automatically get stored in the citizen's Document Vault. The citizen shall receive a disclaimer notifying the about their documents being safely stored in the Document Vault and that those documents shall be available for fetching during a new service application.

- The next time the citizen applies for a service, they shall have the facility to fetch the documents from their Document Vault which they had manually uploaded (and which got stored in their Document Vault) during the previous service applications.
- The citizen shall also get a disclaimer or alert while applying for a service, about a certain document being present first Digi Locker and if not available then document vault and that they can fetch it from the same without the need to upload the document manually again.
- Any document that is being issued by any Department or Public authority of the State Government shall also get sent and stored in the Digi locker and then respective attributes for the said issued documents to MahaSamanvay portal of that citizen. This document as mentioned above shall be available to be fetched during a service application.
- The citizens shall have the option to manually upload documents required for a service application from their device or DigiLocker account (from DigiLocker's manually stored documents). These documents shall not be marked as verified.
- Note: The identity proof of the citizen shall be linked to their Document Vault. If and when the citizen creates their own account on the Aaple Sarkar 2.0 portal, after verifying their identification documents in their profile section, they shall be able to fetch documents from the Digi Locker Document Vault stored during previous service applications through VLE. This shall be applicable vice versa.



The Document Vault is a centralized, secure repository within the Aaple Sarkar 2.0 platform that allows:

- Citizens to **upload documents once** and reuse them across multiple service applications.
- The **documents issued by departments to citizens** as part of service delivery (such as caste certificates, income certificates, approvals, acknowledgements, etc.) shall be **automatically stored in** their Document Vault after receiving consent from the citizen for the same **and made available on DigiLocker & these documents will:**
 - Be **digitally signed or stamped** as per department standards
 - Be stored securely and linked to the corresponding **application ID** and **service name**.
 - Be made available to the **citizen for future reference or reuse** in new applications.
 - Remain accessible through the citizen's **Document vault**.
 - **Should include verifiable credentials to verify authenticity digitally (QR code).**
- **Document Expiry Management**

- Uploaded documents by the citizen & documents which are issued by departments shall have an associated expiry period, defined by document type (e.g., income proof valid for 6 months, address proof valid for X number of years).
- The system shall:
 - Track the validity period of each uploaded document.
 - Automatically flag documents that are expired or about to expire (e.g., within 15 days).
 - Display a warning alert to the citizen on the dashboard and during service application:
 - *"Your uploaded [Document Type] is expired or will expire soon. Please upload a valid document."*
 - Prevent selection of **expired documents** during new service applications.
 - Allow the citizen to **re-upload a new version** of the document from their vault interface.
- The previous version of the document will be:
 - Archived and marked as expired.
 - Retained in the vault for audit and reference purposes (read-only).
- **Access to Document Vault by Citizens and VLEs**
- The Document Vault shall be accessible to both:
 - Citizens, through their authenticated portal & mobile app login
 - Village Level Entrepreneurs (VLEs), who are authorized to act on behalf of citizens under the assisted service model
- **Access Control and Consent**
- VLEs shall access a citizen's document vault **only with explicit consent** from the citizen (e.g., OTP-based or digital consent mechanism).
- The system shall log and **audit all VLE access** to a citizen's document vault, including:
 - Timestamp
 - Accessed document(s)
 - Purpose (linked to service application)
 - VLE identity
- **Functional Access**
- VLEs, once authorized, shall be able to:
 - View and download previously uploaded citizen documents (for use in form filling)
 - Upload new documents on behalf of the citizen
 - Replace expired or rejected documents
 - View document status (e.g., accepted, rejected, expired)
- Citizens shall retain full control and visibility over their document vault, including:
 - Viewing VLE access history
 - Revoking access or permissions at any time
- **Access to Document Vault by Citizens and VLEs**
- The **Document Vault** shall be accessible to both:
 - **Citizens**, through their authenticated portal or mobile app login
 - **Village Level Entrepreneurs (VLEs)**, who are authorized to act **on behalf of citizens** under the assisted service model
- **Access Control and Consent**
- VLEs shall access a citizen's document vault **only with explicit consent** from the citizen (e.g., OTP-based or digital consent mechanism).

- The system shall log and **audit all VLE access** to a citizen's document vault, including:
 - Timestamp
 - Accessed document(s)
 - Purpose (linked to service application)
 - VLE identity
- **Functional Access**
- VLEs, once authorized, shall be able to:
 - View and download previously uploaded citizen documents (for use in form filling)
 - Upload new documents on behalf of the citizen
 - Replace expired or rejected documents
 - View document status (e.g., accepted, rejected, expired)
- Citizens shall retain full control and visibility over their document vault, including:
 - Viewing VLE access history
 - Revoking access or permissions at any time

Consent Management

The proposed solution shall implement a comprehensive Consent Management Module to ensure that the personal data, documents, and identity information of citizens are accessed, used, or shared only with their explicit, informed consent, in full compliance with applicable legal and regulatory frameworks such as the Digital Personal Data Protection Act 2023, Aadhaar Act, and IT Act.

Types of Consent

Sr	Consent Type	Description
1	Profile Creation Consent	Consent to create, store, and manage the citizen's digital profile
2	Document Access Consent	Consent for Citizens/VLEs to access or reuse documents from document vault
3	Aadhaar/Pan/Driving License Authentication Consent	Consent to use for e-KYC or identity verification
4	Service Application Consent	Consent to process personal and document data as part of service requests
5	Data Sharing Consent	Consent to share data with third-party services (e.g., DigiLocker, MahaSamanvay SSO)
6	Communication Consent	Consent to receive alerts, SMS, emails related to service applications
8	Appeal	Consent to submit the appeal forms

- The citizens shall have a dedicated consent management module in their Aaple Sarkar 2.0 portal account's user interface. All the consent-based permissions and details should be available at the click of a button in this section which include the following details:
 - Citizen ID
 - Type of consent
 - Consent text
 - Channel (portal, mobile app, assisted mode)
 - Time of consent
- All Consent shall be authenticated via OTP sent to the citizen's registered mobile number
- Consent for VLE-Assisted Mode
 - VLEs can access the citizen's data or documents only after consent is granted by the citizen.
 - Consent shall be authenticated via **OTP sent to the citizen's registered mobile number**.

7.2.2.5. Application Management

The application management module shall only be relevant to the applicants-the citizen and the VLE. This module shall focus on ensuring that the application process for both the citizen and the VLE is simple and efficient. The application management lists down the entire workflow of an application, from filling of a service application form to the generation of the certificate/ document.

Citizen application management:

- The proposed solution shall have all the details regarding each of the service, Department and Sub-Department wise, accessible on both the portal's landing page as well as through the applicant's interface.
- A "view details" option shall provide a list of all services along with the requisite documents, corresponding fees and notified timelines. This section will also lay down the procedure to apply for services (Applicant workflow and Dept workflow), etc.
- The proposed solution should have an Apply Online option which shall only be available to all the notified *online* services and shall direct the applicant to the concerned service's application process (after logging into the user account).
- The services will be categorised as Standard & Gateway Services.
- In case a Gateway service is to be availed, the applicant after selecting Apply Online, should be rerouted to the concerned department's website/ portal. However, in case of a Gateway service being integrated with the Aaple Sarkar 2.0 portal, on submission of a service application a single application ID for the application shall be generated on the Aaple Sarkar Portal as well. Also, real time status pertaining to the service application shall be shared and reflected on the Aaple Sarkar 2.0 portal.
- After selecting the Apply Online option in respect of a Standard service, the applicant shall be asked for:
 - Details / parameters required to provide a service (in a digital form format)
 - Proof in form of documents which are pre-requisites to providing the service.
 - Payment
- The solution should auto fetch details that are already been captured in the citizen profile. Citizen should only be required to fill in the *additional details* only related to the service application.
- The documents of citizens already available in their Document Vault (manually uploaded / issued by the Government Departments or public authorities) shall be allowed to be fetched for the service application with the citizen's consent.
- Also, the identification documents having already been verified by the citizen in their user profile shall not be asked to be reuploaded.
- The citizen shall also be able to fetch the required document from their DigiLocker account after following DigiLocker's requisite authentication mechanism.
- If the citizen's Document Vault does not have any documents stored (manually uploaded or issued), he/ she will have to manually upload all the concerned documents. These manually uploaded documents won't be marked as verified. After uploading these documents, they will also be stored in the Document Vault for future use. If the citizen fetches the concerned documents from their DigiLocker account, in case of documents being manually uploaded on DigiLocker, the documents would not be marked verified, whereas if the citizen fetches the issued documents from DigiLocker, the documents would be marked verified. The documents fetched from DigiLocker shall also be stored

in the Document Vault. The citizen shall be informed with the necessary disclaimer/ notification regarding storage of their uploaded documents on Document Vault.

- The solution should enable ease of submission of application with minimum clicks.
- Application flow should have an option to save and resume the application at a later date. Dedicated section on citizen profile for applications “Saved as Draft” is to be provided, where they can resume the application from the last completed step.
- After the citizen fills out all the necessary details and uploads the required documents, they shall be required to complete a security step through OTP authentication on their registered phone number (Phone number registered during Aaple Sarkar 2.0 account creation).
- The next step shall lead the citizen to the payment gateway. Before the payment, the citizen will be presented with a choice to opt either for general service or the prioritised service. If he chooses the prioritised service, he shall be asked to pay the decided extra cost (Priority Fee) over and above the portal fees and the Department fee.
- According to the option the citizen selects, the portal shall direct to the payment gateway.
- The Citizen after payment should be provided with a downloadable (& printable) payment receipt and e-receipt which shall have the unique application ID and an estimated date for delivery of the service.
- After the scrutiny process on the backend is complete and if the application meets all the required guidelines and standards, the concerned Department shall issue the certificate/ document. An automated response in the form of acknowledgement will be sent to the citizen on email, SMS and on web portal to keep him/her updated on the status of the process of the application.
- This issued certificate/ document by the concerned Department or Public Authority shall be sent to the issued certificate section in the citizen’s Document Vault.
- The issued certificate shall also be sent to the citizen’s issued documents section and be available for download.
- The citizen shall also receive a hardcopy of the certificate/ document wherever applicable.
- The issued certificate/ document along with the unique application ID (unique reference no.) and other links (to verify authenticity of the document module) and details shall be sent to the citizen through email, SMS and WhatsApp
- Quick Links (Links within the application, Citizen’s Grievance, Feedback and Suggestion or any other external links such as Utilities payment) should be made available in the application module.
- There would be unique application ID (unique reference no.) throughout entire stages of Aaple Sarkar 2.0 system.

VLE Service Application module:

- The application module for VLE user should have the same set of features available and the same process of application as is for the citizen.
- The first step in the VLE service application shall include verification of the citizen’s identity by verifying their identification documents. Citizens shall have provision to verify their identity through PAN/ Aadhaar Number/ Driving License before proceeding further with the application. This would be a mandatory step for the citizens.
- The citizen will have to verify his identity each time he/ she applies through a VLE through the authenticating mechanisms of the above-mentioned documents.
- After verifying the identification of the citizen, the citizen will have to provide the VLE with the information required in the service application form which is not fetched from MahaSamanvay or DigiLocker or Document vault.

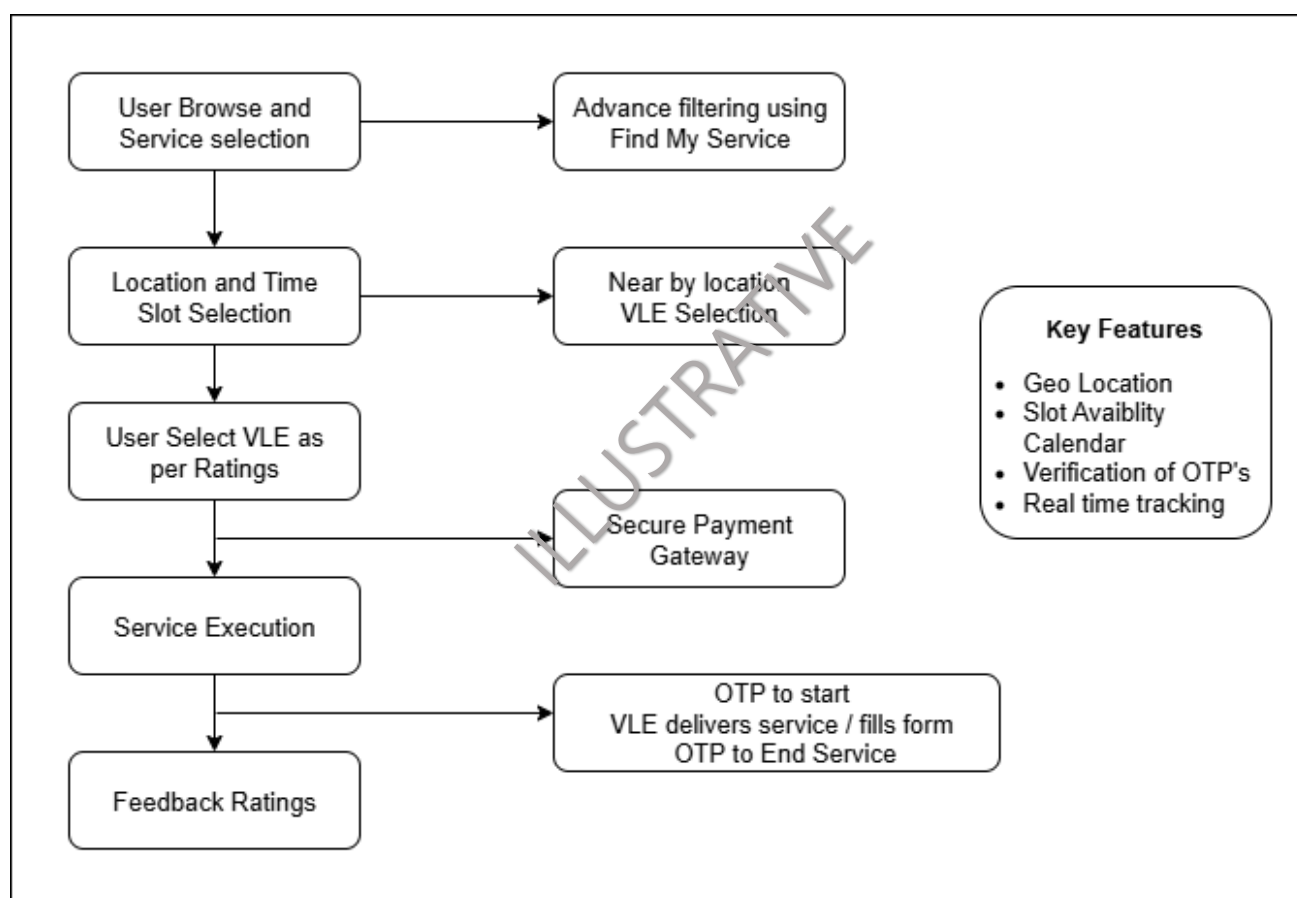
- For uploading the required set of documents for availing of service, the VLE shall have an option to either manually upload the documents or auto fetch the documents directly from the citizen's Document Vault or DigiLocker account after taking consent and completing required authentication from the citizen.
- Also, the identification documents having already been verified by the citizen in their user profile shall not be asked to be reuploaded.
- If the citizen's Document Vault does not have any documents stored, the VLE will have to manually upload all of their concerned documents. These manually uploaded documents won't be marked as verified. After uploading these documents, they will also be stored in the Document Vault for future use. If the VLE fetches the concerned documents from the citizen's DigiLocker account, in case of documents being manually uploaded on DigiLocker, the documents would not be marked verified, whereas if the VLE fetches citizen's issued documents from DigiLocker, the documents would be marked verified. The documents fetched from DigiLocker shall also be stored in the Document Vault. The citizen shall be displayed with the necessary disclaimer/ notification regarding storage of their uploaded documents on Document Vault.
- Note: The Document Vault of the citizen shall be linked with the Aadhar linked mobile number. The mobile number (shall be linked with Aadhar card) provided to the VLE during a service application and shall be used by the citizen during creation of their new account on Aaple Sarkar 2.0 portal to access their Document Vault documents (uploaded and stored during previous service applications through a VLE).
- There should be provision for the VLE to submit an application on behalf of the Citizen only after entering an OTP received by the Citizen or some biometric authentication which will verify the citizen's permission for availing the particular service.
- After the VLE fills out all the necessary details of the applicant, the next step shall lead the VLE to the payment gateway. Before the payment, the VLE should ask the applicant whether they want to opt for general service or the prioritised service. If they choose the prioritised service, they shall be asked to pay the VLE, the decided extra cost (Priority Fee) over and above the portal fees and the Department fee.
- According to the option selected by an applicant, the VLE shall complete the payment procedure.
- The applicant after payment should be provided with a downloadable (softcopy) & printable payment receipt by the VLE which shall have the unique application ID and an estimated date for delivery of the service.
- After the scrutiny process on the backend is complete and the if application meets all the required guidelines and standards, the concerned Department shall issue the certificate/ document. A standard automated response in the form of acknowledgement will be sent to the applicant on email with a copy to VLE and on SMS of the applicant and on web portal of the VLE to keep both the applicant and the VLE updated regarding the status of the process of the application.
- The applicant shall be provided the certificate/ document issued by the Government Department or Public Authority from the VLE in hardcopy and softcopy. The citizen shall also be able to download the issued certificate/ document through his/ her e-mail and would also receive the single application id through SMS and e-mail.
- Quick Links (Links within the application, Citizen's Grievance, Feedback and Suggestion or any other external links such as Utilities payment) should be made available in the application module.
- The documents issued on the RTS 2.0 should include a unique QR code that can be used by citizens / departments to verify issued documents
- There would be unique application ID (reference no.) throughout entire stages of Aaple Sarkar system.

Kiosks Service Application:

- The self-service Kiosks application would be available for the Citizens in the Government Offices. Citizens would be able to avail of all the features as listed in Citizen service application module.

7.2.2.6. Doorstep Delivery

Doorstep delivery shall be one of the features offered under the Aaple Sarkar 2.0 portal with an aim to provide selected & notified public services directly to citizens' doorsteps, making it more convenient for individuals to access government services without the need to visit physical offices. This approach can enhance accessibility, especially for those who face mobility challenges or live in remote areas. The Doorstep Delivery features would use the VLE network and shall have a complete module on both the ends of the applicant and the VLE user. The following shall be the process of the applicant and VLE end in case of Doorstep delivery of services:



Doorstep Delivery - Citizen interface & process:

- The citizen shall have an option to book, reschedule and cancel a Doorstep Delivery for a particular set of services (defined and offered by the Departments). This section shall be present on the homepage of the citizen login user interface.
- This option shall let the citizen book a slot to apply for the offered services through their nearest VLE. A list of the services offered by various Departments for doorstep service delivery shall be available for the user along with all the necessary information like documents required, charges, stipulated time limit, etc.

- The citizen shall be able to book a slot through multiple modes of access which include the Aaple Sarkar 2.0 website, mobile application or by contacting the call centre.
- The citizen when booking a service from his user login and through the website or mobile application will have to fill a specific set of information:
- Citizen Details:
 - Applicant name
 - Mobile Number
 - House Number/ Name
 - Street
 - Area
 - Landmark
 - District
 - Pin code/Geo Code
- The citizen details shall be auto fetched from the citizen's profile and prefilled in the form.
- Service details:
 - The citizen then will have to select the service from a drop-down list. After selecting a particular service, it should show the applicant the service information, its stipulated time limit, a list of mandatory documents required and the fee details.
- Location:
 - The citizens shall also be asked for sharing their location (through the website or the mobile location feature).
 - This will be mandatory, and the application would not proceed without the citizen sharing their location.
- The citizen after filling out all of the above details will have the option to proceed. After proceeding, the citizen will be shown the list of VLEs closest to their location (according to a fixed radius). The citizen then according to his preference, shall select the VLE outlet along with the date and timing slot.
- After selecting the date and time, the citizen shall be informed about the fee details and mode of payment. If the citizen accepts to proceed with the application, he/ she will receive a token number of the booking along with details such as the name of the service, date and timeslot of booking and charges levied.
- The payment for the service shall be made at the time of appointment after service application is complete and accepted by the VLE through all the mainstream modes of payment including cash, UPI payment, Debit/ Credit card payment, etc. After the payment, a transaction receipt shall be generated and sent to user through SMS & email. After the service application and payment to the VLE, the citizen shall receive a transaction message comprising the unique application id, amount paid, date & time of availing the service and other details regarding the applied service.
- After the booking of a particular service, the booking should go into a sub-section named 'current bookings' wherein the user should be able to view his ongoing booking. Each booking should show the basic details like date of booking of the doorstep delivery, name of the service applied, name of the Department and sub-Department and finally the date & time of the slot booked. In this section, the citizen should have an option to reschedule a booking appointment 6 hours before the slot booked. The citizen shall be asked to select the new date and time, and the date of delivery will change accordingly.
- The citizen should also have an option to cancel a booking appointment 6 hours before the selected timing slot.
- In case the citizen decides to apply through the VLE or call centre, the VLE (closest to the applicant) shall guide them through the entire process which is elaborated in section 7.2.2.5

- After the scrutiny process on the backend is complete and if the application meets all the required guidelines and standards, the concerned Department shall issue the certificate/ document.
- The VLE shall be able to download and print the application form, issued certificate/ document from the web portal with the unique id sent through SMS or from the attachment through e-mail to the citizens.
- Additional value-added services such as laminating of issued certificate would be provided in doorstep delivery by VLE at extra service charges.

Doorstep Delivery VLE interface & process:

- The citizen will be given an option to book, reschedule and cancel a Doorstep Delivery for a particular set of services (defined and offered by the Departments). This facility should be provided through the VLEs based on the geographical vicinity and on a fixed cost basis. Through this facility, a citizen will book a slot to apply to the offered services through their nearest VLE.
- The VLE user's homepage shall have a dedicated section for doorstep delivery services. In this section, the VLE should have a sub-section named inbox, where he shall receive the details of an appointment placed by a citizen. The details should include the citizen details (with exact location), name of service applied, name of the Department offering the service, stipulated time limit for delivering the service and other service details along with the date and time of the appointment.
- There should be another sub section named delivered services, in which, the list of services delivered should be displayed. Each delivered application details (same as those in the inbox) shall appear in this sub section along with the date & time when the service was delivered.
- The VLE according to the appointment and details provided by the citizen will then collect the information and apply for the service on the date & time selected by the citizen by visiting their home using a dedicated device and from his registered VLE account. (The service application procedure shall remain the same).
- The VLE will also be accepting booking appointments through call centres, wherein the call centre will according to the citizen's location, inform them about the nearest VLE centre to their location.
- The VLEs can also directly accept a doorstep delivery booking.
- The doorstep service shall have a third and final sub section named, 'appointment booking', from where they can book a doorstep service delivery appointment of a citizen. In this section, there would be an option named 'create doorstep delivery', in which the VLE will fill the following information on the behalf of the citizen:
 - Citizen Details:
 - Applicant name
 - Mobile Number
 - House Number/ Name
 - Street
 - Area
 - Landmark
 - District
 - Pin code/Geo code
 - Service details:
 - The name of the service from a drop-down list.
- After the VLE fills out this necessary information, he would proceed through this form and ask the preferred date and time of the applicant.
- After selecting the date and time, the citizen shall be informed about the fee details and make payment. If the citizen accepts to proceed with the application, he/ she shall receive a token number

of the booking along with details such as the name of the service, date and timeslot of booking and charges to be levied.

- The payment for the service shall be made at the time of appointment and accepted by the VLE through all the mainstream modes of payment including cash, UPI payment, Debit/ Credit card payment, etc. After the payment, a transaction receipt shall be generated and sent to user through SMS / email or modes like QR code scanning for feedback.
- After the booking of a particular service, the booking should go into the 'current bookings' wherein the user should be able to view his ongoing bookings. Each booking should show the basic details like date of booking of the doorstep delivery, name of the service applied, name of the Department and sub-Department and other service details along with the date & time of the slot booked.
- The citizen will also have an option to reschedule an appointment 6 hours before the actual appointment. If the rescheduling process is initiated by directly contacting the VLE, the VLE should give the option to reschedule the appointment and offer the citizen with the next booking slot.
- The citizen should also have an option to cancel a booking appointment 6 hours before the selected timing slot.
- After the scrutiny process on the backend is complete and if the application meets all the required guidelines and standards, the concerned Department shall issue the certificate/ document.
- The VLE shall be able to download and print the application form, issued certificate/ document from the web portal with the unique id sent through SMS or from the attachment through e-mail to the citizens.
- Additional value-added services such as laminating of issued certificate could be provided in doorstep delivery by VLE at extra service charges.

7.2.2.7. Scrutiny- Service Module & Workflow

On the backend of the portal's application process, shall be the scrutiny module, which shall be the part of the Department user interface. The scrutiny module shall configure the workflow of stakeholders across all the Standard Departments. For the Gateway services, the scrutiny module & workflow won't be applicable. The scrutiny module shall be a highly interdependent module between the CPMU and the Standard Departments, since any changes in the workflow of a service shall be conducted by the CPMU and Department Administrator after the request of the concerned Department's nodal officer for particular service. The details pertaining to the service module & workflow are elaborated below:

Scrutiny Module:

- The SI will be in charge of creating a work flow engine for all the standard services of each of the Departments under the proposed solution.
- Using the work flow engine the work flow can be configured by CPMU or Department Administrator.
- The Departmental scrutiny workflow shall be as simple and efficient as possible with maximum 3 levels of approvals. The workflow and levels of approval for any of the services must be developed & set as per the requirement of the concerned Department.
- Artificial intelligence should be used in Scrutiny module to provide surety temperature range for eligibility of service based on documents/data provided by the applicant.
- In scrutiny workflow, the application for a service after submission by the applicant or VLE will be received by the concerned Department's official's application tracking section. The details about the application tracking system are described below:

Application tracking:

- The proposed solution should create an application tracking module. This section will be accessible in the Department user's interface.
- This module shall have a search option on top to manually track the status of applications by entering fields like application id (in case of finding a single application), dates between which the applications were received, name of the applicant (in case of finding a single application).
- Another subsection shall harbour a list of pending applications for the service and shall provide the following information for each service:
 - Serial Number
 - Date and time the application was received
 - District Name
 - Taluka Name
 - Village name (Relative to the concerned administrative unit, i.e., Municipal Corporation/ Municipality/ City Council)
 - Pin Code/Geo Code
 - Applicant Name
 - Unique Application ID
 - Source of Application (Citizen/ VLE)
 - (List is not exhaustive)
- The rows for each of the application (having the aforementioned information) should have two actable options:
 - View Application Details
 - Take Action
- The option of view application details should then show the applicant's concerned service form and the required documents (manually uploaded/ (manual & verified) fetched from DigiLocker/ (manual & verified) fetched from Document Vault). Each of the documents would be flagged as verified (Issued Documents in the DigiLocker or Document Vault) or non-verified documents (Manually uploaded, manually uploaded on DigiLocker or Document Vault). During scrutiny, desk officials would be able to preview these documents which are manually uploaded.
- The other option of take action shall also display the concerned service form and the required documents.
- There would be a provision to view Priority Fee applications submitted by the citizens by department officials.
 - This section shall harbour a list of pending applications for the service and shall provide the following information for each service:
 - Serial Number
 - Date and time the application was received
 - District Name
 - Taluka Name
 - Village name (Relative to the concerned administrative unit, i.e., Municipal Corporation/ Municipality/ City Council)
 - Pin Code
 - Applicant Name
 - Unique Application ID
 - Source of Application (Citizen/ VLE)
 - (List is not exhaustive)
 - The rows for each of the application (having the aforementioned information) should have two actable options:
 - View Application Details

- Take Action

- After the due scrutiny and validation, the official should have the option to provide approval and forward it for his higher up's approval (in case of two or more steps in a chain of command), reject the application or send it back to the applicant (citizen/ VLE).
- A mandatory remark column should be provided, listing reasons for rejection of application and follow up action by the applicant if required. The application can be rejected at all levels if any of the authority finds it unsatisfactory for any of the reasons provided.
- Reasons for rejections will be provided to the scrutinizing officer as a dropdown to ensure standardization.
- When the application reaches the last level of authority (which can be Desk/ level one or more depending on the service and Department offering it), the concerned Department user if satisfied shall give the final approval and issue the document/ certificate after scrutiny. It shall be noted that each of the last desk/ level of Department user will be given a digital signature with which he shall sign the document before issuing.
- Digital Signatures: The portal shall support usage of digital signature by Department officials. All the documents/ certificates issued by the System which go outside RTS 2.0 application shall be digitally signed & verified by the department. The SI will have to provide these digital signatures.
- The document/certificate issued by the department shall have a barcode/QR code containing a unique certificate number, which will also serve as the barcode number. The SI will have to provide Digital Certificates (Class 3 encrypted) for identified Department users. These certificates are to be provided for all Department officials.
- The proposed solution will also cover digital signing of approximately 1.5 lakh users using Hardware Security Module (HSM). The proposed solution is expected to sign documents in both batch and online mode using keys at HSM. HSM should be at the minimum FIPS 140-2 compliant, minimum Level 2 certified HSM device. HSM server can either be on prem or cloud.
- The SI will have to also look after provisioning and commissioning of the certificates. Any fixed recurring charges such as rentals etc. will have to be borne by MahaIT.
- The certificates will be procured in the name of the Department. However, the selected SI will be responsible for any maintenance activity required for the certificates.
- Disposal of service/Issuance of certificate: The certificates after being issued by the Department with the digital signature shall be available for the applicant for download and/ or print in his DigiLocker account and on his registered email ID. The unique application id would be sent through SMS or through e-mail. Additionally, there would be a separate section on Aaple Sarkar 2.0 portal to download and/or print issued certificates. Certificates in this section would be accessed using One Time Password (OTP) that would be sent to citizen's registered mobile no.
- All such functionalities and features must be developed by the SI, while designing the automated processes within the RTS Aaple Sarkar 2.0. Similarly, the system will also have to make provision for parallel processing of tasks.
- History of Completed Activities / Tasks – All the completed activities should be displayed to the concerned Department officials, so that they may want to refer to it in future. User friendly features like pagination or drill down to see further details of the completed tasks may be provided, as required.
- MIS reports (Fixed and Ad hoc / Customized reports) – which may be bookmarked from the Reporting module of the system.
- Use of Artificial Intelligence to identify doctored documents uploaded by citizens (only when non-verifiable document is uploaded by citizen, i.e., not uploaded from DigiLocker). The temperature level of authenticity can be provided by the AI model.
- Red Flags, notifications etc./ as per pre-defined escalation matrix.

- Status Reports – A summary of performance for the individual Users / employees, in terms of SLAs met while performing their tasks or frequency of escalations, should be displayed. This information should be specific to individual users only and not available to others, until and unless specific rights are provided to other senior official to view such information.

FIFO Sequencing of Applications:

- All the above-mentioned services applications should follow a First in First out (FIFO) sequence. The standard sequence shall be available by default. Priority Fee (Tatkal Services) applications would be allowed only when the FIFO sequencing is kept on. The sequence for priority (Tatkal Services) would be as per FIFO. Limit for priority (Tatkal Services) would be set by the Central Project Management Unit (CPMU)
- The switching on and off of the FIFO sequence can be controlled by Central Project Management Unit (CPMU) only on the directions of the Hon. Chief Secretary.

Priority Fee Applications:

- An option to pay a 'Priority Fee' shall be provided to the applicant, during end of an application process.
- Under the Priority Fee option, if opted by the applicant, he shall be required to pay the fixed amount along with the service application and Department fees, if applicable.
- The Priority Fee applications shall have a dedicated section over the general application section in the Department user interface. The Department users shall process these Priority Fee applications before the conventional applications.
- The Priority Fee applications shall also follow FIFO sequencing.
- The Priority Fee applications shall be applicable to such notified services as may be decided by the concerned Departments.
- Only a dedicated number of Priority Fee applications per service as determined by the concerned department shall be made available for the applicants.

Redirection of Applications:

- Many a time citizens or VLEs mark the wrong option in any of the fields while filling out a service application form. This leads to the possibility of the application landing in a different location or Department than intended.
- To correct this action, the applications shall be redirected to the concerned Department accordingly.
- If a particular desk receives an application for scrutiny which does not belong to their Department, the designated official of the Department will have the authority to redirect it to another desk for proper processing.
- The redirection of application takes place from one desk to another within the same designated levels only. For instance, if a Pune desk receives application of a Mumbai based service from either a citizen or VLE, he can redirect it to the concerned desk in Mumbai for further processing of application.
- The redirecting process will be transparent to citizens, VLE's as well as whoever has applied for the service, and they can see the status by tracking it.
- The Turnaround time (TAT) reset for the redirected application will be there. The fixed time period for the service delivery will be reset after the redirection of an application takes place.

Stipulated time period for service delivery:

- Each of the services offered by a Department is provided with a stipulated time period (also decided by the Department) in which the service is to be delivered, although in some cases, like natural calamities or during elections, this stipulated time period can be relaxed by a few days.
- The applicants in this case shall be sent an alert or notification explaining the reason for service delay.

7.2.2.8. Appeal Management System Workflow

Citizens have the provision to file an appeal in case of non-delivery of services or delay in public service. The Appeal Management would be applicable for all the notified Standard Department service and Gateway Department service. The appeals filed by the citizens are accessed by the Appellate Authorities of the Department who are superior to the Designated officer. In case of Gateway Department services, the Appellate workflow would be part of Apple Sarkar 2.0 portal.

For scrutinizing of appeal, the below Appeal workflow would be followed.

Appeal Filing

- Citizens and VLE (on behalf of Citizen) will have provision to file an appeal application online in case of delay in delivery of services or denial of public services by the Department entities.
- Citizens and VLE (on behalf of Citizen) should be allowed to opt for: Auto appeal (application to First Appeal) functionality if faced with delay in service delivery. Auto appeal functionality would be applicable only in case of delay of disposal of service and for First Appeal only. The citizen/ VLE will have to apply to the Second & Third appeal cautiously. The citizen/ VLE when selects the appeal module, shall be displayed a dialogue box explaining the working of auto appeal system & the alternative cautious option. In the dialogue box, the citizen/ VLE will select according to his preference. The option selected will remain off until the user changes the same.
- After completion of stipulated timeframe for delivery of a service, the First appeal will have to be filed manually in case auto-appeal option is deselected by the citizen.
- Transaction reference no. would remain same that was generated while submitting the application for the service.
- Citizens and VLE (on behalf of Citizen) would be able to file first appeal within the period of thirty days from the date of receipt of, order of rejection of the application or, the expiry of the stipulated time limit.
- There shall be a provision to file cautious first Appeal in exceptional cases even after the expiry of the period of 30 days subject to the maximum period of 90 days but after providing a sufficient cause from filing the appeal in time. If the applicant misses to file the First appeal according to the above stipulated time periods, he/ she shall not be able to file the First appeal and the case shall be auto disposed (closed).
- Citizens and VLE (on behalf of Citizen) would be able to file second appeal within the period of thirty days from the date on which the order of the First Appellate Authority is received or after 45 days from the date of filing of the first appeal in case where the Appellant (Citizen) does not receive any order from the First Appellate Authority.
- There shall be a provision to file Second Appeal in exceptional cases even after the expiry of the period of 30 or 45 days as the case may be, subject to the maximum period of 90 days but after providing a sufficient cause from filing the appeal in time. If the applicant misses to file the First appeal according to the above stipulated time periods, he/ she shall not be able to file the Second appeal and the case shall be auto disposed (closed).

- The Citizen and VLE (on behalf of Citizen) or the Designated Officer being aggrieved by an order of Second Appellate Authority may file an appeal before the Commission within the period of 60 days from the date of receipt of such order.
- In no case, the Citizens and VLE (on behalf of Citizen) would be able to directly file Second Appeal and Third Appeal. The citizen must first go with First Appeal and follow the stipulated time period.

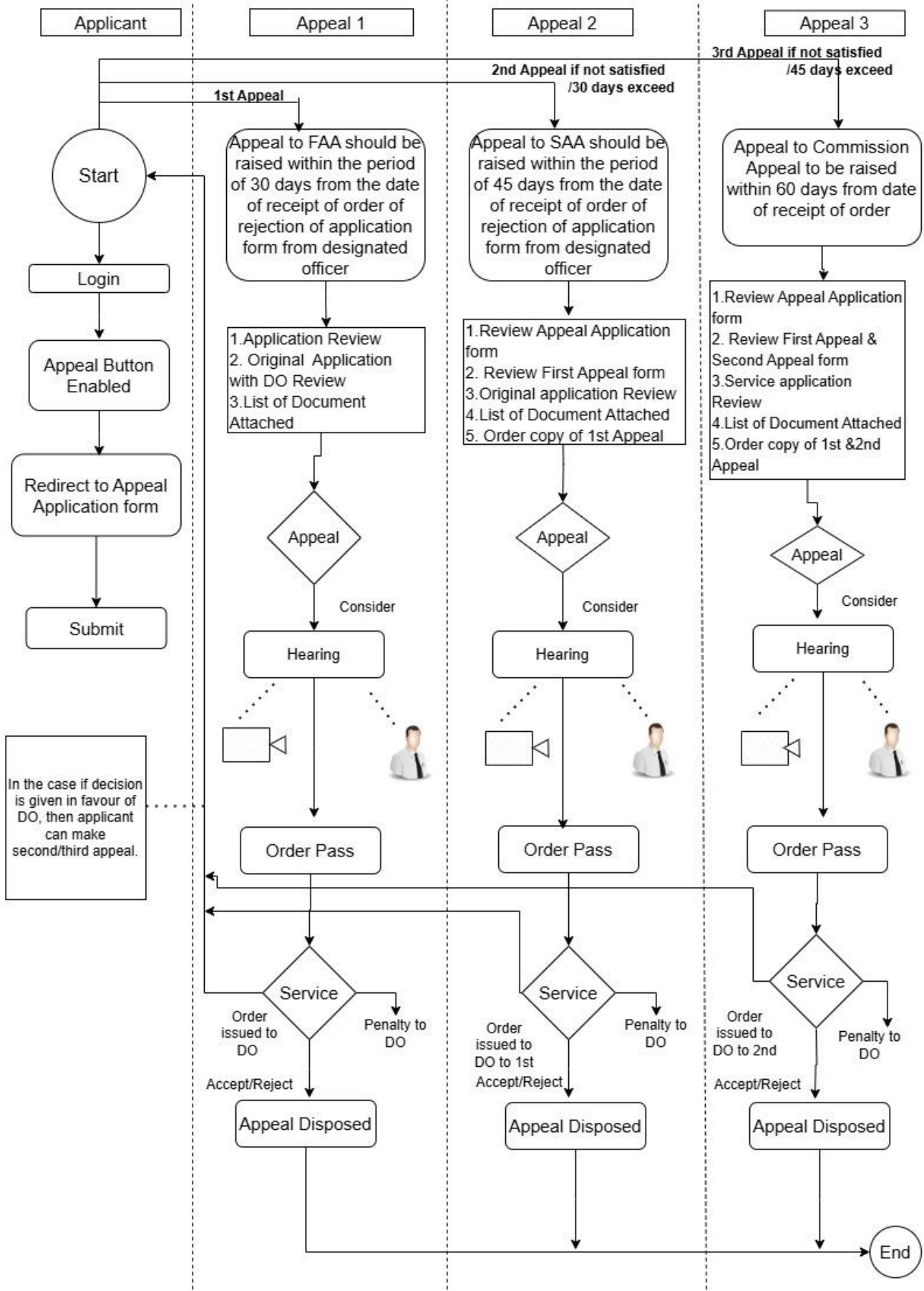
Schedule Hearing

- Citizen would be intimated through email, SMS about the hearing notice. The hearing would be conducted by Appellate authorities physically or through Video conferencing. Citizens would be asked about the preference for conducting Appeal Hearing i.e. Online hearing or in person hearing, however the final decision for conducting hearing (whether online or in person) would be at the discretion of Appellate Authorities.
- Appellate authorities shall have a provision to reschedule the hearing to another date. Appeal Authorities In case of preponing the hearing date, the appellate authorities shall be able to prepone the hearing 1 day prior to the hearing date (in case of online hearing) and 3 days prior to hearing date (in case of physical hearing).
- Alerts and notifications through email and SMS would be triggered to all the concerned – Citizens, Designated Officer, Appellate authorities for scheduling / rescheduling of hearing.

Appeal Workflow

The SI is responsible to develop the appeal workflow mechanism described in the sections below (the Appellate authority's workflow after filing of appeal to its disposal):

RTS Appeal Workflow



- Appeal to first appellate should be raised within 30 days (maximum 90 days in exceptional cases) from the date rejection of service application by the designated officer or is not provided the service within the stipulated time. The First Appellate Authority may then direct the Designated Officer to provide the service to the eligible person within such period as he may specify in his order but which shall not ordinarily exceed the stipulated time limit, or he may reject the appeal within the period of thirty days from the date of filing of the appeal, after recording the reasons in writing for such rejection : Provided that, before deciding the appeal, the First Appellate Authority shall give an opportunity of being heard to the Appellant as well as to the Designated Officer or any of his subordinate duly authorized for this purpose.
- A second appeal against the order of the First Appellate Authority shall lie to the Second Appellate Authority within the period of 30 days from the date on which the order of the First Appellate Authority is received or after 45 days from the date of filing of the first appeal in case where the Appellant does not receive any order from the First Appellate Authority.
- The Second Appellate Authority may direct the Designated Officer to provide the service to the Appellant within such period as he may specify in his order or he may reject the appeal within the period of forty-five days from the date of filing of the appeal, after recording reasons in writing for such rejection : Provided that, before issuing any order, the Second Appellate Authority shall give an opportunity of being heard to the Appellant as well as to the Designated Officer or any of his subordinate duly authorised for this purpose.
- The eligible person or the Designated Officer being aggrieved by an order of Second Appellate Authority may file an appeal before the Commission within the period of 60 days from the date of receipt of such order. The Chief Commissioner or the Commissioner, as the case may be, shall dispose of such appeal within a period of ninety days from the date of receipt of the appeal, after giving all the parties an opportunity of being heard. The Commission may impose the penalty on the Designated Officer or First Appellate Authority or vary or cancel the penalty imposed and may order to refund such penalty paid, if any.
- The Appellate authority will review the appeal application filed by the citizen / VLE (on behalf of citizen). The review of appeal application should also have provision to preview the application form and the history of scrutiny performed by the Desk officials. Accordingly, the appellate authorities take decisions on the Appeal by scheduling the Hearing.
- Appellate authorities will conduct the Hearing online through VC or in person where the appellant and Designated officer would be called.

Upload Judgement Order

- Post Hearing, the appellate authority may either direct the Designated officer to provide the service to the concerned citizen within stipulated timeframe or reject the Appeal after recording the reasons of rejection.
- On completion of the hearing of the appellant/his Department representative, an appropriate order would be uploaded by the Appellate Authority.
- There should be provision on RTS portal to download order issued by 1st , 2nd & 3rd appeal. This order copy shall be search via appeal id.
- The order search will be is filtered for Division> District> Date> From Date to To Date.

Imposing of Penalty

- If the First Appellate Authority is of the opinion that a Designated Officer has failed to provide public service without sufficient and reasonable cause, then he/she shall impose a penalty. The First Appellate Authority shall have provision to impose penalty on the Designated officer.
- If the Second Appellate Authority is also of the opinion that the Designated Officer has made default in providing the public service within the stipulated time limit without sufficient and reasonable cause, he may confirm or vary the penalty imposed by the First Appellate Authority, after recording reasons in writing. Provided that, the Designated Officer shall be given a reasonable opportunity of being heard before any penalty is imposed on him/her by the First Appellate Authority or Second Appellate Authority.
- If the Chief Commissioner or the Commissioner is of the opinion that the First Appellate Authority and Second Appellate Authority had repeatedly failed to decide the appeal within the specified time without any sufficient and reasonable cause, or unduly tried to protect the erring Designated Officer, then he shall impose a penalty on the First Appellate Authority and/ or Second Appellate Authority. Also, the Chief Commissioner or the Commissioner is of the opinion that a Designated Officer has failed to provide public service without sufficient and reasonable cause, then Chief Commissioner or the Commissioner shall impose a penalty on the Designated Officers.
- After imposition of Penalty, the Penalty order would be generated in the system which would be marked to the concerned District Collector and Secretary of the Department.
- Secretary of the Department has to monitor whether Penalty amount is actually recovered or not from the concerned official. Secretary shall be able to capture the Penalty information such as Penalty Amount, Challan details and shall be able to recommend Departmental enquiry against Designated Officials/Appellate Authorities.
- CRTS shall be able to view summary related to penalties. The summary should have details of total penalties imposed by First and Second Appellate authority along with additional information.

7.2.2.9. Suo moto Cognisance by RTS Officials

- Divisional RTS Commissioners should be able to take suo moto cognisance if they notice any failure of delivery of public services in accordance with the provision of the RTS Act.
- RTS Commissioner shall take the decision on such suo moto cognisance cases and refer them for disposal of services to the concerned authority.

Cognisance by Revenue Divisional Commissioners and District Collectors

- District Collectors being the controlling authority should be able to take suo moto cognisance if they notice any failure of delivery of public services in accordance with the provisions of the RTS Act.
- District Collectors shall take the decision on such suo moto cognisance cases and refer them for disposal of services to the concerned authority.

7.2.2.10. Grievance Redressal

☑The Grievance module should enable the citizen to file grievances against any government Departments/public authority regarding overall process or system of delivery of service.

Filing of Grievances

The citizens and the VLE's (on behalf of citizens) should be able to register their grievances through any of the following methods, linked to the core RTS Aaple Sarkar 2.0 portal:

- Web Portal – AI enabled Register Grievances form (text to form)
- IVRS/Toll free number
- Call Centre
- Email
- AI enabled Chatbot (which will enable user to file grievances with ease)
- WhatsApp Chatbot

The filing of grievances would be mainly for technical issues Aaple Sarkar 2.0 portal. Citizens and VLE's (on behalf of citizen) shall mandatorily provide the unique application ID for filing their grievances to seek reference of the service application made by the Citizen. Also, only the grievances which have complete application with the provided application numbers will be forwarded.

Citizens would receive acknowledgement for registration of their Grievances. Citizens would be able to track their grievances on the portal/mobile app/SMS and email alert. The response to the grievance would be available on the portal /mobile app.

To register any complaints or grievances not pertaining to Aaple Sarkar 2.0 services, citizens shall use the CPGRAMS portal, Gol, the link of which shall be provided on the Aaple Sarkar 2.0 portal.

Grievance Redressal

The grievances would be first forwarded to the Chief Commissioner as well as the concerned RTS Commissioners. Further, the Chief Commissioner and the concerned RTS Commissioners may transfer these grievances to the concerned officials for redressal and seek explanation. The grievances should be addressed by the concerned officer on the portal/mobile app. The module should allow defining of timeframe for redressal of the grievances. The grievances should be categorized, sorted and highlighted to all levels of officers using AI.

7.2.2.11. Management Information System (MIS)

- The MIS modules will be one of the most important aspects of the Aaple Sarkar 2.0 portal. The MIS module shall play a crucial role by providing essential tools for monitoring, managing, and improving the efficiency, transparency, and effectiveness of service delivery.
- The provision of dashboards shall be available to all the stakeholders i.e., the Citizens/ Department users/ VLEs/ CRTS officials/ Department Heads or Regional Heads although with varying levels of information. Required security will be applied to this module providing restricted access as per different category of Users.
- The dashboard functionality should enable each to view their virtual personal space and manage their assigned tasks, organize their work etc. based on their role, designation and assigned privileges. This should be a privilege restricted section based on Role Based Access Control mechanism defined by the 'Admin' module.
- Text to charting functionality using AI should be provided on the portal for department officers.
- As part of the Aaple Sarkar 2.0 platform, analytical reports about various services and Departments shall help in creating insightful analysis from the data being stored within the portal. The reports will help Department in making information-based decisions. The different entities on the portal will acquire different features during the processing of an application.

- This module may be further linked to the Personalized Dashboard where the same links to these reports can be displayed in small portlets, so that any User may not always search for their frequently used reports from the Reports module, and they can add it to their own dashboard for ease of use.
- All the reports made available need to be controlled through 'Admin' (CPMU) module for variable access depending upon the nature & status of the user. The access control list of the reporting servers needs to be mapped & configured with the admin access control policies.
- Citizen: The citizens will only have access to the portal's general dashboard.
- The access control for the Reports and Dashboard will be provided within the application logic itself, as part of the application access control matrix in following manner:

Designation	Division's performance	District wise performance summary	VLE performance summary	Department wise performance	Appeal Dashboard Summary	Service wise performance
Chief Commissioner	Y	Y	Y	Y	Y	Y
RTS Commissioners	Y	Y	Y	Y	Y	Y
Head of Departments (ACS/PS/Sec)	Y	Y	Y	Y	Y	Y
Revenue Divisional Commissioners	Y	Y	Y	Y	Y	Y
District Collectors/CEO ZP/Mun. Comm	Y	Y	Y	Y	Y	Y
Department users/Designated officer	Y	Y	Y	Y	Y	Y
VLE's	N	N	Y	N	N	Y

The information access to each of the stakeholders is provided in the above table.

The further details regarding information displayed and accessible to each of the stakeholders is elaborated below:

Chief Commissioner RTS, Commissioners RTS, Head of the Departments, Regional Heads (Divisional Commissioners, District Collectors, CEO Zilla Parishad, Municipal Commissioners, etc.) and the Department users.

- All the above-mentioned stakeholders should have the access to view the following set of information:
- The user interface for the above stakeholder's login should possess a dashboard section through which they should be able to monitor and evaluate the overall status of service delivery at the State, Division and the District level.
- This dashboard facility shall provide a comprehensive overview of various aspects of service delivery, user engagement, Designated Officer's performance, VLE performance, and administrative operations. The following is the breakdown of the types of data/ information that should be included (The SI shall provide greater level of statistical insights if possible):
- Service Metrics:

- Total number of services notified by the Departments and other Government Agencies under the Maharashtra Right to Public Services Act, 2015.
- The number of services offered on the RTS Aaple Sarkar 2.0 portal out of the total notified services with a breakup displaying the same according to the respective Departments and their Sub-Departments (or local bodies, government agencies, etc.).
- Display the number of pending, in-progress, and disposed applications for each of the service offered by the Department and/ or their Sub-Department (or local bodies, government agencies, etc.). Also, the percentage of disposal for each of the services should also be available.
- Display the number of received, disposed, and approved applications for all the services in each of the Divisions.
- Graph of District wise applications received, disposed and approved.
- Average, maximum and median disposal time for all of the services.
- Pie chart displaying the percentage of applications received through citizen user login, VLEs, SETU, Aaple Sarkar Sewa Kendra- Gram Panchayat out of the total number of registrations till date.
- **User engagement:**
 - The total number of citizen user registrations.
 - The total number of registered VLEs.
 - The total number of service applications (across all services).
 - The total number of service applications disposed.
- **Geographical Insights:**
 - Provision to view number of citizen user registrations and registered VLE users at the Division, District, Taluka and Gram Panchayat level should be available.
 - A list of top ten availed services (out of the total number of services) in each of the above-mentioned revenue units.
- **Designated Officials performance:**
 - Summary showing all designated officials who have disposed of all their service applications without any default. The additional information such as service name, department shall also be made available in the report/dashboard.
 - Summary showing the designated officials who have defaulted on the service delivery shall also be provided.
- **VLE Performance:**
 - A statistical representation depicting the ranking of VLEs in the state/division/district/taluka based on the percent of applications processed should be provided. A breakdown option should lead to all the information comprising the registration number, VLE name, exact location, number of applications received & disposed, registered contact number and email id.
 - A complete list of VLEs should be provided which shall portray information like the VLE registration number, VLE name, geo-tagging, digi-code, number of applications received & disposed, registered contact number and email id.
- **The Maharashtra State Commission for Right to Service -Annual Report:**
 - All the statistical data analytics -insights and reports included in the annual reports of the Maharashtra State Commission for Right to Service shall be provided in the dashboard and report generator respectively.
- **General Feedback and Services related Grievances:**

The dashboard shall also provide with a table/ section to display the general feedback from citizens and VLEs along with the service-related grievances.

- **Appeal Insights:**
 - Statistical representation (preferably a histogram) showing total number of First, Second & Third appeals received, disposed & ongoing in the State. A breakup of ongoing disposals into on-time & delayed.
 - Statistical representation (preferably a histogram) showing total number of First, Second & Third appeals received, disposed & ongoing in each of the six divisions. A breakup of ongoing disposals into on-time & delayed.
 - Statistical representation (preferably a histogram) showing total number of First, Second & Third appeals received, disposed & ongoing in each of the district. A breakup of ongoing disposals into on-time & delayed.
- **Penalties Imposed:**
 - The information regarding penalty imposed by the Third, Second & First appellate authority shall have details like number of penalties imposed on designated officers, penalties imposed on First or Second appellate authority, amount of penalty, date and amount of recovery of penalty, penalties yet to be paid, etc.
 - **Filters:** A range of universal filters comprising Period from, Period to, Department/Agency, Division, District, Taluka, Gram Panchayat, Service along with a search bar feature shall be provided so as to view only the requisite set of information. The filters should be such, that the user shall be able to view service metrics, user engagement & geographical insights for a particular Department, Division or District.

Reporting & Analytics:

1. The proposed solution should have a section named reporting & analytics, wherein there should be a provision of a report generator.
2. In this report generator, on feeding inputs like the 'from date' to 'till date' and a filter of Department/ Service/ appeal, etc. the report with the following information should be generated.
3. Department wise report (Service Delivery Performance Index):
 - Department Name
 - Total Number of applications received (Number of applications disposed + Number of applications in process)
 - Number of applications disposed [with sub-categories: Total number of applications disposed (approved + Rejected), applications disposed on time & applications disposed beyond time]
 - A column with a percentage-based colour-based grading to be added which shall work in the following way:
 - $\geq 90\%$ Percent applications disposed out of applications received- green colour.
 - $<90\%$ and $\geq 75\%$ Percent applications disposed out of applications received- amber colour.
 - $<75\%$ Percent applications disposed out of applications received- red colour.
 - Number of applications approved (Out of the disposed applications) (Only total number)
 - Number of applications rejected (Out of the disposed applications) (Only total number)
 - Total number of applications in process (in process with officials + in process with citizens/ VLE)
 - Number of applications in process with officials (Total Number)
 - Number of applications in process with citizens/ VLEs (Total Number)
4. Service wise report:
 - Service Name
 - Total Number of applications received (Number of applications disposed + Number of applications in process)

- Number of applications disposed [with sub-categories: Total number of applications disposed (approved + Rejected), applications disposed on time & applications disposed beyond time]
- A column with a percentage-based colour-based grading to be added which shall work in the following way:
 - $\geq 90\%$ Percent applications disposed out of applications received- green colour.
 - $<90\%$ and $\geq 75\%$ Percent applications disposed out of applications received- amber colour.
 - $<75\%$ Percent applications disposed out of applications received- red colour.
- Number of applications approved (Out of the disposed applications) (Only total number)
- Number of applications rejected (Out of the disposed applications) (Only total number)
- Total number of applications in process (in process with officials + in process with citizens/ VLEs)
- Number of applications in process with officials (Total Number)
- Number of applications in process with citizens/ VLEs (Total Number)

5. Appeal Report

- Department Name
- Service Name
- First Appeal
 - Total First Appeals Received
 - First Appeals Disposed of
 - First Appeals in process(Further bifurcation into on time and delayed)
- Second Appeal
 - Total Second Appeals Received
 - Second Appeals Disposed of
 - Second Appeals in process (Further bifurcation into on time and delayed)
- Third Appeal
 - Total Third Appeals Received
 - Third Appeals Disposed of
 - Third Appeals in process (Further bifurcation into on time and delayed)
 -
- Text to charting functionality using AI should be provided on the portal for department officers.

6. Citizen Service Satisfaction Index

- Satisfaction with Service Scale: Five or more statements / questions are to be posed to respondent / citizen. Respondents / citizens may agree with these statements or may not, but they must project their agreement by providing appropriate number on the line preceding that statement or question.
- The survey questions and dashboard KPIs will be provided to the selected bidder.

Need based Reports and Analysis

- The proposed system should enable need-based reports and analysis capabilities. This analysis capability should include:
- Interactive discovery of relationships, trends, outliers, etc. for business users and analysts.
- Analytical visualizations include box plots, heat maps, animated bubble charts, network diagrams, correlation matrices, line charts with forecasting, parallel coordinates plots, donut charts, decision trees, probability analysis and more.
- Geographical map views provide a quick understanding of geospatial data.

- Network diagrams provide the ability to display networks across a map.
- Reuse and share modifications to your report, such as filters, calculations, hierarchies, and report element formatting.
- Creation of calculated, aggregated, or derived data items.
- Drag an Excel file or CSV onto your workspace and to start building reports or dashboards.
- Self-service Automated analysis to determine which variables contribute to an outcome and providing the explanation in simple natural language.

7.2.2.12. Alerts & Notifications

All Stakeholders shall receive regular alerts / notifications on the web portal/SMS/mobile application.

For Citizens

- Citizens shall receive regular alerts / notifications regarding:
 - Registration status, ongoing service application status, eligibility checks, new service availability, service disposal status, acknowledgement of filing appeal, hearing dates, disposal of appeals, and other Department updates (if any).
 - Spreading awareness regarding new services, new features offered online. The portal will send Push notifications from both frontend and backend.
 - Tracking the Doorstep delivery service appointment booking
 - Greeting alerts for the citizens where the portal will send the notifications to the citizens on various special occasions such as birthday wishes, Independence Day wishes, etc. to maintain the connection with users.
 - Weather alerts for the specific region will be reported via notifications to the citizens living in the region who are registered on Aaple Sarkar portal.
 - All the above notifications should be triggered via SMS, Email, WhatsApp & on mobile (Push Notification).

For Department Officials

- The Department officials shall receive regular alerts regarding:
 - Receiving of applications for Scrutiny
 - Applications which are getting time-barred
 - Appeals filed by citizens
 - Appeals which are getting time-barred
 - Scheduling of Hearings

For VLEs

- VLE's shall receive regular alerts / notifications regarding
 - Service availability, service disposal and ongoing application tracking, acknowledgement of filing appeal, hearing dates, disposal of appeals, other Department updates and government notifications (if any).
 - The portal should announce the launch of new government services to VLEs, enabling them to offer the latest services to citizens
 - Manage their own notifications such as updates on service application and transaction alerts. The portal will send Push notifications from the backend. Users will not be able to stop transactional notifications for transactions performed through the platform.
 - Alerts if any citizen has booked a doorstep service.

For CRTS/Department Officials/Division Heads/District Heads/Secretariats

- Appeals Filed by citizens
- For scheduling of Hearing of appeals
- All the 'Red Flags' or 'Escalations' can be displayed to Senior officials of the Departments.
- A summary of performance for the individual Department / Department employees, in terms of notified timelines met while performing their tasks or frequency of escalations, should be displayed. This information should be accessed only to the privileged senior officials and not available to others, until and unless specific rights are provided to other senior officials to view such information.
- The solution should be able to detect various anomalies and report the same to the Department such as
 - Abnormality in registrations of the citizens with respect to locations, agencies, ASSK's and Setu Kendra's.
 - Expediting processes by reporting gaps in delivery of services to eligible citizens.
 - Understanding pendency in payments and alerting to the state Departments about the level where payments are stuck.
 - Reduce the operating costs and bringing more efficiency in the process.
 - Alerting duplication in registrations using fuzzy matching and alerting duplication in payments using reconciliation leveraging advanced techniques and creation of a unified and standardized beneficiary base.

7.2.2.13. SMS gateway

- It is proposed that the SI will have to create a new SMS gateway for the RTS Aaple Sarkar 2.0 as a part of the scope of work. The SMS gateway will need to have the following indicative attributes:
 - Dynamic Sender ID (Six Characters) can be made available for sending SMS: Separate sender ID will allow all the respective Department functions to keep their identity.
 - SMS characters to be made available: Maximum up to 160 x 08 = 1280 which comprise eight SMS in a single go, removing the limitation of 160 characters.
- MIS Reports:
 - MIS reports should reflect all the information related to every single SMS sent along with its date of sending SMS, time at which SMS has been sent, text of the SMS, all the numbers to which SMS has been sent, delivery status (delivered, not delivered, expired, etc.).
 - This will avoid the misuse or personal use and the SMS delivery acknowledgement will ensure that not a single recipient of SMS can deny the actual SMS delivery status of every single SMS sent to him/her.
 - Super Admin Panel has to be made available, which will be helpful for the following:
 - To create Department wise user ID & password, reset password
 - For monitoring overall SMS traffic.
 - For getting an approval to edit/delete/update the database.
 - For creating or deleting sub-users, allowing or denying an access for using the said tool.
 - For the creation of function wise or location wise SMS sender ID.
 - For Department function/location wise re-allotment of SMS's from already available SMS volume in the super admin panel
 - To save considerable amount of additional expenses coming out of provision of availing SMS gateway application to sub-Departments every time.
 - Import / export of excel sheets containing mobile numbers along with the names of the respective individuals for sending SMS.
 - SMS delivery to DND mobile numbers: This can be achieved with pre-approval of all the SMS templates.

- Unicode Messaging Option: Marathi SMS sending facility must be made available on account of integration of English to Marathi translator in the tool itself.
- Personalized SMS sending: While sending Department wise SMS in bulk, automatic mapping of mobile number with the name of that of the respective individual whom it belongs to should be made possible using employee database file in excel (.csv) format. This will allow sending SMS by the name of respective individual on his/her mobile number without typing his/her name every time in the SMS text.
- SMS delivery status should show all the SMSs delivered/Not delivered/expired and not just “SMS sent” status.

Please Note:

- Additionally, the SI is required to comply with the guidelines set by TRAI (Telecom Regulatory Authority of India) for the bulk SMS industry from time to time. Any one-time charges such as those for tie-ups, development of interfaces, registration, commissioning etc. of the gateway will have to be borne by the SI for the Contract period and may be budgeted for in the Total Contract value of this Project.
- All the monthly SMS bills and all other costs related to the SMS gateway will also be borne by the SI.

7.2.2.14. Payment Gateway

- It is proposed that the SI will integrate with or hire Payment Gateway services for the duration of the contract as a part of the scope of work.
- Standard Department Services on the Aaple Sarkar portal should have the payment gateway as similar to the existing portal with the same standard charges.
A receipt will be generated once the payment is completed by the citizen. The users will receive the receipt for their payment on the registered e-mail. The transaction tab for the citizen will store the receipt in the transaction history of a particular user along with the service tracking.
- Any one-time charges such as those for tie-ups, development of interfaces, registration, commissioning etc. of the gateway will have to be borne by the SI for the Contract period.
- Payment gateway should enable receipt of all payments such as Transaction charges, Wallet money, Taxes (if any) etc. and should further credit the same to the Department’s account. The payment gateway should also allow credit of any refund amount back to the Citizen in case technical glitch in the system.
- The SI must ensure that the integration of Payment Gateway is available through all the variants of the Portal / mobile application i.e., the regular version, the Lite version etc.
- The Portal should be flexible for accepting payments in the form of UPI’s, Net Banking, Multi-Value cards, credit cards, debit cards, prepaid cards etc. The Mobile application as well as the web portal both should be integrated with these gateways.
- A secure gateway for all the transactions which allows citizen to complete the pending transactions.
- A SMS regarding the confirmation of the transaction with the available service name should be notified to the registered mobile number.
- The payment Gateway would be integrated in multiple modules in the Aaple Sarkar 2.0 portal as per the requirement.

7.2.2.15. Feedback and Suggestions

After services are availed by the Citizens directly or through VLE, they should have provision to fill feedback form before closure of the case. Most of the fields in feedback form should be directly pulled from respective action module. The feedback form would be accessed by Citizens and VLE’s.

Feedback by Citizens and VLE's

- Citizens who have availed the service directly or through VLE, should be asked to voluntarily submit citizen feedback and suggestions to assess and evaluate the quality of delivery of service.
- Ratings and feedback will only be enabled for service which the citizen has obtained.
- The fields in Feedback form should be directly pulled from the respective profile, application module. The feedback form would mainly assess the service delivery on following parameters.
 - Timely service
 - Easy and user-friendly access to the services
 - Portal efficiency
 - Issues/difficulties faced in accessing the services
 - Usage of Payment Gateway
 - Issues/difficulties faced in online payment
 - Overall online service delivery rating
 - Response of the staff/VLE if any

The proposed workflow for Feedback

Trigger Point

- Feedback is requested **after submission of application and also after disposal of service application** (after certificate download or approval or rejection).
- Channels: Web portal, Mobile app (Push Notification), email, or SMS (Feedback Link).

Citizen Notification

- Citizen should receive a **notification** (push, SMS, email) with a feedback link, QR code or prompt.
- Example: "We hope your experience was good. Please share your feedback on service delivery."

Feedback Form Interface

Embedded in the portal & mobile app **Form Structure**

- **Service Name** (auto filled)
- **Overall Satisfaction** (1–5 stars or emojis)
- **Specific Feedback Questions** (optional):
 - Was the process easy to follow?
 - Were you satisfied with response time?
 - Suggestions for improvement
- Free text comments

Optional: Attach screenshot/document (if any issue faced) **Consent & Submit**

- Checkbox: "I consent to my feedback being used for service improvement."

Submit securely to feedback service.

Generic Feedback and Suggestions on Aaple Sarkar 2.0 portal

- The Feedback and Suggestion form should also be open to all the users accessing the RTS Aaple Sarkar 2.0 portal to capture generic user experience/feedback on the portal.

Review of Feedback Suggestions by CRTS / Division Heads/ District Heads / Department Secretariats

- This section shall be dedicated to review the feedback and Suggestions provided by the citizens and VLEs.
- The MIS report and Dashboard would be available to review and see the feedback obtained by Citizens and VLE's
- In case of Rapid Assessment System (RAS) being integrated to the Aaple Sarkar 2.0 portal, the analytical reports generated by the application shall be available in this feedback and suggestions review section.

- The system should allow the department to be categorised in accordance with the extent with the services delivery.

7.2.2.16. Track your application / Verify authenticity of the document

On the home page of Aaple Sarkar 2.0 , there should be a provision to track the service application or verify the authenticity of Aaple Sarkar issued certificate using Application ID. The application ID is the system generated ID that is generated after submitting the Application on Aaple Sarkar 2.0.

After providing the application ID, system should display the status of the application. In case, for the provided application ID, the service is delivered and certificate is issued through Aaple Sarkar portal, then system should provide that Application ID is valid. For invalid Application ID, there should be a message showing Application D as invalid.

This functionality should be open to all the users accessing Aaple Sarkar portal and should not require login on the portal.

7.2.2.17. Offline Support and caching:

- The proposed solution shall provide an offline feature which will enhance the usability of the various services for the users. Offline application functionality refers to the application's ability to offer all its features to users without network connectivity (including Wi-Fi). Features such as access to Home Page Services and subservices for all Departments, state specific landing pages, Notifications, Various forms, Settings etc. This also includes the various forms where user can enter the data and if there is connectivity issue then user's data is stored on caching. Processing of data for such forms happens when network connectivity resumes. The offline functionality shall be working irrespective of any browser type.
- A typical flow in such a scenario should be:
 - The citizen/ VLE invokes the Department service and submits a request.
 - The RTS Aaple Sarkar 2.0 platform shall accept the user request and after required validations, respond with an acknowledgement of the request with a notification that the final status would be provided separately.
 - This input request is then inserted into the message broker queue for offline submission to the concerned Department/ ULB/ Panchayati Raj Institutions (PRI) (to be defined in annexures) / Government entity's user interface.
 - The request handler then submits the request to the Department/ ULB/ PRI/ Government entity and the Department/ ULB/ PRI/ Government entity sends back the response after processing.
 - The final response is then sent back to the subscriber as an in-app notification or even as a separate SMS if desired by the Department/ ULB/ RLB/ Government entity.

Caching:

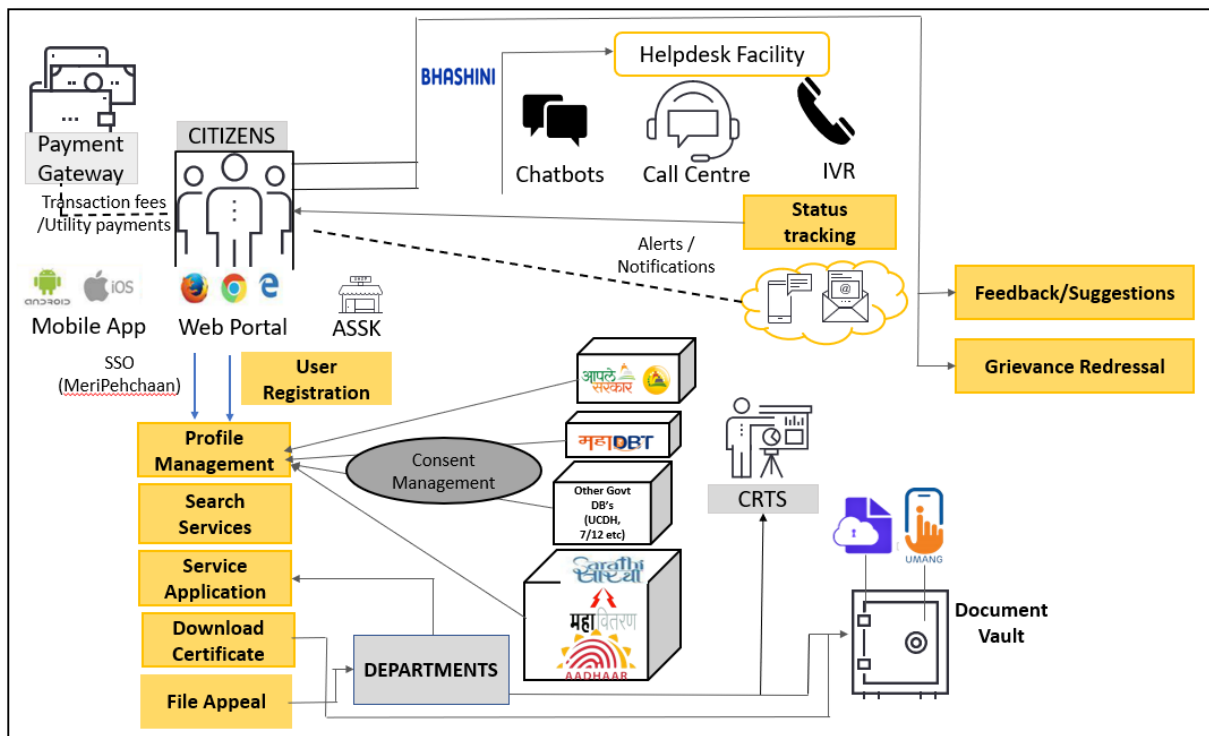
- The proposed solution should let RTS Aaple Sarkar 2.0 maintain citizen's data in cache. Citizens shall not be needed to fill all the information (profile details) in a service form every time.
- As experts, SI is supposed to devise and implement the best strategy. The caching of data should be consistent across platform and there are standard design guidelines followed for development.

7.2.3 Stakeholder user interface and features

7.2.3.1. Service Delivery interface for Citizens

RTS Aaple Sarkar 2.0 Citizen interface is envisaged to be a personal virtual space for all citizens registered with the portal. Citizen will be able to avail various e-services through this interface. The system should display all the information pertaining to individual registered citizens as captured during registration process and also during future interactions with the Department. This may include detailed data about the citizens personal as well as demographic data, their documents, other related details of their activities, etc.

The indicative diagram represents the service delivery of the citizens in Aaple Sarkar 2.0:



Home Screen:

- The proposed solution shall have a Home Screen facility, which shall harbour all the contents of the citizen user interface.
- Default landing page for users when the users first register themselves on RTS Aaple Sarkar 2.0 shall be this Home Screen which shall have different sections like New and Updated, Recently used/ availed, Top Rated, Suggested services (Find my service) along with Search facility to search different services available through keywords, Banners for promotion and highlighting Department services, Menu section for different user settings, Trending section for services which are used widely through RTS Aaple Sarkar 2.0.

User Registration and Single Sign on:

- Citizens would have User Registration module. The features and functionalities of Citizen facing single sign on and registration is elaborated in section 7.2.2.1 of this document.

Profile Management:

- Citizens would have Profile Management module. The features and functionalities of Citizen's profile creation on Aaple Sarkar 2.0 is elaborated in section 7.2.2.3 of this document.

Find my service:

- 1 The proposed solution should create a 'Find my Service' feature.
- 2 The feature should involve a convenient three - step process for the citizens where government services relevant to them will be recommended:
- 3 **Step 1** - The user enters his / her attributes such as demographic, income, social details, etc. (or fetched from the citizen's profile if provided).
- 4 **Step 2** – The RTS Aaple Sarkar 2.0 portal finds the relevant services from hundreds of services for the user.
- 5 **Step 3** - The user can select from the list of suggested services, get more information about the service and even apply to the same.

Doorstep Service Delivery:

- Citizens would have Doorstep Service Delivery option available at extra service cost. The features and functionalities for availing doorstep service delivery on Aaple Sarkar 2.0 is elaborated in section 7.2.2.6 of this document.

Account Settings:

- The proposed solution shall offer multiple options under Account setting, like to Change registered mobile number (in case user wishes to update existing primary mobile number due to any reason), change or forgot username & password, recover username & password and account based on different options like alternate email id, set recovery questions, check Logged in sessions and delete existing account.

Service Application Management:

- The proposed solution should have an interface to capture the service applications for Citizens. The detailed features and functionalities of Citizen Service Application Module is elaborated in section 7.2.2.5.
- Quick Links (Links within the application, Citizen's Grievance, Feedback and Suggestion or any other external links such as Utilities payment) should be made available in the application module.
- There would be single application ID (unique reference no.) throughout entire stages of Aaple Sarkar system.

Transaction history

- Aaple Sarkar 2.0 shall maintain a transaction history section on the homepage for reference purposes.
- The section shall have complete transaction information such as transaction type, name, Department name, service, amount, date etc. along with browsing option. Transaction history shall be permanent in nature which is associated with account.

Issued Certificates

- Citizen interface will have section of Issued Documents which would have all the certificates issued to the concerned citizen through Aaple Sarkar 2.0 portal. The detailed scope is elaborated in section 7.2.2.7

Notifications/ alert system

- Notifications and Alerts for Citizens are elaborated in section 7.2.2.12

Delete Profile

- Citizens shall be able to delete profile using their password. A registered user shall be able to set the password directly after one-time registration process or can set password later by accessing the settings available through Frontend. A registered user using same mobile number after deletion will lose all records pertaining to transactions done and services accessed earlier.

Ratings and Feedback

- Citizens would have an option to provide Feedback and Suggestions after availing of service. Also, there would be provision to capture generic feedback and suggestions of the users accessing the portal. The features are explained in section 7.2.2.15

Phone/Email Support

- Users shall be having the facility to contact RTS Aaple Sarkar 2.0 helpline through a Toll-free number with click to call feature available within the user interface. In addition, users shall be able to send their queries/feedback related to core RTS Aaple Sarkar 2.0 portal app and Department applications/services onboarded through the portal's feedback mechanism available while user is accessing any specific service or via Help and support section from main menu.
- User Manuals and FAQ shall be made available for quick reference and updated from time to time as and when new information is available.
- Citizens can call toll free number
 - to obtain information on a service they would like to avail.
 - to book doorstep service by VLE.
 - to seek details regarding interested service, nearest ASSK, Setu Kendra, etc can be sent to citizen's mobile number by SMS/WhatsApp or on their email id.

Sort/ Filter

- Users shall be provided a filter based on predefined categories. Sorting of services visible to users under different sections of RTS Aaple Sarkar 2.0 can be done thematically (Agriculture, Farmer, student, women, youth, disabled, skilling, licenses etc), alphabetically, most popular, top rated or by Service type applicable to State Government or Regional services and categories wise.

Search

- The proposed solution shall provide a powerful searching feature which in turn provides option for the citizen to discover relevant services. Searching should be implemented in the languages offered and shall be fully configurable through selfcare platform. Searching option should exist on all pages on RTS Aaple Sarkar 2.0 portal. All kind of keywords should be supported.

Chat Bot

- The proposed solution should be integrated with an exclusive chat portal for the convenience of the Citizens. The detailed functionality of citizen facing Chatbot are elaborated in section 7.4.1.

Consent Management and DigiLocker

- Citizen's consent would be captured for all the documents that are uploaded or fetched and maintained in DigiLocker/Document Vault of Aaple Sarkar 2.0 system. The detailed functionalities are elaborated in 7.2.2.4 of this document.

Track application:

- The portal should provide functionality such as real time status tracking of the applications submitted by the individual citizens by using system generated application id.
- The track application module should provide the history/list of all the applications being processed by the citizens. The list should provide the date of final approval/date of issuance of certificate so that it facilitates in time delivery of the services.
- The system should have facility to display information / documents specific to individual dealers, like pending transaction details, other service details, final decision taken for their filed appeals, etc.

Grievance Redressal

The Grievance module would enable the citizen to submit grievances against any government Departments/availing of services wherein the administrative delay had cause inconveniences to the citizens. The detailed scope related to Grievance Redressal Management is elaborated in section 7.2.2.10.

Appeal Filing

- This module will enable Citizens to file an appeal application online in case of delay in delivery of services or denial of public services by the Department entities. The detailed scope is elaborated in section 7.2.2.8.
- There would be alert and notifications to the citizens whenever appeal is filed, hearing is scheduled, judgement order is uploaded.

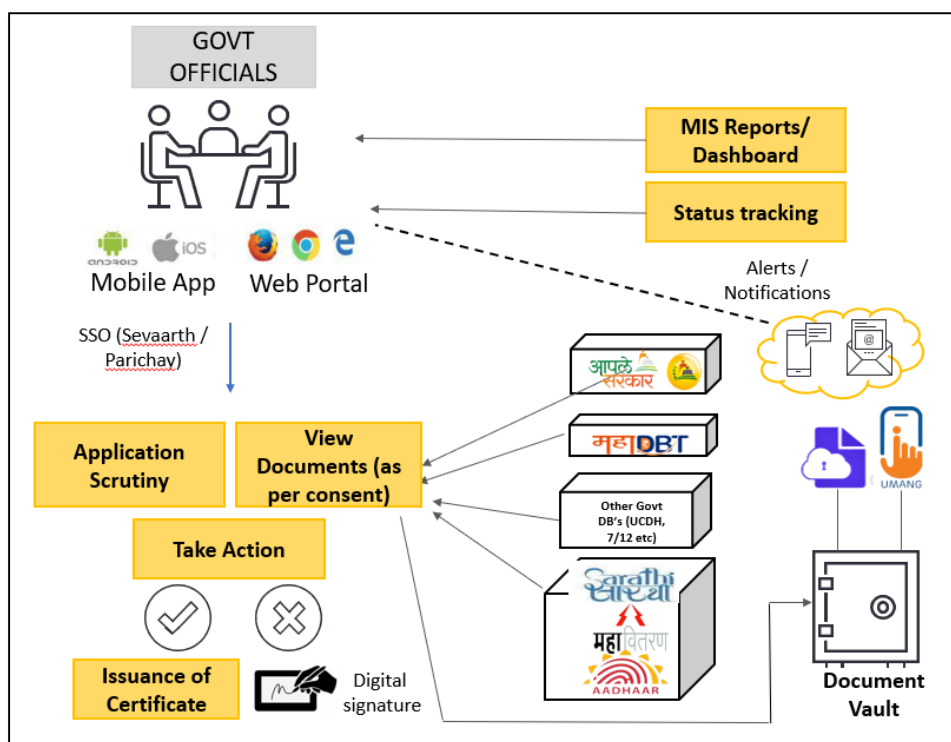
Others:

- For the best user experience, single page application architecture is to be used; this allows minimal fetch of pages and improves performance to great extent. While the benefits of Single page applications are there, vulnerability and back button navigation should be explicitly managed. Optimized web structure and framework for development of web pages needs to be used.

7.2.3.2 Scrutiny interface for Government Officials

RTS Aaple Sarkar 2.0 Department interface is supposed to be efficient, effective, informative and sophisticated. The Department's interface shall vary depending on the level or the deputation of the official. Each official's interface shall have a common set of features and basic level of access over the applications, only varying in terms of monitoring and evaluation authority. The highest authority or the head of the Department shall have complete viewing rights and access to all information concerning to their Department. Listed down below are all the modules relevant to the Department login interface.

The indicative diagram represents the scrutiny of applications by Government officials in Aaple Sarkar 2.0:



User Registration:

- In case of the Single Sign on, the features of and functionalities of government facing single sign on and registration is elaborated in section 7.2.2.1 of this document.

Home Screen:

- The proposed solution shall have a Home Screen facility,
- Default landing page for users when the users first register themselves on RTS Aaple Sarkar 2.0 shall be this Home Screen which shall have different sections like a Dashboard, Application Tracking, Data Statistics, Profile Management, Appeals, Reporting & Analytics, Complaint Registration and Status, Knowledge Base & tools and Help & Support.
- A few features like task and workflow management and central monitoring dashboards shall only be available to higher levels of access.

Dashboard:

- The user interface for the Department should possess a dashboard section through which he would be able to monitor, evaluate and act on the service application requests and details of the dashboard are mentioned in section 7.2.2.11.

Application tracking:

- The proposed solution should create architecture for the application tracking module. This section will be accessible through the tiles for each service on the dashboard. Hence each service shall have its own application tracking section. (Accessible by clicking on the tile of the concerned service).
- A subsection should have a search option on top to manually track the status of applications by entering fields like application id (in case of finding a single application), dates between the applications were received, name of the applicant (in case of finding a single application).
- Another subsection shall harbour a list of pending applications for the service and shall provide the following information for each service:
 - Serial Number

- Date and time the application was received
- District Name
- Taluka Name
- Village name (Relative to the concerned administrative unit, i.e., Municipal Corporation/ Municipality/ City Council)
- Pin Code
- Applicant Name
- Applicant ID
- Source of Application (Citizen/ VLE)
- The rows for each of the application (having the aforementioned information) should have two options:
 - View Application Details
 - Take Action
- The option of view application details should then show the applicants concerned service form and the required (uploaded or the fetched) documents.
- The other option of take action shall also display the concerned service form and the required (uploaded or the fetched) documents. After the due scrutiny and validation, the official should have the option to provide approval or forward it for his higher up's approval (in case of two or more chain of command), deny the application or send it back to the applicant (citizen/ VLE) for review.
- A mandatory remark column should be provided, listing reasons for denial of application and follow up action by the applicant if required.
- The detailed scrutiny of application would follow single/multi-level approvals (as per scrutiny levels defined for each service). The workflow is elaborated in the section 7.4.2

Redirection of Applications:

- There would be provision to the designated officials to redirect the application which is mentioned in section 7.2.2.7.

Data Statistics:

- The homepage should also have a provision of a side tab for data statistics, wherein the official shall be able to view tiles for each service, drilling down into which will show:
 - Line graph displaying the Number of applications for the service every month (cumulative 1 year).
 - An infographic displaying the average disposal time, maximum disposal time, and the minimum disposal time for the service (in days).
 - A table portraying the total number of applications received for the service, number of applications disposed, number of applications approved and denied (breakup of disposed services) and the number of applications pending.

Appeals:

- The detailed appellate mechanism and workflow for the authorities is elaborated in section 7.2.2.8.

Complaint Registration and status:

- The proposed solution should have a section for complaint registration regarding the functionality of the portal. The complaint registered shall directly go the Administrator for review and disposal. Each registered complaint should generate a unique complaint number which the official can use to track the complaint's status.
- An option to track the complaint's status should be made available which shall show whether the complaint is redressed or is pending.

- There shall be a subsection named complaint redressal inbox where the redressed complaint from the Administrator's end will be listed with any remarks if needed.

Knowledge base & tools:

- A section of knowledge base and tools should be made available in the proposed section, under which the user shall have access to all the information (name of the service, stipulated time period for delivery, documents required, appeal authority, etc.) pertaining to the services offered by his Department.
- A subsection under the same should provide an interactive calendar on which the user shall be able to write reminders or tasks for any day/ days of the month.

Account Settings:

- The proposed solution shall offer multiple options under Account setting, like to Change registered mobile number (in case user wishes to update existing primary mobile number due to any reason), change or forgot username & password, recover username & password and account based on different options like alternate email id, set recovery questions, check Logged in sessions and delete existing account.
- In case of the official using the change or forgot password feature, a notification shall be sent to the Administrator's login denoting such a change. This shall also apply to in case of account recovery option being used.

Profile Management:

- The proposed solution should comprise of a user profile module/ section wherein, the details are mentioned in section 7.2.2.3.

Help & Support:

- The proposed solution should have a Help & Support section where the official must have access to the user guide/ manual explaining steps to use the interface and the overall workflow.
- A subsection of Frequently Asked Questions (FAQs) shall be prepared for their reference.
- The contact of a support team on the Administrator's end should always be available to assist and guide the official in case of any help request.

Archive Profile:

- In case of archival of a Department user profile, the Department will have to convey in writing to the Administrator to take the necessary action.

Scrutiny Module:

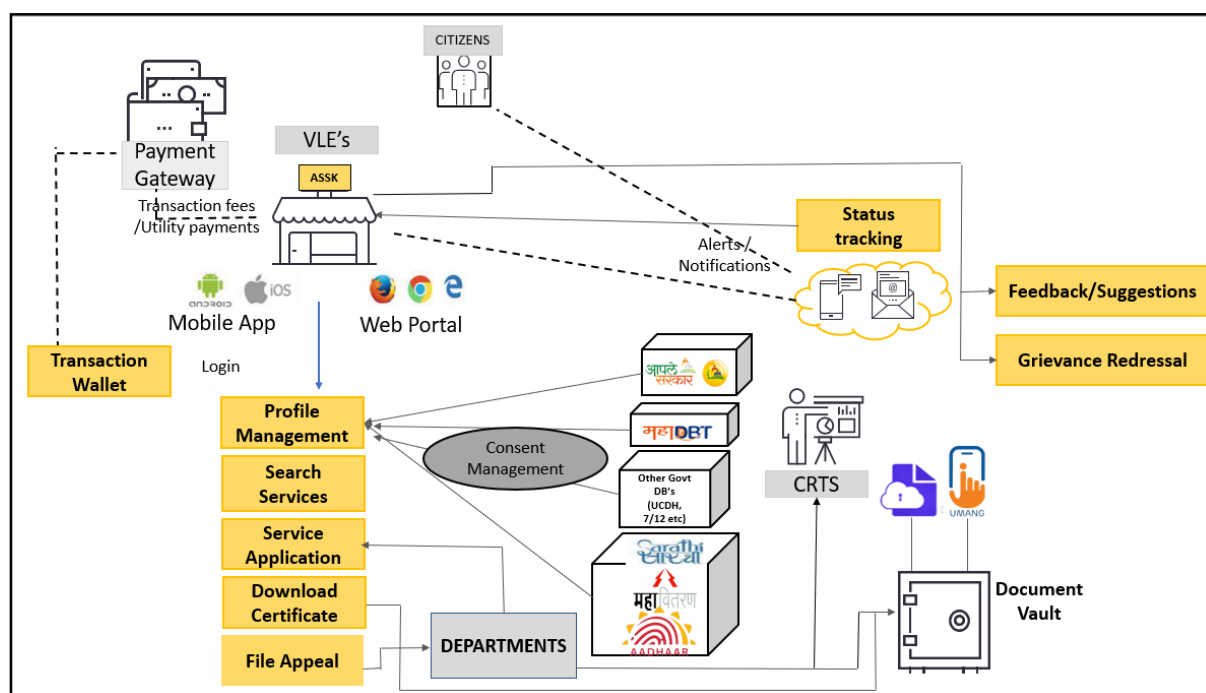
The Scrutiny module for the government officials is already mentioned in section 3.2.2.7.

7.2.3.3. Village level entrepreneur (VLE) interface

RTS Aaple Sarkar 2.0 VLE- interface is envisaged to be a personal virtual space for all VLE's onboarded by the Departments. VLE's would be able to avail various e-services through his/her login credentials provided by the Department. VLE's would be able to submit service application on behalf of the citizen. The system should display all the information pertaining to individual registered citizens as captured during registration process

and also during future interactions with the Department. This may include detailed data about the citizens personal as well as demographic data, their documents, other related details of their activities, etc.

The indicative diagram represents the submission of service application by VLE's in Aaple Sarkar 2.0:



User Login and Single Sign On:

- The features and functionalities of VLE facing single sign on and registration is elaborated in section 7.2.2.1 of this document.

Home Screen:

- The proposed solution shall have a Home Screen facility, which shall harbour all the contents of the VLE user interface.
- Default landing page for users when the users first register themselves on RTS Aaple Sarkar 2.0 shall be this Home Screen which shall have different sections like Dashboard, Number of Transactions, Payment Wallet, List of applications, service catalogue along with Search facility to search different services available through keywords and Menu section for different user settings.

Find my service:

- The proposed solution should create a 'Find my Service' feature for VLE user interface.
- The feature should involve a convenient three - step process for the VLE to fill the citizen's details where government services relevant to them will be recommended:
 - Step 1 - The user enters his / her attributes such as demographic, income, social details, etc. (or fetched from the citizen's profile if provided).
 - Step 2 – The RTS Aaple Sarkar 2.0 portal finds the relevant services from hundreds of services for the user.
 - Step 3 - The user can select from the list of suggested services, get more information about the service and even apply to the same.

Account Settings:

- The proposed solution shall offer multiple options under Account setting, like to Change registered mobile number (in case user wishes to update existing primary mobile number due to any reason), change or forgot username & password, recover username & password and account based on different options like alternate email id, set recovery questions, check Logged in sessions and delete existing account.

Notifications/ alert system:

- A notification/ alert system shall be set up for VLE as per details mentioned in section 7.2.2.12.

Service Catalogue:

- A service catalogue as one of the tabs shall be provided on the landing page/ home page. This tab shall open into a page comprising of an exhaustive list of all the Departments and their respective notified services under the Maharashtra Right to Services Act.
- Each of the service when selected should offer two options; a) View Details & b) Apply Online.
 - The View details option shall entail to all services, which on selection should list, all the necessary documents necessary to apply to the service, Fees Payable, notified timeline, designated officer for delivery of service, Procedure to apply for services (Applicant workflow and Dept workflow), etc
 - The apply online option when selected should follow to the application filling interface to be designed by the SI.

Appeals:

- The proposed section where VLE will be able to file an appeal on behalf of the citizen on the web portal or Mobile app. The details of complete appeal management workflow for the VLE is mentioned in section 7.2.2.8.

Offline Support:

- The proposed solution shall provide an offline feature which will enhance the usability of the various services for the users. The detailed features regarding offline support are mentioned in section 7.2.2.17.

Search

- The proposed solution shall provide a powerful searching feature which in turn provides option for the VLE user to discover relevant services. Searching should be implemented in the languages offered and shall be fully configurable through selfcare platform. Searching option should exist on all pages on RTS Aaple Sarkar 2.0 portal. All kind of keywords should be supported.

Help & Support:

- The proposed solution should have a Help & Support section where the official must have access to the user guide/ manual explaining steps to use the interface and the overall workflow.
- A subsection of Frequently Asked Questions (FAQs) shall be prepared for their reference.
- The contact of a support team on the Administrator's end should always be available to assist and guide the official in case of any help request.

VLE Service Application module:

- The proposed solution will service application ASSK's VLE's. The detailed process is explained in section 7.2.2.5.

VLE Document and Consent Management:

- VLE's on behalf of the citizens shall be able to access their Document Vault as per citizen's consent. The detailed functionalities are elaborated in section 7.2.2.4.

VLE Tracking Status:

- The solution to create a dashboard that allows VLEs to track the progress of applications they have submitted on behalf of citizens. Including status updates, processing timelines, and any required actions.
- Real-time tracking of application status, so VLEs can provide up-to-date information to citizens about their applications.
- To add on and enabling automatic notifications or alerts to inform VLEs about the status of applications they are handling, ensuring they are updated on the progress without having to check manually.

VLE Wallet for payment of Transaction fees:

- The proposed solution to design a clean and intuitive wallet interface, providing VLEs with easy navigation and quick access to their wallet balance, transaction history, and payment options.
- Integrating the VLE wallet seamlessly with the Aaple Sarkar portal, ensuring a smooth and cohesive user experience for VLEs.
- Offering one-click payment options or saved payment methods, enabling VLEs to complete transactions swiftly and clear display of the transaction fees and charges associated with each payment, ensuring transparency, and avoiding any confusion for VLEs.

Doorstep Delivery:

- The citizen will be given an option to book, reschedule and cancel a Doorstep Delivery for a particular set of services (defined and offered by the Departments). This facility should be provided through the VLEs based on the geographical vicinity and on a fixed cost basis. Through this facility, a citizen will book a slot to apply for any of the offered services through their nearest VLE. The detailed scope is explained in section 7.2.2.6

Transaction history:

- Aaple Sarkar 2.0 shall maintain a transaction history section on the homepage for reference purposes.
- The section shall have complete transaction information such as transaction name, Department name, amount, date etc. along with browsing option. Transaction history shall be permanent in nature which is associated with account.

Issued Certificates

- VLE interface will have section of Issued Documents which would have all the certificates issued to the concerned citizen through Aaple Sarkar 2.0 portal. The detailed scope is elaborated in section 7.2.2.6.

Delete Profile:

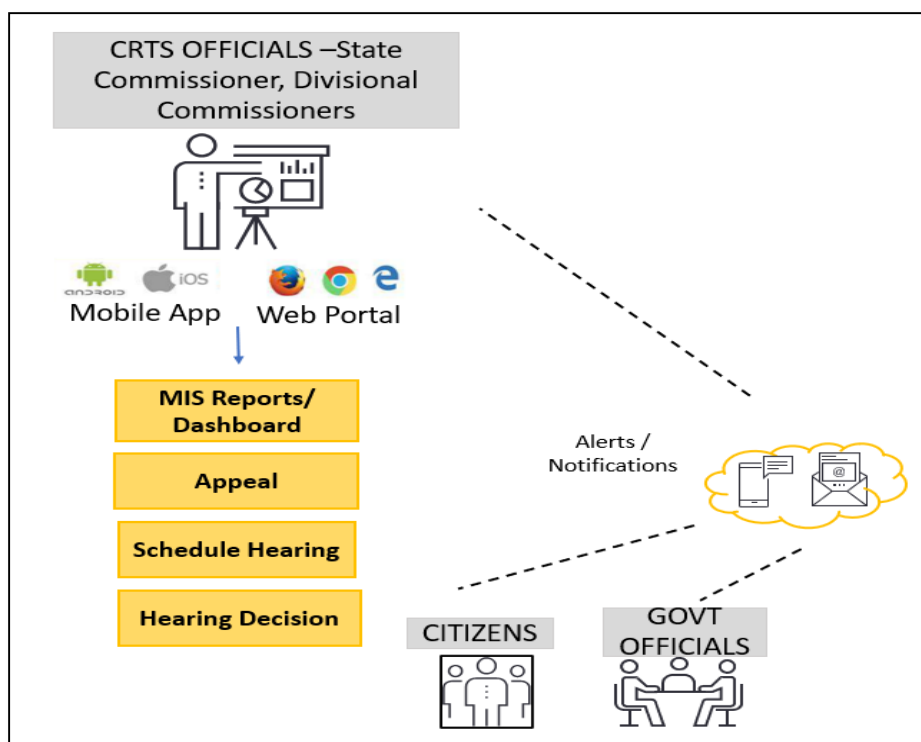
- VLE users shall be able to delete their profile by putting forth a request to the concerned government officials, which in turn would convey the same to the Administrator who would then delete the account. A registered user using same mobile number after deletion will lose all records pertaining to transactions done and services accessed earlier.

7.2.3.4. Commissioners Right to Services (CRTS) interface

The RTS Aaple Sarkar 2.0 shall have a dedicated user interface and login for the Hon. Chief Commissioner, Maharashtra State Commission for Right to Service and to all the Divisional State Commissioners for Right to

Service. The user interface shall be designed in order to process the Third appeals and to monitor overall functioning of the State machinery with regard to service delivery under the Maharashtra Right to Public Services Act, 2015.

The indicative diagram represents the workflow model of the Maharashtra State Commission in Aaple Sarkar 2.0:



Single Sign on:

- The features and functionalities of CRTS facing single sign on is elaborated in section 7.2.2.1 of this document.

Home Screen:

- The proposed solution shall have a Home Screen facility, which shall harbour all the contents of the CRTS interface.
- Default landing page for users on RTS Aaple Sarkar 2.0 shall be this Home Screen. This home screen shall have dedicated Centralised Dashboard system, Data analytics and statistics, Reporting analytics, Feedback and Suggestions review, Profile Management, Help & Support and a dedicated Appeal section.

Reporting, Analytics and Dashboard:

- The user interface for the CRTS login should possess a dashboard section through which they should be able to monitor and evaluate the overall status of service delivery at the State, Division and the District level. The detailed scope regarding Dashboards is elaborated in section 7.2.2.11

Appeals:

- This section shall specifically be for appeal management. This section should encompass two sub sections, appeals and appeal history. This appeal section would have the third appeals filed by the

citizens and have provision for auto-escalated applications (from second appeal to the Third appeal) on which the competent authority (in this case the Chief Commissioner and the State Commissioners for RTS) can take the necessary action. The detailed scope regarding Appeal Management is elaborated in section 7.2.2.8.

Suo moto Cognisance:

- Suo moto Cognisance provision would be available for CRTS officials. The detailed functionality is mentioned in section 7.2.2.9.

Review of Feedback and Suggestions:

- CRTS officials would be able to review Feedback suggestion modules submitted by Citizens and VLE's. The detailed are mentioned in section 7.2.2.15

Profile Management:

- Profile Management for CRTS officials would be as per the scope as mentioned in section 7.2.2.3

Help & Support:

- *The proposed solution should have a Help & Support section where the CRTS user must have access to the user guide/ manual explaining steps to use the interface and the overall workflow.*
- *A subsection of Frequently Asked Questions (FAQs) shall be prepared for their reference.*
- *The contact of a support team on the Administrator's end should always be available to assist and guide the CRTS user in case of any help request.*

7.2.3.5. Interface for Head of the Department/Regional Head

The facility of a monitoring dashboard shall only be provided at the Department Secretary (& above), Divisional Commissioner & the District Collector level. The interface of the Dashboard shall be restricted for viewing only, so as to provide the necessary information for monitoring and evaluation. The Dashboard shall be an open Dashboard wherein all information, across all the Departments, Divisions & Districts should be freely accessible to all the users.

User Login and Single Sign on:

- Single Sign on functionality for Departmental Heads/Regional Heads would be as per the scope given in section 7.2.2.1.

Appeals:

- This section shall specifically be for appeal management. This section should encompass two sub sections, appeals and appeal history. This appeal section would have the manual & auto-escalated applications (from First appeal to the Second appeal) on which the concerned authorities can take the necessary action. The detailed scope is mentioned section 7.2.2.8

Suo moto Cognisance by District Collectors and Divisional Commissioners:

- District Collectors being the controlling authority and Divisional Commissioner being the supervisory authority should be able to take suo moto cognisance as elaborated in section 7.2.2.9

Dashboard:

- The user interface for the Secretaries (& above), Divisional Commissioners and the District Collectors should possess a dashboard section through which they should be able to monitor and evaluate the

overall status of service delivery on the State, Division and the District level as applicable. The detailed scope related to Dashboard is elaborated in section 7.2.2.11

7.3 Roles and functions of the Central Project Management Unit (CPMU)

The proposed solution will have Central Project Management unit having highest level of access control to perform configurational changes within the organisation. The Central Project Management unit (CPMU) is also referred to as the Administrator throughout the scope. The CPMU's shall have several functions, with the primary ones handling the operations and management of the Aaple Sarkar Portal 2.0. `

- CPMU will have role-based access control providing management of users and modules that they can perform on objects.
- The access management of RTS Aaple Sarkar 2.0 portal users should be bifurcated into five segments – Citizen user access, VLE user access, Department user access, CRTS users access and monitoring access.

Ideal methodology adapted will be as follows:

- Citizen users – Citizens will have to register and access services on Aaple Sarkar 2.0 portal. The access to the Citizen services, reports etc would be controlled by CPMU
- Department users – They will have to authenticate themselves using User authentication server valid credentials (provided by the CPMU) to access resources across the portal.
- VLE users – CPMU will be able to onboard VLE and provide valid credentials on the Aaple Sarkar system. VLE would be able to access the Departmental citizen services, Doorstep bookings and VLE transactions wallet
- CRTS users – Privileged users are the highest-level users within the organisation who should be able to oversee or monitor all the applications/services being processed by the system. The privileged user access will only be provided to Maharashtra Right to Services Chief Commissioner and State Divisional Commissioners for Right to Services. Additionally, they would be able to access the Appeal Management module of Aaple Sarkar 2.0.
- Monitoring Access - District Collectors, Revenue Divisional Commissioners, Departmental Secretaries would be provided access to MIS Reports and Dashboards to oversee or monitor all the applications/services being processed by their respective offices/districts/divisions etc.

The detailed roles and responsibilities of the CPMU are described below:

- The CPMU shall be the central coordinating agency for all technical aspects regarding Aaple Sarkar 2.0 and shall ensure seamless coordination with all the stakeholders; Citizens, Village level entrepreneurs, CRTS, Departments, Division Commissionerate and the collectorate.
- All restrictions and accesses should be done at CPMU (Admin) level only. Registration of VLE's, complete onboarding of Departments and their services, Defining of Scrutiny levels would be done by CPMU only.
- For any standard Departmental service, CPMU will:
 - Onboard Government Department
 - Define Citizen Service – Name, short Description, Gazette notification
 - Define levels of Scrutiny for each service application (as per Department requirement)
 - Configure desks for each scrutiny level
 - Define Acceptable documentation for service delivery (as per Department requirement)
 - Designing of Forms and Fields, integration/validation with Third party databases such as PAN, Aadhaar etc.
 - Defining the status – Approve, Reject
- For any Gateway Department service, CPMU will:
 - Onboard Department

- Define Citizen Service – Name, short Description, Gazette notification
- Citizen application Form, Department workflow scrutiny is performed outside Aaple Sarkar 2.0
- Status of the application would be exchanged through API integration.
- CPMU should be able to create, define, amend or suspend\ the roles of the system.
- The module should be able to record the activities of any users (Departmental & citizens) and keep them as log files for auditing purpose. These logs should contain details of the activity done with the timestamp and user details.
- The module should restrict access by unauthorized database users. The proposed solution should implement segregation-of-duty and other real-time preventive controls as per Web guidelines.
- The module should be able to restrict user access to:
 - Menus
 - Sub- menus
 - Screens
 - Fields
 - Reports
 - Combination of the above
 - Any other requirement as desired by the Department
- The CPMU shall have all the necessary access to ensure smooth end to end service delivery process by maintaining all ends of service delivery.
- The CPMU being the administrative authority shall be responsible for allotment the user credentials by following the necessary procedure.
- Conduct regular security audits to identify vulnerabilities and potential weaknesses in your access management system. This could involve penetration testing and code reviews.

7.4 Information of services through Chatbot, IVR and Call Centre

7.4.1 Chatbot

Chatbot is a computerised program that can simulate human like conversation and would help in effective delivery of services to citizens. The chatbot should be deployed with Aaple Sarkar 2.0 portal over 2 channels:

- Integrating an AI-enabled chatbot into the Aaple Sarkar 2.0 portal can significantly enhance user experience by providing quick and efficient responses to user queries, offering self-service options, and improving overall engagement. An advanced AI (Artificial Intelligence) enabled chatbot is where the chatbot is trained with historic data to have contextual awareness using which it helps users with dynamic queries raised. The SI should train this chatbot using relevant datasets and sample dialogues. This helps the chatbot understand user intents and provides accurate responses. The AI chatbot will accumulate data from the Aaple Sarkar portal to reflect the queries accordingly.
- The SI should integrate the chosen chatbot platform's SDK or API into the Aaple Sarkar 2.0 portal. This might involve adding code snippets to relevant pages or utilizing webhook integration.
- Integrating would be done by SI with messaging app such as WhatsApp Chatbot for users to access citizen services including accessing of information, transactional services, service status tracking, notifications and updates.

This will be exclusive and user friendly chatbot to access government services and information, fostering transparency and convenience for the citizens which is also capable of understanding natural language queries and providing relevant responses to citizen inquiries related to government services. Citizens can

chat using live chat feature to get an immediate resolution to their queries and concerns. For issues that require hot fix or a separate work around in order to make the feature accessible, a ticket number should be generated by the bot and shared with user. User can then track the complaint using the ticket number shared. The solution to provide citizens with answers to frequently asked questions about government services and policies, making essential information easily accessible.

On the Department side, the chatbot will be equipped with a comprehensive knowledge base of government services and their associated processes, enabling it to guide citizens through various service applications. The chatbot will be continuously trained and updated using machine learning algorithms to improve its accuracy and ability to handle complex queries over time.

The proposed chatbot should provide the status/tracking of the services/applications to the citizens along with the account login related activities (changing password, forgot password, username edit, etc.) The chatbot will provide navigation path to the user if they are looking for a particular option or a service type on the portal. The detailed services provide by the proposed chatbot are:

1. Information Retrieval:

- The proposed chatbot should provide information about all the services available on the Aaple Sarkar 2.0 portal.
- It should answer frequently asked questions related to these services.

2. Guidance and Navigation:

- The chatbot should guide users through the portal, helping them find the relevant sections and forms of Aaple Sarkar 2.0 portal.
- It should provide step-by-step instructions on how to apply for different certificates and services of Aaple Sarkar 2.0.

3. Application Assistance:

- The chatbot should assist users in filling out application forms by providing real-time support and answering queries related to the form fields.
- If any errors occur while filling out the application form, the chatbot shall assist by providing solutions to resolve those errors, ensuring completeness and accuracy.

4. Status Updates:

- The chatbot should allow users to check the status of their applications by entering their application number or other identifying information.
- It should send notifications about the progress of applications, such as approval or the need for additional documents.

5. Document Upload Support:

- The chatbot should guide users on how to upload necessary documents for their applications.
- It should provide information about the uploaded documents' required criteria (file size, format, etc.).

6. Appointment Scheduling:

- The chatbot should help users schedule appointments for doorstep delivery requirements.
- It should provide reminders for upcoming appointments.

7. Feedback and Complaints Handling:

- The chatbot should collect feedback on services provided and the user experience with the portal.
- It should assist users in lodging complaints and provide information on how complaints will be handled.

8. Multilingual Support:

- The chatbot should offer services in multiple languages to cater to a diverse population.
- It should provide language-specific assistance to ensure accessibility.

9. Accessibility Features:

- It should ensure that services are accessible to individuals with disabilities by providing voice-based assistance and compatibility with screen readers.

10. Security and Privacy:

- It should answer all queries regarding data privacy and security measures taken by the portal.
- It should provide information on how users can protect their personal information while using the portal.

The chatbot will offer a guide to the users at the beginning which will educate users about the chatbot's capabilities and how to use it effectively. The chatbot shall offer guidance on the type of queries the chatbot can assist with and how the users can enable it for availing various services on the portal. The SI will ensure about how chatbot adheres to privacy regulations and securely handles user data. The SI will also configure regular updates and improve the chatbot based on user feedback and evolving requirements.

7.4.2 Call Centre and IVR

Department intends to leverage use of CM Helpline for call center and centralized Helpdesk requirements for RTS Aaple Sarkar 2.0 in the state to provide citizens one stop solution for resolution for all their queries.

The Selected SI would be required to integrate with the Call Centre operated by the Maharashtra State Government. Details of features to be integrated and relevant APIs will be given to the selected bidder.

7.5 Development of Mobile App

It is proposed that from the day of Go-Live, the new RTS Aaple Sarkar 2.0 portal should be integrated with Mobile / Tablet devices to make the portal widely reachable and accessible, especially from remote locations where connectivity is an issue, or from locations where the PC penetration is limited impacting the application accessibility. It is envisaged that in future the usage of mobile / smart phones as well as other handheld devices will increase significantly; therefore, a lighter version of the RTS Aaple Sarkar 2.0 portal must be developed to support browsing on the application through these devices (all smartphone platforms) and launched simultaneously with the main version on the day of RTS Aaple Sarkar 2.0 Go-Live. The application will be made available for the latest versions of Android as well as iOS. All the features, functionalities and modules that are available on RTS 2.0 web portal should be made available on the Mobile Application.

The proposed solution will have an integrated platform to deliver the RTS Aaple sarkar services through Mobile Application. The service updating, if the same takes place in web portal will reflect the particular service on the mobile application too.

The SI shall develop a mobile app for both Android and iOS platforms, ensuring compatibility with a wide range of mobile devices to deliver the Aaple Sarkar services installed on the user's mobile handsets and Tablets. The core application will be connected for mobile based services and the design should be integrated with an intuitive and user-friendly interface that makes it easy for citizens to navigate the app and access various government services. The government services should be organised into clear categories, making it simple for users to find the specific service they need. A mobile compatible version of the application will be available to be downloaded by the users on the mobile devices and installed for seamless integration and communication through SMS. The application will be sending push notifications and alerts to keep citizens informed about important updates, application status changes, and deadlines.

The Mobile App version should be accessed by all users

- **Citizens:** Lite version of the Aaple Sarkar 2.0 portal would be available on smart phones. The Citizens should be able to avail of all the services on the Mobile app installed on user's mobile handsets. The SI shall implement one-click login options. The features of the web portal for Citizen login i.e. Profile Management, Search services, Availing of citizen services, Tracking of status, Document scanning or retrieval of documents feature making application form filling easier. Downloading of certificates and Helpdesk Support should also be accessed using Mobile App.
- **Department:** Reporting Visualization App and Scrutiny portal app for Departmental users should be developed to verify/scrutiny of applications through Mobile app. Seamless integration with existing backend systems to access relevant databases and ensure data accuracy during application scrutiny and the features to facilitate collaboration among Department officials working on the same application or case. Reporting Visualization App for Departmental users should be supported for the latest version of iOS and Android smartphones and tablets. Each Mobile App for Departmental Users should be written specifically for its operating system that provides native support for these devices to view and explore reports anywhere, anytime on your mobile device.
- **VLE:** The Citizens should be able to access all the services on the Mobile app. VLE's should be able to transfer Money in the wallet and the app should be integrated with a user-friendly VLE wallet management system to track earnings, service fees, and incentives received for services rendered. The SI shall implement a real-time application tracking system for VLEs to monitor the progress of applications submitted on behalf of citizens. Reporting Visualization App for VLE users should be supported for the latest version of iOS and Android smartphones and tablets. Each Mobile App for Departmental Users should be written specifically for its operating system that provides native support for these devices to view and explore reports anywhere, anytime on your mobile device.
- **CRTS:** The mobile application for the CRTS will give them access to the same features as in the web portal. The interface shall be designed in order to process the Third appeals and to monitor overall functioning of the State machinery with regard to service delivery under the Maharashtra Right to Public Services Act, 2015. A default landing page for the app shall be the Home Screen dedicated with Centralised Dashboard system, Data analytics and statistics, Reporting analytics, Feedback and Suggestions review, Profile Management, Help & Support, and a dedicated Appeal section.
- **Divisional and Regional heads:** The mobile application shall have a section for the Department Secretary (& above), Divisional Commissioner, District Collector with the facility of monitoring the dashboard. The interface for them will give them necessary information for monitoring and

evaluation. The app will reflect an open dashboard wherein all information, across all the Departments, Divisions & Districts should be freely accessible to all the users along with appeal management system. Reporting Visualization App for Department & Regional Head users should be supported for the latest version of iOS and Android smartphones and tablets. Each Mobile App for Departmental Users should be written specifically for its operating system that provides native support for these devices to view and explore reports anywhere, anytime on your mobile device.

In the Mobile App section for Government officials, all information, across all the Departments, Divisions & Districts should be freely accessible to all the users. The mobile sections for Citizens and VLE's should be written specifically for its operating system that provides support for these devices to view and explore reports anywhere, anytime on your mobile device. The app should be available for free in Apple AppStore and Google Play Store. Mobile App shall be supported for the latest version and should be promoted through various channels, such as social media, government websites, and awareness campaigns, to encourage citizens to download and use the app. Citizen and VLE's sections of mobile app shall be integrated with payment gateway to make necessary payment for service transactions, utilities payment, recharging of wallet for VLE's. Alerts and notifications as envisaged in the portal shall also be incorporated in the Mobile App.

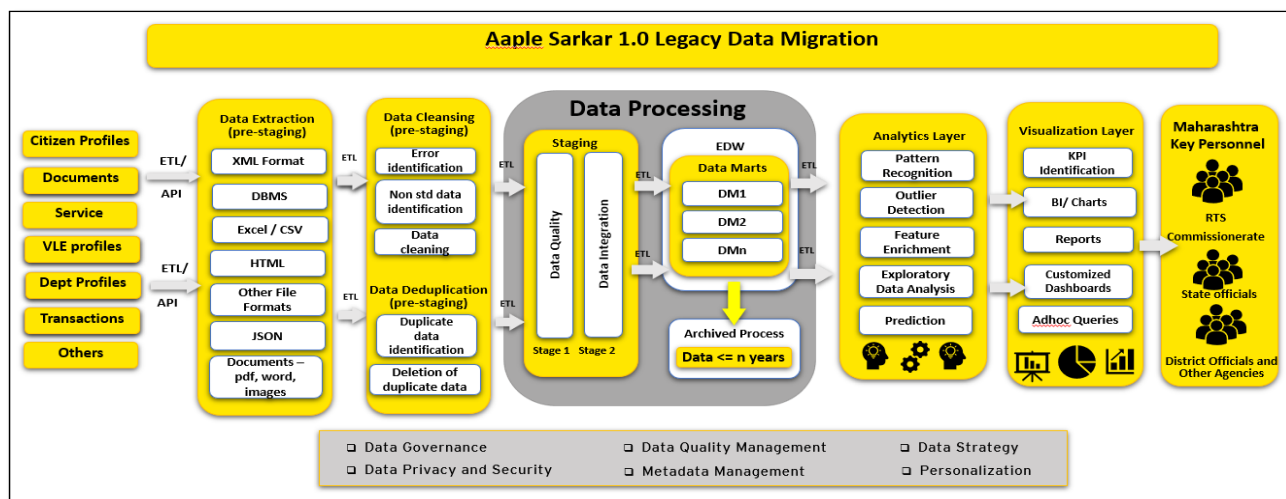
The Citizen section of Mobile App should be able to integrate with UMANG App developed by the Ministry of Electronics and Information Technology, Government of India (MeitY, GoI). The Apple App Store and Google Play Store accounts that will be used to publish the citizen section of Mobile App will be owned and operated by the Administrator

7.6 Legacy Data Cleansing, Data Migration of RTS Aaple Sarkar 1.0

The below table summarises the current statistics of the data which is maintained by Maharashtra IT Corporation (MahaIT).

Sr. No.	Data	Size
1.	Citizen Profiles	1.11 Cr
2.	Department Profiles	146,000
3.	VLE Profiles	41,000
4.	Citizen Service	1200
5.	Departments	38
6.	Applications Received	19,45,60,900
7.	Any Other data	

The above data in the databases is not standardised and includes duplicate citizen profiles, repeated set of documents attached in the citizen profiles etc. Due to which the data quality objectives are not met, and improved decision making is not achieved. Hence, it is imperative and essential to adopt the following data migration approach for maintaining high quality data within systems.



Data Extraction

The initial step in the data management process. It allows retrieval of data from various sources or systems including relational databases, spreadsheets, API, files, CSV etc. and consolidating it in a single location for further processing. MahaIT shall develop connectors irrespective of the underlying database. Such connectors will fetch data in batches or on real time.

Data Cleansing

The Selected Bidder should identify and correct duplicate records, non-standard data representation and other data quality issues. Having clean data will ultimately increase overall productivity and allow for the highest quality information in decision-making.

Through data cleansing the bidder should ensure:

- Removal of errors when multiple sources of data are at play.
- Ability to map the different functions and what your data is intended to do.
- Monitoring errors and better reporting to see where errors are coming from, making it easier to fix incorrect or corrupt data for future applications.
- Using tools for data cleaning will make for more efficient business practices and quicker decision-making.

Data Deduplication –

- The selected bidder is also expected to identify extra copies of data, redundant data so that a single instance can then be maintained. Data deduplication software installed should analyse data to identify duplicate byte patterns. Developing an incident response plan that outlines steps to take in case of a security breach or data breach. The bidder needs to use algorithms to identify records that are similar but not necessarily identical. This can help catch duplicates with minor variations. Working with this deduplicated data can improve processing speeds for applications that use the data, as there is less unnecessary information to process.

The selected Bidder will be responsible for conducting the data extraction, data cleansing and data deduplication process, MahaIT shall support the same.

Data Management is the foundational block for RTS Aple Sarkar 2.0 Portal. This layer is responsible to read the data in its raw form from heterogeneous data sources and store the final resultant data as a single source

of truth which could be taken by various downstream systems for various other analyses. This layer should also enable modular development so that any request for addition of new data source should require minimal efforts and developed modules could be used with enhanced capabilities. The data provided would be bilingual – i.e. English and Marathi.

The selected bidder is expected to design a comprehensive Data Management module based on an in-depth study, which should cover all aspects as per MeitY guidelines.

The Data Management Services should have functionalities elaborated in the sections detailed below.

Extract Transform and Load

The solution must unify data from internal and external data sources that have computerized data available as part of application databases.

Metadata Management

The solution must have Metadata Management for administration of data that describes other data. It involves establishing policies and processes that ensure information can be integrated, accessed, shared, linked, analysed, and maintained to best effect across GoM's Departments and other government agencies.

Data Quality

The solution provided by SI must have strong data quality capability and should support the below given features:

- Validity - The degree to which data conforms to defined business rules or constraints.
- Accuracy - Ensure data is close to true values.
- Completeness - The degree to which all required data is known.
- Consistency - Ensure data is consistent within the same dataset and/or across multiple data sets.
- Uniformity - The degree to which the data is specified using the same unit of measure.

Data Profiling

The solution should validate the data against statistical measures and customized business rules; also, it should be able to uncover relationships across tables, databases, and different data sources.

Business Rule Validation

The solution should verify that the data meets government standards for data quality and business processes using validation routines assessed by statistical measures as well as customized business rules.

Entity Resolution

The solution must come with strong data enrichment capabilities that use variety of advanced analytics to identify individuals from multiple sources from incomplete and non-obvious relationships and manage entity resolutions including but not limiting to advanced matching techniques, transliteration tools and cognitive services. Please note that these functionalities must be available as a plug-in which may be appended at any point during and post implementation and such append should not affect the existing system architecture.

Vocabulary and Knowledge base Replacement

The proposed solution should contain Indian Locale as a collection of files that store data and logic that define data management operations, such as data cleansing. This includes transliteration and matching logics to be applied on fields across the database to read data in Indian locale and transliterate it into English. This should

be available as out-of-box. (Example – An Aadhaar card may contain certain fields in the regional locale of the card holder’s native village)

Legacy Data Migration of Aaple Sarkar 1.0 – SI to ensure that three basic steps mentioned below are followed –

1. Extract data
2. Transform data
3. Load data

Moving important or sensitive data and decommissioning legacy systems can put stakeholders on edge. Having a solid plan is a must; however, you don’t have to reinvent the wheel. You can find numerous sample data migration plans and checklists on the web. SI is expected to follow a comprehensive 7-phase process:

- Premigration planning - Evaluate the data being moved for stability.
- Project initiation - Identify and brief key stakeholders.
- Landscape analysis - Establish a robust data quality rules management process and brief the business on the goals of the project, including shutting down legacy systems.
- Solution design. Determine what data to move, and the quality of that data before and after the move.
- Build & test - Code the migration logic and test the migration with a mirror of the production environment.
- Execute & validate - Demonstrate that the migration has complied with requirements and that the data moved is viable for business use.
- Decommission & monitor - Shut down and dispose of old systems

The details of the existing data with the Department, for the purposes of estimation will be shared with SI as per requirement.

It is envisaged that the entire legacy data will be cleansed and migrated to the new database schema before Go-Live. It is therefore important for the MahaIT to ensure that the entire data is cleansed and SI to ensure that migration activity is completed before the UAT, along with required testing. The SI is encouraged to initiate this activity in parallel to other design and development activities as per the timelines proposed. It is mandatory for the SI to migrate & validate all the old data available. The entire legacy data will be migrated by SI.

7.7 Project Management Tool:

- The System Integrator (SI) will be responsible for providing a digital project management tool to monitor project progress, including the status of portal development, testing, and other project related activity.
- The tool will also include the status of integration with external systems.
- It will provide updates on the data migration from the existing RTS 1.0 portal.
- Additionally, it will cover any other relevant project statuses
- The SI will grant access to this portal to MahaIT, PMU consultants, department/purchaser.

7.8 Quality Assurance and Testing

7.8.1 Application Testing

Once the application development / customization has been completed by the SI, the SI will thoroughly test the application at their end. Detailed test plans, test cases and test reports will be prepared by the SI and then submitted to the Department for approval. The SI must carry out Unit Testing, Integration Testing and System Testing as per the Department approved plans and the SI must submit all Test-completion reports to the Department after the end of each testing phase.

The SI should test the revamped web portal as well as the mobile application for the working compatibility. Also the login from all the stakeholders side needs an application testing module with detailed reports about the interface functioning.

Only after the entire functionality, performance and quality-of-service requirements of the solution or as later approved by the Department during design phase have been tested satisfactorily by the SI, will the solution be handed over to the Department for User Acceptance Testing. The SI will also have to create a Regression Test Suit for the Department. This will consist of end-to-end test cases across all the modules of the RTS Aaple Sarkar 2.0 portal. This Regression Test suit needs to be executed following any changes in the system throughout the duration of the contract and its test results are to be submitted to the Department. The SI will have to update and refresh the Regression Suit throughout the duration of the contract also periodically.

7.8.2 User Acceptance Testing (UAT)

The SI will develop the UAT Test plan and a detailed User acceptance procedure. The same would be reviewed and agreed by the Department. A high-level approach to be followed by the selected SI for the acceptance testing is mentioned below:

1. UAT would be applicable once the entire RTS Aaple Sarkar 2.0 portal is completely ready and all the modules under the contract are ready and linked.
 2. The UAT setup will have to be created by the SI at the MahaIT locations as communicated by the MahaIT.
 3. The UAT will be conducted in two phases. The first phase will comprise of a Closed Group UAT (PMU Consultants) followed by the second phase of extended UAT (CRTS, MahaIT and other Department Users). All the issues/defects identified during the first phase of UAT need to be closed by the SI and retested in the first phase before initiating the second phase.
 4. First Phase UAT would involve:
 - a. Development of Test cases and their approval from the PMU and MahaIT
 - b. Application functional testing and testing of other Quality-of-Service requirements.
 5. Second Phase UAT would involve (Departmental User):
 - a. The purchaser is responsible for onboarding the user departments currently utilizing the RTS 1.0 application for UAT. Commissioner RTS, MahaIT and a minimum of other three departments will be involved in this UAT.
 - b. The System Integrator (SI) should implement the changes recommended by the users conducting UAT on due communication via MahaIT.
 - c. UAT approval will only be granted to the SI after these changes have been incorporated.
- For all tests performed by the UAT users, the selected SI will prepare the test reports and submit them to the MahaIT for approval. Defects identified in any round of UAT by the UAT users would be communicated to the SI by MahaIT. The SI will do the needful to troubleshoot or resolve the defects and resubmit the application to Department for UAT. This iterative process for UAT will be performed till zero defects are shown by the selected SI for the test cases developed.
 - The selected SI would ensure that errors detected in previous round of tests do not get repeated in successive tests.

- The software application and test environments required to conduct UAT by the Department would be provided by the selected SI along with all the information necessary on-site to complete the UAT. The test environment would be maintained by the selected SI and transferred to the Department at the End of the Contract.

Documentation at this stage to include but not be limited to the following:

- Test cases
- Test results
- Test assumptions
- Test coverage and boundary conditions
- Traceability Matrix

7.8.3 Performance and Load Testing

The most crucial part for the SI is to test the Aaple Sarkar 2.0 portal's performance under various loads to ensure it can handle a significant number of users without slowing down or crashing. The Performance and Load testing will be executed by the SI. The test environment, testing licenses, test script creation and all technical support will have to be provided by SI along with the required testing support. The inputs for this activity will be the design documents approved by the Department. Since, Aaple Sarkar portal will going to be integrated with several APIs SI should provide the stability of software applications, including websites, web portals, and other software systems. For the performance and load testing, the SI will be required to stimulate the testing environment using the appropriate tools. Under controlled environment, performance of the system will need to be evaluated to match the SLAs by applying simulated pressure/stress on a system. The Performance and Load testing will be conducted before Go-Live, before any major Change Request Deployment and then subsequently during each year of the contract with the SI providing the Test environment, testing tool licenses, test scripts and necessary support. SI would be required to submit comprehensive load testing documentation as required with each round of testing. This documentation will include detailed reports and evidence demonstrating the system's performance under similar load conditions, validating its ability to meet all specified metrics, etc. The documentation requirements can be modified by the Purchaser as required.

The RTS Aaple Sarkar 2.0 should be tested on basis of the following performance parameters to cater to the needs of providing the services efficiently:

1. **Response Time:** The Aaple Sarkar 2.0 portal should respond quickly to user requests. For most applications, response times should ideally be <30 ms, even during peak usage periods.
2. **Uptime:** The portal should have high availability, ideally 99.9% or higher, to ensure citizens can access services whenever they need them.
3. **Scalability:** The architecture should be inherently scalable and resilient. The proposed solution should leverage an architecture for dynamic and efficient resource management. It should auto scale as per the active users on the portal. The solution should handle a minimum of 1,00,000 concurrent active sessions during peak usage. The response time for user interactions should be:
 - ≤ 1 second for 95% of all user interactions.
 - ≤ 2 seconds for 99.9% of all user interactions.

The system architecture should handle a peak load of 60,000 transactions per second. This performance will be maintained while supporting 1,00,000 active users concurrently.

4. **Security:** The portal should ensure the security and privacy of citizen data. This includes robust authentication mechanisms, data encryption and secure connections.
5. **Accessibility:** The portal should be accessible to all citizens, including those with disabilities. It should comply with accessibility standards such as WCAG (Web Content Accessibility Guidelines) to ensure that citizens can access and use the services provided.
6. **Reliability:** The portal should be reliable, with minimal downtime or disruptions. Regular maintenance schedules and disaster recovery plans should be in place to minimize service interruptions.
7. **User Experience:** The portal should be user-friendly and intuitive, with clear navigation and instructions. It should support multiple devices and screen sizes to accommodate different user preferences.
8. **Transaction Throughput:** The portal should be capable of handling a large number of transactions simultaneously, especially during peak periods. This includes processing payments, form submissions, and other interactions efficiently.
9. **Monitoring and Analytics:** The portal should have robust monitoring and analytics capabilities to track performance metrics, detect issues in real-time, and optimize performance over time.
10. **Compliance and Regulations:** The portal should comply with relevant laws, regulations, and standards governing government services, data protection, and security.

Please Note: Performance and Load testing tools licenses should be procured for entire period of Project. Department would define the criteria for the acceptance of the Performance and Load Testing.

7.8.4 Quality Management Plan

While developing the unified platform, it is the responsibility of the System Integrator (SI) to ensure that all quality standards as per Government of Maharashtra and GIGW are to be maintained. To confirm, SI will develop a Requirement Traceability Matrix and a Master Test Plan (MTP) and get it reviewed by PMC and approved by DIT before proceeding further.

The RTM should map the specifications and requirements to the design elements, system components, test scenarios, high level test cases and rollout and launch strategy.

The MTP includes different types of testing, testing schedule and overall quality characteristics that are to be tested.

The MTP should include the following tests (at a minimum):

- Component testing - To ensure that the components adhere to their Functional & Non-functional specifications
- Integration testing – To check seamless integration and flow between the components
- Performance testing – To check the Reliability, Availability and Scalability of the developed platform
- Regression Testing – To ensure that previously developed and tested software still performs as expected after implementation of change
- Security testing – To check Vulnerability assessment and Penetration testing
- User Acceptance Testing – Holistic testing of the complete solution
- Post-production check – To check the system in production
- Regression testing with automation – to enable regular quality management for CI-CD

7.9 Security, Risk Management and Conduct necessary assessments

Solution Security – Aaple Sarkar 2.0 portal envisages a high degree of security control to ensure the data, which includes the entire state's citizen Personally Identifiable Information (hereinafter referred to as "PII") along with financial data is secure from all unauthorized access. The selected SI should include the required security related services and solutions to secure the portal as well as the application with measures of supporting infrastructure. Few of these services could be as below (this list is only indicative and SI is required to perform necessary analysis regarding the solution for security).

7.9.1 Security Management

SOC Services -

Comprehensive IT security log monitoring service (24x7x365) delivered remotely by leveraging AI / ML technologies as per the below criteria of Functional Principles. Detection of Information Security Threat & Prevention of Impact/ Breach: The SOC should be able to detect advanced security threats, patterns, abnormalities targeting the Purchaser's infrastructure and prevent breach. The service should have below capabilities but not limited to, Security Analytics, Monitoring and Feeds services, Threat Hunting, Incident Analysis and Response, Detect Unknown attacks, blind spots and deep detection. The portal will also undergo internal vulnerability tests every 6 months to be conducted by CERT-IN Empanelled vendor and the SI is to submit the report of the same.

The portal can ensure security and risk management strategies by considering following strategies:

Encryption: Ensure that data transmitted between users and the Aaple Sarkar 2.0 portal is encrypted using protocols like HTTPS to prevent eavesdropping and data interception.

Data Storage: Storing sensitive data securely, using encryption for data at rest. Implement access controls and authentication mechanisms to restrict unauthorized access to data.

User Authentication: Enforcing strong and multifactor authentication methods for user accounts on portal to prevent unauthorized access.

Authorization: Implementing role-based access control to restrict users' access to data and functionalities based on their roles and permissions.

7.9.2 Incident Response and Management

The service on the Aaple Sarkar portal that should be able to orchestrate and automate incident response for 24x7 service window. It should have capabilities to report, log security incidents and track them to closure. Developing an incident response plan that outlines steps to take in case of a security breach or data breach. SI is expected to bring in required technology to provide this service and integrate in the portal before testing stage. Any interfaces / custom connectors required for integration needs to be considered by the bidder. SI can provide the service from their own premise, but SI should be able to transfer the service to Purchaser during exit management. Also, SI should establish communication protocols to inform users and stakeholders in the event of a security incident.

7.9.3 Vulnerability Management Services

The SI shall be required to perform complete security assessment of the Purchaser's infrastructure using their own tool by deploying skilled resources remotely / onsite. Few mandatory assessments, but not limited to, Vulnerability Scan, Network Penetration Test, API / Application Penetration Test, Secure Code Review. The SI needs to perform this assessment once a year for portal. The conduct of these security audits and vulnerability assessments is to identify potential weaknesses in the portal's code, infrastructure, and configurations.

7.9.4 Designing Data Governance & Protection Framework

The SI should develop Data Classification Guideline / Procedure documentation for complete data lifecycle, identify, classify data, create data inventory, Data flow diagram, data register, conduct Data Risk Assessment and review existing IT policies and procedures. But they should obtain explicit user consent before collecting or processing personal data from the portal and should clearly define and communicate the portal's privacy policies regarding data collection, storage, and usage to citizens. The SI should identify mitigating controls for supporting application and databases. The framework should provision data masking of sensitive / PII data of the citizens. The framework at a minimum should be aligned to Data Protection in India, Aadhar Act 2016 including any forthcoming laws/guidelines (Personal Data Protection Bill 2019) from Central or State Government authorities and others.

7.9.5 Security Audits Requirement

The SI needs to perform Risk Assessment and Secure Network Architecture Assessments to assess the network architecture. The SI should also perform security audits as per AUA KUA guidelines, as per the CERT-IN guidelines. On successful implementation of requirements, the SI needs to issue a certification in-line with CERT-IN. AUA KUA Audit and CERT-IN Audit needs to be done at completion of the development phase and once every year during the support phase. Audit needs to be performed by CERT-IN certified auditor and SI needs to engage the auditor.

The proposed solution would also get monitored by periodic information security audits / assessments performed by or on behalf of the Department. The scope of these audits / assessments may include, but are not limited to, a review of: access and authorization procedures, physical security controls, backup and recovery procedures, and program change controls.

7.9.6 Security Solutions

To strengthen and protect the environment against security threats the SI should implement following security technologies, but not limited to DLP, WAF, DDoS solution. SI needs to provide complete end to end security solution. Regularly backing up of the revamped portal data and configurations and have a disaster recovery plan in place to quickly restore operations in case of a catastrophic event. As mentioned, there will be integrations of the third-party services (e.g., payment gateways), portal should assess their security practices to ensure they meet the security standards of the app and the website. The SI will look for secure APIs for integration with other systems to prevent unauthorized access or data leakage.

7.10 IT architecture and infrastructure for the RTS Aaple Sarkar 2.0

It is proposed that the entire IT system infrastructure should be cloud ready. Based on the requirements of the Project and approach shortlisted for the execution model, 3 level architecture with Primary DC, Near Disaster Recovery and Disaster Recovery structure should be followed using Cloud Services.

The usage of 'Cloud' infrastructure will be allowed to manage the load. The Cloud facility can only be availed from any Indian organization.

The selected SI should provide all the necessary infrastructure for Aaple Sarkar 2.0 portal. This could include but not limited to:

- Servers
- Storage
- Network
- Firewall
- Disaster recovery
- Load Balancer

Any other infrastructure that is required for the portal would also be provided by the SI. The SI would schedule periodic drills for disaster recovery (once a year).

- The Cloud site must be within India.
- The Cloud Service Provider (CSP) proposed by the SI should have accreditations relevant to security, availability, confidentiality, processing integrity, and / or privacy Trust Services principles such as SOC 1, SOC 2, SOC 3.
- The CSP proposed by the SI shall be empaneled as per the guidelines of MeitY, GoI, as on Last Date for submission of Bids, for offering both DC and DR to government bodies. SI should inform Purchaser if CSP loses empanelment status during the contract period. The SI should migrate to another MeitY empaneled GCC CSP within two months of current GCC CSP losing empanelment.
- The CSP shall provide cloud utilization report to Purchaser periodically or when asked. The CSP shall also provide an administrator level access to Purchaser which shall be valid during the entire contract period.
- The CSP proposed by the SI shall comply or meet any security requirements applicable to CSPs published (or to be published) by MeitY, GoI or any standards body setup / recognized by Government of India from time to time, and notified to the CSP by MeitY, GoI as a mandatory. The CSP proposed by the SI shall meet all the security requirements indicated in the IT Act 2000, the terms and conditions of the Provisional Empanelment of the Cloud Service Providers and shall comply with the audit criteria defined by STQC.
- The minimum distance between the proposed DC and DR site should be as per MeitY, GoI guidelines during the project period.
- The cloud SLA defined by MeitY, GoI will be applicable.

7.10.1 Cloud Hosting

The SI will be responsible for providing a MeitY empanelled GCC Cloud Service within India, where the RTS Aaple Sarkar 2.0 Platform will be hosted.

Following are the requirements with respect to Cloud Hosting:

- Develop, prepare, and provide a Cloud Solution Implementation Plan. The Implementation Plan shall have the detailed design specifications, drawings, and schedule along with inspection and test plan, risk matrix and risk mitigation strategy, training material and documentation for all deliverables.
- Responsible for the replication of data between the proposed Cloud Solution site and DR Site. The Cloud Service Provider (CSP) will be responsible for commissioning the bandwidth, as required by the Purchaser, for replication of data and the SLA for the replication of data will be attributed to the CSP.

- The performance and capability of Disaster Recovery site (DR site) is required to be 50% of the capability of the Production site. The storage requirement should be same as production site.
- The solution is envisaged for application-level recovery scalable to site level recovery based on the impact of the disaster.
- Provide OS level security as per CSP standard operational procedures as defined in the Information Security Controls for Cloud Managed Services and supporting documentation.
- Network setup (including switches, routers and firewalls) and uninterrupted network availability through a network link dedicated for connecting between the main DC site, DR site and Cloud site.
- Necessary support in bringing the machines to login level in case of disaster / DR drills.
- Ensuring related DNS changes for internet, application availability and integrity, and database synchronization with application at DR site.
- 24x7x365 support for infrastructure restoration (from self and OEMs used), managed hosting support (including L1, L2, and L3 support), Uptime commitment up to OS levels, managed and monitored backup and backup retention (as per period required by the Purchaser), OS provisioning and management, dedicated security services operations, etc.
- Monitoring and maintenance reports over a monthly basis and as and when required.
- Availability of server logs / records for audits.
- Access to monitoring tools for measuring the service levels, application performance, server performance, storage performance and network performance.
- Scaling the server and storage infrastructure up or down based on the needs of the Purchaser.
- Cloud platform should provide encryption of all backup files and data and management of encryption keys as a service that can be enabled for the Purchaser that require such a service.
- Monitor and manage backup activity.
- In addition to the Primary DC, the CSP is responsible for Disaster Recovery Services so as to ensure continuity of operations in the event of failure of Primary Data Center and meet the RPO and RTO requirements.
- RPO should be less than or equal to 2 hours and RTO shall be less than or equal to 4 hours. The key transaction data shall have an RPO of 15 minutes. However, during the change from DC to DRC or vice-versa (regular planned changes), there should not be any data loss. There shall be asynchronous replication of data between Primary DC and DR-DC and the CSP will be responsible for sizing the DC-DR replication link so as to meet the RTO and the RPO requirements.
- Reverse Replication is necessary and envisaged when the DR site is acting as the main site. The solution should ensure consistency of data in reverse replication till the operations are not established at the Cloud site. The RPO would be applicable in reverse replication also. The entire data should be made available for restoration at Primary Data Centre. Restoration at Primary Data Centre will be the prime responsibility of SI and the CSP.
- It will be the CSP's responsibility to ensure that back up data is in a format that is restorable at Cloud Site or DR Site.
- CSP should offer fine-grained access controls including role-based access control, use of SSL certificates, or authentication with a multi-factor authentication.

7.10.2 Virtual Machines and Compute

- Virtual Machines (VM) offered should be with the latest generation processor offered by the processor OEM.
- Physical core to vCPU ratio should not be more than 1:2 for all proposed Virtual Machines.
- Ability to automatically increase / scale the number of instances / VMs during demand spikes to maintain performance (i.e., 'scale-out').
- Cloud service architecture should be in such a way that avoids VM outages or downtime when the CSP is performing any kind of hardware or service maintenance at the host level.
- Required Operating System should be offered along with the Virtual Machines and should support

both BYOL (Bring Your Own License) as well as PAYG (Pay As You Go). The OS offered should come with continuous updates and upgrades for the entire contract duration.

- The CSP should have capability to provide dedicated hosts in its native Cloud Infrastructure in India, which allows usage of existing third-party software license.
- The CSP Should offer monthly uptime of 99.5% or higher (as published in the CSP's Public Portal).

7.10.3 Storage

- The service shall be available online, on-demand, and dynamically scalable up or down per request for service from the end users (The Purchaser or the Purchaser's nominated agencies) with two factor authentication via the SSL through a web browser.
- The service shall provide scalable, redundant, dynamic storage.
- There shall not be any additional costs associated with data transfer over and above the ordinary bandwidth charges, or for bulk transfer for the Purchaser.
- For all volumes pertaining to production VMs, Solid State Device (SSD) based Block Storage should be offered providing minimum 4 IOPS per GB per Volume.
- Block Storage with minimum monthly uptime of 99.99% or higher (as published in the CSP's Public Portal).
- Object storage should be replicated across multiple DCs for better resiliency and should be designed for 99.99% availability and 99.9999999999% (eleven 9's) durability.
- Support complete eradication of data such that it is no longer readable or accessible by unauthorized users and / or third parties.
- Offer server-side encryption of data 'at-rest', i.e., data stored on volumes and snapshots.
- Offer object storage tiering capability, i.e., the ability to recommend transitioning an object between object storage classes based on its frequency of access.

7.10.4 Cloud Monitoring and Management Services

- **Cloud Resource Monitoring:** Capability to monitor cloud environment centrally, custom monitoring metrics, monitor and store logs, view graphs and statistics, set alarms, monitor, and react to resource changes. Support monitoring of custom metrics generated by your applications and services and any log files your applications generate. Gain system-wide visibility into resource utilization, application performance, and operational health, using these insights to react intelligently and keep applications running smoothly.
- **Audit Trail:** Logs of all user activity within a CSP account including actions taken through the CSP's Management Console, CSP's SDKs, command line tools, and other CSP services. The recorded information includes the identity of the API caller, the time of the API call, the source IP address of the API caller, the request parameters, and the response elements returned by the Cloud service.
- **Cloud Advisor:** Analyses the Cloud environment and provides best practice recommendations (or checks) in five categories: cost optimization, security, fault tolerance, performance, and service limits.

7.11 Software Documentation

- An indicative list of documentation to be prepared as part of software development phase is as below:
 - Detailed Design document detailing technical architecture (application and security)

- Database infrastructure architecture, including clustering/ mirroring, backup & recovery strategies, defining data structure, data dictionary as per standards laid down by Government of India/ Government of Maharashtra.
- Data Architecture, interface architecture and integration architecture. Appropriate load balancing and clustering techniques should be adopted by the Selected SI in the Solution design for meeting the requirements.
- Detailed System Requirement Specifications (SRS) detailing processes based on functional and Quality-of-Service requirements and additional requirements as may be identified in consultation with the Department during the requirement study phase. In case the selected SI is enhancing and upgrading the existing application, the selected SI is required to prepare the SRS of the existing application to meet the standards. A comprehensive Software Requirements Specification (SRS) document of Aaple Sarkar Portal will involve a thorough understanding of the portal's goals, functionalities, and user requirements. The SRS approved by the Department will form the baseline for all subsequent phases of application development and deployment from an application requirements perspective (e.g. for testing, identifying “change” to requirements etc.). Detailed Collaboration and class diagrams also to be prepared.
- The SI should include detailed dataflow diagrams which show the flow of data, processes, data sources, and data destinations. Also, the wireframes with visual representations of the user interface design should be included which includes layout, structure, and basic functionalities of each page or screen.
- After the SRS document, SI should prepare a System Design Document (SDD) which outlines the technical architecture and design considerations for the portal's development. It provides a detailed description of how the software system will be implemented based on the requirements specified in the SRS (Software Requirements Specification) document.

The selected SI is required to keep all such documentation up to date to reflect the latest enhancements/modifications made to the application. All documentation should be prepared as per latest industry standards and should incorporate necessary version control mechanism. The SI should declare the document with CMMI Level 5 standards indicating that the organization has achieved all the specific goals defined in maturity levels. It focuses on optimizing business processes through adopting incremental and innovative technological improvements. It uses quantitative process improvement objectives to monitor and measure process improvements.

7.12 Training and Capacity Building

The selected SI would be required to provide training to Master Trainers (train the trainer concept) on various aspects to enable effective use of the new RTS Aaple Sarkar 2.0 to achieve the envisaged outcomes. The scope of work for training is described in this section.

Training Plan: The selected SI would be required to prepare a detailed training plan covering the trainings to be conducted, targeted audience, location, dates for training, duration and training content. The SI will define the detailed training program/plan and same should be submitted to the Department for feedback and approval from the Department.

Training Materials:

Preparation of Training Content/Material

SI will have to create training materials for all the Training Programs. Approval for training materials prepared should be obtained from the Department at least 2 weeks before delivery of the training program. Additionally, there should be online versions, detailed videos of all the function modules to be prepared for the concerned stakeholders and government entities.

Training Material would consist of – User Manual, Video Tutorial which would have entire demonstration of the functional modules.

SI should make this training material available online on the portal for all the logins/stakeholders of Aaple Sarkar 2.0. – Citizen Facing Modules, Department Logins, Desk Officers, VLE portal, CRTS officials, District Heads, Division Heads.

Training Approach and Programs

The selected SI would be required to impart trainings in “train the trainer mode” as well as be responsible for implementing the training modules. Functional training of all modules for the Aaple Sarkar 2.0 portal should be made available. This should be included for new induction, transfers and promotion.

Trainer Requirement

The selected SI must ensure that deployed trainers possess needed skills and experience in the specific domains and are fully aware of the deployed systems. Deployed trainers should be fluent in speaking and writing in English and Marathi.

The training environment where Master Trainers are provided hands-on training should be exact replica of the live application, allowing entry of dummy data etc.

Please Note: The training requirements mentioned are minimal requirements which may be later revised by the Department. Training Material needs to be provided in English and Marathi only.

7.12.1 Capacity Building

Capacity Building is a critical component for the success of this Project. The objective of Capacity Building initiatives is to empower the direct users and other stakeholders to optimally use the system and ensure its smooth functioning in the area of various aspects of citizen centric service delivery.

Building capacities at various levels is critical for the successful implementation of the recommended IT initiatives. Also, the training programs should cover at minimum general / basic computer awareness programs in addition to scheme and technology-specific programs in order to ensure adoption of the system at all levels.

7.12.1.1. Participants of Capacity Building Initiatives

Based on the nature of their responsibilities and their requirements, participants can be classified into the three primary categories for training purposes. These are listed below along with their definitions and areas on which training ought to be conducted for them.

- **Central Project Management Unit (System Administration Team):**
Description: System Administration Team shall be responsible for overall functioning and management of the application, onboarding new Standard & Gateway services, management of citizen, VLE, CRTS, Department/ Regional heads & users, etc. from the technology point of view.

Capacity building Training to be conducted for following areas:

- India Enterprise Architecture (IndEA) framework and guidelines
- Configuration Management for all technology components

- Maintenance and operations of all technology components
 - Enterprise Data Architecture Management in respect of this Project
 - Access Management and Security
 - System Performance Management
 - Handling technical documentation
 - Handling Payment module
- **Department users, CRTS users, Department & Regional Heads:**
Description: Department users shall be responsible for scrutiny and disposal of the service application. from the domain / subject matter point of view. Role-based training is proposed to be undertaken for these users.

Capacity building Training to be conducted for following areas:

- System functionalities like using various features & functionalities of the system
- Architecture of the Portal
- Application scrutiny & disposal workflow
- Appeal Management workflow
- Technical features of the Solution components deployed
- Suo Moto Cognizance workflow
- Grievance module workflow
- Feedback & Suggestions functionality
- Dashboard, MIS Reporting and advanced analytics for evaluation of service performance

- **Citizen & VLE users:**
Description: The citizen/ VLE shall be responsible for application management, tracking and checking authentication.

Capacity building Training to be conducted for following areas:

- Application Management system
- Appeal filing system
- Profile Management
- Document Vault and Consent Management
- Doorstep Delivery
- Track your appeal or service/ Verify authenticity functionality
- Grievance filing module
- Chat Bot functionality
- Feedback & Suggestions functionality

7.11.1.2. Capacity Building Plan

- I. Focus areas for trainings proposed to be conducted under Capacity Building Plan shall focus on providing training on the following aspects of the proposed Solution:
 - High end technical Training for the Central Project Management Unit on Configuration Management for all technology components, Maintenance and operations of all technology components, Enterprise Data Architecture Management in respect of this Project, Access Management and Security, System Performance Management, Handling technical documentation, Database management, System Administration etc.
 - Training for all Department users, CRTS users, Department & Regional Head users on Scrutiny of

Service application, Appeal Management, Suo moto cognizance, Grievance redressal module, Feedback & Suggestions and Dashboard, MIS Reporting and advanced analytics for evaluation of service performance.

- Training for all applicant users (citizens/ VLEs) on Application management, Appeal filing, Profile Management, Document vault & consent management, Doorstep delivery, service tracking/ document authentication, Grievance filing, Feedback & suggestion modules, etc.
- Limited technical training including API sharing and management, data exchange mechanisms, etc. to a select group of technical staff from Data Contributing Government Bodies for enabling and sustaining data transfer between the proposed Platform and their systems.

Following tools are proposed to be developed / deployed as part of the Capacity Building Training Plan:

- **Design** a UI for enhanced user experience utilizing all latest concepts of designing UIs
 - Step-by-step instructions for selecting options for each field in a dedicated part of the screen
 - Expandable bubbles at data field labels that will expand by placing cursor on them – they will provide information of the field and what data is to be filled in
 - Availability of relevant policies, Acts, GRs, guidelines, etc. on screen for ready reference
- Training Calendars – Re-training available at regular intervals for Vendor users and Department end-users
- Refresher trainings.

Methods for delivery of Capacity Building Trainings

Training for all the groups mentioned in the above sections shall be required to be performed using one or more of the following approaches:

- Web-based training / e-learning (self-paced)
- Virtual Instructor-led
- Classroom training

The decision on the method of training for a targeted audience group shall reside with the DIT, GoM and MahaIT at all times. However, request for taking up of training through a specific approach may be presented by various user groups and stakeholder to DIT, GoM and MahaIT for consideration and approval.

Further, as part of the continuing efforts on training, it shall be required to enable access to a section of the system which shall make training material available to learners based on their roles defined in the system. This section shall be accessible to all Users through their Workspace.

II. Indicative Training Schedule and Curriculum

A detailed Training Schedule shall be required to be developed in consultation with DIT GoM, MahaIT and various other stakeholders of this Project. Alignment of this Training Schedule with the overall implementation roadmap of the Project and coordination of the same with all stakeholders involved shall be of key essence to ensuring effective delivery of training. Further, the Training Schedule shall be developed in such a manner that it is optimized to reduce business impact and make effective utilization of training infrastructure and capacities.

Nominations, management of requirements and maintenance of records pertaining to all activities proposed to be undertaken shall also have to be planned. Continuous reporting (MIS) and assessment shall be incorporated as an integral function of training. Also, languages for imparting training to specific groups shall be identified for ensuring multi-language training to users as per requirement.

An indicative Training Curriculum for various trainings proposed to be undertaken for this Project has been presented below:

Table 1: Indicative Training Curriculum for various trainings proposed to be undertaken for this Project

Module	Topics	Duration
Introduction	- Understanding the citizen (& VLE) journey through the portal. - Developing a map of how citizens (& VLEs) experience the portal journey, and identifying the corresponding internal processes that shape those journeys - Identifying natural break points in customer satisfaction - Combining public feedback with internal data to uncover hidden pain points - Notifications and status updates - Style of communication across the portal	½ day
Central Project Management Unit (System Administration Team)	- India Enterprise Architecture (IndEA) framework and guidelines - Configuration Management for all technology components - Maintenance and operations of all technology components - Enterprise Data Architecture Management in respect of this Project - Access Management and Security - System Performance Management - Handling technical documentation - Handling Payment module	2 days
Department users, CRTS users, Department & Regional Heads	- System functionalities like using various features & functionalities of the system - Architecture of the Portal - Application scrutiny & disposal workflow - Appeal Management workflow - Technical features of the Solution components deployed - Dashboard & MIS Reports - Suo Moto Cognizance workflow - Grievance module workflow - Feedback & Suggestions functionality	2 days
Citizen & VLE users	- Application Management system - Appeal filing system - Profile Management - Document Vault and Consent Management - Doorstep Delivery - Track your appeal or service/ Verify authenticity functionality - Grievance filing module - Chat Bot functionality - Feedback & Suggestions functionality	10 days

7.11.1.3. Citizen Centric Training

Adopting new technologies and embracing organizational culture change; and building digital capabilities within departments are the key steppingstones on the path towards creating a trusted and efficient system, and highlight responsive service centered platform addressing the needs, preferences, and life events of citizens. Simply put, the idea behind citizen-centric government is to simplify and hone processes, leaving people more time to use their expertise and talk to citizens. It is about reducing waste and creating a good, useful service for the people, thereby improving the overall citizen experience.

The beauty of a citizen-centric government is that it doesn't just benefit the citizens. It's an approach that, when done right, also makes life easier for the policy makers, front line staff, ministers, and others within the government, too. While preparing for this change, it is essential to understand ways in which the Government of Maharashtra can handhold citizens.

- Preparation of Manuals & Guides:
 - To make the transition from the Aaple Sarkar portal 1.0 to Aaple Sarkar portal 2.0 smoother, the Government of Maharashtra intends to create guides and manuals that explain concepts such as:
 - Navigating through the Portal & their user interface
 - User Registration & Single Sign on
 - Understanding the application for various services
 - Document Vault, Consent and importance of providing consent
 - Addressing Frequently Asked Questions (FAQs)
 - Appeal filing process
 - Doorstep Delivery
 - Grievance Redressal
 - Tracking service/ authenticating document
 - Feedback and suggestions
 - Manuals and guides must be prepared in English and Marathi languages to cater to a vast variety of audience.
- Linking these user guides to various social media channels

7.11.1.4. Development of Training Material

Training material is required to be created and designed for various training programs being delivered to different target groups. Following are a few activities that are needed to be performed as part of developing Training Documentation:

- Defining overall training requirements
- Evaluating various training options and methods of delivery
- Preparation of training plan, schedule etc. in lieu of frequency of sessions and group size
- Identifying the trainer and support staff
- Preparation of training guides / user manuals for the application and installation manual and administration of the manual
- Documentation to be prepared in electronic medium and booklet format. Detailed training material specifying step-by-step approach in soft copies shall be required to be provided to all users for reference. Arrangement for the same shall be required to be made in accordance with the guidelines provided. The training content, constituting the training material, shall ensure that it meets all the objectives of the training course. The material shall be developed in English & Marathi language. In addition, training material shall also be developed for delivery through Computer Based Training,

Instructor Led Training, Online User Material/Help Manuals and Job Aids.

7.11.1.5. Training Effectiveness Evaluation

Electronic or manual surveys shall be used to evaluate the effectiveness of the training conducted, and to obtain necessary feedback from participants. This feedback shall not only be analysed to tweak trainings for better delivery, but also to conduct refresher trainings, whenever necessary.

DIT, GoM and MahaIT shall monitor the training effectiveness through the performance metrics and any lapses in the same shall be required to be complied with defaulting stakeholders.

8 Implementation Plan

The SI should develop, customise, configure, test and deploy the scope as mentioned in Scope of work section of the RFP within a period nine (9) months and undertake thirty-six (36) months of operations, maintenance and support for the same. The SI is expected to use an agile framework based on minimum product viability and incrementally develop capabilities of the Aaple Sarkar Platform.

9 Software Provisioning

The SI shall install, commission, and deliver the software/s required and provisioned for the project as part of their scope of work. All software/s mentioned in the Manufacturer Authorization Form (hereinafter referred to as “MAF”) must be licensed under the name of the Purchaser.

9.1 Requirement Gathering

The SI shall carry out a detailed assessment to refine the Functional Requirements Specifications provided in this RFP and formulate the System Requirements Specifications (SRS) document incorporating the requirements provided by all the stakeholders.

As part of the requirement gathering activity the SI should study the existing system and functioning of Aaple Sarkar, data sources such as citizen databases, Citizen’s document databases, Service databases, Department Databases, Departmental information and service needs, and other requirements.

The indicative deliverables under this item shall be:

Software Requirement Specification (SRS) covering the functional requirements, non-functional requirements, detailing processes based on functional and Quality-of-Service requirements and additional requirements as may be identified in consultation with the Department during the requirement study phase etc. A comprehensive Software Requirements Specification (SRS) document of Aaple Sarkar Portal will involve a thorough understanding of the portal's goals, functionalities, and user requirements. The SRS approved by the Department will form the baseline for all subsequent phases of application

development and deployment from an application requirements perspective (e.g. for testing, identifying “change” to requirements etc.). Detailed Collaboration and class diagrams also to be prepared.

Detailed dataflow diagrams which show the flow of data, processes, data sources, and data destinations. Also, the wireframes with visual representations of the user interface design should be included which includes layout, structure, and basic functionalities of each page or screen.

- After the SRS document, SI should prepare a System Design Document (SDD) which outlines the technical architecture and design considerations for the portal's development. It provides a detailed description of how the software system will be implemented based on the requirements specified in the SRS (Software Requirements Specification) document.

9.2 Development, Testing, UAT/Pre-Production and Production:

- The SI shall develop the software/portal in accordance with the approved requirement specifications, design specifications, and according to the project plan and carry out the unit testing of the software in accordance with the approved test plans. The overall RTS2.0 setup shall be implemented in four environments i.e. Development environment, Testing environment, UAT/Pre-Production and Production environment. The illustrative deliverables for this activity are mentioned below.
 - Delivery of software along with licenses, operational / technical manuals, library files, setup programs, etc.
 - Unit and Integration testing of the software/portal along with test summary report and bug report.
 - Necessary modifications to meet the requirements and Bug Closure Report

The SI shall prepare the test cases and get them validated from the Purchaser. The test cases shall be comprehensive covering all scenarios according to specifications, requirements, and design.

The SI shall also prepare the required test data and get it validated by Purchaser/ PMU. The test data shall be comprehensive and address all scenarios identified in the test cases.

10 Monitoring and Maintenance

As part of scope of work, the SI shall be required to provide Operations and Maintenance (hereinafter referred to as “O&M”) support for three (3) years (36 months) from the date of Go-Live.

10.1 Application Maintenance

- The SI shall provide application maintenance services for the Aaple Sarkar 2.0, and all applications developed under the solution for the duration of contract, commencing from the date when the system goes “live”. The application maintenance services should ensure that the solution supplied under this Contract shall have no defect arising from design or workmanship or from any act or omission by the SI that may develop under normal use of the supplied solution.
- During the application maintenance service period, the SI shall be completely responsible for defect free functionality of the application software and shall resolve any solution related issues including bug fixing, etc. within duration agreed between Purchaser and the SI.

10.2 Infrastructure Management

- Overall management and administration of infrastructure solution including servers, networking and security components, storage solution etc.
- Performance tuning of the system as may be needed to comply with SLA requirements on a continuous basis.
- Monitor and track server performance and take corrective actions to optimize the performance daily.
- System administration tasks such as creating and managing users etc.
- Data storage management activities including backup, restore and archival etc.
- Attend to user request for assistance related to usage and management of the Aaple Sarkar Portal.

10.3 DR Drill

Disaster recovery setup is important for all Departments to maintain availability of Government Operations and resiliency of data/applications. DR Drill is a routine activity to be done by CSP as per the Business Continuity Plan (BCP) submitted, to check if there is any business continuity issue in case if the DC site is down due to an unexpected event.

The SI should ensure that CSP undertakes periodic DR drill (atleast once a year). The list below includes elements that should be reviewed on a regular basis to support critical server definition requirements.

- Business impact analysis and risk assessment
- Application dependencies and interdependencies
- Backup procedure
 - Offsite storage for essential records
 - Data retention policies
- Recovery time objectives (RTO)
- Recovery point objectives (RPO)
- IT and Senior management signoff

11 Backup Management

The SI to offer integrated Backup solution protects the Purchaser’s business’s critical data. Managed Backup includes:

- Agent deployment

- Backup of entire Virtual Machines
- Backup of all supported applications
- Granular file/folder level backup and restore.
- Backup status monitoring
- Restore of specific data and machines upon request.
- Weekly full backup
- Daily incremental
- Remediation of issues preventing the installation or performance of Managed Backup.

11.1 Data Archival

Data should be archived in such a way as to ensure that there is no loss of data, and it must be possible to restore the archived data for specific queries by Purchaser's users. The RTS 2.0 platform will store data for history of 7 years. Data beyond 7 years will be kept as part of Archival.

11.2 Patch Management

The SI to ensure patching operations for all Operating Systems currently under Mainstream Support and will apply all Critical and Security patches across the following three waves.

- Wave 1 - Recommended for Development, Test and Training machines
- Wave 2 - Recommended for all secondary servers of resilient pairs in Production.
- Wave 3 - Recommended for all primary servers of resilient pairs and single instance servers in Production.

11.3 Monitoring and Alerting

SI should perform the following:

- Monitors the health of Cloud Infrastructure and identify issues that may impact performance.
- Re-tuning of server parameters, operating systems, and other solution components.
- Configuration of monitoring parameters for Cloud services other than Virtual Machines viz; PaaS, SaaS, and any other cloud native services.
- Operating system administration, including but not limited to management of users, processes, resource contention, preventive maintenance, and management of updates and patches to ensure that the system is properly updated, with minimum or no downtime.
- Re-installation in the event of system crash / failures.
- Maintenance of a log of the performance monitoring of servers including but not limited to monitoring CPU, disk space, memory utilization, I/O utilization, etc.
- Event log analysis generated in all the sub systems including but not limited to servers, operating systems, applications, etc.
- Periodic health check of the systems (covering all cloud resources offered: IaaS and PaaS components etc.), troubleshooting problems, analyzing, and implementing rectification measures.
- Alerts shall be provided by the SI to the concerned department / IT Department if agreed threshold (Critical) of the allocated capacity of resources is being utilized
- Ensuring the upkeep of existing systems that would be reused and incorporate necessary changes for new applications if any during the Term of the Contract.
- Identification, diagnosis, and resolution of problem areas pertaining to the Cloud infrastructure and application and maintenance of assured SLA levels.
- Prepare, Design, implement and maintain standard operating procedures for maintenance of the Cloud infrastructure based on the best practices.

11.4 Helpdesk Management System

The SI needs to create a Helpdesk Management System and they need to provide hosting arrangements for operation of the Help Desk Tool. Bidder can propose enterprise open-source Helpdesk tool. However, they should be able to transfer the tool to Purchaser after end of contract period.

The Help Desk Support shall include the following activities:

- Provide basic menu / screen level support, addressing general queries of users, logging requests, assigning requests to specific help desk individuals.
- Assign severity level to each complaint.
- Track each complaint to resolution.
- Tollfree number and IVR needs to be setup
- Should support inbound and outbound calls
- Team should support both Marathi, Hindi & English languages on verbal / written communication
- Please note It will be a hybrid model where minimal team will be sitting at Purchaser's office and working hours of the help desk team will be from 8AM to 8PM (Monday to Saturday)

11.5 Resource Planning

11.5.1 Resource requirement

Integrity of solution components is extremely important in the development process. The SI needs to deploy its own team by assessing the requirement mentioned in RFP. However over and above the Project Team, the SI should procure and supply the manpower through the OEM as OEM resources. OEM should provide their resource, for all important aspect of engagement, to safeguard the successful completion of the Project, i.e., Data Management, Administration, Reporting and Analytics without any gap. The OEM resources will remain involved with SI's Project Team throughout the Project duration and support them during the implementation as well as support phases of the Project.

11.5.2 Resource Engagement

RTS Aaple Sarkar 2.0 is a specialized solution. So, it becomes important to deploy competent resources that can deliver the Project as desired.

The required roles to execute the project with expected relevant experience is provided below.

ROLES OF KEY RESOURCES	Experience
Project Manager	PM with at least 12+ years of experience managing project in government sector
Technical Project Manager	PM with at least 10+ years of experience managing project in government sector.
Solution Architect	Solution architect with at least 12 years of experience in architecting solutions of similar scale
Data Architect	Data Architect with at least 5 years of experience in architecting solutions of similar scale
Database Administrator	Database administrator with at-least 7 years of experience
Software Team Lead	Team Lead with at-least 8 years of experience in managing teams for project of similar scale

ROLES OF KEY RESOURCES	Experience
Sr Software Developer	Sr Software Developer with at least 6 years of experience in developing similar projects.
Software Developer	Software Developer with at least 4 years of experience in complex portal development, design, develop and implement REST based API's.
UI Designer	At least 5 years of experience
UI Developer	UI developer with at least 5 years of experience in designing front end of web and mobile applications and design and development of dashboards
Business Analyst	BI Analyst with at-least 5 years of experience in documenting business processes, user stories etc.
IT Security Manager	IT Security Manager with 3-4 years of experience to work closely with IT team for tracking and closure of security incidents.
Software Tester	Software Tester with at-least 4 years of experience in analyzing bugs and errors, write test cases, conduct functional testing, identify bugs, and discuss bugs, documenting test results, recommendation of improvements etc.
Network Specialist	At least 4 year's experience in network management.
Solution Expert	Solution Expert with at-least 5+ years of experience in similar solution on delivery of services.
Analytics	Analytics / Modeler with at-least 5+ years of experience in analytics and Statistical Model Building
Data Management	Data Management Expert with at-least 5+ years of experience in Data Management
Business Analyst	Solution Architect with at-least 5 years of experience in system Administration
Support Engineer	Support Engineer with at-least 3 years of experience in application support and maintenance

To ensure quality of delivery by incorporating the best practices / learning, the SI should engage and utilize the resources supplied by the OEM of a Solution Provider, if a proprietary third-party software is being used.

The SI must assure that uninterrupted service is provided to the Purchaser and appropriate SLAs are adhered to.

The SI is allowed to propose an onshore-offsite hybrid model for development, production and support stages.

11.5.3 Preparation of Bill of Material (BoM) for IT Infrastructure

- The SI will prepare Bill of Material (hereinafter referred to as "BoM") for Cloud infrastructure, system software and licenses.
- The SI needs to do sizing for adequate infrastructure on deployment, database, all other relevant applications, the Purchaser's current and future user and load growth till the end of the Term of the Contract and provide the information to the Purchaser.

- The SI is required to create different environments for Development, Testing, Training and Production.
- The SI needs to consider vertical and horizontal scalability as the suggested infrastructure needs to scale based on user or business volumes, on the same infrastructure with additional components such as processors, memory etc.
- The SI will provide detailed infrastructure sizing calculations to meet the Purchaser's requirements.
- System performance is expected to be within the response times as defined in the SLA parameters. The SI will be required to size infrastructure to meet these requirements with adequate optimization to avoid under or oversizing of infrastructure.
- The Purchaser shall provide working space to the SI during the Term of the Contract.

12 Project Plan and Project Deliverables

Implementation timelines proposed for the project shall be as follows:

Sr. No	Project Activity	Deliverables	Timelines in months (from signing of the Contract)
1	Project initiation	• Mobilization of team • Provisioning of cloud infrastructure • Provisioning of software licenses if any • Cloud hosting	M1
2	Solution Design and Requirement Analysis	• Evaluation of data sources • Evaluation of infrastructure • System Requirement Study and Solution Design & Analysis (SRS Document) • Capturing the requirements of the project for the development, customization, Cloud BOQ and requirement, configuration of Aaple Sarkar portal	M1
3	Development/ Configuration / Workflow / modules for Departmental Portal, Citizen Portal, VLE, CRTS, etc. authorities	• Development of Web Portal for Citizens, Department officials, Appellate officials VLE's. • Development of Mobile App (Android and iOS)	M2-M5
	Migration of RTS 1.0 data into RTS 2.0	• Requirement Specification Document • System Design Document (SDD) • Login credentials to a portal where the deliverables can be verified, shall be provided. • Completion report for database integration and data processing	M1-M4
4	Development of MIS Reports and Dashboard	• Design and Built MIS and Analytical Dashboard for all the stakeholders of the system.	M3-M5

Sr. No	Project Activity	Deliverables	Timelines in months (from signing of the Contract)
5	UAT and Implementation Portal	- Quality Assurance Plan - Testing Strategy including Test plans and Test cases - Testing for modules including UAT and Implementation - UAT Reports including various Test performed, Test results and Resolution reports for the issues identified during the testing	M6
6	Audit for Aaple Sarkar 2.0	Audit of the Application after incorporating issues after production (comprising of Functional testing of application, security audit of the application including Vulnerability Assessment & Penetration Testing (VA & PT) test) from government empaneled/ CERT-IN agencies.	M7-M8
7	Training to departmental users	- Training Plan and Strategy - Training Material/ Manual - Satisfactory training sessions to departmental users - Periodic training (at least once in 6 months) so that new users to the department are comfortable in using the system	M9
8	Go-Live & Sign off for Aaple Sarkar 2.0 Portal	Successful Go-Live and implementation of all Modules for departmental Portal and Sign off by Purchaser	M9
9	Defect Liability Period	During this period the system will be used by departments & citizens & any bugs/ errors will be rectified by SI at no cost	M7-M12
10	Operations, maintenance, and support	- Application support and Maintenance for modules - Operational support for modules - Maintenance support for modules	Post Go-Live and sign-off till the time of Contract

All deliverables will be deemed to have been completed only after signature of authorized personnel of the Purchaser. The tasks that are provided in this document and under “Deliverables” are to be performed by the SI in such a manner that it will not affect the Project Schedule. The SI shall adhere to the above time schedule for timely and successful completion of the Project and submit the acceptance to this time schedule.

13 Technical Specifications

Specification provided below are minimum configuration. Selected Bidder has to provide the equipment's as per Scope of work and SLA.

Sr. No.	Functional Requirement	Yes	No	Remarks
A	General / Administrative			
A.1	The proposed solution should control access to applications, modules and functions based on user roles and privileges.			
A.2	The proposed solution should allow users to access procedures through easy-to-use front-end interfaces.			
A.3	The proposed solution should capture detailed auditing information related to all user activities within the system.			
A.4	The proposed solution should provide for multi-user design environment with a governance mechanism to prevent corruption of data integration related objects, and also support collaboration on large, enterprise-wide projects.			
A.5	The proposed solution shall support validation of user ID and password with customized dictionary for rejections.			
A.6	The proposed solution shall allow registering the users using Single Sign on functionality.			
A.7	The proposed solution shall allow adding and approving Department, District and State Level authorities.			
A.8	The proposed solution will call for integration with Aadhaar and other identity providers for fetching demographic details for creation of citizen profile.			
A.9	The proposed solution shall offer a robust user authentication mechanism.			
A.10	The proposed solution should allow the admin, in this case the CPMU to assign specific permissions to each role based on the actions they should be allowed to perform in the portal. 1. Menu's 2. Sub Menu's 3. Forms 4. Fields 5. Reports 6. Combination of the above 7. Add / Update / Delete / Approve			
A.11	The proposed solution should help in creating different types of new Users, Manage their hierarchy, locations, Roles & Responsibilities as well as their rights within the system.			
A.12	The proposed solution should allow citizens to file an appeal in case of rejection or denial of service after a stipulated time frame.			

Sr. No.	Functional Requirement	Yes	No	Remarks
A.13	The proposed solution should allow MahaIT and department users with specific access to configure Application forms for service onboarding with no use of coding			
A.14	The proposed solution should allow MahaIT and department users with specific access to create link parameters included in Application form to specific attributes related to the citizen of scheme			
B.	Accessibility			
B.1	The proposed solution should work efficiently across all the mainstream internet browsers like Google Chrome, Mozilla Firefox, Opera, Safari, etc.			
B.2	The proposed solution shall contain all accessibility standards ensuring all users, including those with disabilities, can access and use the services.			
B.3	The proposed solution should be responsive across various devices, such as desktops, laptops, tablets, and smartphones, to ensure seamless access for all users.			
B.4	It should also ensure utilization of autoformat to ensure device independence for adjustment across tablets, iPads, mobiles etc.			
C.	Service Delivery			
C.1	The proposed solution should ensure service delivery through all the delivery channels as mentioned in the above sections			
C.2	The proposed solution shall support an end-to-end service delivery mechanism for standard services offered by Departments.			
C.3	The proposed solution shall support API integration with Gateway Department's website/ portal/ application to redirect the citizens to the Gateway Department's website/ application/ portal to complete the procedure of their application.			
C.4	The proposed solution shall ensure rating and feedback mechanism for the citizens. The citizens as well as other users of the portals shall be able provide remarks and feedbacks about their service delivery experience through the portal.			
D.	Core internal application and backend scrutiny			
D.1	The proposed solution shall comply with all the requirements as specified in Section 3.2.2.7			
E.	Data Management			
E.1	The proposed solution should support data cleansing and de-duplication, duplicate suspect processing, house holding, with array of standardization rules that transform data to conform to corporate standards.			

Sr. No.	Functional Requirement	Yes	No	Remarks
E.2	The proposed solution shall comprise of a “Document Vault,” which shall store previously uploaded documents of citizen which are not available on DigiLocker for quick resubmission for subsequent interactions.			
E.3	The proposed solution for a dialog box taking consent from a citizen, with regards to accessing and sharing their personal information and documents in and out of the system with various Center/State/Local government systems like the DigiLocker, MahaSamanvay, MahaDBT. etc.			
E.4	The proposed solution shall allow citizens to provide/revoke consent for storing their personal data/documents in the document vault and sharing the same to the departments while availing the service.			
E.5	The proposed solution should have the capability to enrich citizen profile from: a. Services delivered under RTS b. Documents fetched from DigiLocker (any other document vault)			
E.6	The proposed solution should support auto fetching of profile information for Citizens as per consent from DigiLocker and another document vault.			
E.7	It should depict about citizens/VLE need not be filled all the information (profile details) in a service form every time.			
F.	Dashboards & Reports			
F.1	The proposed solution should be able to provide real time data for each section of the dashboard as elaborated in the scope of work			
F.2	The proposed solution should have the provision of interactive statistical representations with breakdown option, providing further information in case of service metrics, VLE performance and Appeal Insights sections.			
F.3	The proposed solution shall identify, detect & draw comparative analysis from the data.			
F.4	The proposed solution should generate periodic, service-wise, location-wise and service type - wise analytical reports for the various stakeholders.			
F.5	The proposed solution to develop the UAT Test plan and a detailed User acceptance procedure. The same would be reviewed and agreed by the Department and follows high-level approach.			

Sr. No.	Functional Requirement	Yes	No	Remarks
F.6	Functionality to generate monthly/ quarterly/annual report for department wise, service wise, district wise			
F.7	AI based Text to Chart functionality for customized charts and reports			
F.8	The proposed solution should include the capability to download and share dashboards based on user requests.			
G	Alerts and Notifications Framework (Need to add alert related details)			
G.1	The proposed solution should incorporate two key aspects – one is an advance analytics solution which provides dashboards and reporting at aggregated level for key officers and stakeholders, and the other should be an investigative workbench which also enables operational stakeholders (officers enforcement department etc.) to take action on the alerts that emerge for an individual / application/service the evidence around the same, and take a decision on further action on the alert.			
G.2	The proposed solution should provide reports on alerts.			
G.3	The proposed solution to ensure that the integration of Payment Gateway is available through all the variants of the Portal / mobile application i.e., the regular version, the Lite version etc.			
G4	The proposed solution should ensure timely, reliable, secure, and scalable delivery of messages to all stakeholders (citizens, departments, admins), via SMS, Email & Push notifications			
G5	The proposed solution trigger Alert & Notifications to citizen on following actions 1. Transactional Notifications 2. Reminder & Follow-Up Notifications 3. Informational / Awareness Alerts			
H	Visualization and Reporting Specification			
H.1	The proposed solution where the dashboard functionality should enable each to view their virtual personal space and manage their assigned tasks, organize their work etc. based on their role, designation and assigned privileges. This should be a privilege restricted section based on Role Based Access Control mechanism defined by the 'Admin' module.			
H.2	The proposed solution analytical reporting should have feature wherein Report can be drill down to most granular level of detail as their access controls / profiles allows.			

Sr. No.	Functional Requirement	Yes	No	Remarks
H.3	The proposed solution analytical reporting should be able to enable display of trend within a dashboard with the functionality to zoom the indicators for better view.			
H.4	The proposed solution with a range of universal filters comprising of Period from, Period to, Department/Agency, Division, District, Taluka, Gram Panchayat, Service along with a search bar feature shall be provided so as to view only a specific set of information. The filters should be such, that the user shall be able to view service metrics, user engagement & geographical insights for a particular Department, Division or District.			
H.5	The proposed solution analytical reporting should support printing of the dashboard, export to pdf, export to excel - Should allow printing of individual dashboards and email options.			
H.6	The proposed solution should provide facility to generate static or dynamic interactive visualization charts and graphs.			
H.7	The proposed solution should provide the facility to download & share the reports.			
I	Infrastructure Framework			
I.1	Databased and application servers shall be configured with latest processor / server model in its portfolio for DC DR setup			
I.2	Memory Configuration – Memory to be offered as needed by the SI Solution.			
I.3	Scalability - The proposed server should have the capability of vertical scalability as per load and growth of the Department's requirement. Capacity - Capacity should be able to meet the requirements in RFP and scalable for all future expansion.			
I.4	Virtualization software - The server should be partition-able. Every partition in the servers should be configured with necessary Virtualization; Workload management software's to deploy Databases.			
I.5	Power Supply - Server should be populated with full capabilities for highest redundancy.			
I.6	Server Support and Warranty - The servers offered should be covered under the onsite comprehensive warranty for a period of Five years including hardware and software with 24x7 supports			
I.7	Accessories - All required cables, power cords, Patch cord, kits, etc. to be provided as per Indian standards.			

Sr. No.	Functional Requirement	Yes	No	Remarks
I.8	Network interfacing			
J	Administrator's management			
J.1	The solution should have comprehensive Role Based Access Control features including controlling who has access to what areas of the solution and who can do what within the application			
J.2	The solution shall have a configurable dashboard that should allow the Administrator to see a summary reports for selected period			
J.3	The solution should allow administrator to generate detailed and summary reports.			
K	Third Party Integration			
K.1	The solution should have the capability for integration of following 3 rd party integration 1. Payment Gateway 2. Push Notification Integration 3. Single Sign On (SSO) integration (MahaSamanvay SSO Integration) 4. SMS Gateway integration 5. Email Integration 6. e-Sign / Digital Signature 7. Digi Locker 8. GIS & Address Validation (Optional)			
K.2	The solution should support the replacement of existing third-party services with new ones (If MahaIT approvers)			
L	Technical Requirement			
L.1	The solution should design with following Preferable technology stack specification			
	Total Count			

Sr.No.	Summary of Requirements	Count
1	Total Functional Requirements Marked as Yes	
2	Total Functional Requirements Marked as No	
	TOTAL	

14 Service Level Agreements (SLA)

The purpose of SLA is to clearly define the levels of service which shall be provided by the SI to the Purchaser for the duration of the contract.

#	Service Level Objective	Definition	Target	Penalty
Project Timelines				
1	Requirement Gathering & SRS Submission	Time taken to complete requirements gathering and submit the Software Requirement Specification (SRS)	Within 15 working days from Project Start Date	0.5% of milestone payment per week of delay
2	Design Submission (UI/UX)	Time taken to prepare and submit portal design documents after SRS approval	Within 10 working days post SRS approval	0.5% of milestone payment per week of delay
3	Development Completion	Completion of portal development including all committed modules and features	Within 60 working days from design approval	1% of milestone payment per week of delay
4	UAT Support & Bug Fixes	Time taken to resolve bugs and provide updates during User Acceptance Testing (UAT) phase	Within 5 working days of receiving UAT feedback	0.5% of milestone payment per week of delay
5	Go-Live	Time taken to deploy the portal post UAT sign-off	Within 10 working days from UAT sign-off	1% of project cost payment per week of delay

#	Service Level Objective	Definition	Target	Penalty
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Performance SLA's				
1	Aaple Sarkar 2.0 Portal Uptime	Availability of the service delivery portal for end-users	≥ 99.5% uptime per calendar month	1% of milestone payment per 0.1% drop below threshold per month
2	Concurrent User Handling	Ability of the portal to handle simultaneous active users without performance degradation	Minimum 1,00,000 concurrent users	1% of milestone payment if system fails to handle the agreed concurrent load
3	API response time	Time taken for system APIs to respond to external/internal service calls	≤ 0.30 ms per API call	1% of milestone payment per API call exceeding the response time in a given month

#	Service Level Objective	Definition	Target	Penalty
Availability				

1	Availability of each cloud service (Applicable for all Cloud Service as defined in Cloud Services Bouquet)	Availability means the aggregate number of hours in a calendar month during which cloud service is available for use through command line interface, user/admin portal and APIs (which ever applicable) Uptime Calculation for the calendar month: $\{[(\text{Uptime Hours in the calendar month} + \text{Scheduled Downtime in the calendar month}) / \text{Total No. of Hours in the calendar month}] \times 100\}$	Availability for each of the cloud service $\geq 99.5\%$	Penalty as indicated below (per occurrence): a) $<99.5\%$ to $\geq 99.00\%$ - 10% of Quarterly Payment of the Project b) $<99.00\%$ to $\geq 98.50\%$ - 15% of Quarterly Payment of the Project c) $<98.50\%$ to $\geq 98.00\%$ - 20% of Quarterly Payment of the Project d) $<98\%$ - 30% of the Quarterly Payment of the Project In case the services is not available for a continuous period of 8 Business Hours on any day, penalty shall be 100% of the Quarterly Payment of the Project.
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2	Availability of Critical Services (As defined in Annexure B) *This SLA shall not be applicable when the associated cloud service as mentioned in SLA#1 above is not available /up.	Availability means, the aggregate number of hours in any specified time period during which the critical service is actually available for use through command line interface, user/admin portal and APIs (which ever applicable) Uptime Calculation for the calendar month: $\{[(\text{Uptime Hours in the calendar month} + \text{Scheduled Downtime in the calendar month}) / \text{Total No. of Hours in the calendar month}] \times 100\}$	Availability for each of the critical service $\geq 99.5\%$	Penalty as indicated below (per occurrence): a) $<99.5\%$ to $\geq 99.00\%$ - 5% of Quarterly Payment of the Project b) $<99.00\%$ to $\geq 98.50\%$ - 10% of Quarterly Payment of the Project c) $<98.50\%$ to $\geq 98.00\%$ - 15% of Quarterly Payment of the Project d) $<98\%$ - 20% of the Quarterly Payment of the Project In case the services are not available for a continuous period of 8 Business Hours on any day, penalty shall be 100% of the Quarterly Payment of the Project.
3	Availability of regular reports (SLA , Cloud Services Consumption, Monitoring, Billing and Invoicing, Security, & Project Progress)	Regular reports should be submitted to the Government dept. within 5 working days from the end of the month.	Regular reports should be submitted to the Government dept. within 5 working days from the end of the month.	Penalty as indicated below (per occurrence): a) <11 working days to ≥ 6 working days - 2% of Quarterly Payment for the Project b) <16 working days to ≥ 11 working days - 4% of Quarterly Payment for the Project c) For the delay beyond 15 days , penalty of 5% of the Quarterly Payment for the Project

4	Availability of the Cloud Management Portal of CSPs	Availability means the aggregate number of hours in a calendar month during which cloud management portal of CSP is actually available for use Uptime Calculation for the calendar month: $\left\{ \left[\frac{\text{Uptime Hours in the calendar month} + \text{Scheduled Downtime in the calendar month}}{\text{Total No. of Hours in the calendar month}} \right] \times 100 \right\}$	Availability of the Cloud Management Portal of CSP $\geq 99.5\%$	Penalty as indicated below (per occurrence): a) $<99.5\%$ to $\geq 99.00\%$ - 10% of Quarterly Payment of the Project b) $<99.00\%$ to $\geq 98.50\%$ - 15% of Quarterly Payment of the Project c) $<98.50\%$ to $\geq 98.00\%$ - 20% of Quarterly Payment of the Project d) $<98\%$ - 30% of the Quarterly Payment of the Project In case the Cloud Management Portal of the CSP is not available for a continuous period of 8 Business Hours on any day, penalty shall be 50% of the Quarterly Payment of the Project.
Performance				
5	Provisioning of new Virtual Machine	Time to provision new Virtual Machine (up to 64 core) Measurement shall be done by analyzing the log files	95% within 5 minutes	Penalty as indicated below (per occurrence): a) $<95\%$ to $\geq 90.00\%$ - 5% of Quarterly Payment of the Service b) $<90\%$ to $\geq 85.0\%$ - 10% of Quarterly Payment of the Service c) $<85\%$ to $\geq 80.0\%$ - 15% of

				Quarterly Payment of the Service d) <80% - 20% of the Quarterly Payment of that Service
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6	Spinning up the Object Storage	Time to spin up Object Storage Measurement shall be done by analyzing the log files	98% within 15 minutes	Penalty as indicated below (per occurrence): a) <98% to >= 95.00% - 5% of Quarterly Payment of the Service b) <95% to >= 90.0% - 10% of Quarterly Payment of the Service c) <90% to >= 85.0% - 15% of Quarterly Payment of the Service d)<85% - 20% of the QuarterlyPayment of that Service
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7	Spinning up the Block Storage	Time to spin up to 100 GB Block Storage and attach it to the running VM Measurement shall be done by analyzing the log files	98% within 15 minutes	Penalty as indicated below (per occurrence): a) <98% to >= 95.00% - 5% of Quarterly Payment of the Service b) <95% to >= 90.0% - 10% of Quarterly Payment of the Service c) <90% to >= 85.0% - 15% of Quarterly Payment of the Service d) <85% - 20% of the Quarterly Payment of that Service
8	Usage metric for all Cloud Services	The usage details for all the Cloud Service should be available within 15 mins of actual usage Measurement shall be done by analyzing the log files and Cloud Service (API) reports.	No more than 15 minutes lag between usage and Cloud Service (API) reporting, for 99% of Cloud Services consumed by the Government Dept.	Penalty as indicated below (per occurrence): a) <99% to >= 95.00% - 1% of Quarterly Payment of the Project b) <95% to >= 90.0% - 2% of Quarterly Payment of the Project c) <90% to >= 85.0% - 3% of Quarterly Payment of the Project d) <85% - 5% of the Quarterly Payment of that Project

9	Usage cost for all Cloud Service	The cost details associated with the actual usage of all the Cloud Service should be available within 24 Hrs of actual usage Measurement shall be done by analyzing the log files and Cloud Service (API) reports and Invoices	No more than 24 Hrs. of lag between availability of cost details and actual usage, for 99% of Cloud Services consumed by the Government Dept.	Penalty as indicated below (per occurrence): a) <99% to >= 95.00% - 1% of Quarterly Payment of the Project b) <95% to >= 90.0% - 2% of Quarterly Payment of the Project c) <90% to >= 85.0% - 3% of Quarterly Payment of the Project d) <85% - 5% of the Quarterly Payment of that Project
Security				
11	Percentage of timely vulnerability reports	Percentage of timely vulnerability reports shared by CSP/MSP with Government Dept. within 5 working days of vulnerability identification. Measurement period is calendar month.	Percentage of timely vulnerability reports shared with Government Dept. within 5 working days of vulnerability identification >= 99.95%	Penalty as indicated below (per occurrence): a) <99.95% to >= 99.00% - 10% of Quarterly Payment for the Project b) <99.00% to >= 98.00% - 20% of Quarterly Payment for the Project b) <98% - 30% of Quarterly Payment for the Project

12	Percentage of timely vulnerability corrections	Percentage of timely vulnerability corrections performed by CSP/MSP. a) High Severity - Perform vulnerability correction within 30 days of vulnerability identification. b) Medium Severity - Perform vulnerability correction within 60 days of vulnerability identification. c) Low Severity - Perform vulnerability correction within 90 days of vulnerability identification. Measurement period is calendar month.	Maintain 99.95% service level	Penalty as indicated below (per occurrence): a) <99.95% to >= 99.00% - 10% of Quarterly Payment for the Project b) <99.00% to >= 98.00% - 20% of Quarterly Payment for the Project b) <98% - 30% of Quarterly Payment for the Project
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13	Security breach including Data Theft/Loss/Corruption	Any incident wherein system including all cloud-based services and components are compromised or any case where data theft occurs (includes incidents pertaining to CSPs only)	No breach	For each breach/data theft, penalty will be levied as per following criteria. 1. Severity 1 (as defined in Annexure A) - Penalty of Rs 15 Lakh per incident. 2. Severity 2 (as defined in Annexure A) - Penalty of Rs 10 Lakh per incident. 3. Severity 3 (as defined in Annexure A) - Penalty of Rs 5 Lakh per incident. These penalties will not be part of overall SLA penalties cap per month. In case of serious breach of security wherein the data is stolen or corrupted, MahalIT reserves the right to terminate the contract.
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Support Channels - Incident and Helpdesk

16	Response Time under Basic Support (As defined under cloud service bouquet)	Average Time taken to acknowledge and respond, once a ticket/incident is logged through one of the agreed channels. This is calculated for all tickets/incidents reported within the reporting month.	95% within 60 minutes	a) <95% to >= 90.00% - 5% of Quarterly Payment of Basic Support service b) <90% to >= 85.00% - 7% of Quarterly Payment of Basic Support service c) <85% to >= 80.00% - 9% of Quarterly Payment of Basic Support service d) Subsequently, for every 5% drop in SLA criteria - 2% of Quarterly Payment of Basic Support service
17	Percentage of timely incident report under Basic Support service (As defined under cloud service bouquet)	The defined incidents to the cloud service which are reported to the Government Dept. in a timely fashion. This is represented as a percentage by the number of defined incidents reported within 1 hr. after discovery in a month, over the total number of defined incidents to the cloud service which are reported within the month	95% of the incidents should be reported to Government Dept. within 1 Hr. of occurrence.	a) <95% to >= 90.00% - 5% of Quarterly Payment of Basic Support service b) <90% to >= 85.00% - 10% of Quarterly Payment of Basic Support service c) <85% to >= 80.00% - 15% of Quarterly Payment of Basic Support service d) Subsequently, for every 5% drop in

				SLA criteria - 5% of Quarterly Payment of Basic Support service
18	Response Time under Enterprise Support (As defined under cloud service bouquet)	Average Time taken to acknowledge and respond, once a ticket/incident is logged through one of the agreed channels. This is calculated for all tickets/incidents reported within the reporting month.	95% within 15 minutes	a) <95% to >= 90.00% - 5% of Quarterly Payment of Enterprise Support service b) <90% to >= 85.00% - 7% of Quarterly Payment of Enterprise Support service c) <85% to >= 80.00% - 9% of Quarterly Payment of Enterprise Support service d) Subsequently, for every 5% drop in SLA criteria - 2% of Quarterly Payment of Enterprise Support Service

19	Percentage of timely incident report under Enterprise Support service(As defined under cloud service bouquet)	The defined incidents to the cloud service which are reported to the Government Dept. in a timely fashion. This is represented as a percentage by the number of defined incidents reported within 1 hr. after discovery in a month, over the total number of defined incidents to the cloud service which are reported within the Month	95% of the incidents should be reported to Government Dept. within 15 min of occurrence.	a) <95% to >= 90.00% - 5% of Quarterly Payment of Enterprise Support service b) <90% to >= 85.00% - 10% of Quarterly Payment of Enterprise Support service c) <85% to >= 80.00% - 15% of Quarterly Payment of Enterprise Support service d) Subsequently, for every 5% drop in SLA criteria - 5% of Quarterly Payment of Enterprise Support service
20	Time to Resolve - Severity 1	Time taken to resolve the reported ticket/incident from the time of logging.	For Severity 1, 95% of the incidents should be resolved within 30 minutes of problem reporting	a) <95% to >= 90.00% - 5% of Quarterly Payment of the Project b) <90% to >= 85.00% - 10% of Quarterly Payment of the Project c) <85% to >= 80.00% - 15% of Quarterly Payment of the Project d) Subsequently, for every 5% drop in SLA criteria - 5% of Quarterly Payment of the Project

21	Time to Resolve - Severity 2,3	Time taken to resolve the reported ticket/incident from the time of logging.	95% of Severity 2 within 4 hours of problem reporting AND 95% of Severity 3 within 16 hours of problem reporting	a) <95% to >= 90.00% - 5% of Quarterly Payment of the Project b) <90% to >= 85.00% - 10% of Quarterly Payment of the Project c) <85% to >= 80.00% - 15% of Quarterly Payment of the Project d) Subsequently, for every 5% drop in SLA criteria - 5% of Quarterly Payment of the Project
Disaster Recovery and Data Backup Management				
22	Recovery Time Objective (RTO) (Applicable when taking Disaster Recovery as a Service from the Service Provider)	Measured during the regular planned or unplanned (outage) changeover from DC to DR or vice versa.	RTO <= 4 hours Government Department may specify more stringent RTO based on its application requirements	10% of Quarterly Payment of the Project per every additional 2 (two) hours of downtime
23	RPO (Applicable when taking Disaster Recovery as a Service from the Service Provider)	Measured during the regular planned or unplanned (outage) changeover from DC to DR or vice versa.	RPO <= 2 hours Government Department may specify more stringent RPO based on its application requirements For Transactional Data RPO <= 15 minutes	10% of Quarterly Payment of the Project per every additional 2 (two) hours of data loss For Transactional Data: 10% of Quarterly Payment of the Project per every additional 1 (one) hours of data loss

24	DR Drills	At least two DR drills in a year (once every six months) or as per the agreement	At least two DR drills in a year (once every six months) or as per the agreement	a) No of DR Drills = 1 - 1% of the Yearly Payment of the Project b) No of DR Drills = 0 - 2% of the Yearly Payment of the Project These will be measured every six months and the liquidated damage will be levied at the end of year
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25	Data Migration	Migration of data from the source to destination system	Error rate < .25%	a) Error Rate > 0.25% & <=0.30% -1% of the Quarterly Payment of the Project b) Error Rate > 0.30% & <=0.35% -2% of the Quarterly Payment of the Project c) Error Rate > 0.35% & <=0.40% -3% of the Quarterly Payment of the Project For each additional drop of 0.05% in Error rate after 0.40%, 1% of Total Quarterly Payment of the Project will be levied as additional liquidity damage
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Audit & Monitoring

26	Patch Application	Patch Application and updates to underlying infrastructure and cloud service Measurement shall be done by analyzing security audit reports	95% within 8 Hrs. of the notification	Penalty as indicated below (per occurrence): a) <95% to >= 90.00% - 5% of Quarterly Payment of the Project b) <90% to >= 85.0% - 10% of Quarterly Payment of the Project c) <85% to >= 80.0% - 15% of Quarterly Payment of the Project d) <80% - 20% of the Quarterly Payment of that Project
27	Budget Alerts & Notification	Alerts and Notifications for budgeting and usage-based threshold Measurement shall be done by analyzing the log files	99% within 10 mins of crossing the Threshold	Penalty as indicated below (per occurrence): a) <99% to >= 95.00% - 0.25% of Quarterly Payment of the Project b) <95% to >= 90.0% - 0.5% of Quarterly Payment of the Project c) <90% to >= 85.0% - 0.75% of Quarterly Payment of the Project d) <85% - 1% of the Quarterly Payment of that Project

28	Audit of the Sustenance of Certifications	No certification (including security related certifications mandated under MeitY empanelment such as ISO27001,ISO27017, ISO27018, ISO20001 etc.) should lapse within the Project duration. Service Provider should ensure the sustenance / renewal of the certificates	All certificates should be valid during the Project duration	Delay in sustenance of c\certifications a) > 1 day & <= 5 days - 1% of the Quarterly Payment of the Project b) > 5 day & <= 15 days - 2% of the Quarterly Payment of the Project c) > 15 day & <= 30 days - 5% of the Quarterly Payment of the Project d) > 30 days, 10% of the Quarterly Payment of the Project
29	Non-closure of audit observations	No observation to be repeated in the next audit	All audit observations to be closed within defined timeline	Penalty for percentage of audit observations repeated in the next audit a) > 0 % & <= 10% - 5% of the Quarterly Payment of the Project b) > 10 % & <= 20% - 10% of the Quarterly Payment of the Project c) > 20 % & <= 30% - 20% of the Quarterly Payment of the Project d) >30% - 30% of the QuarterlyPayment of the Project

- The purpose of this Service Level Agreement (hereinafter referred to as “SLA”) is to clearly define the levels of service which shall be provided by the SI to the Purchaser for the Term of the Contract of this Project.
- Timelines specified in the above section (Work Completion Timelines and Payment Terms) shall form the Service Levels for delivery of Services specified there-in.
- All the payments to the bidder are linked to the compliance with the SLA metrics specified in this RFP document.
- The Project Service Level Agreement is proposed to be performance based. For the purpose of the Service Level Agreement, the definitions and terms as specified along with the following terms shall have the meanings set forth below:
 - “Uptime” shall mean the time period for which the specified services / components with specified technical and service standards are available for RTS 2.0. Uptime, in percentage, of any component (Non-IT and IT) can be calculated as:
 - $$\text{Uptime} = \{1 - [(\text{System Downtime}) / (\text{Total Time} - \text{Planned Maintenance Time})]\} * 100$$
 - “Downtime” shall mean the time period for which the specified services / components with specified technical and service standards are not available for the users of the RTS 2.0 Platform.
 - The SI will be required to schedule ‘planned maintenance time’ with prior approval of the Purchaser. This will be planned outside working time. In exceptional circumstances, The Purchaser may allow the SI to plan scheduled downtime in the working hours.
 - “Incident” refers to any event / abnormalities in the functioning of the RTS 2.0, services that may lead to disruption in normal operations.
 - “Resolution Time” shall mean the time taken (after the incident has been reported), in resolving (diagnosing, troubleshooting and fixing) or escalating (to the second level) getting the confirmatory details about the same from the SI and conveying the same to the end user), the services related troubles during the first level escalation.

14.1 SLA Measurement, Monitoring and Penalty

The following measurements and targets shall be used to track and report performance on a regular basis. The targets shown in the following paragraphs and tables are applicable for the duration of the contract and same will be used for calculating the ‘Penalty on a quarterly basis.

The penalty for various delays and deficiencies in RTS Aaple Sarkar 2.0 design, implementation and Maintenance services will be as follows.

1. Delay in Project Execution:

If the SI does not complete/fails to complete any deliverables/ entire project within the stipulated period given in the this RFP section 12 Project Plan and Project deliverables for reasons attributed to the bidder, a penalty at the rate of 0.1 %of contract value of delayed deliverable or part thereof , Maximum Penalty cap for penalty for delay is 10% of contract value, If the successful bidder delays the implementation beyond 60 days then the Purchaser may terminate the contract and Forfeit the PBG. If the SI does not complete the project within the stipulated time for reasons attributable to the Purchaser, the Purchaser will on request of the SI, grant the extension of time through an amendment to the Contract in writing.

2. Design and User Acceptance Test

If any variation found in the system versus the Requirements Document and Design Document approved by Purchaser at the time of User Acceptance Test (UAT), the SI will need to fix such variations and request for User Acceptance Testing. A penalty at the rate of 0.1% of Corresponding contract value will be levied

for reasons attributed to the SI in delays to the start of the UAT (The maximum penalty will be levied for a period of twelve (12) weeks.). The Contract may be liable for termination, in part or whole, at mutually agreeable terms and at the risk and cost of the SI. The Purchaser will pay the actual amount of work after deduction of penalty. However, if any variation found in the designing document which is not previously approved but is must for system development and betterment of system, the Purchaser may in consultation with SI approve such variation for betterment of overall system and may waive off the variation penalty.

3. SLA for Uptime

For every 0.5 % drop in uptime in each quarter over the required uptime of 98.5% a penalty up to 0.25% of the Quarterly Invoice Value would be liable to be deducted.

14.2 Severity Definition Chart and SLA for Call Resolution

Technical Support Matrix				
Priority	Response Time*	Resolution time*	Description	Quarterly Target SLA (The percentage of tickets that need to be resolved within the response time and resolution time SLA provided below)
P1 – Critical	Within 2 Hours	Within 12 Hours	The presence of Critical implies that the Solution cannot be used at all or disrupts the functionality of the Solution to the extent that the Solution cannot be substantially used.	99.5%
P2 – High	Within 4 working Hours	Within 2 working days	This means that the functionality of the Solution is affected but can be used with the intervention from the helpdesk support personnel; or implies that a program or feature in the solution cannot be used although most (50%) of the users, other programs or features remain unaffected; or implies that the solution functions, but a certain feature is somewhat disabled.	97%
P3 – Moderate	Within 4 working Hours	Within 3 working days	This means that the functionality of the Solution is affected in a non-critical area and can be rectified temporarily by a workaround done by the helpdesk support personnel themselves, or without the assistance of helpdesk support personnel so that the programs can be used; or implies that a program or feature in the Solution cannot be used but does not	97%

			critically affect the overall operation of the Purchaser; or implies that the Solution as a whole functions but a certain feature, which is non-critical is somewhat disabled.	
P – 4 Low / Advice	Within 1 working Days	Within 8 working days	This means that there is no significant effect on the functionality of the Solution but has nuisance value.	If the ticket is open for more than 1 month then the ticket will be converted to a P3 severity ticket.

Applicable Penalty:

- Rs. 50,000 per hour against P1 type of tickets beyond prescribed time will be levied until the issue is circumvented.
- Rs. 10,000 per ticket against P2 and P3 type of tickets beyond prescribed time will be levied by the Purchaser.
- Maximum penalty acceptable is Rs 5 lakhs per ticket, beyond which the contract will be liable for termination process.

** The time taken by the SI to trouble - shoot and fix the problem from the time the call has been logged at the Helpdesk till the time the problem has been fixed.*

14.3 Uptime Calculation for a month

- The Purchaser would provide a maximum of 24 hours of planned downtime for the preventive maintenance (as part of scheduled downtime) per month per project component.
- The downtime for scheduled maintenance (patch application, upgrades – OS, Database, etc.) would need to be mutually agreed between Purchaser and the SI. To reduce this time, various maintenance activities can be clubbed together with proper planning.
- "Total Hours" means the total hours over the measurement period i.e. one month (24 hours * number of days in the month).

14.4 Cumulative Downtime

- The recording of downtime shall commence at the time of registering the call with SI for any downtime situation for the project component.
- Downtime shall end when the problem is rectified, and the application / service is available to the user.
- Down time will not be considered for following:
 - Pre-scheduled preventive maintenance and health checks (Scheduled Downtime).
 - Failover time (30 minutes) in case of cluster environment. Beyond which the service would be considered to be not available and appropriate penalty shall be imposed on the SI.
 - If Purchaser selects to continue the operation of the project component, when a part of the machine is giving problem and leading to downtime, the commencement of downtime shall be deferred until Purchaser releases the project component to the SI for remedial action.
 - Down time due to hardware / software and application which is owned by Purchaser at their premises.
 - Negligence or other conduct of the Purchaser or its agents, including a failure or malfunction resulting from applications or services provided by Purchaser or its vendors.
 - Failure or malfunction of any equipment or services not provided by the SI.
 - However, it is the responsibility / onus of the SI to prove that the outage is attributable to the Purchaser. The SI shall obtain the proof authenticated by the Purchaser's official that the outage is attributable to the Purchaser.

Note:

- The maximum penalty will be up to five (5) % of Total Contract Value pertaining to the O&M phase.
- The SI shall deploy sufficient manpower suitably qualified and experienced to meet the SLA.
- Once a maximum penalty of five (5) % of Total Contract Value pertaining to the O&M phase is reached, the Purchaser has the right to call for the annulment of Contract.

14.5 Reporting Procedures

The SI's representative shall prepare and distribute Service Level performance reports in a mutually agreed format by the **5th working day of subsequent month**. The reports shall include "**actual versus target**" Service Level Performance, a variance analysis and discussion of appropriate issues or significant events. Performance reports shall be distributed to Purchaser management personnel as directed by the Purchaser.

Also, the Purchaser has the option to get the Service Level performance report audited by a third-party Auditor appointed by the Purchaser at the cost of the Purchaser.

14.6 Issue Management Procedures

1) General

- a. This process provides an appropriate management structure for the orderly consideration and resolution of business and operational issues in the event that quick consensus is not reached between the Purchaser and the SI.

- b. Implementing such a process at the beginning of the outsourcing engagement significantly improves the probability of successful issue resolution. It is expected that this pre-defined process shall only be used on an exception basis if issues are not resolved at lower management levels.

2) Issue Management Process

- a. The SI shall implement a Ticket Management Tool which may or may not be the part of single integrated OEM solution. The SI will use this Ticket Management Tool to undertake issue management, problem management, change management and for tracking all kinds of tickets used for SLA calculation.
- b. Either the Purchaser or SI may raise an issue by documenting the business or technical problem, which presents a reasonably objective summary of both points of view and identifies specific points of disagreement with possible solutions.
- c. Any unresolved issues / disputes concerning the Project / Contract between the Purchaser and the SI shall first be referred in writing to the Project Manager for his consideration and resolution. If the Project Manager is unable to resolve any issue / dispute within 5 days of reference to them, the Project Manager shall refer the matter to the Program Management Committee. If the Program Management Committee is unable to resolve the issues / disputes referred to them within 7 days, the unresolved issue / dispute shall be referred to Steering Committee / high powered committee / Project Implementation Committee for resolution. The Steering Committee within 15 days of reference to them shall try to resolve the issue / dispute. If the Steering Committee fails to resolve a dispute as per the above clause, the same shall be referred to arbitration. The arbitration proceedings shall be carried out as per the Arbitration procedures mentioned in this RFP.

14.7 Service Level Change Control

- 1) General:** It is acknowledged that the **Service Levels may change as the Purchaser's business needs evolve over the course of the Term of the Contract**. As such, this RFP document also defines the following management procedures:

- a. A process for negotiating changes to the Service Levels.
- b. An issue management process for documenting and resolving particularly difficult issues.
- c. Escalation process to be used in the event that an issue is not being resolved in a timely manner by the lowest possible level of management.

Any changes to the levels of service provided during the term of this Agreement shall be requested, documented and negotiated in good faith by both parties. Either party can request a change.

- 2) Service Level Change Process:** The parties may amend Service Level by mutual agreement in accordance. Changes can be proposed by either party. Unresolved issues shall also be addressed. SI's representative shall maintain and distribute current copies of the Service Level document as directed by the Purchaser. Additional copies of the current Service Levels shall be available at all times to authorized parties.

Version Control / Release Management: All negotiated changes shall require changing the version control number. As appropriate, minor changes may be accumulated for periodic release or for release when a critical threshold of change has occurred.

15 Work Completion Timelines and Payment Terms

The Term of the Contract period under this project is nine (9) months for Implementation and thirty-six (36) months for support i.e. the project is for overall period of forty five (45) months. Cost of the overall project is divided in 2 parts – Cost of Implementation and Cost of Operations, Maintenance and Support.

15.1 Implementation

The cost of Implementation - including the cost of development of RTS Aaple Sarkar 2.0 portal solution, training, UAT etc. - will be paid based on the completion of the key milestones of the Project and acceptance of the deliverables associated with the milestones by the Purchaser. Payment will be released only after successful satisfactory certifications provided by the Purchaser. Payments shall be released by the Purchaser against the submission of the deliverable milestones and the invoices submitted to the Purchaser by the System Integrator. In case a project milestone is not delivered by the SI successfully, Purchaser reserves right to recover payment made to System Integrator in preceding milestones by deducting the same from any bill payable to System Integrator. The payment schedule for Implementation is as below.

SI needs to provide necessary documents and certifications and take approval from Purchaser for getting the payment approved.

#	Activity Milestone for implementation	Payment (Out of amount quoted against 'Implementation' in Commercial Bid excluding the cost of CSP, any OEM Licenses and State API Development Team)	Deliverables	Acceptance Criteria
1	Payment against submission of PBG, on-boarding of Team members and submission of Detailed Project Plan	10%	Detailed Project Plan including project organisation, development activities, proposed staffing, roles and responsibilities, processes, e Departmental APIs and Business Continuity Plan (BCP)	1. Signing of contract 2.Submission of requisite documents including updates; if any 3. Sign-off from the Purchaser on acceptance of the Project Plan presented 4. The project plan provided in the RFP should be further detailed at each individual task level 5. Sign-off from the Purchaser on acceptance of the BCP presented
			Non-Disclosure Agreement signed by System Integrator,	Copies of Non-Disclosure Agreements signed.

#	Activity Milestone for implementation	Payment (Out of amount quoted against 'Implementation' in Commercial Bid excluding the cost of CSP, any OEM Licenses and State API Development Team)	Deliverables	Acceptance Criteria
2	Approval and Design of Blueprints & Layouts & SRS for Citizen Portal RTS 2.0	5%	Non-Disclosure Agreement signed by all identified persons in the Project Governance Structure and Team Members	Copies of Non-Disclosure Agreements signed.
			Detailed CVs of all Team Members being deployed on identified positions (as per the format specified in the RFP)	Approval of the Purchaser on compliance of the qualifications of the Team Members with the specified criteria
			Exit Management Plan	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Exit Management Plan presented
			System Requirement Specification (SRS)	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the System Requirement Specification presented
			Use Case Document	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Use Cases presented
			System Design Document including Wireframes, Analytics, and Reports & Dashboards	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the System Design Document (SDD) presented
			Test Plan including the Requirement Traceability Matrix	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Test Plan presented
			Use Case Document	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Use Cases presented
			System Design Document including Wireframes, Reports and Dashboards	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the System Design Document (SDD) presented

#	Activity Milestone for implementation	Payment (Out of amount quoted against 'Implementation' in Commercial Bid excluding the cost of CSP, any OEM Licenses and State API Development Team)	Deliverables	Acceptance Criteria
			Test Plan including the Requirement Traceability Matrix	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Test Plan presented
3	Approval and Design of Blueprints & Layouts & SRS for Department Portal	5%	System Requirement Specification (SRS)	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the System Requirement Specification presented
			Use Case Document	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Use Cases presented
			System Design Document including Wireframes, Reports and Dashboards	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the System Design Document (SDD) presented
			Test Plan including the Requirement Traceability Matrix	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Test Plan presented
4	Approval and Design of Blueprints & Layouts & SRS for VLE and CRTS Portal	5%	System Requirement Specification (SRS)	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the System Requirement Specification presented
			Use Case Document	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Use Cases presented
			System Design Document including Wireframes, Reports and Dashboards	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the System Design Document (SDD) presented
			Test Plan including the Requirement Traceability Matrix	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Test Plan presented
5		10%	Test Cases for UAT	Acceptance Certificate for Test Cases for UAT.

#	Activity Milestone for implementation	Payment (Out of amount quoted against 'Implementation' in Commercial Bid excluding the cost of CSP, any OEM Licenses and State API Development Team)	Deliverables	Acceptance Criteria
	Completion of Development, UAT, Training and Go-Live of Departmental Portal for all departments		Checklist and Response Form for UAT	Acceptance Certificate for Checklist and Response Form for UAT.
			UAT Report including Defect resolution report	Acceptance Certificate for UAT Report.
			Training Plan	Acceptance Certificate for Training Plan.
			Copy of Training Material	Sign-off from the Purchaser on acceptance of Training Material.
			Publishing of content on identified communication channels	Acceptance Certificate for publishing of content on identified communication channels.
			Training Feedback Form	Acceptance Certificate for Training Feedback Form.
			Training Report	Acceptance Certificate for Training Report.
			Communication indicating Go-live of the Departmental Portal interface	Go-live Certificate for the Departmental Portal interface
6	Completion of Development, UAT, Training and Go-Live of Citizen Portal	10%	Test Cases for UAT	Acceptance Certificate for Test Cases for UAT.
			Checklist and Response Form for UAT	Acceptance Certificate for Checklist and Response Form for UAT.
			UAT Report including Defect resolution report	Acceptance Certificate for UAT Report.
			Plan for IEC (Information Education Communication) and instructions to Citizens regarding the Portal usage	Acceptance Certificate for Plan for IEC and instructions to Citizens regarding the Portal usage.
			Copy of material for IEC and instructions to Citizens regarding the Portal usage.	Sign-off from the Purchaser on acceptance of the material for IEC and instructions to Citizens regarding the Portal usage.
			Publishing of content on identified communication channels	Acceptance Certificate for publishing of content on identified communication channels.
			Communication indicating Go-live of the Citizen Portal interface	Go-live Certificate for the Citizen Portal interface
7		10%	Test Cases for UAT	Acceptance Certificate for Test Cases for UAT.

#	Activity Milestone for implementation	Payment (Out of amount quoted against 'Implementation' in Commercial Bid excluding the cost of CSP, any OEM Licenses and State API Development Team)	Deliverables	Acceptance Criteria
	Completion of Development, UAT, Training and Go-Live of VLE and CRTS Portal		Checklist and Response Form for UAT	Acceptance Certificate for Checklist and Response Form for UAT.
			UAT Report including Defect resolution report	Acceptance Certificate for UAT Report.
			Plan for IEC (Information Education Communication) and instructions to VLE regarding the Portal usage	Acceptance Certificate for Plan for IEC and instructions to VLE regarding the Portal usage.
			Copy of material for IEC and instructions to VLE regarding the Portal usage.	Sign-off from the Purchaser on acceptance of the material for IEC and instructions to VLE regarding the Portal usage.
			Publishing of content on identified communication channels	Acceptance Certificate for publishing of content on identified communication channels.
			Communication indicating Go-live of the VLE Portal interface	Go-live Certificate for the VLE Portal interface
8	Migration of RTS 1.0 Data into RTS 2.0 Portal	15%	Requirement Specification Document	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Requirement Specification Document presented
			System Design Document (SDD)	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the System Design Document presented
			Login credentials to a portal where the deliverables can be verified, shall be provided	Acknowledgement of submission of login credentials specified.
			Completion report for database integration and data processing from RTS 1.0 to RTS 2.0	Completion Certificate from MahaIT

#	Activity Milestone for implementation	Payment (Out of amount quoted against 'Implementation' in Commercial Bid excluding the cost of CSP, any OEM Licenses and State API Development Team)	Deliverables	Acceptance Criteria
9	Onboarding of all notified Services on bid submission date	15%	Communication indicating completion on service onboarding from purchaser and user departments	1. Acknowledgement of receipt of the communication. 2. Sign off from the Purchaser on successful operation of 200 services
10	Developing API end points for MahaSamanvay, DigiLocker, Payment gateway and all other integrations defined in RFP	5%	1. System Design Document 2. Completion report for API integration and data processing/data flow Completion Report for API integration (One Completion Report shall be required to be submitted for each API integrated)	1. Acknowledgement of receipt of the communication. 2. Sign off from the Purchaser on successful integration with MahaDBT and Aaple Sarkar. 3. Sign off from department on successful receipt of API end point
11	Transition Phase (This indicates change of phase from Implementation to support phase) – Within three months of go-live	10%	Communication indicating successful integration of MahaSamanvay, DigiLocker and Payment gateway	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the System Requirement Specification presented
			System Design Document for the Helpdesk Tool	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the System Design Document (SDD) presented
			Standard Operating Procedure (SOP) for Helpdesk operations including Knowledge Base for Issue resolution, Change/Release Management, Server & System access details	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Standard Operating Procedure (SOP) for Helpdesk operations presented
			Confirmation of integration of toll-free number and email gateway	Acknowledgement of confirmation received.
			Updated Project Governance Structure: Roles, responsibilities, authority, and contact details of identified persons for the Operations, Maintenance and Support Phase	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Updated Project Governance Structure presented

#	Activity Milestone for implementation	Payment (Out of amount quoted against 'Implementation' in Commercial Bid excluding the cost of CSP, any OEM Licenses and State API Development Team)	Deliverables	Acceptance Criteria
			Non-Disclosure Agreement signed by all identified persons in the Project Governance Structure that have changed during the Operations, Maintenance and Support Phase	Copies of Non-Disclosure Agreements signed.
			Personnel Deployment Plan including Deployment Calendar for Helpdesk personnel	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Personnel Deployment Plan presented
			Detailed CVs of all Helpdesk personnel being deployed at the Helpdesk (as per the format specified in the RFP)	Acknowledgement of receipt of the CVs of Helpdesk Personnel
			Non-Disclosure Agreement signed by all Helpdesk personnel	Copies of Non-Disclosure Agreements signed.
			Typical FAQs and responses	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Typical FAQs and responses presented
			Formats of acknowledgements and responses	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the formats for acknowledgements and responses presented
			Helpdesk Operations Manual for Helpdesk personnel	Acknowledgement of receipt of the Helpdesk Operations Manual.
			Test Plan including the Requirement Traceability Matrix for Helpdesk Tool and Helpdesk operations	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Test Plan presented
			Checklist and Response Form for Helpdesk Tool and Helpdesk operations	Feedback on Helpdesk Tool and quality of Helpdesk operations.

#	Activity Milestone for implementation	Payment (Out of amount quoted against 'Implementation' in Commercial Bid excluding the cost of CSP, any OEM Licenses and State API Development Team)	Deliverables	Acceptance Criteria
			Standard Operating Procedure for managing Change Requests	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Standard Operating Procedure (SOP) for Change Request management presented
			Risk Register	Acknowledgement of receipt of the Risk Register
			Updated Exit Management Plan	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Updated Exit Management Plan presented

The SI needs to obtain “JUST IN TIME” concurrence of purchaser prior to procuring any OEM licenses, which license shall procure mentioned in scope of work. Cloud services.. The cost of OEM licenses, Cloud Services and provided by the SI will be paid as per the invoices raised by the SI subsequent to purchaser’s concurrence. The SI needs to ensure the cost of licenses & cloud services are below market rates. In case the cost of OEM license & Cloud services is found to be greater than the market rates available on respective OEM & CSP websites, the purchaser will consider the lowest of amount quoted by SI during bidding & open market rates available on OEM websites to make payment against the invoices.

#	Activity Milestone	Payment (for cloud services, any OEM licenses, and State API Development Team)	Deliverables	Acceptance Criteria
1		As per invoices raised on a quarterly basis	Report on cloud services requirement and functionality	Approval from Purchaser to go ahead with procurement

#	Activity Milestone	Payment (for cloud services, any OEM licenses, and State API Development Team)	Deliverables	Acceptance Criteria
	Supply and commissioning of cloud infrastructure		Notarized copy of Partnership Agreement with the Cloud Service Provider signed for the purpose of this Project	Acknowledgement of submission of documentary evidence specified.
			Proof of purchase of cloud infrastructure	Acknowledgement of submission of login credentials specified.
			Commissioning Report for cloud infrastructure & access to the Cloud Servers to the Purchaser - access credentials for the applicable components as per the Bill of Materials	Issue of 'Commissioning Certificate for cloud infrastructure' by the Purchaser indicating acceptance of the cloud infrastructure and 'Commissioning Report for cloud infrastructure' submitted (after checking the access)
2	Supply and commissioning of software licenses	As per invoices raised	Report on license requirement and functionality	Approval from Purchaser to go ahead with procurement
			Notarized copy of Partnership Agreement with the Software license OEM signed for the purpose of this Project	Acknowledgement of submission of documentary evidence specified.
			Proof of supply of Software licenses.	Acknowledgement of submission of login credentials or documentary evidence.
				Issue of 'Certificate confirming deployment of software licenses' by the Purchaser indicating completion of the activity

#	Activity Milestone	Payment (for cloud services, any OEM licenses, and State API Development Team)	Deliverables	Acceptance Criteria
			Successful installation and satisfactory running.	pertaining to deployment of software licenses and 'Report for deployment of software licenses' submitted.

15.2 Operations, maintenance, and support

The cost of operations, maintenance, support services, includes the maintenance of solution components like Application servers, Web servers, Database server and other servers on an ongoing basis to ensure smooth functioning of applications. The SI shall ensure compliance to uptime and performance requirements of RTS 2.0 Solution as indicated in the SLA and any major changes to the software shall be planned accordingly by the System Integrator for ensuring the SLA requirements. Payments shall be released by Purchaser at the end of each Quarter. Bidder shall submit documents on the performance of the RTS 2.0 solution against the desired SLA on a Quarterly basis.

#	Activity Milestone for OMS phase	Payment (Out of amount quoted against 'Maintenance and Support' in Commercial Bid excluding the cost for CSP and OEM Licenses)	Deliverables	Acceptance Criteria
1	Quarter 1 to Quarter 12 (each quarter)	7.5%	SLA Report presenting details of achievement of SLAs	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the SLA Report presented

			Ticket Analysis Report	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Ticket Analysis Report presented
			Helpdesk Staffing Report including Attendance of the Helpdesk personnel and attrition	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Helpdesk Staffing Report presented
			Cloud infrastructure Utilization Report	1. Submission of requisite documents including updates; if any 2. Sign-off from the Purchaser on acceptance of the Cloud Infrastructure Utilization Report presented
			Meeting minutes of Periodic Status meetings and update on status of Action Items from such meetings	Confirmation from the Purchaser regarding the status of the Action Items.
2	On completion of clauses as mentioned in Exit Management section & on Update of System software and licenses within last 6 months of end of contract	10%	1. A detailed Knowledge Transition plan which includes the plan for Classroom training, on-job training and shadow support phase 2. Agreement between Purchaser, SI's Support team and New Support team (if any) regarding the Knowledge Transition Plan 3. Implementation of the plan by all stakeholders with periodic status meetings	Acceptance of completion of Knowledge Transition as per the plan by all stakeholders.
			List of personnel supporting Project Closure	Acknowledgement of Receipt of the list of personnel.
			Inventory of all assets	Acknowledgement of receipt of the inventory of assets.
			Submission of all project documentation covered under the scope of the Contract	Acknowledgement of receipt of the project documentation.

			Submission of login credentials and documentation for completing hand-over of the cloud infrastructure	Completion Certificate for confirming hand-over of cloud infrastructure
			Transfer of Agreements	Completion Certificate for confirming transfer of Agreements
			Communication confirming surrender of physical infrastructure allocated	Acknowledgement of receipt of communication.
			Completion Report for Knowledge Transfer	Acceptance Certificate for Knowledge Transfer.
			Update of System software, license, and server patches within the last 6 months before exit	Acceptance Certificate by Purchaser after due verification
			Project Closure Report	Acceptance Certificate for Project Closure Report Project closure report to include FAQs, Best Practices, Frequent issues, How to fix frequent issues, Challenges, Cost Benefit Analysis, ROI, Stakeholders, impact report, Continuous Improvement Plan etc.

#	Activity Milestone for cloud services during OMS phase	Payment (For cloud services)	Deliverables	Acceptance Criteria
1	Supply of cloud infrastructure	As per invoices raised	Report on cloud services requirement and functionality	Approval from Purchaser to go ahead with procurement

#	Activity Milestone for cloud services during OMS phase	Payment (For cloud services)	Deliverables	Acceptance Criteria
			Proof of purchase of cloud infrastructure	Acknowledgement of submission of login credentials specified/ equivalent access to verify.
			Utilization report for cloud infrastructure & access to the Cloud Servers to the Purchaser - access credentials for the applicable components as per the Bill of Materials	Approval by purchaser on Utilization Report for cloud infrastructure

Note:

- Purchaser or the participating department would provide data in the prescribed format, before milestone user acceptance test to the System Integrator for carrying out Analysis. Disbursement of payment to the SI is based on completion of tasks indicated in the implementation plan, Operations and Maintenance support plan and final handover.
- The Project Plan for completion of work shall be a part of the Contract Document in the form of Bar Chart / Gantt chart. The SI is supposed to carry out the work and keep the progress as per Bar Chart / Gantt chart. The SI shall be required to complete the work as per the Schedule in the Contract and the Project Plan submitted by the SI.
- The payments for Maintenance and Support period will be released after submission of appropriate deliverables signed off by Purchaser at the end of each quarter.

16 Terms and Conditions

Terms and conditions for bidders who participate in the tender are specified in the section called “Terms and Conditions”. These terms and conditions will be binding on all the bidders. These terms and conditions will also form a part of the Contract to be signed with the Successful Bidder(s) on the outcome of the Tendering process.

16.1 Definition of Terms

1. **“Acceptance of System”:** The system shall be accepted by the Purchaser, subsequent to its installation, commissioning of IT and non-IT equipment at all project locations and successful rollout of services at all project locations, deployment of trained manpower, when all the activities as defined in Scope of Work have been successfully executed and completed to the satisfaction of Purchaser. The System Integrator shall achieve operational acceptance of the complete solutions as defined in the RFP in accordance with the time schedule in the implementation schedule, scope of work, technical requirements, design considerations section and any refinements made in the agreed and finalized project plan, or within the timeframe the System Integrator has been provided. As soon as the System, or any sub-system, has, in the opinion of the System Integrator, been delivered, commissioned, and made in accordance with the technical requirements of the RFP as per the agreed and finalized Project Plan, System Integrator shall notify Purchaser in writing. Purchaser shall, after receipt of System Integrator’s notice, either issue a Acceptance Certificate, stating that the system, or major component or subsystem (if Acceptance by major component or subsystem) has been achieved or notify System Integrator in writing of any defects and/or deficiencies, including, but not limited to, defects or deficiencies in the interoperability or integration of the various components and / or subsystems making up the end to end System as envisaged by the Purchaser in this RFP. System Integrator shall use all reasonable endeavors to promptly remedy any defect and / or deficiencies notified by the Purchaser. System Integrator shall then promptly carry out retesting of the system or subsystem and, when in System Integrator’s opinion the system or subsystem is ready for commissioning and operational acceptance testing, notify Purchaser in writing. The procedure shall be repeated, as necessary, until an installation certificate is issued. The acceptance criteria shall inter-alia include, but not limited to:
 - a. Installation and commissioning of the complete solution supplied as part of the Project, clearly documented, and demonstrated. The documents would include but not limited to SRS, FRS, BCP, etc.
 - b. Functional Acceptance Criteria – Demonstration of tasks, business processes or functions which Purchaser has listed out in RFP as Functional and Non-functional requirement and Design Considerations.
 - c. Submission of manuals, design documents, training materials and other necessary documents.
 - d. Training to personnel identified by Purchaser as per the Project Plan and System Integrator’s Bid.
 - e. Installation and commissioning of the entire security components supplied as part of the Project must be successfully demonstrated and documented.
 - f. Summary of the test cases and execution results to prove that the acceptance criteria have been met.
2. **“Applicable Law(s)”:** Any statute, law, ordinance, notification, rule, regulation, judgment, order,

decree, bye-law, approval, directive, guideline, policy, requirement or other governmental restriction or any similar form of decision applicable to the relevant party and as may be in effect on the date of the execution of this Agreement and during the subsistence thereof, applicable to the Project.

3. **“Bidder”** shall mean organization submitting a Bid in response to this RFP.
4. **“Purchaser”** means the Maharashtra Information Technology Corporation Limited (also referred to as “MahaIT”). The Project shall be executed in Mumbai and shall be owned by MahaIT.
5. **“SI” or “System Integrator”** means the Bidder who is selected by the Purchaser at the end of the Tendering Process conducted in relation to this RFP. The System Integrator shall carry out all the services mentioned in the scope of work of this RFP.
6. **“Contract”** means the Contract entered into by the parties with the entire documentation specified in the RFP.
7. **“Contract Value”** means the price payable to SI under this Contract for the full and proper performance of its contractual obligations under this RFP.
8. **“Commercial Off-The-Shelf (COTS)”** refers to software products that are ready-made and available for sale, lease, or license to the general public.
9. **“Document”** means any embodiment of any text or image however recorded and includes any data, text, images, sound, voice, codes, databases or any other electronic documents as per IT Act, 2000 or its amendments thereof.
10. **“Effective Date”** means the date on which this Contract (Draft Contract Form in Annexures) is signed and executed by the parties hereto. If this Contract is executed in parts, then the date on which the last of such Contract is executed shall be construed to be the Effective Date.
11. **“FRS”** means the Functional Requirement Specifications.
12. **“Goods”** means all of the equipment, sub-systems, hardware, software, products accessories, software and/or other material / items which SI is required to supply, install and maintain under the Contract.
13. **“GoM”** means Government of Maharashtra.
14. **“MahaIT”** means the Maharashtra Information Technology Corporation Limited.
15. **“DIT”** means the Directorate of Information Technology, Government of Maharashtra.
16. **“Intellectual Property Rights”** means any patent, copyright, trademark, trade name, service marks, brands, proprietary information whether arising before or after the execution of this Contract and the right to ownership and registration of these rights.
17. **“Go- Live”** means commissioning of project after operationalization of the RTS 2.0 portal, including but not limited to documentation, security measures, training as per Scope of Work mentioned in RFP. The System Integrator should have the approval from the Purchaser after successful completion of the User Acceptance Testing.
18. **“Notice”** means a notice, or a consent, approval or other communication required to be in writing under this Contract.
19. **“OEM”** means the Original Equipment Manufacturer of any equipment / system / software / product which are providing such goods/services to the Purchaser under the scope of this RFP. The SI, Proprietary Third-Party Manufacturer and Enterprise Open-Source Software Provider are all categorized as an OEM.
20. **“SI’s Team” or “Project Team”** means all the personnel of SI who have been deployed to provide goods and services to the Purchaser under the scope of this Contract. This definition shall also include any and / or all of the employees of SI, authorized service providers / partners and representatives or other personnel employed or engaged either directly or indirectly by SI for the purposes of this

Contract.

21. **"Consortium"** is an association of two or more companies with the objective of participating in a common activity or pooling their resources for achieving a common goal.
22. **"Replacement System Integrator"** means the organization replacing SI in case of Contract termination for any reasons.
23. **"Sub-Contractor"** shall mean the entity named in the contract for any part of the work or any person to whom any part of the contract has been sublet with the consent in writing of the Purchaser and the heirs, legal representatives, successors and assignees of such person.
24. **"Services"** means the work to be performed by the agency pursuant to this RFP under the contract.

16.2 Interpretation

Under Terms & Conditions, unless a contrary intention is evident:

1. the clause headings are for convenient reference only and do not form part of this RFP;
2. unless otherwise specified a reference to a clause number is a reference to all of its sub-clauses;
3. unless otherwise specified a reference to a clause, sub-clause or section is a reference to a clause, sub-clause or section of this RFP including any amendments or modifications to the same from time to time;
4. a word in the singular includes the plural and a word in the plural includes the singular;
5. a word importing a gender includes any other gender;
6. a reference to a person includes a partnership and a body corporate;
7. a reference to legislation includes legislation repealing, replacing or amending that legislation;
8. where a word or phrase is given a particular meaning, it includes the appropriate grammatical forms of that word or phrase which have corresponding meanings.
9. in the event of an inconsistency between the terms of this RFP Document and the Bid, the terms hereof shall prevail.

16.3 Key Performance Measurements

1. Unless specified by the Purchaser to the contrary, the System Integrator shall implement the infrastructure, perform the Services and carry out the Scope of Work in accordance with the terms and conditions of this RFP, Scope of Work and the Service Specifications as laid down under Service Level Agreement.
2. If the RFP / Service Specification include more than one document, then unless the Purchaser specifies to the contrary, the later in time shall prevail over a document of earlier date to the extent of any inconsistency.
3. The Purchaser reserves the right to amend any of the terms and conditions in relation to the RFP / Services and may issue any such directions which are not necessarily stipulated therein if it deems necessary for the fulfilment of the Scope of Work. This must be mutually acceptable to both SI and Purchaser.

16.4 Commencement and Progress

The System Integrator shall commence the performance of its obligations in a manner as specified in the Scope of Work.

1. The System Integrator shall proceed to carry out the activities / services with diligence and expedition in accordance with any stipulation as to the time, manner, mode, and method of execution contained in this Contract.

2. The System Integrator shall be responsible for and shall ensure that all activities / services are performed in accordance with the Contract, Scope of Work and that the SI's Team complies with such specifications and all other standards, terms and other stipulations / conditions set out hereunder.
3. The System Integrator shall perform the activities / services and carry out its obligations under the Contract with due diligence, efficiency and economy, in accordance with generally accepted techniques and practices used in the industry. The System Integrator shall always act, in respect of any matter relating to this RFP, as faithful advisors to the Purchaser and shall, at all times, support and safeguard the Purchaser's legitimate interests in any dealings with Third parties.

16.5 System Integrator's Obligations

16.5.1 Scope of Work and General Obligations

1. System Integrator's obligations shall include all the activities as specified by the Purchaser in the Scope of Work and other sections of the Tender and Contract and changes thereof to enable Purchaser to meet the objectives and operational requirements under the RFP. It shall be SI's responsibility to ensure the proper and successful implementation, performance, and continued operation of the proposed solution in accordance with and in strict adherence to the terms of as contained in this RFP, the Bid and the Contract for the period as mentioned in the RFP.
2. In addition to the aforementioned, SI shall provide services to manage and maintain the said system and infrastructure as mentioned in this RFP for the period as specified.
3. Purchaser reserves the right to interview the personnel proposed that shall be deployed as part of the Project Team. If found unsuitable, the Purchaser may reject the deployment of the personnel. But ultimate responsibility of the project implementation shall lie with SI.
4. Purchaser reserves the right to require changes in personnel which shall be communicated to SI. SI with the prior approval of the Purchaser may make additions to the project team. SI shall provide the Purchaser with the resume of Key Personnel and provide such other information as the Purchaser may reasonably require. The Purchaser also reserves the right to interview the personnel and reject, if found unsuitable. In case of change in its team members, for any reason whatsoever, SI shall also ensure that the exiting members are replaced with at least equally qualified and professionally competent members.
5. SI shall ensure that none of the Key Personnel and manpower exit from the project during first 6 months of the beginning of the project. In such cases of exit except for the reasons due to death, resignation, retirement or termination due to any cause or not able to work due to severe health condition, a penalty maximum to the extent of INR 50 thousand per such replacement shall be imposed on SI by Purchaser at its discretion.
6. SI should submit profiles of only those key resources who shall be deployed on the project. Any change of resource should be approved by the Purchaser and compensated with equivalent or better resource. SI should provide three or more options for each new replacement. The Purchaser may interview the resources suggested by SI before their deployment on board. It does not apply in case of change requested by the Purchaser.
7. In case of change in any of its deployed resources, SI shall ensure a reasonable amount of time overlap in activities to ensure proper knowledge transfer and handover / takeover of documents and other relevant materials between the outgoing and the new resource deployed.
8. SI shall ensure that SI's Team deployed is competent, professional and possesses the requisite qualifications, knowledge, and experience appropriate to the task they are required to perform under

this Contract. SI shall ensure that the services are performed through the efforts of SI's Team, in accordance with the terms hereof and to the satisfaction of the Purchaser. Nothing in this Contract relieves SI from its liabilities or obligations under this Contract to provide the Services in accordance with the Purchaser's directions and requirements as stated in this RFP and the Bid to the extent accepted by the Purchaser.

9. SI shall be fully responsible for deployment / installation / development and integration of all the software and hardware components and resolve any problems / issues that may arise due to integration of components.
10. SI shall ensure that the OEMs supply equipment / components including associated accessories and software required and shall support SI in the installation, commissioning, integration and maintenance of these components during the entire period of contract. SI shall ensure that the OEM supply the software applications and shall support SI in the installation / deployment, integration, roll-out and maintenance of these applications during the entire period of contract. It must clearly be understood by SI that warranty and AMC of the system, products and services incorporated as part of RTS 2.0 solution including all the solutions proposed shall commence for product and licenses supplied from the date of installation of the same and for developed system from the date of go-live. It must clearly be understood by SI that warranty and AMC of the system, products and services incorporated as part of system would be covered till the end of the original contract period (i.e. development till go live and 36 months as post go live Support period). The annual maintenance support shall include patches and updates to the software, and relevant cloud services.
11. All the software licenses that SI proposes should be perpetual software licenses. Licenses should be in the name of the Purchaser. The software licenses shall not be restricted based on location and the Purchaser should have the flexibility to use the software licenses for other requirements (other projects) if required, provided the same does not violate the usage rights agreed with the original manufacturer.
12. All the OEMs that Bidder proposes should have Dealer possession licenses.
13. The End User License Agreement (EULA) containing the Warranty and Annual Maintenance Agreements for the supplied items shall be signed between the Purchaser, the System Integrator, and the OEM. There shall be NO bi-party agreement between the System Integrator and the OEM pertaining to the Warranty and Annual Maintenance Agreements for the supplied items.
14. SI shall ensure that none of the components and sub-components is declared end-of-sale or end-of-support by the respective OEM as on the Last Date and Time of submission of Bid. If the OEM declares any of the products / solutions end-of-sale subsequently, the SI shall ensure that the same is supported by the respective OEM for the Term of the Contract. Undertaking on OEM company letter head in this regard signed by authorized signatory of OEM shall be provided by SI.
15. If a product is de-supported by the OEM for any reason whatsoever, from the date of Acceptance of the System till the end of Contract, SI should replace the products / solutions with an alternate that is acceptable to the Purchaser at no additional cost to the Purchaser and without causing any performance degradation. OEM solution should be based on open standards.
16. SI shall ensure that the OEMs provide the support and assistance to SI in case of any problems / issues arising due to integration of components supplied by him with any other component(s) / product(s) under the purview of the overall solution without any additional cost to the Purchaser.
17. SI shall ensure that the Cloud Service Provider (CSP) shall install all type of updates, patches, fixes and / or bug fixes for the required components from time to time at no additional cost to the Purchaser.

18. SI shall ensure that the Cloud Service Provider shall conduct preventive maintenance on a Quarterly basis and break-fix maintenance in accordance with the best practices followed in the industry. SI shall ensure that the documentation regarding these preventive maintenances is made available to the Purchaser. The SI should ensure that CSP undertakes periodic DR drill (at least once a year).
19. The training has to be conducted using official OEM and the course curriculum shall be mapped with the software products to be implemented under the Project. SI shall ensure that the documentation and training services associated with the components shall be provided by the OEMs without any additional cost to the Purchaser.
20. SI and their personnel / representative shall not alter / change / replace any infrastructure component proprietary to the Purchaser and / or under warranty or AMC of third party without prior consent of the Purchaser.
21. SI shall provision the required services at the designated office locations of the Purchaser for meeting the uptime commitment of the entire system.
22. SI's representative(s) shall have all the powers requisite for the execution of scope of work and performance of services under this contract. SI's representative(s) shall liaise with the Purchaser's representative for the proper coordination and timely completion of the works and on any other matters pertaining to the works. SI shall extend full co-operation to Purchaser's representative in the manner required by them for supervision / inspection / observation of the equipment / goods / material, procedures, performance, progress, reports and records pertaining to the works. SI shall also have complete charge of SI's personnel engaged in the performance of the works and to ensure compliance of rules, regulations and safety practice. Such SI's representative(s) shall be available to the Purchaser's Representative at Purchaser's offices during the execution of works from time to time on requirement basis.
23. SI shall be responsible on an ongoing basis for coordination with other vendors and agencies of the User Departments at Purchaser's end to resolve issues and oversee implementation of the scope as defined in this RFP. SI shall request directions from the Purchaser in case of any assistance required to resolve conflicts between vendors in case of borderline integration issues.
24. SI is expected to set up a project office in Mumbai. The technical manpower deployed on the project should work from the same office. However, some resources may be required to work from the Purchaser's office during the Term of the Contract.
25. Start of Installation
 - a. System Integrator shall co-ordinate with the Purchaser and stakeholders for the complete setup of software. SI shall also co-ordinate regarding Network / Bandwidth connectivity to prepare the installation plan and detailed design / architectural design documents and the Purchaser shall ensure that the vendors for Network / Bandwidth connectivity are available on time so that the solution will be delivered on time by SI.
 - b. The plan and design documents thus developed shall be submitted by SI for approval by the Purchaser.
 - c. After obtaining the approval from the Purchaser, SI shall commence the installation.
26. SI shall ensure that the Annual Maintenance support for the software components is provided for the period from date of deployment of the software component till the end of Contract period. Annual Maintenance support shall include patches, updates, and upgrades of the software and (additional) Cloud Infra components.

27. SI shall ensure that an admin access for the cloud infrastructure and any third-party services being provided as part of the Scope of Work shall be provided to the Purchaser and/or its nominated agency/(ies).
28. SI shall ensure that the CSP, and all other third-party services (wherever applicable) shall remain empaneled as per requirements of this RFP during the complete duration of execution of the project (up to the end of the last term of the Operations and Maintenance Phase; including all extensions provided; if any).
29. In case of any changes to the contractual obligations of the SI with the CSP or any other third-party services being provided as part of the Scope of Work, SI shall intimate the Purchaser immediately upon gaining knowledge of the change to the contractual obligations. Only upon approval by the Purchaser on the plan of the SI for handling the change to the contractual obligations, the SI may proceed with their plan. SI shall ensure that the progress of execution of the plan is being shared with the Purchaser on a continuous basis. Shall the SI fail to undertake any activities pertaining to the requirements of this clause, it shall be construed as breach of the SI's obligations under this contract.
30. SI shall fulfil any other obligations as mentioned in the RFP document.
31. The SI Shall be solely responsible for execution of the work and related SLA, Penalty for Breach of any terms and conditions mentioned herein this contract and RFP.
32. The SI needs to have adequate insurance, risk management systems, contingency plans and backup system in place to ensure that it may continue to provide uninterrupted performance of Services consistent with the standards agreed herein.
33. Cooperation: During the Contract Period, Purchaser may undertake other data management projects or such other projects which may be data dependent or data intensive part, implement any new technology including cloud-based technology, or undertake platform itself or through third party service provider. Nothing contained herein, shall be deemed to create any obligation on Purchaser to appoint or engage the SI to provide services in respect such projects.
34. SI must complete all the activities as specified by the Purchaser in the Scope of Work and other sections of the Tender and Contract and changes thereof to enable Purchaser to meet the objectives and operational requirements under the RFP.
35. NDA shall be signed by all the new resources who are deployed on the project

16.5.2 Personnel

1. Personnel assigned by the SI to perform the Services shall be employees of SI and under no circumstances will such personnel be considered employees of the Project. SI shall have the sole responsibility for supervision and control of its personnel and for payment of such personnel's entire compensation, including salary, withholding of income taxes and social security taxes, worker's compensation, employee and disability benefits and the like and shall be responsible for all employer obligations under all applicable laws.
2. SI shall ensure that sufficient personnel are employed to perform the Services, and also that such personnel have appropriate qualifications to perform the Services. Purchaser shall have the right to require the removal or replacement of any SI personnel performing work under this Contract. In the event that purchaser requests that any SI personnel be replaced, the substitution of such personnel shall be accomplished pursuant to a mutually agreed upon schedule but not later than 15 working days.
3. The SI shall also be responsible to train certain employees of the Purchaser/ User Departments with regard to the Services being provided by the SI as and when required by Project during the Term of

this Contract. The parameters of the training required for these employees of Project shall be communicated by Purchaser to the SI periodically and shall be in accordance with the latest procedures and processes available in the relevant areas of work.

4. In the event that during the project implementation phase, Purchaser identifies any personnel of Bidder as "Key Personnel", the SI shall not remove such personnel without the prior written consent of Purchaser.
5. If required, the key resources shall work from Purchaser's premises while other resources can work from SI's MMR office.
6. Except as stated herein, nothing in this Contract or the SLA will limit the ability of SI freely to assign or reassign its employees; provided that SI shall be responsible, at its expense, for transferring all appropriate knowledge from personnel being replaced to their replacements. Purchaser shall have the right to review and approve SI's plan for any such knowledge transfer. SI shall maintain the same standards for skills and professionalism among replacement personnel as in personnel being replaced.
7. Each Party shall be responsible for the performance of all its obligations under this Contract or the SLA and shall be liable for the acts and omissions of its employees in connection therewith.

16.5.3 Confidentiality

The function of Purchaser requires the Bidder to demonstrate utmost care, sensitivity, and strict confidentiality.

1. The System Integrator will have to maintain strict Privacy and confidentiality of all the data its staff gets access to. Adequate provisions to be made not to allow unrestricted access to the data to people in the organization who have not got necessary permissions. System Integrator cannot sell or part with any data in any form. If such case may occur then, heavy penalty or termination of the contract shall be imposed along with prosecution. The amount of the penalty will be decided by the Purchaser based upon severity of the default.
2. This restriction does not limit the right to use information contained in the data if it:
 - a. Is obtained from another source without restriction.
 - b. Is in the possession of, or was known to, the receiving party prior to its receipt, without an obligation to maintain confidentiality; becomes generally known to the public without violation of this Proposal.
 - c. Is independently developed by the receiving party without the use of confidential Information and without the participation of individuals who have had access to confidential information
 - d. Is required to be provided under any law, or process of law duly executed".
3. The SI recognizes that during the term of contract and the SLA, sensitive data will be procured and made available to it and others working for or under the SI. Disclosure or usage of the data by any such recipient may constitute a breach of applicable laws causing harm to the Purchaser and the GoM. Any breach of this will result in the Purchaser receiving a right to seek injunctive relief and damages without any limit, from the Bidder and / or also seek termination.
4. SI agrees as to any Confidential Information disclosed by Purchaser or the SLA (the "Discloser") to this Contract:
 - e. To take such steps necessary to protect Purchaser confidential information from unauthorized use, reproduction and disclosure as the Recipient takes in relation to its own Confidential Information of the same type, but in no event less than reasonable care; and to use such Confidential Information only for the purposes of this Contract or the SLA or as otherwise

expressly permitted or expressly required by this Contract or the SLA or as otherwise permitted by Purchaser in writing; and

- f. Not without the Purchaser's prior written consent to copy the confidential Information or cause or allow it to be copied, directly or indirectly, in whole or in part, except as otherwise expressly provided in this Contract or the SLA or as required in connection with SI's use as permitted by Purchaser.
- g. Not without the Purchaser's prior written consent to disclose, transfer, publish or communicate the confidential information in any manner to any person except as permitted in this contract or SLA.
- h. The System Integrator will have to sign a Non-Disclosure Agreement (NDA) with Purchaser.

16.5.4 Trademarks, Publicity

Neither Party may use the trademarks of the other Party without the prior written consent of the other Party. Neither Party shall publish nor be permitted to publish either along with or in conjunction with any other person any press release, information, article, photograph, illustration or any other material of whatever kind relating to this Contract, the SLA or the business of the Parties without prior reference to and approval in writing from the other Party.

16.5.5 Ethics

SI represents, warrants and covenants that it has given no commitments, payments, gifts, kickbacks, lavish or expensive entertainment, or other things of value to any Purchaser employee or any department officials, or its nominated agencies in connection with this agreement and acknowledges that the giving of any such payment, gifts, entertainment, or other things of value is strictly in violation of Purchaser standard policies and may result in cancellation of this Contract.

16.5.6 Reporting Progress

- 1. SI shall monitor progress of all the activities related to the execution of this Contract and shall submit to the Purchaser, **progress reports** with reference to all related work, milestones and their progress during the implementation phase.
- 2. Formats for all above mentioned reports and their dissemination mechanism shall be discussed and finalized along with project plan. The Purchaser on mutual agreement between both parties may change the formats, periodicity and dissemination mechanism for such reports.
- 3. Periodic meetings shall be held between the representatives of the Purchaser and SI once in every 15 days during the implementation phase to discuss the progress of implementation. After the implementation phase is over, the meeting shall be held as an ongoing basis, as desired by Purchaser, to discuss the performance of the Contract.
- 4. SI shall ensure that the Key Persons of the respective solution teams involved in the execution of work are part of such meetings.
- 5. Several review committees involving representative of the Purchaser and senior officials of SI shall be formed for the purpose of this Project. These committees shall meet at intervals, as decided by the Purchaser, to oversee the progress of the implementation.
- 6. All the goods, services and manpower to be provided / deployed by SI under the Contract and the manner and speed of execution and maintenance of the work and services are to be conducted in a manner to the satisfaction of Purchaser's representative in accordance with the requirements as specified in RFP.

7. The Purchaser reserves the right to inspect and monitor / assess the progress / performance of the work / services at any time during the course of the Contract. The Purchaser may demand and upon such demand being made, SI shall provide documents, data, material, or any other information which the Purchaser may require, to enable it to assess the progress / performance of the work / service.
8. At any time during the course of the Contract, the Purchaser shall also have the right to conduct, either itself or through another agency as it may deem fit, an audit to monitor the performance by SI of its obligations / functions in accordance with the standards committed to or required by the Purchaser under this RFP and SI undertakes to cooperate with and provide to the Purchaser / any other agency appointed by the Purchaser, all documents and other details related to the solution to be provided under this RFP excluding the financial details as may be required by them for this purpose. Such audit shall not include Bidder's books of accounts and other financial details.
9. Should the rate of progress of the works or any part of them at any time fall behind the stipulated time for completion or is found to be too slow to ensure completion of the works by the stipulated time or is in deviation to the requirements / standards specified in the RFP, the SI shall so notify Purchaser in writing.
10. SI shall reply to the written notice giving details of the measures that they have proposed to take to expedite the progress so as to complete the works by the prescribed time or to ensure compliance to RFP requirements. SI shall not be entitled to any additional payment for taking such steps. If at any time it should appear to the Purchaser or Purchaser's representative that the actual progress of work does not conform to the approved plan SI shall produce at the request of the Purchaser's representative a revised plan showing the modification to the approved plan necessary to ensure completion of the works within the time for completion or steps initiated to ensure compliance to the stipulated requirements.
11. The submission seeking approval by the Purchaser or Purchaser's representative of such plan shall not relieve SI of any of his duties or responsibilities under the Contract. The Purchaser shall ensure that it will provide the approval within the reasonable time and shall not withhold any approval without any specific reasons.
12. In case during execution of works, the progress falls behind schedule or does not meet the Tender requirements, SI shall deploy extra manpower / resources to make up the progress or to meet the RFP requirements. All time and cost effect in this respect shall be borne, by SI within the Contract Value.

16.5.7 Project Plan

1. Within thirty (30) calendar days of Effective Date of the Contract, SI shall submit to the Purchaser for its approval a detailed Project Plan with details of the Project showing the sequence, procedure and method in which he proposes to carry out the works. The Plan so submitted by SI shall conform to the requirements and timelines specified in the Contract. The Purchaser and SI shall discuss and agree upon the work procedures to be followed for effective execution of the works, which SI intends to deploy and shall be clearly specified. The Project Plan shall include but not limited to project organization, communication structure, proposed staffing, roles and responsibilities, processes and tool sets to be used for quality assurance, security and confidentiality practices in accordance with industry best practices, Project Plan and delivery schedule in accordance with the Contract. Approval by the Purchaser's Representative of the Project Plan shall not relieve SI of any of his duties or responsibilities under the Contract.
2. If SI's work plans necessitate a disruption / shutdown in Purchaser's operation, the plan shall be mutually discussed and developed so as to keep such disruption / shutdown to the barest unavoidable

minimum. Any time and cost arising due to failure of SI to develop / adhere such a work plan shall be to his account.

16.5.8 Adherence to safety procedures, rules regulations and restriction

1. SI's Team shall comply with the provision of all laws including labour laws, rules, regulations and notifications issued there under from time to time. All applicable safety and labour laws enforced by statutory agencies and by Purchaser shall be applicable in the performance of this Contract and SI's Team shall abide by these laws.
2. SI shall take all measures necessary or proper to protect the personnel, work and facilities and shall observe all reasonable safety rules and instructions. SI's Team shall adhere to all security requirement/ regulations of the Purchaser during the execution of the work. Purchaser's employee also shall comply with safety procedures / policy.
3. SI shall report as soon as possible any evidence, which may indicate or is likely to lead to an abnormal or dangerous situation and shall take all necessary emergency control steps to avoid such abnormal situations.

16.5.9 Statutory Requirements

During the tenure of this Contract nothing shall be done by SI or his team in contravention of any law, act and / or rules / regulations, there under or any amendment thereof governing inter-alia customs, stowaways, foreign exchange etc. and shall keep the Purchaser indemnified in this regard.

16.6 Purchaser's Obligations

1. Purchaser's Nominated Representative shall act as the nodal point for implementation of the contract and for issuing necessary instructions, approvals, commissioning, acceptance certificates, payments etc. to the SI.
2. Purchaser shall ensure that timely approval is provided to the SI as and when required, which may include approval of project plans, implementation methodology, design documents, specifications, or any other document necessary in fulfilment of this contract. Purchaser shall ensure that any approval shall not withheld any approval without any reasonable ground.
3. The Purchaser's Nominated Representative shall interface with the SI, to provide the required information, clarifications, and to resolve any issues as may arise during the execution of the Contract. Purchaser shall provide adequate cooperation in providing details, coordinating and obtaining of approvals from various governmental agencies, in cases, where the intervention of the Purchaser is proper and necessary.
4. Purchaser may provide on SI's request, particulars / information / documentation that may be required by the SI for proper planning and execution of work and for providing services covered under this Contract and for which the SI may have to coordinate with respective vendors.
5. Purchaser may provide to the SI, sitting space and basic infrastructure at Purchaser's office location.
6. Purchaser shall ensure that it shall provide the necessary approvals along with the required documents within the reasonable time and shall not withheld any approval without any reasonable ground

16.7 Events of Default by the System Integrator

The failure on the part of the SI to perform any of its obligations or comply with any of the terms of this Contract shall constitute an Event of Default on the part of the SI. The events of default as mentioned above may include inter-alia the following:

1. The SI / SI's Team has failed to perform any instructions or directives issued by the Purchaser which it deems proper and necessary to execute the scope of work or provide services under the Contract; or
2. The SI / SI's Team has failed to confirm / adhere to any of the key performance indicators as laid down in the Service Level Agreements, or if the SI has fallen short of matching such standards / benchmarks / targets as the Purchaser may have designated with respect to the system or any goods, task or service, necessary for the execution of the scope of work and performance of services under this Contract. The above-mentioned failure on the part of the Bidder may be in terms of failure to adhere to performance, quality, timelines, specifications, requirements or any other criteria as defined by the Purchaser; or
3. The SI has failed to remedy a defect or failure to perform its obligations in accordance with the specifications issued by the Purchaser, despite being served with a default notice which laid down the specific deviance on the part of the SI / SI's Team to comply with any stipulations or standards as laid down by the Purchaser; or
4. The SI / SI's Team has failed to adhere to any amended direction, instruction, modification or clarification as issued by the Purchaser during the term of this Contract and which the Purchaser deems proper and necessary for the execution of the Scope of Work under this Contract; or
5. The SI / SI's Team has failed to demonstrate or sustain any representation or warranty made by it in this Contract, with respect to any of the terms of its Bid, the RFP and this Contract; or
6. There is a proceeding for bankruptcy, insolvency, winding up or there is an appointment of receiver, liquidator, assignee, or similar official against or in relation to the SI; or
7. The SI / SI's Team has failed to comply with or is in breach or contravention of any applicable laws; or
8. The SI / SI's team are involved in fraud / wilful misconduct.

Where there has been an occurrence of such defaults inter alia as stated above, the Purchaser shall issue a notice of default to the SI, setting out specific defaults / deviances / omissions / non-compliances / non-performances and providing a notice of sixty (60) days to enable such defaulting party to remedy the default committed.

Where despite the issuance of a default notice to the SI by the Purchaser, the SI fails to remedy the default to the satisfaction of the SI, the Purchaser may, where it deems fit, issue to the defaulting party another default notice or proceed to adopt such remedies as may be available to the Purchaser.

16.8 Consequences of Default

Where an Event of Default subsists or remains uncured the Purchaser shall be entitled to:

1. Impose any such obligations and conditions and issue any clarifications as may be necessary to inter alia ensure smooth continuation of project and the Services which the SI shall be obliged to comply with which may include re-determination of the consideration payable to the SI as agreed mutually by Purchaser and SI or through a third party acceptable to both parties. The SI shall in addition take all available steps to minimize loss resulting from such event of default.
2. Suspend all payments to the SI under the Contract by a written notice of suspension to the SI, provided that such notice of suspension:
 - a. Shall specify the nature of the failure; and

- b. Shall request the SI to remedy such failure within a specified period from the date of receipt of such notice of suspension by the SI.

16.9 Breach and Rectification

In the event that the SI is in Material Breach of its obligations under the Contract or the SLA, Purchaser may terminate the Contract or the SLA upon notice to the other Party. Any notice served pursuant to this clause shall give reasonable details of the Material Breach, which could include the following events and the termination will become effective:

1. If there is Breach which translates into default in providing Services by the Bidder as per this Contract or the SLA, continuously for more than one week, then the Purchaser will serve a seven days' notice for curing such Material Breach. In case the Material Breach continues after the notice period, the Purchaser will have the option to terminate the Contract.
2. Because time is the essence of the contract, in case, for reasons prima facie attributable to the SI, there is a delay of more than 4 weeks in the Project Implementation Phase by the SI prior to the acceptance testing and certification stage, the Purchaser may terminate the Contract after affording a reasonable opportunity to the SI to explain the circumstances leading to such a delay. Further, the Purchaser may also invoke the Performance Guarantee of the SI. Pursuant to the termination, SI shall transfer all the project related assets to Purchaser.
3. Where a change of control of the SI has occurred whereby the SI has merged, amalgamated or been taken over, due to which the majority shareholding of the SI has been transferred to another entity, the Purchaser can terminate the Contract through a written notice of thirty (30) days, and such notice shall become effective at the end of the notice.

16.10 Protection and Liabilities

16.10.1 Third Party Claims

SI (the "Indemnifying Party") undertakes to indemnify the Purchaser (the "Indemnified Party") from and against all direct losses, claims or damages on account of bodily injury, death or damage to tangible personal property and otherwise caused by its negligence / fraud / wilful misconduct, arising in favour of any person, corporation or other entity (including the Indemnified Party) attributable to the Indemnifying Party's performance or non-performance under the Contract or the SLA. The indemnities shall be subject to the following conditions:

1. The Indemnified Party, as promptly as practicable, informs the Indemnifying Party in writing of the claim or proceedings and provides all relevant evidence, documentary or otherwise;
2. The Indemnified Party shall, at the cost of the Indemnifying Party, give the Indemnifying Party all reasonable assistance in the defence of such claim including reasonable access to all relevant information, documentation and personnel provided that the Indemnified Party may, at its sole cost and expense, reasonably participate, through its attorneys or otherwise, in such defence;
3. If the Indemnifying Party does not assume full control over the defence of a claim, the Indemnifying Party may participate in such defence at its sole cost and expense, and the Indemnified Party will have the right to defend the claim in such manner as it may deem appropriate, and the cost and expense of the Indemnified Party will be included in Losses;

4. The Indemnified Party shall not prejudice, pay or accept any proceedings or claim, or compromise any proceedings or claim, without the written consent of the Indemnifying Party; All settlements of claims subject to indemnification will:
 - a. Be entered into only with the consent of the Indemnified Party, which consent will not be unreasonably withheld and include an unconditional release to the Indemnified Party from the claimant for all liability in respect of such claim;
 - b. Include any appropriate confidentiality agreement prohibiting disclosure of the terms of such settlement;
5. The Indemnified Party shall account to the Indemnifying Party for all awards, settlements, damages and costs (if any) finally awarded in favour of the Indemnified Party which are to be paid to it in connection with any such claim or proceedings;
6. The Indemnified Party shall take legally permissible steps that the Indemnifying Party may reasonably require to mitigate or reduce its loss as a result of such a claim or proceedings; and in the event that the Indemnifying Party is obligated to indemnify an Indemnified Party pursuant to this Clause, the Indemnifying Party will, upon payment of such indemnity in full, be subrogated to all rights and defenses of the Indemnified Party with respect to the claims to which such indemnification relates.

16.10.2 Limitation of Liability

SI shall not in any event be liable for any special, indirect, incidental, punitive, exemplary or consequential damages except with respect to the bodily injury (including death) and damage to real and tangible personal property caused by the ~~Purchaser's~~ SI's negligence / fraud / wilful misconduct.

Neither the Contract nor the services delivered by SI under the Contract grants or creates any rights, benefits, claims, obligations or causes of action in, to or on behalf of any person or entity (including any third party) other than between the respective Parties to the Contract, as the case may be.

The total liability of SI (whether in contract, tort, negligence, strict liability in tort, by statute or otherwise) related to the Contract, including the work, deliverables or Services or Supply of Items covered under this RFP, shall be limited to the extent of hundred (100) % of the Total Contract Value.

Title and Risk of Loss: SI shall bear the risk of loss on Assets up to the time they are transferred and handed over to the Purchaser - after which it shall stand transferred to the Purchaser. SI shall arrange and pay for insurance to cover such item until it is transferred and even after the transfer of the Assets till the insurance policies come up for a renewal.

Notwithstanding what has been stated elsewhere in the Contract and the Schedules attached thereof, the Purchaser shall not be liable to SI for any indirect or consequential damages.

Any claim or series of claims arising out or in connection with the Contract or the SLA shall be time barred and invalid if legal proceedings are not commenced by the relevant Party against the other Party within such period as may be permitted by applicable law without the possibility of contractual waiver or limitation.

The Purchaser shall be entitled to claim the remedy of specific performance under the Contract or the SLA.

16.11 Intellectual Property

1. Purchaser shall own and have a right in perpetuity to use all newly created Intellectual Property Rights which have been developed solely during execution of the Contract, including but not limited to all processes, products, specifications, reports, drawings and other documents which have been newly created and developed by the SI solely during the performance of Services under the Contract. All documentation and configuration items such as scripts, code, queries etc. developed by the SI shall be property of the Purchaser. The SI should create a repository of such resources and provide access to Purchaser. The SI undertakes to disclose all such Intellectual Property Rights arising in performance of the Services to the Purchaser and execute all such agreements / documents and file all relevant applications, effect transfers and obtain all permits and approvals that may be necessary in this regard to effectively transfer and conserve the Intellectual Property Rights of the Purchaser.
2. If Purchaser desires, further, the SI shall be obliged to ensure that all approvals, registrations, licenses, permits and rights etc. which are inter-alia necessary for use of the goods supplied / installed by the SI, the same shall be acquired in the name of the Purchaser, prior to termination of the Contract and which may be assigned by the Purchaser to the SI for the purpose of execution of any of its obligations under the terms of the Bid, RFP or the Contract. However, subsequent to the Term of the Contract, such approvals, registrations, licenses, permits and rights etc. shall endure to the exclusive benefit of the Purchaser.
3. The SI's Team shall ensure that while it uses any software, Cloud Infrastructure, processes, document or material in the course of performing the Services, it does not infringe the Intellectual Property Rights of any person and the SI shall keep the Purchaser indemnified against all costs, expenses and liabilities howsoever, arising out any illegal or unauthorized use (piracy) or in connection with any claim or proceedings relating to any breach or violation of any permission / license terms or infringement of any Intellectual Property Rights by the SI or the SI's Team during the course of performance of the Services. In case of any infringement by the SI's Team, SI shall have sole control of the defence and all related settlement negotiations.
4. In case of the Bespoke Development, the SI shall transfer the Source Code to the Purchaser along with all the rights and privileges. The SI shall also submit all the necessary instructions for incorporating any modification / changes in the software and its compilation into executable / installable product.

16.12 Escrow Arrangement

1. The Parties shall agree to appoint an escrow agent to provide escrow mechanism for the deposit of the customised code developed by the SI for RTS 2.0 solution including of the Background Intellectual Property supplied by the SI to Purchaser, in order to protect its interest under the Contract in the event
 - a. bankruptcy, winding up, liquidation proceedings are commenced in
 - b. respect of the selected SI, or
 - c. the SI passes a resolution approving voluntary winding up
 - d. proceedings, or
 - e. a receiver is appointed in respect of the SI or
 - f. there is an assignment by the SI for the benefit of its creditors, or
 - g. the SI is involved in any dispute with a third party and/or the Purchaser, which, in

Purchaser's sole determination, affect the rights in the Background Intellectual Property.

2. The Parties shall enter into a tripartite escrow agreement with the mutually agreed escrow agent, which will set out, inter alia, the events of the release of the source code of the Background Intellectual Property and the obligation of the escrow agent. Costs for the escrow will be borne by Purchaser. As a part of the escrow arrangement, the Vendor will provide a detailed code documentation of the Background Intellectual Property, which has been duly reviewed by an external independent organization for its validity. It is clarified that off the shelf software products sourced from OEMs are excluded from the purview of Escrow arrangement. Cost for such detailed code documentation validation will be borne by Purchaser. Notwithstanding the occurrence of any event which gives effect to the escrow arrangement contemplated herein, the Purchaser shall have the right to continue using the Deliverables as per the terms of the Contract and RFP.

16.13 Intellectual Property Infringement

In the event of any claim of infringement of intellectual property rights arising from use of the Solution or any component thereof by the Purchaser, Purchaser may, at its option require the Bidder to: (i) obtain the right to permit Purchaser to continue using the Solution or the relevant component thereof, or (ii) modify or replace the relevant portion(s) of the Solution with a non-infringing alternative having substantially equivalent performance within a reasonable period of time.

Purchaser's rights set out herein shall not prejudice any other remedy available to Purchaser under the Contract including but not limited to indemnity or the right to terminate the Contract.

As a condition to avail the foregoing indemnity, the Purchaser agrees to notify Bidder in writing of the claim; and allow the Bidder to control and cooperate with the Purchaser in the defence and any related settlement negotiations.

SI shall have no obligations with respect to any infringement claims to the extent that the infringement claim arises or results from:

- (i) SI's compliance with Purchaser's specific technical designs or instructions (except where SI knew or should have known that such compliance was likely to result in an infringement claim and SI did not inform Purchaser of the same)
- (ii) Inclusion in a deliverable of any content or other materials provided by Purchaser and the infringement relates to or arises from such Purchaser materials or provided material
- (iii) Modification of a deliverable after delivery by SI to Purchaser if such modification was not made by or on behalf of SI
- (iv) Operation or use of some or all of the deliverable in combination with products, information, specification, instructions, data, materials not provided by SI
- (v) Use of the deliverables for any purposes for which the same have not been designed or developed or other than in accordance with any applicable specifications or documentation provided under the applicable statement of work by SI
- (vi) Use of a superseded release of some or all of the deliverables or Purchaser's failure to use any modification of the deliverable furnished under this Agreement including, but not limited to, corrections, fixes, or enhancements made available by SI.

16.14 Change Control

The System Integrator shall address all the errors / bugs / gaps / changes in the functionality offered by the solution at no additional cost during the operations and maintenance period. The System Integrator shall identify and resolve application problems like system malfunctions, performance problems, data corruption etc. due to which the solution is not able to give the desired performance.

16.14.1 Introducing a Change

1. The Purchaser shall have the right to propose, and subsequently require, the Project Manager to order the SI from time to time during the performance of the Contract to make any change, modification, addition, or deletion to, in, or from the System (interchangeably called Change), provided that such Change falls within the general scope of the System, does not constitute unrelated work, and is technically practicable, taking into account both the state of advancement of the System and the technical compatibility of the Change envisaged with the nature of the System as originally specified in the Contract. A Change may involve, but is not restricted to, the substitution of updated Information Technologies and related Services in accordance with system / product upgrades.
2. The SI may from time to time during its performance of the Contract propose to the Purchaser (submitted by Project Manager of SI to Purchaser) any Change that the SI considers necessary or desirable to improve the quality or efficiency of the System. The Purchaser may at its discretion approve or reject any Change proposed by the SI. The change should be documented as per the template specified in the Annexure.
3. Notwithstanding the clauses mentioned above, no Change made necessary because of any default of the SI in the performance of its obligations under the Contract shall be deemed to be a Change, and such change shall not result in any extra cost or Time for Achieving Operational Acceptance.
4. The procedure on how to proceed with and execute Changes is specified below.
5. Moreover, the Purchaser and SI will agree, during development of the Project Plan, to a date prior to the scheduled date for Operational Acceptance, after which the Technical Requirements for the System shall be frozen. Any major Change initiated after this time will be dealt with after Operational Acceptance.

16.14.2 Changes originating from the Purchaser

1. If the Purchaser proposes a Change pursuant to Clause mentioned above, it shall send to the SI a request for Change Proposal, requiring the SI to prepare and furnish to the Project Manager as soon as reasonably practicable a Change Proposal, which shall include the following:
 - a. brief description of the Change;
 - b. impact on the Time for Achieving Operational Acceptance;
 - c. detailed estimated cost of the Change;
 - d. effect on Functional Guarantees (if any);
 - e. effect on any other provisions of the Contract.
2. Prior to preparing and submitting the Change Proposal, the SI shall submit to the Project Manager a Change Estimate Proposal, which shall be an estimate of the cost of preparing the Change Proposal, plus a first approximation of the suggested approach and cost for implementing the changes. Upon receipt of the SI's Change Estimate Proposal, the Purchaser shall do one of the following:
 - a. Accept the SI's estimate with instructions to the SI to proceed with the preparation of the Change Proposal;
 - b. Advise the SI of any part of its Change Estimate Proposal that is unacceptable and request the Bidder to review its estimate;

- c. Advise the SI that the Purchaser does not intend to proceed with the Change;
- d. Upon receipt of the Purchaser's instruction to proceed under above Clause, the SI shall, with proper expedition, proceed with the preparation of the Change Proposal, in accordance with Clause mentioned above.
- e. The pricing of any Change shall, as far as practicable, be calculated in accordance with the rates and prices included in the Contract. If the nature of the Change is such that the Contract rates and prices are inequitable, the parties to the Contract shall agree on other specific rates to be used for valuing the Change.
- f. Upon receipt of the Change Proposal, the Purchaser and the SI shall mutually agree upon all matters contained in the Change Proposal. Within fourteen (14) days after such agreement, the Purchaser shall, if it intends to proceed with the Change, issue the SI a Change Order. If the Purchaser is unable to reach a decision within fourteen (14) days, it shall notify the SI with details of when the Bidder can expect a decision. If the Purchaser decides not to proceed with the Change for whatever reason, it shall, within the said period of fourteen (14) days, notify the SI accordingly. Under such circumstances, the SI shall not be entitled to reimbursement of any costs incurred by it in the preparation of the Change Proposal.
- g. If the Purchaser and the SI cannot reach agreement on the price for the Change, an equitable adjustment to the Time for Achieving Operational Acceptance, or any other matters identified in the Change Proposal, the Change will not be implemented.

16.14.3 Changes originating from the System Integrator

1. If the SI proposes a Change pursuant to Clause mentioned above, the SI shall submit to the Project Manager a written Application for Change Proposal, giving reasons for the proposed Change and including the information specified in Clause mentioned above. Upon receipt of the Application for Change Proposal, the parties shall follow the procedures outlined in Clauses mentioned above. However, should the Purchaser choose not to proceed, or the Purchaser and the SI cannot come to agreement on the change during any validity period that the SI may specify in its Application for Change Proposal, the SI shall not be entitled to recover the costs of preparing the Application for Change Proposal, unless subject to an agreement between the Purchaser and the SI to the contrary.
2. The SI needs to make any changes in software and cloud Infrastructure suggested by the Purchaser or the SI in accordance with clause mentioned above. It is expected that any minor changes shall be carried out by the SI without any extra cost. In case of substantial change requests, extra cost estimated for the change shall be paid by the Purchaser separately.

16.15 Termination

16.15.1 Conditions for Termination

1. The Purchaser may, terminate this Contract in whole or in part by giving the SI a prior and written notice indicating its intention to terminate the Contract under the following circumstances:
 - a. Where the Purchaser is of the opinion that there has been such Event of Default on the part of the SI / SI's Team which would make it proper and necessary to terminate the Contract and may include failure on the part of the SI to respect any of its commitments with regard to any part of its obligations under its Bid, the RFP or under the Contract.

- b. Where it comes to the Purchaser's attention that the SI (or the SI's Team) is in a position of actual conflict of interest with the interests of the Purchaser, in relation to any of terms of the SI's Bid, the RFP or the Contract.
 - c. Where the SI's ability to survive as an independent corporate entity is threatened or is lost owing to any reason whatsoever, including inter-alia the filing of any bankruptcy proceedings against the SI, any failure by the SI to pay any of its dues to its creditors, the institution of any winding up proceedings against the SI or the happening of any such events that are adverse to the commercial viability of the SI. In the event of the happening of any events of the above nature, the Purchaser shall reserve the right to take any steps as are necessary, to ensure the effective transition of the project to a successor agency, and to ensure business continuity.
 - d. Termination for Insolvency: The Purchaser may at any time terminate the Contract by giving written notice to the SI, without compensation to the SI, if the SI becomes bankrupt or otherwise insolvent, provided that such termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to the Purchaser.
 - e. In the event of termination of the Contract by the Purchaser before the expiry of the Term, the SI shall be given a period of thirty (30) days to demobilize itself.
 - f. Termination for Convenience: The Purchaser, may, by written notice of thirty (30) days sent to the SI, terminate the Agreement, in whole or in part at any time for its convenience. The notice of termination shall specify that termination is for the Purchaser's convenience, the extent to which performance of work under the Agreement is terminated, and the date upon which such termination becomes effective. Upon this Clause being invoked by the Purchaser, the Purchaser shall pay the SI for all invoices raised by the SI for Services and Deliverables provided and accepted by the Purchaser till the effective date of termination for convenience
2. The SI may, subject to approval by the Purchaser, terminate this Contract before the expiry of the term by giving the Purchaser a prior and written notice at least ninety (90) days in advance indicating its intention to terminate the Contract.

16.15.2 Consequences of Termination

- 1. In the event of termination of the Contract, whether consequent to the stipulated Term of the Contract or otherwise the Purchaser shall be entitled to impose any such obligations and conditions and issue any clarifications as may be necessary to ensure an efficient transition and effective business continuity of the Project which the SI shall be obliged to comply with and take all available steps to minimize loss resulting from that termination / breach, and further allow and provide all such assistance to the Purchaser and / or the successor agency, as may be required, to take over the obligations of the erstwhile SI in relation to the execution / continued execution of the scope of the Contract, even where such assistance is required to be rendered for a reasonable period that may extend beyond the contract term / termination thereof.
- 2. Where the termination of the Contract is prior to its stipulated term on account of a Default on the part of the SI / SI's Team, or due to the fact that the survival of the SI as an independent corporate entity is threatened / has ceased, or for any other reason, whatsoever, the Purchaser through re-determination of the consideration payable to the SI as agreed mutually by Purchaser and SI or through a third party acceptable to both parties may pay the Bidder for those goods that have been satisfactorily installed and commissioned and for that part of the Services which have been authorized by the Purchaser and satisfactorily performed by the SI up to the date of termination. Without

prejudice to any other rights, the Purchaser may retain such amounts from the payment due and payable by the Purchaser to the SI as may be required to offset any losses caused to the Purchaser as a result of the Termination or due to any act / omissions of the SI. In case of any loss or damage due to default on the part of the SI in performing any of its obligations with regard to executing the scope of work under the Contract, the SI shall compensate the Purchaser for any such loss, damages or other costs, incurred by the Purchaser.

3. Additionally, the SI's Team and / or all third parties appointed by the SI shall continue to perform all their obligations and responsibilities as stipulated under the Contract, and as may be proper and necessary to execute the scope of work under the Contract in terms of the SI's Bid, the RFP and this Contract, in an identical manner as were being performed before the collapse of the SI as described above in order to execute an effective transition and to maintain business continuity.
4. Nothing herein shall restrict the right of the Purchaser to invoke the Bank Guarantee and other Guarantees furnished hereunder, enforce the Deed of Indemnity and pursue such other rights and / or remedies that may be available to the Purchaser under law.
5. The termination hereof shall not affect any accrued right or liability of either Party nor affect the operation of the provisions of the Contract that are expressly or by implication intended to come into or continue in force on or after such termination.

16.15.3 Dispute Resolution

1. The office of the Purchaser and the SI shall make every effort to resolve amicably, by direct informal negotiation, any disagreement or dispute arising between them under or in connection with the Contract. If after thirty (30) days from the commencement of such informal negotiations, the Purchaser and the SI have been unable to resolve amicably a contract dispute, the matter will be referred for Arbitration, and the **Arbitrator's decision** will be final and binding on both the parties. **First level of Arbitrator will be Secretary or equivalent of IT department and the arbitration process will be as per laws of Government of Maharashtra.**
2. If during the subsistence of the Contract or thereafter, any dispute between the Parties hereto arising out of or in connection with the validity, interpretation, implementation, material breach or any alleged material breach of any provision of the Contract or regarding any question, including as to whether the termination of the Contract by one Party hereto has been legitimate, the Parties hereto shall endeavour to settle such dispute amicably and / or by Conciliation to be governed by the Arbitration and Conciliation Act, 1996 or as may be agreed to between the Parties. The attempt to bring about an amicable settlement is considered to have failed as soon as one of the Parties hereto, after reasonable attempts (which attempt shall continue for not less than thirty (30) days), gives thirty (30) days' notice to refer the dispute to arbitration to the other Party in writing.
3. The Arbitration proceedings shall be governed by the Arbitration and Conciliation Act, 1996.
4. The Arbitration proceedings shall be held in Mumbai, Maharashtra, India.
5. The Arbitration proceeding shall be governed by the substantive laws of India.
6. The proceedings of Arbitration shall be in English language.
7. Except as otherwise provided elsewhere in the Contract, if any dispute, difference, question or disagreement arises between the parties hereto or their respective representatives or assignees, at any time in connection with construction, meaning, operation, effect, interpretation or out of the contract or breach thereof the same shall be decided by an Arbitral Tribunal consisting of three

Arbitrators. Each party shall appoint one Arbitrator and the Arbitrators so appointed shall appoint the third Arbitrator who will act as Presiding Arbitrator.

8. In case, a party fails to appoint an arbitrator within thirty (30) days from the receipt of the request to do so by the other party or the two Arbitrators so appointed fail to agree on the appointment of third Arbitrator within thirty (30) days from the date of their appointment upon request of a party, Ministry of Law and Justice shall appoint the arbitrator / Presiding Arbitrator upon request of one of the parties.
9. If any of the Arbitrators so appointed dies, resigns, incapacitated or withdraws for any reason from the proceedings, it shall be lawful for the concerned party / arbitrator to appoint another person in his place in the same manner as aforesaid. Such person shall proceed with the reference from the stage where his predecessor had left if both parties consent for the same; otherwise, he shall precede de novo.
10. It is a Contract Condition that the party invoking arbitration shall specify all disputes to be referred to arbitration at the time of invocation of arbitration and not thereafter.
11. It is also a Contract Condition that neither party to the contract shall be entitled for any interest on the amount of the award.
12. The Arbitral Tribunal shall give reasoned award and the same shall be final, conclusive and binding on the parties.
13. The fees of the arbitrator shall be borne by the parties nominating them and the fee of the Presiding Arbitrator, costs and other expenses incidental to the arbitration proceedings shall be borne equally by the parties.
14. Subject to as aforesaid the provisions of the Arbitration and Conciliation Act, 1996 and any statutory modifications or re-enactment in lieu thereof shall apply to the arbitration proceedings under this Clause.

16.16 Audit, Access and Reporting

16.16.1 Purpose

1. This section details the audit, access and reporting rights of Purchaser and the respective obligations of SI under the contractual terms of Project Implementation, Operation and SLA Management.
2. Purchaser can engage a suitable, neutral and technically competent third-party agency or agencies for conducting audit and certification, upon intimation by the SI that the system implementation is complete.
3. The SI being notified of any deviations from the agencies nominated by Purchaser regarding deviations from norms, standards or guidelines shall at the earliest instance, take all corrective measures required in least possible time.

16.16.2 Notice and Timing

1. As soon as reasonably practicable after the Effective Date, the Parties shall use their best endeavours to agree to a timetable for routine audits during the Project Implementation Phase and the Operation and Management Phase in accordance with such agreed timetable and shall not be required to give the SI any further notice of carrying out such audits.
2. The Purchaser or its nominated agencies may conduct non-timetabled audits at its own discretion if they reasonably believe that such non-timetabled audits are necessary as a result of an act of fraud

by the SI, a security violation, or breach of confidentiality obligations by the SI, provided that the requirement for such an audit is notified in writing to the Bidder a reasonable period time prior to the audit (taking into account the circumstances giving rise to the reasonable belief) stating in a reasonable level of detail, the reasons for the requirement and the alleged facts on which the requirement is based. If the Bidder considers that the non-timetabled audit was not appropriate, the matter shall be referred to the escalation procedure.

3. The frequency of audits shall be decided by the Purchaser.
4. In addition to the above, there will be audits conducted by statutory bodies (e.g. CAG) as and when they are required to do it. Notwithstanding any condition given in the Contract, the SI will have to provide these statutory bodies access to all the facilities, infrastructure, documents and artefacts of the Project as required by them and approved by the Purchaser, in writing.
5. The audit and access rights contained shall survive the termination or expiration of the Contract.

16.16.3 Access

1. The SI shall provide the Purchaser with an access to employees, suppliers and third party facilities, documents, records and systems reasonably required for audit and shall provide all such persons with routine assistance in connection with the audits and inspections.
2. Purchaser shall have the right to copy and retain copies of any relevant records. The SI shall co-operate with the Purchaser in effecting the audits and providing necessary information.

16.16.4 Inspection Rights

Purchaser shall have the right to inspect Bidder and third-party facilities, including leased premises for providing Services, data centre, data recovery centres, documents, records, procedures and systems relating to the provision of the services, but only to the extent that they relate to the provision of the services under this Project, as shall be reasonably necessary to verify:

1. The security, integrity and availability of all Project Data processed, held or conveyed by the SI on behalf of Project and documentation related thereto;
2. That the actual level of performance of the services is the same as specified in the SLA;
3. That the SI has complied with the relevant technical standards, and has adequate internal controls in place; and
4. The compliance of the SI with any other obligation under the contract and SLA.

16.17 Use of Assets by the System Integrator

During the contract period the System Integrator shall:

1. Take all reasonable and proper care of the entire Cloud Infrastructure and software, network or any other information technology infrastructure components used for the Project and other facilities leased / owned / operated by the SI exclusively in terms of ensuring their usability for the delivery of the Services as per this Project (hereinafter the “Assets”) in proportion to their use and control of such Assets; and
2. Keep all the tangible Assets in as good and serviceable condition (reasonable wear and tear excepted) as at the date the SI takes control of and / or first uses the Assets and during the entire Term of the Contract.
3. Ensure that any instructions or manuals supplied by the manufacturer of the Assets for use of the Assets and which are provided to the SI will be followed by the SI and any person who will be responsible for the use of the Assets;
4. Take such steps as may be properly recommended by the manufacturer of the Assets and notified to the SI or as may, in the reasonable opinion of the SI, be necessary to use the Assets in a safe manner;
5. Ensure that the Assets that are under the control of the SI, are kept suitably housed and in conformity with Applicable Law;
6. Procure permission from the Purchaser or its nominated agencies and any persons duly authorized by them to enter any land or premises on which the Assets are for the time being sited so as to inspect the same, subject to any reasonable third-party requirements; not, knowingly or negligently use or permit any of the Assets to be used in contravention of any statutory provisions or regulation or in any way contrary to Applicable Law.
7. Not knowingly or negligently use or permit any of the Assets to be used in contravention of any statutory provisions or regulation or in any way contrary to Applicable Law;
8. Use best efforts to ensure that no lien, mortgage, hypothecation or any other charge is created over the Assets. SI shall be required to agree that they will inform the Purchaser immediately if they feel or come to know that a charge may be / has been created over any Asset(s). In the event a charge is created over any of the Assets / Goods which are owned by the Purchaser, the Purchaser shall have the right to get the charge removed at the risk, cost, expense of the SI and it shall make good all losses, damages, costs, fees, cess, duties, etc. borne or suffered by the Purchaser due to creation of such charge and / or in removal of such charge and / or in discharging the obligations for removal of such charge.

16.18 Risk Purchase Clause

In case the SI fails to execute the project as stipulated in the delivery schedule, the Purchaser, reserves the right to procure similar services from alternate sources at the risk, cost and responsibility of the SI for the balance portion of the work. Before taking such a decision, the Purchaser would give a notice period of one (01) month.

16.19 Data Ownership

All the Data created as the part of the Project shall be owned by the Purchaser. The System Integrator shall take utmost care in maintaining security, confidentiality and backup of this data.

16.20 Exit Management

16.20.1 Exit Management Purpose

SI shall provide knowledge transfer / handover after the completion of the contract period and on successful delivery of services and formally close the Project. This process will be initiated 3 months before the ending of the Term of the Contract. Exit Management Plan needs to be submitted within ninety (90) days of starting of project and shall be updated periodically. Exit Management Plan will include following but limited to:

1. Details of inventory of all the assets, IT Infrastructure, licenses, documents, manuals, etc. created under the Project.
2. Roles and responsibilities of both the parties for regular activities and support system implemented during project operations.

Further details of the Exit Management Plan are provided in subsequent section.

The Purchaser will approve exit plan after necessary consultation and start preparation for transition.

If the unpaid cumulative penalty amounts to total sum of Performance Bank Guarantee submitted to the Purchaser, the Purchaser shall terminate the Contract and recoveries will be made from the SI's Performance Bank Guarantee.

16.20.2 Transfer of Assets

The System Integrator shall be entitled to use the Assets for the duration of the Exit Management Period, which shall be not more than one month period from the date of expiry of Contract, or termination of the Contract. The Purchaser shall be entitled to serve notice in writing on the System Integrator at any time during the Exit Management Period as detailed hereinabove requiring the System Integrator provide the Purchaser with a complete and up to date list of the Assets within thirty (30) days of such notice. Upon service of a notice under this Clause the following provisions shall apply:

1. In the event, if the Assets to be transferred are mortgaged to any financial institutions by the System Integrator, the System Integrator shall ensure that all such liens and liabilities have been cleared beyond doubt, prior to such transfer. All documents regarding the discharge of such lien and liabilities shall be furnished to the Purchaser.
2. All risk in and title to the Assets to be transferred / to be purchased by the Purchaser pursuant to this Clause shall be transferred to the Purchaser, by the last day of the Exit Management Period.
3. Payment to the outgoing Bidder shall be made to the tune of last set of completed services / deliverables, subject to SLA requirements.
4. The outgoing SI will pass on to the Purchaser and / or to the Replacement SI, the subsisting rights in any leased properties / licensed products on terms not less favourable to the Purchaser / Replacement SI, than that enjoyed by the outgoing SI.

16.20.3 Confidential Information, Security and Data

System Integrator will promptly on the commencement of the Exit Management Period, supply to the Purchaser or its nominated agencies the following:

1. Information relating to the current services rendered and performance data relating to the performance of the services; Documentation relating to Project, Project's Intellectual Property Rights; any other data and confidential information related to the Project;
2. Project data as is reasonably required for purposes of the Project or for transitioning of the services to its Replacing System Integrator in a readily available format.
3. All other information (including but not limited to documents, records and agreements) relating to the services reasonably necessary to enable the Purchaser and its nominated agencies, or its Replacing SI to carry out due diligence in order to transition the provision of the Services to Purchaser or its nominated agencies, or its Replacing SI (as the case may be).

16.20.4 Employees

Promptly on reasonable request at any time during the Exit Management Period, the System Integrator shall, subject to applicable laws, restraints and regulations (including in particular those relating to privacy) provide to the Purchaser a list of all employees (with job titles and communication address) of the System Integrator, dedicated to providing the services at the commencement of the Exit Management Period; to the extent that any Transfer Regulation does not apply to any employee of the System Integrator, the Purchaser, its nominated agency or Replacing System Integrator may make an offer of employment or contract for services to such employee of the System Integrator and the System Integrator shall not enforce or impose any contractual provision that would prevent any such employee from being hired by the Purchaser or any Replacing System Integrator.

16.20.5 Rights of Access to Information

At any time during the exit management period, the System Integrator will be obliged to provide an access of information to the Purchaser, its nominated agency and / or any Replacing Vendor in order to make an inventory of the Assets (including Cloud Infrastructure / Software / Active / passive), documentations, manuals, catalogues, archive data, Live data, policy documents or any other material related to the Project.

16.20.6 Exit Management Plan

The System Integrator shall provide the Purchaser with a recommended Exit Management Plan (hereinafter referred to as "Exit Management Plan") which shall deal with at least the following aspects of Exit Management in relation to the Scope of Work, SLA as a whole and in relation to the Project Implementation, the Operation and Management SLA and Scope of work definition.

4. A detailed program of the transfer process that could be used in conjunction with a Replacement SI including details of the means to be used to ensure continuing provision of the services throughout the transfer process or until the cessation of the services and of the management structure to be used during the transfer.
5. Plans for the communication with the System Integrator and other parties (inclusive of staff, suppliers, customers and any related third party) as are necessary to avoid any material detrimental impact on Project's operations as a result of undertaking the transfer.
6. Plans for provision of contingent support to Project and Replacement SI for a reasonable period (minimum one month) after transfer.

7. Transition plan indicating the nature and scope of the SI's transitioning services. The Exit Management Plan shall deal with the following aspects of the Exit Management in relation to the Contract as a whole or the particular service of the Contract:
 - i. Transition of Managed Services
 - ii. Migration from the incumbent Cloud Service Provider's environment to the new environment.
8. The SI shall be responsible for both Transitions of the Services as well as Migration of the VMs, Data, Content and other assets to the new environment.
9. The SI shall carry out the migration of the VMs, data, content and any other assets to the new environment created by the Purchaser on alternate Cloud Service Provider's offerings to enable successful deployment and running of the solution on the new infrastructure.
10. The format of the data transmitted from the Cloud Service Provider to the new environment created by the Purchaser should leverage standard data formats (e.g., OVF...) whenever possible to ease and enhance portability.
11. Transitioning from the Cloud Service Provider including retrieval of all data in formats approved by Purchaser.
12. The SI shall ensure that all the documentation required by the Purchaser for smooth transition (in addition to the documentation provided by the Cloud Service Provider) are kept up to date and all such documentation is handed over to the Purchaser during regular intervals as well as during the exit management process.
13. The SI will transfer the organizational structure developed during the Term to support the delivery of the Exit Management Services. This will include:
 - i. Document, update, and provide functional organization charts, operating level agreements with Third-Party contractors, phone trees, contact lists, and standard operating procedures.
 - ii. Transfer physical and logical security processes and tools, including cataloguing and tendering all badges and keys, documenting ownership and access levels for all passwords, and instructing Purchaser on the use and operation of security controls.
14. Some of the key activities to be carried out by the SI for knowledge transfer will include:
 - i. Prepare documents to explain design and characteristics.
 - ii. Carry out joint operations of key activities or services.
 - iii. Briefing sessions on process and process Documentation.
 - iv. Sharing the logs, etc.
 - v. Briefing sessions on the managed services, the way these are deployed on cloud and are integrated.
 - vi. Briefing sessions on the offerings (IaaS/PaaS) of the Cloud Service Provider.
15. Transfer know-how relating to operation and maintenance of the software and cloud services.

The System Integrator shall re-draft the Exit Management Plan annually thereafter to ensure that it is kept relevant and up to date. Each Exit Management Plan shall be presented by the System Integrator to and approved by the Purchaser or its nominated agencies. The terms of payment as stated in the Terms of Payment Schedule include the costs of the System Integrator complying with its obligations under the relevant Schedule of the Contract. During the exit management period, the System Integrator shall use its best efforts to deliver the services. Payments during the Exit Management period shall be made in accordance with the Terms of Payment Schedule. This Exit Management plan shall be furnished in writing to System Integrator or its nominated agencies within 7 days from the receipt of notice of termination or three months prior to the expiry the Contract.

Post Implementation phase, for successful Exit Management, Support Team and Purchaser will provide sign-off to Development Team indicating that all knowledge transfer has been completed.

Post Support phase, for successful Exit Management, Purchaser will provide sign-off to Support Team indicating that all knowledge transfer has been completed.

16.21 Other Conditions

1. Neither the Purchaser nor the SI shall, without the express prior written consent of the other, assign to any third party the Contract or any part thereof, or any right, benefit, obligation, or interest therein or thereunder, except that the SI shall be entitled to assign either absolutely or by way of charge any monies due and payable to it or that may become due and payable to it under the Contract.
2. The Contract shall be written in English only. All correspondence and other documents pertaining to the Contract that are exchanged by parties shall be written in English only.
3. Unless terminated earlier, the Contract shall terminate on the completion of term as specified in the Contract and only after the obligations mentioned in the RFP Document are fulfilled to the satisfaction of the Purchaser.
4. SI shall be jointly and severally responsible and liable for execution of the Project

16.21.1 General

Relationship between Parties; the Purchaser and the System Integrator, shall be defined as follows:

1. Nothing in this Contract constitutes any fiduciary relationship between the Purchaser and SI / SI's Team or any relationship of Purchaser employee, principal and agent, or partnership, between the Purchaser and SI.
2. No Party has any authority to bind the other Party in any manner whatsoever except as agreed under the terms of this Contract.
3. The Purchaser has no obligations to the SI's Team except as agreed under the terms of this Contract.

16.21.2 Survival

The provisions of the clauses of this Contract in relation to documents, data, processes, property, Intellectual Property Rights, indemnity, publicity and confidentiality and ownership survive the expiry or termination of the Contract and in relation to confidentiality, the obligations continue to apply unless the Purchaser notifies the SI of its release from those obligations.

16.21.3 Entire Contract

The terms and conditions laid down in the RFP and all annexures, addendum thereto, as also the Bid and any annexes thereto shall be read in consonance with and form an integral part of the Contract. The Contract shall supersede any prior Contract, understanding or representation of the Parties on the subject matter.

16.21.4 Governing Law

The Contract shall be governed in accordance with the laws of Union of India and State of Maharashtra.

16.21.5 Jurisdiction of Courts

The Courts of India at Mumbai have exclusive jurisdiction to determine any proceeding in relation to the Contract.

16.21.6 Force Majeure

1. Force Majeure shall not include any events caused due to acts / omissions of such Party or result from a breach / contravention of any of the terms of the Contract, Bid and/or the RFP. It shall also not include any default on the part of a Party due to its negligence or failure to implement the stipulated / proposed precautions, as were required to be taken under the Contract.
2. The failure or occurrence of a delay in performance of any of the obligations of either party shall constitute a Force Majeure event only where such failure or delay could not have reasonably been foreseen, or where despite the presence of adequate and stipulated safeguards the failure to perform obligations has occurred. In such an event, the affected party shall inform the other party in writing within five days of the occurrence of such event. The Purchaser will make the payments due for Services rendered till the occurrence of Force Majeure. However, any failure or lapse on the part of the SI / SI's Team in performing any obligation as is necessary and proper, to negate the damage due to projected Force Majeure events or to mitigate the damage that may be caused due to the abovementioned events or the failure to provide adequate disaster management / recovery or any failure in setting up a contingency mechanism would not constitute force majeure, as set out above.
3. In case of a Force Majeure, all Parties will endeavour to agree on an alternate mode of performance in order to ensure the continuity of service and implementation of the obligations of a party under the Contract and to minimize any adverse consequences of Force Majeure.
4. The SI shall not be liable for forfeiture of its performance security, liquidated damages or termination for default, if and to the extent that it's delay in performance or other failure to perform its obligations under the contract is the result of an event of Force Majeure.
5. For purposes of this Clause, "Force Majeure" means an event beyond the control of the SI and not involving the SI's fault or negligence and not foreseeable.
6. Such events may include, but are not limited to, Acts of God or of public enemy, acts of Government of India in their sovereign capacity, acts of war, acts of terrorism, either in fires, floods, strikes, lock-outs and freight embargoes.
7. If a Force Majeure situation arises, the SI shall promptly notify Purchaser in writing of such conditions and the cause thereof within twenty calendar days.
8. Unless otherwise directed by the Purchaser in writing, the SI shall continue to perform its obligations under the Contract as far as it is reasonably practical, and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event. In such a case, the time for performance shall be extended by a period(s) not less than the duration of such delay.
9. If the duration of delay continues beyond a period of three months, Purchaser and the SI shall hold consultations with each other in an endeavour to find a solution to the problem. Notwithstanding above, the decision of the Purchaser, shall be final and binding on the SI.

16.21.7 Conditions precedent

1. Subject to express terms to the contrary, the rights and obligations under the Contract shall take effect only upon fulfilment of all the Conditions Precedent set out below. However, the Purchaser may at any time at its sole discretion waive fully or partially any of the Conditions Precedents for the SI:

2. The following Conditions Precedent need to be fulfilled by the SI on or before the execution of the Contract:
 - a. Provide Purchaser true copies of its constitutional documents and Purchaser resolutions authorizing the execution, delivery and performance of the Contract and the SLA with Purchaser.
 - b. Furnishing by SI, an unconditional and irrevocable Performance Bank Guarantee (PBG) as per the template provided in relevant section of this RFP and acceptable to the Purchaser which would remain valid until such time as stipulated by the Purchaser.
 - c. Obtaining of all statutory and other approvals required for the performance of the services under the Contract. This may include approvals / clearances, wherever applicable, that may be required for execution of the Contract, e.g. clearances from Government authorities for importing equipment, exemption of tax / duties / levies, work permits / clearances for the SI / SI's Team, etc.
 - d. Furnishing of such other documents as the Purchaser may specify / demand the Purchaser reserves the right to waive any or all of the conditions specified above in writing and no such waiver shall affect or impair any right, power or remedy that the Purchaser may otherwise have.
 - e. In the event that clauses mentioned hereinabove are not fulfilled within 3 months from the Effective Date of the Contract, or such later date as may be mutually agreed upon by the parties, the Purchaser may terminate the Contract.

16.21.8 Non-Fulfillment of Conditions Precedent

1. In the event that any of the Conditions Precedent relating to SI has not been fulfilled, as per the Implementation Schedule and the same has not been waived by Purchaser fully or partially, the Contract shall cease to have any effect as of that date.
2. In the event that the Contract fails to come into effect on account of nonfulfillment of the SI's Conditions Precedent with regards to implementation schedule, the Purchaser shall not be liable in any manner whatsoever to the SI and Purchaser shall forthwith invoke the Performance Guarantee and forfeit the guaranteed amount.
3. In the event that vacant possession of any of the Project facilities and / or Project Data has been delivered to the SI prior to the fulfilment in full of the Conditions Precedent, upon the termination of the Contract such Project facilities and Project data shall immediately revert to the Purchaser, free and clear from any encumbrances or claims.
4. Instead of terminating the Contract as stated above, the Parties may mutually agree in writing to extend the time for fulfilling the Conditions Precedent and the Term of the Contract. It is further clarified that any such extension of time shall be subject to imposition of penalties on SI linked to the delay in fulfilling the Conditions Precedent.

16.21.9 Acceptance of Solution

1. Purchaser shall be entitled to verify and examine the RTS 2.0 Solution, and each program, solution, tool or other component thereof upon delivery.

2. The SI shall assist Purchaser in undertaking the User Acceptance Test for each Deliverable. The User Acceptance Test shall comprise of : (i) Function test (ii) robustness test (iii) integrity test (iv) capacity and response time test (v) review of all Documentation (vi) installation test and (vii) test of operating procedures, as applicable to the relevant Deliverable. In the event any Deliverable is not in accordance with the Technical Architecture and Business Requirement Document, or is defective in any way, or are otherwise not to the satisfaction of Purchaser, then within thirty (30) days from such delivery, Purchaser shall notify the selected SI of the same ("Defect Notice"). SI shall, upon receipt of such Defect Notice from Purchaser, promptly and in any event no later than 4 (four) days from the date of the Defect Notice, replace the relevant Deliverable specified in the Defect Notice, at its own cost and expense. Any Deliverable delivered by the selected SI to Purchaser in replacement of any previously delivered Deliverable shall undergo the same process as set out above with respect to verification of defect and replacement. The results of the User Acceptance Test shall be recorded in writing.
3. The RTS 2.0 portal will be accepted once the complete RTS 2.0 Aaple Sarkar is implemented at Purchaser and run use cases as specified by Purchaser. Upon acceptance, the SI shall handover control and administration of the Deliverable by providing complete access and all passwords, usernames, credentials, authenticators etc., as required.
4. The SI shall obtain Acceptance Certificate/s from the Purchaser, which would contain the date of acceptance only post fulfilment of above clauses in respect of the entire RTS 2.0 Portal.
5. Purchaser will not agree to a deemed approval clause.
6. The SI shall not transfer any interest, right, benefit or obligation under the Contract without the prior written consent of the Purchaser.
7. Any modification of the Contract shall be in writing and signed by an authorized representative of each Party.
8. Payment shall be made in Indian Rupees only.
9. The SI's Team shall comply with the laws in force in India during the course of performing the Contract.

16.21.10 Governance Schedule

1. The SI shall document the agreed structures in a procedural manual under the guidance and supervision of the Purchaser.
2. The agenda for each meeting of the Steering Committee and Project Operations Committee shall be set to reflect the discussion items related to the scope of work and additional items may be added either with the agreement of the Parties or at the request of either Party.
3. Copies of the agenda for meetings of the Steering Committee and Project Operations Committee, along with relevant pre-reading material, shall be distributed.
4. All meetings and proceedings will be documented; such documents to be distributed to both Parties and copies shall be kept as a record. All actions, responsibilities and accountabilities arising out of any meeting shall be tracked and managed.
5. The Parties shall ensure as far as reasonably practicable that the Steering Committee and Project Operations Committee shall resolve the issues and resolve the objectives placed before them and members representing that Party are empowered to make relevant decisions or have easy access to empowered individuals for decisions to be made to achieve this.
6. The Parties will proceed in good faith so that the Steering Committee and Project Operations Committee shall resolve the issues and smoothen the performance of the Project.

7. The parties agree to attempt to resolve all disputes arising under the Contract, equitably and in good faith. To this end, the parties agree to provide frank, candid and timely disclosure of all relevant facts, information and documents to facilitate discussions between them / their representatives or senior officers.

16.22 Standards of Performance

SI shall perform the Services and carry out its obligations under the Contract with due diligence, efficiency and economy, in accordance with generally accepted techniques and best practices used in the industry and as per the IT standards recognized by international professional bodies and shall observe sound management, engineering and security practices. SI shall employ appropriate advanced technology and engineering practices and safe and effective equipment, machinery, material and methods. SI shall always act, in respect of any matter relating to the Contract, as faithful advisors to the Purchaser and shall, at all times, support and safeguard the Purchaser's legitimate interests in any dealings with Third Parties.

16.23 Approvals and Required Consents

1. The Purchaser shall extend necessary support to SI to obtain, maintain and observe all relevant and customary regulatory and governmental licenses, clearances and applicable approvals (hereinafter the "Approvals") necessary for SI to provide the Services. The costs of such Approvals shall be borne by SI. Both parties shall give each other all co-operation and information reasonably.
2. The Purchaser shall also provide necessary support to SI in obtaining the Approvals. In the event that any Approval is not obtained, SI and the purchaser shall co-operate with each other in achieving a reasonable alternative arrangement as soon as reasonably practicable for the Purchaser, to continue to process its work with as minimal interruption to its business operations as is commercially reasonable until such Approval is obtained, provided that SI shall not be relieved of its obligations to provide the Services and to achieve the Service Levels until the Approvals are obtained if and to the extent that SI's obligations are dependent upon such Approvals.

16.24 Payments

1. Purchaser shall make payments to SI at the times and in the manner set out in the Payment schedule as specified in this RFP. Purchaser shall make all efforts to make payments to SI within thirty (30) days of receipt of invoice(s) and all necessary supporting documents.
2. All payments agreed to be made by Purchaser to SI in accordance with the Bid shall be inclusive of all statutory levies, duties, taxes (GST will be levied on invoice amount) and other charges whenever levied/applicable, if any, and Purchaser shall not be liable to pay any such levies/ other charges under or in relation to this Contract and/or the Services.
3. No invoice for extra work / change order on account of change order shall be submitted by SI unless the said extra work / change order has been authorized / approved by the Purchaser in writing in accordance with Change Control Note (template of this Change Control Note is provided in the Annexure of this RFP).
4. In the event of Purchaser noticing at any time that any amount has been disbursed wrongly to SI or any other amount is due from SI to the Purchaser, the Purchaser may without prejudice to its rights recover such amounts by other means after notifying SI or deduct such amount from any payment falling due to SI. The details of such recovery, if any, shall be intimated to SI. SI shall receive the

payment of undisputed amount under subsequent invoice for any amount that has been omitted in previous invoice by mistake on the part of the Purchaser or SI.

5. All payments to SI shall be subject to the deductions of tax at source under Income Tax Act, and other taxes and deductions as provided for under any law, rule or regulation. All costs, damages or expenses which Purchaser may have paid or incurred, for which under the provisions of the Contract, SI is liable, the same shall be deducted by Purchaser from any dues to SI. All payments to SI shall be made after making necessary deductions as per terms of the Contract and recoveries towards facilities, if any, provided by the Purchaser to SI on chargeable basis.

16.25 Taxes

1. SI shall bear all personnel taxes levied or imposed on its personnel, or any other member of SI's Team, etc. on account of payment received under this Contract. SI shall bear all corporate taxes, levied or imposed on SI on account of payments received by it from the Purchaser for the work done under this Contract.
2. SI shall bear all taxes (except GST) and duties etc. levied or imposed on SI under the Contract including but not limited to Customs duty, Excise duty, and all Income Tax levied under Indian Income Tax Act – 1961 or any amendment thereof during the entire contract period, i.e., on account of material supplied and services rendered, and payments received by him from the Purchaser under the Contract. It shall be the responsibility of SI to submit to the concerned Indian authorities the returns and all other connected documents required for this purpose. SI shall also provide the Purchaser such information, as it may be required in regard to SI's details of payment made by the Purchaser under the Contract for proper assessment of taxes and duties. The amount of tax withheld by the Purchaser shall at all times be in accordance with Indian Tax Law and the Purchaser shall promptly furnish to SI original certificates for tax deduction at source and paid to the Tax Authorities.
3. SI agrees that he shall comply with the Indian Income Tax Act in force from time to time and pay Indian Income Tax, as may be imposed / levied on them by the Indian Income Tax Authorities, for the payments received by them for the works under the Contract.
4. SI shall fully familiarize themselves about the applicable domestic taxes on amounts payable by the Purchaser under the Contract. All such taxes (except GST) must be factored in the Commercial Bid by the SI.
5. The Purchaser shall pay only Goods and Services Tax (GST) to the SI under the Contract.
6. Any changes in Government Statutes on changes in taxes and levies and introduction of new taxes and levies shall be borne by the Purchaser. The SI shall be required to submit a proposal to Purchaser for claiming such differences.
7. Should SI fail to submit returns / pay taxes in times as stipulated under applicable Indian / State Tax Laws and consequently any interest or penalty is imposed by the concerned authority, SI shall pay the same. SI shall indemnify Purchaser against any and all liabilities or claims arising out of the Contract for such taxes including interest and penalty by any such Tax Authority may assess or levy against the Purchaser.
8. The Purchaser shall if so required by applicable laws in force, at the time of payment, deduct income tax payable by SI at the rates in force, from the amount due to SI and pay to the concerned tax authority directly.

16.26 Indemnity

2. SI shall indemnify the Purchaser from and against any costs, loss, damages, expense, claims including those from third parties or liabilities of any kind howsoever suffered, arising or incurred out of:
 - a. any negligence or wrongful act or omission by SI or any third party associated with SI in connection with or incidental to the Contract; or
 - b. any breach of any of the terms as agreed by SI in this RFP.
 - c. any infringement of patent, trademark / copyright or industrial design rights arising from the use of the supplied goods and related services or any part thereof.
3. SI shall also indemnify the Purchaser against any privilege, claim or assertion made by a third party with respect to right or interest in, ownership, mortgage or disposal of any asset, property etc.

16.27 Warranty

1. A comprehensive warranty/AMC applicable on goods and services (inclusive of Cloud Services) supplied under the Contract shall be provided for the entire Term of the Contract from the date of installation of the software and/or the date of acceptance of complete system.
2. Technical Support for Software applications shall be provided by the respective s during the Term of the Contract. The Technical Support should include all upgrades, updates and patches to the respective Software applications.
3. The SI shall warrant that the goods supplied under the Contract are new, non-refurbished, unused and recently manufactured; shall not be nearing End of sale / End of support; and shall be supported by the SI and respective OEM along with service and spares support to ensure its efficient and effective operation for the entire Term of the Contract. The warranty from OEM will be based on tri-party agreement between Purchaser, SI and OEM.
4. The SI warrants that the software supplied under the Contract shall be of the highest grade and quality and consisted with the established and generally accepted standards for materials of this type and as per the specification under this RFP. The software shall be in full conformity with the specifications and shall operate properly and safely. All recent design improvements in software, unless provided otherwise in the Contract, shall also be made available.
5. The SI shall further warrant that the software supplied under the Contract shall be free from all encumbrances and defects / faults arising from design or from any act or omission of the SI that may develop under normal use of the supplied software in the conditions prevailing at the respective office locations.
6. The Purchaser shall be required to promptly notify the SI in writing of any claims arising under the warranty specified under this Clause.
7. Upon receipt of such notice, the SI shall be required to, with all reasonable speed, resolve or replace the defective software or modules thereof, without prejudice to any other rights which the Purchaser may have against the SI under the Contract.
8. If the SI, having been notified, fails to remedy the defect(s) within a reasonable period, the Purchaser may proceed to take such remedial action as may be necessary, at the SI's risk and expense and without prejudice to any other rights which the Purchaser may have against the SI under the Contract.
9. During the comprehensive warranty period, the SI shall provide all product(s) and documentation updates, patches / fixes, and version upgrades within fifteen (15) days of their availability and should carry out installation and make operational the same at no additional cost to the Purchaser.
10. The SI shall warrant the Purchaser that:

- a. The implemented integrated solution represents a complete, integrated solution meeting all the requirements as outlined in the RFP and further amendments if any, and provides the functionality and performance, as per the terms and conditions specified in the Contract.
- b. The proposed integrated solution shall achieve parameters delineated in the technical specification / requirement.
- c. The SI shall be responsible for warranty services from licensors of products included in the systems.
- d. The SI undertakes to ensure the maintenance of the acceptance criterion / standards in respect of the systems during the warranty period.

16.28 Term and Extension of the Contract

1. The Contract period shall commence from the date of signing of contract and shall remain valid for 36 months from the date of Go Live of the system.
2. The Contract may be extended by 2 years (24 months) for providing operation support and maintenance of the developed system from the date of contract completion on mutually agreed terms and conditions.
3. The Purchaser shall reserve the right to extend the Contract for the same scope of work defined under this RFP based on the last year's ATS cost for services, licenses and any other item with 10% escalation.
4. A fresh RFP shall be called at the end of the Term / extended Term of the Contract. Any extension of Term of the Contract; if so, shall be decided by Purchaser.
5. If the delay occurs due to circumstances beyond control of SI such as strikes, lockouts, fire, accident, defective materials, delay in approvals or any cause whatsoever beyond the reasonable control of SI, a reasonable extension of time shall be granted by the Purchaser.
6. The Purchaser shall reserve the sole right to grant any extension to the Term mentioned above and shall notify in writing to SI, at least 3 (three) months before the expiration of the Term hereof, whether it shall grant SI an extension of the Term. The decision to grant or refuse the extension shall be at the Purchaser's discretion and such extension of the Contract, if any, shall be as per terms agreed mutually between the Purchaser and SI.
7. Where the Purchaser is of the view that no further extension of the Term be granted to SI, the Purchaser shall notify SI of its decision at least 3 (three) months prior to the expiry of the Term. Upon receipt of such notice, SI shall continue to perform all its obligations hereunder, until such reasonable time beyond the Term of the Contract within which, the Purchaser shall either appoint an alternative SI or create its own infrastructure to operate such Services as are provided under the Contract.

16.29 Time is of the essence

Time shall be of the essence in respect of any date or period that shall be specified in the Contract or any notice, demand or other communication served under or pursuant to any provision of the Contract and in particular in respect of the completion of the activities by SI by the specified completion date.

16.30 Conflict of Interest

SI shall disclose to the Purchaser in writing, all actual and potential conflicts of interest that exist, arise or may arise (either for SI or SI's Team) in the course of performing the Services as soon as practical after it becomes aware of that conflict.

16.31 Publicity

SI shall not be allowed to make or be permitted to be make a public announcement or media release about any aspect of the Contract unless the Purchaser first gives SI its written consent.

16.32 Delivery

1. SI shall bear the cost for packing, transport, insurance, storage and delivery of all the infrastructure components; if any and / or whichever is applicable, for this RFP at all locations identified by the Purchaser in Mumbai or Maharashtra.
2. The Solution supplied under the Contract shall conform to the standards mentioned in the RFP, and, when no applicable standard is mentioned, the same shall be as per the normal industry authoritative standards; such standard shall be approved by Purchaser.

16.33 Insurance

1. The assets: if any and wherever applicable, supplied under the Contract shall be comprehensively insured by SI at his own cost, against any loss or damage, for the entire Term of the Contract. SI shall submit to the Purchaser, documentary evidence issued by the insurance company, indicating that such insurance has been taken. The assets: if any and wherever applicable, supplied under the Contract shall be comprehensively insured by SI at their own cost till the Time of Delivery and Transfer of Ownership of the said assets from the SI to the Purchaser, against any loss or damage, for the transit entire period during the supply of the Contract. SI shall submit to the Purchaser, documentary evidence issued by the insurance company, indicating that such insurance has been taken. Once the Ownership is transferred from the SI to the Purchaser, the Purchaser shall take the insurance of the supplied assets; if any and wherever applicable, on their own cost and release the SI from any and all liability toward the asset so supplied.
2. SI shall take out and maintain at their own cost, on terms and conditions approved by the Purchaser, insurance against the risks, and for the coverages, as specified below:
 - a. at the Purchaser's request, shall provide evidence to the Purchaser showing that such insurance has been taken out and maintained and that the current premiums therefor have been paid.
 - b. Employer's liability and workers' compensation insurance in respect of the Personnel of the Company, in accordance with the relevant provisions of the Applicable Law, as well as, with respect to such Personnel, any such life, health, accident, travel or other insurance as may be appropriate.

16.34 Transfer of Ownership

SI must transfer all titles to the assets and goods procured for the purpose of the project to the Purchaser at the time of Acceptance of System. This includes all licenses, titles, source code, certificates, hardware, devices, equipment's etc. related to the system designed, developed, installed and maintained by SI for this project. SI is expected to provide source code, transfer IPR and ownership right of only those solutions which would be customized by the SI for the use of the Purchaser.

16.35 Liquidated Damages

1. If SI fails to supply, install or maintain any component or entire solution as per the Contract, within the time period(s) specified in the RFP, the Purchaser without prejudice to its other rights and remedies under the Contract, deduct from the Total Contract Value, as liquidated damages, a sum equivalent to 1,00,000 per week of the Corresponding contract value will be levied for a maximum period of twelve (12) weeks thereof of Total Contract Value for a milestone / quarter.
2. The deduction shall not in any case exceed **ten (10) % of the Total Contract Value**.
3. The Purchaser may without prejudice to its right to effect recovery by any other method, deduct the amount of liquidated damages from any money belonging to SI in its hands (which includes the Purchaser's right to claim such amount against SI's Performance Bank Guarantee) or which may become due to SI. Any such recovery or liquidated damages shall not in any way relieve SI from any of its obligations to complete the Work or from any other obligations and liabilities under the Contract.
4. Delay not attributable to SI shall be considered for exclusion for the purpose of computing liquidated damages.

16.36 Ownership and Retention of Documents

1. The Purchaser shall own the Documents, prepared by or for SI arising out of or in connection with the Contract.
2. Forthwith upon expiry or earlier termination of the Contract and at any other time on demand by the Purchaser, SI shall deliver to the Purchaser all documents provided by or originating from the Purchaser and all documents produced by or for SI in the course of performing the Services, unless otherwise directed in writing by the Purchaser at no additional cost. SI shall not, without the prior written consent of the Purchaser store, copy, distribute or retain any such documents.

16.37 Information Security

1. SI shall not carry any written / printed document, layout diagrams, CD, hard disk, storage tapes, other storage devices or any other goods / material proprietary to Purchaser into / out of any location without written permission from the Purchaser.
2. SI shall not destroy any unwanted documents, defective tapes / media present at any location on their own, proprietary to Purchaser. All such documents, tapes / media shall be handed over to the Purchaser.
3. All documentation and media forming part of the solution to be provided under this contract at any location shall be properly identified, labeled and numbered by SI. SI shall keep track of all such items and provide a summary report of these items to the Purchaser whenever asked for.
4. Access to Purchaser's data and systems, Internet facility by SI at any location shall be in accordance with the written permission by the Purchaser. The Purchaser shall allow SI to use facility in a limited manner subject to availability. It is the responsibility of SI to prepare and equip himself in order to meet the requirements.
5. SI must acknowledge that Purchaser's business data and other Purchaser proprietary information or materials, whether developed by Purchaser or being used by Purchaser pursuant to a license agreement with a third party (the foregoing collectively referred to herein as "proprietary information") are confidential and proprietary to Purchaser; and SI along with its team agrees to use utmost care to safeguard the proprietary and privacy information and to prevent the unauthorized use or disclosure thereof, which care shall not be less than that used by SI to protect its own proprietary information. SI recognizes that the goodwill of Purchaser depends, among other things,

upon SI keeping such proprietary information confidential and that unauthorized disclosure of the same by SI or its team could damage the goodwill of Purchaser, and that by reason of SI's duties here under. SI may come into possession of such proprietary information, even though SI does not take any direct part in or furnish the services performed for the creation of said proprietary information and shall limit access thereto to employees with a need to such access to perform the services required by the Contract. SI shall use such information only for the purpose of performing the said services. Any data, information, code customization produced or undertaken during the course of this Project shall be owned by the Purchaser.

6. SI shall, upon termination of the Contract for any reason, or upon demand by Purchaser, whichever is earliest, return any and all information provided to SI by Purchaser, including any copies or reproductions, both hardcopy and electronic.
7. By virtue of the Contract, SI team may have access to personal information of the Purchaser and / or a third party. The Purchaser has the sole ownership of and the right to use, all such data in perpetuity including any data or other information pertaining to the citizens that may be in the possession of the SI Team in the course of performing the Services under the Contract.

16.38 Records of Contract Documents

1. SI shall at all times make and keep sufficient copies of the process manuals, operating procedures, specifications, Contract documents and any other documentation for them to fulfill his duties under the Contract.
2. SI shall keep on the Site at least three copies of each specification and the Contract Document, in excess of their own requirement and those copies shall be available at all times for use by the Purchaser's Representative and by any other person authorized by the Purchaser's Representative.

16.39 Security and Safety

1. SI shall comply with the directions issued from time to time by the Purchaser and the standards related to the security and safety, in so far as it applies to the provision of the Services.
2. SI shall upon reasonable request by the Purchaser, or its nominee(s) participate in regular meetings when safety and information technology security matters are reviewed.

17 Annexures and Formats of the Contract

17.1 ANNEXURE 1 – Tender Offer Form

TENDER OFFER FORM (TOF)

Tender Reference No.: _____ Date: _____

To:

The Managing Director,
Maharashtra Information Technology Corporation Limited,
3rd Floor, Apeejay House, Churchgate,
Mumbai – 400 020

Respected Sir/ Madam,

Having examined the tender documents including all annexure the receipt of which is hereby duly acknowledged, we, the undersigned, offer to Implementation of Maharashtra Aaple Sarkar for Digital Delivery of Services. MahaIT, Maharashtra in conformity with the said tender documents. We undertake, if our tender offer is accepted, to commence delivery as per RFP schedule calculated from the date of receipt of your Notification of Award / Letter of Intent/location allotment.

If our tender offer is accepted, we will obtain the guarantee of bank in a sum of 10% of the Contract Price for the due performance of the Contract.

We agree to abide by this tender offer till 180 days and shall remain binding upon us and may be accepted at any time before the expiration of that period.

Until a formal contract is prepared and executed, this tender offer, together with your written acceptance thereof and your notification of award shall constitute a binding contract between us.

We understand that you are not bound to accept the lowest or any offer you may receive.

Dated this day of 2023

Signature:

(In the Capacity of:)

Duly authorized to sign the tender offer for and on behalf of

17.2 ANNEXURE 2 – Details of Bidder

DETAILS OF BIDDER

Details filled in this form must be accompanied by sufficient documentary evidence, in order to verify the correctness of the information.

SR. NO.	PARTICULARS	DESCRIPTION OR DETAILS
1.	Name of Bidder	
2.	Legal status of Bidder (company, Pvt. Ltd., etc.)	
3.	Main business of the Bidder	
4.	Address of Headquarters	
5.	Registered office address	
6.	Incorporation date and number	
7.	Date of Commencement of Business	
8.	ROC Reference No. / Registration No. with any other agency (please specify name of Registering Agency's Name; in case of registration other than ROC)	
9.	GST number	
10.	PAN details	
11.	Primary Contact Person (Name, Designation, address, mobile number, fax, email)	
12.	Secondary Contact Person (Name, Designation, address, mobile number, fax, email)	
13.	EMD details	
14.	Demand Draft details (DD No., date, Bank)	
Mandatory Supporting Documents: a) Certificate of Incorporation from Registrar of Companies (ROC) b) Relevant sections of Memorandum of Association of the company or filings to the stock exchanges to indicate the nature of business of the company		

Date: Place:

Signature of the bidder

17.3 ANNEXURE 3 – Formats for Submission of the Commercial Bid

17.3.1 Commercial Bid Cover Letter

<<On Lead Bidder Letterhead>>

Date:

To

The Managing Director,
Maharashtra Information Technology Corporation Limited,
3rd Floor, Apeejay House, Churchgate,
Mumbai – 400 020

Sub: Request for Proposal (RFP) for Selection of System Integrator for Implementation of Maharashtra Aaple Sarkar 2.0 for Government of Maharashtra

Ref: RFP No. <<>> dated << 2023>>

Dear Sir,

I (in case of single bidder) or We, <<name of the undersigned Bidder, having read and examined in detail all the bidding documents in respect of “Request for Proposal (RFP) for Selection of System Integrator for Implementation of Maharashtra Aaple Sarkar 2.0 Government of Maharashtra” do hereby propose to provide our services as specified in the bid submitted by us. Our attached Commercial Bid is for the amount of <<Amount in figures>>. This amount is inclusive of all taxes (excluding GST), levies, duties, etc. as applicable.

- **Price and Validity**

All the prices mentioned in our bid are in accordance with the terms as specified in the RFP documents. All the prices and other terms and conditions of this Bid are valid for a period of <days> calendar days from the date of opening of the Bid.

- We hereby confirm that our prices include all taxes excluding GST. However, all the taxes are quoted separately as per Annexure – Formats for Submission of the Commercial Bid.
- We understand that the actual payment would be made as per the existing indirect tax rates during the time of payment.
- Unit base price

We have quoted the unit price of each line item as per Annexure – Formats for Submission of the Commercial Bid. We hereby confirm that the quoted unit base price includes charges for all requisite services and charges for installation and commissioning, etc.

- **RFP Pricing**

Request for Proposal for Selection of System Integrator for Implementation of Maharashtra RTS Aaple
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We further confirm that the prices stated in our bid are in accordance with your Instructions to Bidders (ITB) included in the RFP documents.

- **Qualifying Data**

We confirm having submitted the information as required by you in your Instructions to Bidders (ITB). In case you require any other further information / documentary proof in this regard before evaluation of our bid, we agree to furnish the same in time to your satisfaction.

- **Bid Price**

We declare that our Bid Price is for entire scope of the work as specified in this RFP, Annexure and Corrigendum, if any, thereto. Our Bid prices are mentioned in the submitted Commercial Bid Formats as per Annexure.

- **Stamp Duty on PBG**

We declare that we will pay the applicable stamp duty on Performance Bank Guarantee

Our Commercial Bid shall be binding upon us subject up to expiration of the validity period of the proposal, i.e., <<Date>>.

We understand you are not bound to accept any Proposal you receive.

We hereby declare that our bid is made in good faith, without collusion or fraud and the information contained in the bid is true and correct to the best of our knowledge and belief.

Thanking you,

(Authorised Signatory)

Signature:

Name:

Designation:

Address:

Seal:

Date:

17.3.2 BOQ Formats

- i. The Commercial Bid should clearly indicate if all documents required in accordance with instructions specified in this RFP have been submitted.
- ii. Contract Value shall remain constant throughout the period of the contract and shall not be subject to any modifications, on any account whatsoever.
- iii. Bids submitted with pricing or conditional proposals shall be treated as non-responsive and the Bid may be rejected.
- iv. It is necessary for Bidders to fill in all the fields of this format strictly as per the format defined.
- v. The BOQ formats provided are only for reference purpose of the Bidders. Bidders are required to fill the macro-enabled template downloaded along with the RFP document from the e-Tendering Portal. Submission of Commercial Bid in any other format shall lead to disqualification of the Bidder.
- vi. It is mandatory to provide inputs for all cost components. Bids with any missing cost components shall be rejected.

17.3.3 Format of Commercial Bid / Total Cost Summary

Cost for Operations, Support & Maintenance to be at least 30% of Project Value.

As per commercial format

S. No.	Category	Unit Price (in INR)	No. of Units	Total Amount (excluding GST) (in INR)	GST (in INR)	Total Amount (including GST) (in INR)
1	Implementation					
1.1	<i>Design, Development and Go-Live of RTS 2.0 Portal</i>					
1.2	<i>Third Party OEM License during implementation phase</i>					
1.3	<i>Data Migration Expenses from RTS 1.0 to RTS 2.0</i>					
1.4	<i>Integration by providing API end points to MahaSamanvay, Digi Locker and Payment gateway</i>					
1.5	<i>Onboarding/Launching of a existing service on RTS 2.0 portal</i>					
1.6	<i>Cloud cost during implementation</i>					
2	Operations, Support & Maintenance (36 months)					
2.1	<i>Proposed Solution AMC</i>					
2.2	<i>Application Support</i>					
2.3	<i>Cloud cost during operation, support and Maintenance.</i>					
2.4	<i>Third Party OEM License during operation, support and Maintenance (including AMC)</i>					

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Total Cost of Ownership					
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Note- All figures mentioned in Volumetric details have a deviation of +/-10%. If these numbers, go up beyond 10% then SI will be compensated by Purchaser using Change Request as per the Rate card proposed by the bidder. If the numbers are below 10% than estimated numbers, in that case SI has to scale down the resources and pass on the savings to Purchaser as per the Rate card proposed by the bidder. The Rate card has been provided below.

The O&M quote should be at least 30% of the overall project cost.

Table 1 – Rate card for OEM license & cloud services

Rate Card for OEM License						
S. No.	OEM Software Components	Unit Price (in INR)	No. of Units	Total Amount (excluding GST) (in INR)	GST (in INR)	Total Amount (including GST) (in INR)
Rate Card for Cloud Services						
S. No.	Cloud Services Components	Unit Price (in INR)	No. of Units	Total Amount (excluding GST) (in INR)	GST (in INR)	Total Amount (including GST) (in INR)

Apart from the above the bidder also needs to provide:

Table 2 - Man-month Rate for on-going support for implementation of additional requirements of Aaple Sarkar 2.0

Team Category	Roles	Man Month Rate (INR)	Taxes	Man-month rate inclusive of Taxes (INR)
Critical Resources	Project Manager			
	Solution Architect			
	Data Architect			
	Lead Data Engineer			

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Application Development	Team Lead			
	Senior Software Developer			
	Software Developer			
	Business Analyst			
Analytics & Data Management)	Team Lead for Analytics			
	Data Management Expert			
	Analytics / Statistical Modeler			
	Business Analyst			
	Team Lead for Analytics			
	Data Management Expert			
	Analytics/Statistical Modeler			
	Business Analyst			

Table 3 - Additional Resource Off-site Helpdesk (if required)

Roles	Man-Month Rate (INR)	Taxes	Man-month rate inclusive of Taxes (INR)
IT-Helpdesk Resource			

Table 4 - Additional On-Site IT-Support

Roles	Man-Month Rate (INR)	Taxes	Man-month rate inclusive Taxes (INR)
Developer			
Lead			
Functional / Domain			

Table 5 - Additional Cost for Training

Roles	Batch Size	Rate (INR) / Per day	Taxes	Rate inclusive of Taxes (INR)
Trainer	20			

(Above Tables will not form the part of financial bid but would be used as pro-rata rates if the man-month effort requirements increase more than the envisaged man-month efforts or for extended support period after completion of support under this RFP)

17.4 ANNEXURE 4 – Bank Guarantee format for Earnest Money Deposit (EMD)

To,

<Name>

<Designation>

<Address>

<Phone Nos.>

<Fax Nos.>

<email id>

Whereas <<Name of the bidder>> (hereinafter called 'the System Integrator') has submitted the bid for Submission of RFP <<RFP Number>> dated <<Date>> for System Integrator for Implementation for of Maharashtra RTS Aaple Sarkar 2.0 for Government of Maharashtra. (hereinafter called "the Bid") to Maharashtra Information Technology Corporation Limited.

Know all Men by these presents that we <<... >> having our office at <<Address>> (hereinafter called "the Bank") are bound unto the Maharashtra Information Technology Corporation Limited (hereinafter called "the Maharashtra Information Technology Corporation Limited") in the sum of Rs. <<Amount in figures>> (Rupees <<Amount in words>> only) for which payment well and truly to be made to the said Maharashtra Information Technology Corporation Limited, the Bank binds itself, its successors and assigns by these presents. Sealed with the Common Seal of the said Bank this <<Date>>.

The conditions of this obligation are:

1. If the Bidder having its bid withdrawn during the period of bid validity specified by the Bidder on the Bid Form; or
2. If the Bidder, having been notified of the acceptance of its bid by the Maharashtra Information Technology Corporation Limited during the period of validity of bid

- (a) Withdraws his participation from the bid during the period of validity of bid document; or
- (b) Fails or refuses to participate in the subsequent Tender process after having been short listed;

We undertake to pay to the Maharashtra Information Technology Corporation Limited up to the above amount upon receipt of its first written demand, without the Maharashtra Information Technology

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Corporation Limited having to substantiate its demand, provided that in its demand the Maharashtra Information Technology Corporation Limited will note that the amount claimed by it is due to it owing to the occurrence of one or both of the two conditions, specifying the occurred condition or conditions.

This guarantee will remain in force up to <<insert date>> and including <<extra time over and above mandated in the RFP>> from the last date of submission and any demand in respect thereof should reach the Bank not later than the above date.

NOTWITHSTANDING ANYTHING CONTAINED HEREIN:

I. Our liability under this Bank Guarantee shall not exceed Rs. <<Amount in figures>> (Rupees <<Amount in words>> only)

II. This Bank Guarantee shall be valid upto <<insert date>>)

III. It is condition of our liability for payment of the guaranteed amount or any part thereof arising under this Bank Guarantee that we receive a valid written claim or demand for payment under this Bank Guarantee on or before <<insert date>>) failing which our liability under the guarantee will automatically cease.

(Authorized Signatory of the Bank)

Seal:

Date:

17.5 ANNEXURE 5- Statement of Blacklisting & Debarment

17.5.1 Declaration from the Bidder

Declaration from the Bidder-

<< A notarized affidavit on a non-judicial stamp paper of INR 100/- by Authorized Representative and Signatory of the Applicant with his/her dated Sign and Seal >>

AFFIDAVIT

To
The Managing Director,
Maharashtra Information Technology Corporation Limited,
3rd Floor, Apeejay House, Churchgate,
Mumbai – 400 020

Ref: RFP Ref No: _____

Subject: Self Declaration of not been blacklisted in response to the Request for Proposal for selection of **Request for Proposal (RFP) for Selection of System Integrator for Implementation of Maharashtra RTS Aaple Sarkar 2.0 for Government of Maharashtra.**

Dear Sir,

We confirm that our company or firm, _____, is currently not blacklisted in any manner whatsoever by any of the State or UT and or Central Government in India on any ground including but not limited to indulgence in corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice.

We confirm that we don't have any ongoing litigation/cases/arbitration which will have any impact on our ability to provide services under the proposed tender.

We hereby declare that our bid is made in good faith, without collusion or fraud and the information contained in the bid is true and correct to the best of our knowledge and belief.

(Signature of the Bidder)

Printed Name

Designation

Seal

Date:

Place:

17.6 ANNEXURE 6 – Deviations

(In case there are no deviations, the bidder shall submit “No Deviation Certificate”. In case, there are deviations, the bidder shall submit “Statement of Deviations from The Bid Data Sheet and Bidding Form”)

No Deviation Certificate

This is to certify that our offer is exactly in line with your tender enquiry / RFP (including amendments) no. _____ dated _____. This is to expressly certify that our offer contains no deviation in Technical Solution (including but not limited to Scope of Work, Business Requirements Specification, Functional Requirements Specification, Hardware Specification and Technical Requirements Specification) as specified in RFP. However, any deviation for solution delivery which should be there in response to this RFP but the same has been not considered in the RFP, shall be submitted through “Statement of Deviations from The Bid Data Sheet and Bidding Form” stating the details of deviation and reasons why Purchaser may consider the same.

(Authorised Signatory)

Signature:

Name:

Designation:

Address:

Seal:

Date:

STATEMENT OF DEVIATIONS FROM THE BID DATA SHEET AND BIDDING FORM

Clause	Details of Deviations	Remarks explaining reasons for deviations and why it may be considered by the Purchaser

Note:

1. We hereby confirm that the pricing for unconditional withdrawal of the above deviations has been given in the financial bid.
2. We hereby confirm that all implicit and explicit deviations, comments, and remarks mentioned elsewhere in our proposal shall be treated as NULL and VOID and stand withdrawn.
3. We hereby confirm that but for the deviations noted in this Annexure, our proposal is fully and truly compliant.

Note: - Where there is no deviation, the statement should be returned duly signed with an endorsement indicating "No Deviations". In case, Performa of deviations is not submitted or submitted as blank, it will be construed that the tenderer has not proposed any deviations from tender documents and will provide all equipment as per specifications.

Name of signatory:

Capacity of signatory:

Name and address of applicant

17.7 ANNEXURE 7 – Form of Certificate confirming receipt of all Bid Agenda

This is to certify that we, M/S [* Name of the Company] have received all Bid Addenda to Bid
' _____, as listed below:

1. Addendum No.
2.
3.
4.

Name of signatory:

Capacity of signatory:

Name and address of applicant

17.8 ANNEXURE 8 – Certificate for Annual Turnover and Net Worth Note

<<On the letterhead of the Chartered Accountant >>

<<To be submitted along with Audited Financial Statements>>

Date: dd / mm / yyyy

To
The Managing Director,
Maharashtra Information Technology Corporation Limited,
3rd Floor, Apeejay House, Churchgate,
Mumbai – 400 020

Dear Sir,

We have examined the books of accounts and other relevant records of <<Bidder along with registered address>>. On the basis of such examination and according to the information and explanation given to us, and to the best of our knowledge & belief, we hereby certify that the annual turnover for the three years i.e. from <<specify financial years>> was as per details given below:

Tenderer's Name:

Date:

#.		Financial Data for Latest Last 3 years (In INR)		
		Year 2022-2023	Year 2023-2024	Year 2024-2025
1	Total Assets			
2	Current Assets			
3	Total Liabilities			
4	Current Liabilities			
5	Profits Before Taxes			
6	Profits After Taxes			
7	Net Worth [= 1 – 3]			
8	Working Capital [=2 – 4]			
9	Annual Turnover			

(Signature of the Chartered Accountant)

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Name :
Designation :
Membership Number :
Date :
Company Seal :
Business Address :

17.9 ANNEXURE 10 – Summary of Work Experience / Project Execution Experience

(To be provided on Bidder's Letter Head)

Bidder's Name: _____

Date __ __ __

This is to certify that our company has been awarded with the below named projects as detailed under:

#	Project Name and Client	Start Date	End Date / Current Status	Project Description / Activities undertaken by Bidder as on Date	Project Value (INR)	Value of Work for which payment has been received from the Client	Contact details of the Client and Address

(Authorised Signatory)

Signature:

Name:

Designation:

Bidding entity's name

Address:

Seal:

Date:

17.10 ANNEXURE 11 – Credential Summary

(To be provided on Bidder's Letter Head)

#	Project Name	Client Name	Client Type	Project Value (In INR)	Project Components	Documentary evidence provided (Yes or No)	Project Status (Completed or Ongoing or Withheld)
1							
2							
3							
4							
5							
6							
7							

- *Client type – Indicate whether the client is Government or PSU or Private.*
- *Project Components – Indicate the major project components like COTS software, tools, systems software, cloud instances, etc., provisioning manpower, IT support and maintenance.*
- *Documentary evidence provided – Indicate the documentary evidence provided with the detailed project credential like work order or purchase order or completion certificate or letter of appointment Project Status – Completed (date of project completion) or Ongoing (project start date).*

17.11 ANNEXURE 12 – Draft Contract Form

DRAFT CONTRACT FORM

This AGREEMENT is MADE at this day of Two thousand _____

Between

The _____ Customer _____ having its registered office at _____ hereinafter referred to as "Purchaser/Customer", (which expression unless repugnant to the context therein shall include its administrator and its assignees) of the FIRST PART;

And

_____ (Single Bidder with _____) having its registered office at _____ - India hereinafter referred to as "the Contractor" or "the System Integrator" or "SI", (which expression unless repugnant to the context therein, shall include its successors, administrators, executors and permitted assignees), of the SECOND PART.

Whereas the Customer has invited tenders for "**Implementation of Maharashtra RTS Aaple Sarkar 2.0 for Government of Maharashtra**" (hereinafter called the "WORK") and the contractor furnished this tender in response to the invitation for tenders vide RFP No..... Dated.....

Whereas the Customer has accepted the offer of the Contractor submitted on dated.....20..., on the rates, terms and conditions hereinafter stated in this contract agreement and the contractor shall execute the work accordingly.

WHEREAS the SI has the required professional skills, personnel and technical resources, has agreed to provide the Services on the terms and conditions set forth in this Contract and RFP (RFP Reference No: _____) and is about to perform services as specified in this RFP (hereinafter called "Services") mentioned, enumerated or referred to in certain Contract conditions, specification, scope of work, other Sections of the RFP, which have been signed by the authorized representative on behalf of _____ (Lead Member) (the SI) on its behalf and _____ (the Purchaser) on behalf of the Purchaser, all of which are deemed to form part of the Contract as though separately set out herein and are included in the expression "Contract" whenever herein used.

Any reference to Bidder shall mean and include the Bidder and, unless repugnant to the context thereof.

NOW IT IS HEREBY AGREED between the parties hereto as follows:

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1. The contractor has accepted the contract on the terms and conditions set out in the tender notice no. _____ dated _____ as well in the acceptance of tender no. _____ dated _____, which will hold good during period of this agreement.
2. Purchaser has accepted the tender of the SI for the provision and execution of the said Services for the sum of Rs. _____ (_____) upon the terms laid out in the RFP. Applicable GST will be paid extra at actuals.
3. The SI, hereby agrees to provide Services to Purchaser, conforming to the specified Service Levels and conditions set out in the RFP read with the terms contained herein and the other documents falling under the scope of the terms "Agreement" as defined below.

The following documents attached hereto shall be deemed to form an integral part of this arrangement and shall be collectively referred to as "This Agreement":

Complete Request for Agreement (RFP) Document and Agreement	<i>The RFP and corrigenda, addendum and clarifications, if any, and the Agreement submitted by SI, This Agreement</i>
Price Schedule	<i>SI's Commercial bid and subsequent clarifications, letters, etc., Detailed Price Schedule</i>
Letter of Award	<i>Duly signed and accepted by the Bidder and the Customer</i>
Technical Proposal	<i>Technical proposal submitted by the bidder in line with RFP requirement</i>
Service Level Agreement	<i>The Service Levels as mentioned in the RFP</i>
Scope of Work	<i>The Scope of Work as outlined in the RFP</i>
Terms and Conditions	<i>The Terms and Conditions as mentioned in the RFP</i>
Response to this RFP	<i>The Response to this RFP will be considered as part of this Agreement</i>

4. The mutual rights and obligations of the "Purchaser" and SI shall be set forth in the Agreement, in particular:
 - SI shall carry out and complete the Services in accordance with the provisions of the Agreement; and
 - The "Purchaser" shall make payments to SI in accordance with the provisions of the Agreement

NOW THESE PRESENTS WITNESS and the parties hereto hereby agree and declare as follows, that is to say, in consideration of the payments to be made to SI by the Purchaser as hereinafter mentioned, SI shall deliver the services for the said works and shall do and perform all other works and things in the Contract mentioned or described or which are implied there from or there in respectively or may be reasonably necessary for the completion of the said works within and at the times and in the manner and subject to the terms, conditions and stipulations mentioned in the said Contract.

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AND in consideration of services and milestones, the Purchaser shall pay to SI the said sum of
.....or such other sums as may become payable to SI under the provisions of this Contract, such
payments to be made at such time and in such manner as is provided by the Contract.

IN WITNESS WHEREOF the parties hereto have signed this deed hereunder on the dates respectively
mentioned against the signature of each.

Signed

Name: _____

Designation: _____

Date:

Place:

Signed

Name : _____

Designation: _____

Date :

Place :

in the presence of:

Signed

Name: _____

Designation: _____

Date :

Place :

in the presence of:

Signed

Name: _____

Designation : _____

Date :

Place :

17.12 ANNEXURE 13 – Format for Performance Bank Guarantee

Ref: _____

Date _____

Bank Guarantee No. _____

<Name>

<Designation>

<Address>

<Phone Nos.>

<Fax Nos.>

<email id>

Whereas, <<name of the supplier and address>> (hereinafter called “the System Integrator”) has undertaken, in pursuance of contract no. <Insert Contract No.> dated <Date> to provide services for Implementation of Maharashtra RTS Aaple Sarkar 2.0 for Government of Maharashtra, to Maharashtra Information Technology Corporation Limited (hereinafter called “the Maharashtra Information Technology Corporation Limited”).

And whereas it has been stipulated by in the said contract that the bidder shall furnish you with a bank guarantee by a recognized bank for the sum specified therein as security for compliance with its obligations in accordance with the contract;

And whereas we, <Name of Bank> a banking company incorporated and having its head/registered office at <Address of Registered Office> and having one of its office at <Address of Local Office> have agreed to give the supplier such a bank guarantee.

Now, therefore, we hereby affirm that we are guarantors and responsible to you, on behalf of the supplier, up to a total of Rs.<Insert Value> (Rupees <Insert Value in Words> only) and we undertake to pay you, upon your first written demand declaring the supplier to be in default under the contract and without cavil or argument, any sum or sums within the limits of Rs. <Insert Value> (Rupees <Insert Value in Words> only) as aforesaid, without your needing to prove or to show grounds or reasons for your demand or the sum specified therein.

We hereby waive the necessity of your demanding the said debt from the bidder before presenting us with the demand.

We further agree that no change or addition to or other modification of the terms of the contract to be performed there under or of any of the contract documents which may be made between you and the System Integrator shall in any way release us from any liability under this guarantee and we hereby waive notice of any such change, addition or modification.

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This Guarantee shall be valid until <<Insert Date>>)

Notwithstanding anything contained herein:

I. Our liability under this bank guarantee shall not exceed Rs. <Insert Value> (Rupees <Insert Value in Words> only).

II. This bank guarantee shall be valid up to <Insert Expiry Date>)

III. It is condition of our liability for payment of the guaranteed amount or any part thereof arising under this bank guarantee that we receive a valid written claim or demand for payment under this bank guarantee on or before <Insert Expiry Date>) failing which our liability under the guarantee will automatically cease.

Date _____

Place _____

Signature _____

Witness _____

Printed name _____

(Bank's common seal)

17.13 ANNEXURE 14 – Non-Disclosure Agreement

WHEREAS, we the undersigned Bidder, _____, having our principal place of business or registered office at _____, are desirous of bidding for RFP No. <<DD-MM-2023>> “Request for Proposal (RFP) for Selection of System Integrator for Implementation of Maharashtra RTS Aaple Sarkar 2.0 for Government of Maharashtra” (hereinafter called the said 'RFP'), to the “Maharashtra Information Technology Corporation Limited”, hereinafter referred to as 'Maharashtra Information Technology Corporation Limited'

and,

WHEREAS, the Bidder is aware and confirms that the Maharashtra Information Technology Corporation Limited's business or operations, information, application or software, hardware, business data, architecture schematics, designs, storage media and other information or documents made available by the Maharashtra Information Technology Corporation Limited in the RFP documents during the bidding process and thereafter, or otherwise (confidential information for short) is privileged and strictly confidential and or proprietary to the Maharashtra Information Technology Corporation Limited,

NOW THEREFORE, in consideration of disclosure of confidential information, and in order to ensure the Maharashtra Information Technology Corporation Limited's grant to the Bidder of specific access to Maharashtra Information Technology Corporation Limited's confidential information, property, information systems, network, databases and other data, the Bidder agrees to all of the following conditions.

It is hereby agreed as under:

1. The confidential information to be disclosed by the Maharashtra Information Technology Corporation Limited under this Agreement (“Confidential Information”) shall include without limitation, any and all information in written, representational, electronic, verbal or other form relating directly or indirectly to processes, methodologies, algorithms, risk matrices, thresholds, parameters, reports, deliverables, work products, specifications, architecture, project information, security or zoning strategies & policies, related computer programs, systems, trend analysis, risk plans, strategies and information communicated or obtained through meetings, documents, correspondence or inspection of tangible items, facilities or inspection at any site to which access is permitted by the Maharashtra Information Technology Corporation Limited.
2. Confidential Information does not include information which:
 - a. the Bidder knew or had in its possession, prior to disclosure, without limitation on its confidentiality;
 - b. information in the public domain as a matter of law;
 - c. is obtained by the Bidder from a third party without any obligation of confidentiality;

- d. the Bidder is required to disclose by order of a competent court or regulatory authority;
- e. is released from confidentiality with the written consent of the Maharashtra Information Technology Corporation Limited.

The Bidder shall have the burden of proving hereinabove are applicable to the information in the possession of the Bidder.

- 3. The Bidder agrees to hold in trust any Confidential Information received by the Bidder, as part of the Tendering process or otherwise, and the Bidder shall maintain strict confidentiality in respect of such Confidential Information, and in no event a degree of confidentiality less than the Bidder uses to protect its own confidential and proprietary information. The Bidder also agrees:
 - a. to maintain and use the Confidential Information only for the purposes of bidding for this RFP and thereafter only as expressly permitted herein;
 - b. to only make copies as specifically authorized by the prior written consent of the Maharashtra Information Technology Corporation Limited and with the same confidential or proprietary notices as may be printed or displayed on the original;
 - c. to restrict access and disclosure of Confidential Information to their employees, agents, and representatives strictly on a "need to know" basis, to maintain confidentiality of the Confidential Information disclosed to them in accordance with this clause; and
 - d. to treat Confidential Information as confidential unless and until Maharashtra Information Technology Corporation Limited expressly notifies the Bidder of release of its obligations in relation to the said Confidential Information.
- 4. Notwithstanding the foregoing, the Bidder acknowledges that the nature of activities to be performed as part of the Tendering process or thereafter may require the Bidder's personnel to be present on premises of the Maharashtra Information Technology Corporation Limited or may require the Bidder's personnel to have access to software, hardware, computer networks, databases, documents and storage media of the Maharashtra Information Technology Corporation Limited while on or off premises of the Maharashtra Information Technology Corporation Limited. It is understood that it would be impractical for the Maharashtra Information Technology Corporation Limited to monitor all information made available to the Bidder's personnel under such circumstances and to provide notice to the Bidder of the confidentiality of all such information.

Therefore, the Bidder shall disclose or allow access to the Confidential Information only to those personnel of the Bidder who need to know it for the proper performance of their duties in relation to this project, and then only to the extent reasonably necessary. The Bidder will take appropriate steps to ensure that all personnel to whom access to the Confidential Information is given are aware of the Bidder's confidentiality obligation. Further, the Bidder shall ensure that all personnel of the Bidder are bound by confidentiality obligation in relation to all proprietary and Confidential Information received by them which is no less onerous than the confidentiality obligation under this agreement.

- 5. The Bidder shall establish and maintain appropriate security measures to provide for the safe custody of the Confidential Information and to prevent unauthorized access to it.

6. The Bidder agrees that upon termination or expiry of this Agreement or at any time during its currency, at the request of the Maharashtra Information Technology Corporation Limited, the Bidder shall promptly deliver to the Maharashtra Information Technology Corporation Limited the Confidential Information and copies thereof in its possession or under its direct or indirect control, and shall destroy all memoranda, notes and other writings prepared by the Bidder or its Affiliates or directors, officers, employees or advisors based on the Confidential Information and promptly certify such destruction.
7. Confidential Information shall at all times remain the sole and exclusive property of the Maharashtra Information Technology Corporation Limited. Upon completion of the Tendering process and or termination of the contract or at any time during its currency, at the request of the Maharashtra Information Technology Corporation Limited, the Bidder shall promptly deliver to the Maharashtra Information Technology Corporation Limited the Confidential Information and copies thereof in its possession or under its direct or indirect control, and shall destroy all memoranda, notes and other writings prepared by the Bidder or its Affiliates or directors, officers, employees or advisors based on the Confidential Information within a period of sixty (60) days from the date of receipt of notice, or destroyed, if incapable of return. The destruction shall be witnessed and so recorded, in writing, by an authorized representative of the Maharashtra Information Technology Corporation Limited. Without prejudice to the above the Bidder shall promptly certify to the Maharashtra Information Technology Corporation Limited, due and complete destruction and return. Nothing contained herein shall in any manner impair rights of the Maharashtra Information Technology Corporation Limited in respect of the Confidential Information.
8. In the event that the Bidder hereto becomes legally compelled to disclose any Confidential Information, the Bidder shall give sufficient notice and render best effort assistance to the Maharashtra Information Technology Corporation Limited to enable the Maharashtra Information Technology Corporation Limited to prevent or minimize to the extent possible, such disclosure. Bidder shall not disclose to a third party any Confidential Information or the contents of this RFP without the prior written consent of the Maharashtra Information Technology Corporation Limited. The obligations of this Clause shall be satisfied by handling Confidential Information with the same degree of care, which the Bidder applies to its own similar Confidential Information but in no event less than reasonable care.

For and on behalf of:

(SOLE BIDDER)

Authorised Signatory

Office Seal:

Name:

Designation:

Place:

Date:

17.14 ANNEXURE 16 – Manufacturer’s Authorization Form

Manufacturer’s Authorization Form for proposed Solution (<name of OEM/Enterprise Open Source>)

Bid No .XXXXXXXXXX

Dated: XXXXXXXX

To,
The Managing Director,
Maharashtra Information Technology Corporation Limited,
3rd Floor, Apeejay House, Churchgate,
Mumbai – 400 020

Whereas _____ who are official developer of _____ and having
production/Development facilities _____ do hereby
authorize _____, having office at _____ (hereinafter, the “Bidder”) to
submit a bid and subsequently negotiate and sign a Contract with you for following Products produced by
us.

-
-
-

Name (In the capacity of)

Signed

Duly authorized to sign the authorization for and on behalf of:

Dated on _____ day of _____, _____

*(In case an OEM is being proposed, the MAF is to be signed by authorized personnel from OEM’s end. In case an Enterprise Open Source
or Bespoke Development is being proposed, the MAF is to be signed by Lead Bidder)*

17.15 ANNEXURE 17 – Manufacturer/OEM Undertaking for Product Usage

Undertaking Form for the Proposed Solution

To,
The Managing Director,
Maharashtra Information Technology Corporation Limited,
3rd Floor, Apeejay House, Churchgate,
Mumbai – 400 020

Ref: RFP Number -

Dear Sir/Madam,

We, _____ (“OEM”) having registered office at _____, who are established and reputed developers of _____ (“Software”) do hereby certify that we authorize only _____ (Bidder) to propose following products _____ (OEM Product Name/s)

-
-
-

as part of proposed solution for RFP _____ (Tender Reference Number).

Name of Authorized Representative: _____

Designation of Authorized Representative: _____

Signature of Authorized Representative with company seal: _____

Dated on _____ day of _____

(In case an OEM is being proposed, the undertaking is to be signed by authorized personnel from OEM’s end. In case an Enterprise Open Source or Bespoke Development is being proposed, the undertaking is to be signed by Lead Bidder)

17.16 ANNEXURE 18 – Template for Pre-Bid Queries

Name of the Company / Firm:

Name of Person(s) representing the Company/ Firm:

Name of Person	Designation	Email-ID(s)	Tel. Nos. & Fax Nos.

SL #	RFP Section	RFP Page No.	Content in the RFP	Clarification sought

17.17 ANNEXURE 19 – Pre-Qualification Bid Covering Letter

Date: dd / mm / yyyy

To
The Managing Director,
Maharashtra Information Technology Corporation Limited,
3rd Floor, Apeejay House, Churchgate,
Mumbai – 400 020

Sub: **RFP for Selection of System Integrator for Implementation of Maharashtra RTS Aaple Sarkar 2.0 for Government of Maharashtra**

Ref: RFP No. <<>> dated << dd / mm / yyyy>>

Dear Sir,

With reference to your “**Request for Proposal (RFP) for Selection of System Integrator for Implementation of Maharashtra Aaple Sarkar 2.0 for Delivery of Services for Government of Maharashtra**”, we hereby submit our Pre-qualification proposal, Technical Proposal and Commercial Proposal for the same.

We hereby declare that:

- a. We hereby acknowledge and unconditionally accept that the Maharashtra Information Technology Corporation Limited can at its absolute discretion apply whatever criteria it deems appropriate, not just limiting to those criteria set out in the RFP and related documents, in short listing of Agency for providing services.
- b. We have submitted EMD of <<amount>> in the form of Bank Guarantee from <<Bank Name>> with BG Ref. No. <<EMD BG Ref No.>> dated <<dd / mm / yyyy>> and Tender fee of <<amount>> through online payment mode available at the e-Tendering Portal.
- c. We hereby declare that all information and details furnished by us in the Proposal are true and correct, and all documents accompanying such application are true copies of their respective originals.
- d. We agree to abide by our offer for a period of 180 days from the date of opening of pre-qualification bid prescribed by **Maharashtra Information Technology Corporation Limited** and that we shall remain bound by a communication of acceptance within that time.
- e. We have carefully read and understood the terms and conditions of the RFP and the conditions of the contract applicable to the RFP. We do hereby undertake to provision as per these terms and conditions.
- f. In the event of acceptance of our bid, we do hereby undertake:
 - i. To supply the products and commence services as stipulated in the RFP document

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- ii. To undertake the project services for entire contract period from the date of signing of the contract as mentioned in the RFP document.
- iii. We affirm that the prices quoted are inclusive of design, development, delivery, installation, commissioning, training, providing facility management and handholding support, and inclusive of all out-of-pocket expenses, taxes (except GST), levies discounts etc.
- iv. We do hereby undertake, that, until a formal contract is prepared and executed, this proposal, together with your written acceptance thereof and notification of award of contract, shall constitute a binding contract between us.
- v. We understand that the **Maharashtra Information Technology Corporation Limited** may cancel the bidding process at any time and that **Maharashtra Information Technology Corporation Limited** is not bound to accept any bid that it may receive without incurring any liability towards the bidder.
- vi. We fully understand and agree to comply that on verification, if any of the information provided in our proposal is found to be misleading the selection process, we are liable to be dismissed from the selection process or termination of the contract during the project, if selected to do so

In case of any clarifications please contact _____ email at

Thanking you,

Yours sincerely,

(Signature of the Prime Bidder)

Printed Name

Designation

Seal

Date:

Place:

Business Address:

17.18 ANNEXURE 20 – Total Responsibility Certificate

(To be provided on Bidder's Letter Head)

This is to certify that I/we undertake the total responsibility for the defect free operation of the proposed solutions as per the requirement of the RFP for the duration mentioned in the RFP.

(Authorised Signatory)

Signature:

Name:

Designation:

Address:

Seal:

Date:

17.19 ANNEXURE 21 – Technical Bid Covering Letter

Date: dd / mm / yyyy

To
The Managing Director,
Maharashtra Information Technology Corporation Limited,
3rd Floor, Apeejay House, Churchgate,
Mumbai – 400 020

Sub: Request for Proposal (RFP) for Selection of System Integrator for Implementation of Maharashtra RTS Aaple Sarkar 2.0 for Government of Maharashtra

Ref: RFP No. <<>> dated << 2022>>

Dear Sir,

I (in case of single bidder) or We, <<name of the undersigned Bidder >>, having read and examined in detail all the bidding documents in respect of “**Request for Proposal (RFP) for Selection of System Integrator for Implementation of Maharashtra RTS Aaple Sarkar 2.0 for Government of Maharashtra**” do hereby propose to provide our services as specified in the bidding proposal submitted by us.

It is hereby confirmed that I / We are entitled to act on behalf of our company / corporation / firm / organization and empowered to sign this document as well as such other documents, which may be required in this connection.

We declare that all the services shall be performed strictly in accordance with the RFP documents.

We confirm that the information contained in this response or any part thereof, including its exhibits, and other documents and instruments delivered or to be delivered to Maharashtra Information Technology Corporation Limited, Government of Maharashtra is true, accurate, verifiable and complete. This response includes all information necessary to ensure that the statements therein do not in whole or in part mislead the department in its evaluation process. We also confirm that we shall not attract conflict of interest in principle.

We hereby declare that in case the contract is awarded to us, we shall submit the contract Performance Bank Guarantee in the form prescribed in Annexures of the RFP document.

We hereby declare that our bid is made in good faith, without collusion or fraud and the information contained in the bid is true and correct to the best of our knowledge and belief.

We understand that our bid is binding on us and that you are not bound to accept a Bid you receive. This proposal is valid for 180 days after opening of technical bid. We shall extend the validity of the bid if required by Maharashtra Information Technology Corporation Limited.

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Thanking you,

Yours sincerely,

(Signature of the Lead Bidder)

Printed Name

Designation

Seal

Date:

Place:

Business Address:

17.20 ANNEXURE 22 – Compliance Certificate

(Certificate should be provided by Sole Bidder/Lead Bidder on their letter head)

Compliance Certificate

We hereby certify and confirm that in the preparation and submission of our Proposal for **Request for Proposal (RFP) for Selection of System Integrator for Implementation of Maharashtra RTS Aaple Sarkar 2.0 for Government of Maharashtra**, against the RFP issued by Maharashtra Information Technology Corporation Limited, We have not acted in concert or in collusion with any other Bidder or other person(s) and also not done any act, deed or thing, which is or could be regarded as **anti-competitive, corrupt, fraudulent and coercive**. We further confirm that we have not offered nor will offer any illegal gratification in cash or kind to any person or organization in connection with the instant proposal.

(Signature of the Sole Bidder/ Lead Bidder)

Printed Name

Designation

Seal

Date:

Place:

Business Address:

17.21 ANNEXURE 23 – Project Plan

A **Detailed Project Plan** covering break-up of each phase into the key activities, along with the start and end dates must be provided as per format given below.

<u>Activity-wise Timelines</u>							
Sl. No.	Item of Activity	Month wise Program					
		1	2	3	4	5	...
	Project Plan						
1	Activity 1						
1.1	Sub-Activity 1						
1.2	Sub-Activity 2						
2							
2.1							
2.2							
3							
3.1							
4							
<i>Note: The above activity chart is just for the purpose of illustration. Bidders are requested to provide detailed activity & phase wise timelines for executing the project with details of deliverables & milestones as per their proposal.</i>							

17.22 ANNEXURE 24 – Manpower Plan

Till Go-Live (Implementation)

<u>Manpower distribution</u>									
S. No.	Role	Month wise time to be spent by each personnel (in days)						Total	
		Month 1	Month 2	Month 3	...	...	Month 12		
1	Project Manager								Onsite

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<u>Manpower distribution</u>									
S. No.	Role	Month wise time to be spent by each personnel (in days)						Total	
		Month 1	Month 2	Month 3	...	...	Month 12		
									Offsite
2	Solution Architect								Onsite / Offsite
3	Data Architect								Onsite / Offsite
4	Lead Data Engineer								Onsite / Offsite
5	State API Development Team (All 6 resources)								Onsite
5	Developers								Onsite / Offsite
6	<Add more rows as required>								Onsite / Offsite
Total									

II. After Go-Live (Operation & Maintenance)

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<u>Manpower Distribution</u>					
S. No.	Manpower	Years			Total
		Year 1	Year 2	Year 3	
1					Onsite / Offsite
2					Onsite / Offsite
3					Onsite / Offsite
4					Onsite / Offsite
5					Onsite / Offsite
6	<Add more rows as required>				Onsite / Offsite
Total					

17.23 ANNEXURE 25 – Pre-Qualification Checklist

(Note: Non-submission of documents as per this checklist may lead to rejection of the bid)

S.N.	Document required	File Name	Page No.
1	Copy of acknowledgement of payment of RFP Document Fee at e-Tendering Portal		
2	Copy of Bank Guarantee for Earnest Money Deposit (Annexure 4)		
3	Pre-Qualification Bid Covering Letter (Annexure 18)		
4	Details of the Bidder (Sole Bidder) (Annexure 2)		
5	Supporting documents for PQ 1.1 – Copy/(ies) of Certificate of Incorporation/partnership /Registration Certificate/ Certificate of commencement of Business in case the Bidder is a Public Limited Company for Sole Bidder		
6	Supporting documents for PQ 1.1 – Copy/(ies) of Certificate of Incorporation / Partnership/ Certificate of commencement of Business in case the Bidder is a Public Limited Company		
8	Supporting documents for PQ 1.2 – Copy/(ies) of Work Order of the latest software development or customization or IT Implementation project awarded to the Bidder for work in India (clearly indicating the date of award) for Sole Bidder		
9	Supporting documents for PQ 1.2 – Copy/(ies) of Work Order of the latest software development or customization or IT		

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S.N.	Document required	File Name	Page No.
	Implementation project awarded to the Bidder for work in India (clearly indicating the date of award)		
10	Supporting documents for PQ 1.3 – Certified copies of Audited Financial Statements/Extracts from the Audited Balance Sheet and Profit and Loss Statements for the last 5 financial years AND Certificate from Chartered Accountant in Practice for Turnover for last 3 financial years for Sole Bidder (Annexure 9)		
11	Supporting documents for PQ 1.3 – Certified copies of Audited Financial Statements/Extracts from the Audited Balance Sheet and Profit and Loss Statements for the last 3 financial years AND Certificate from Chartered Accountant in Practice for Aggregate Turnover for last 3 financial years(Annexure 9)		
12	Supporting documents for PQ 1.4 – Certificate from Statutory Auditor/Chartered Accountant of Sole Bidder		
13	Supporting documents for PQ 1.5 – Work Order + Completion Certificates from the Client OR Work Order OR Work Order + Phase Completion Certificate from the Client for Bidders		
14	Supporting documents for PQ 1.6 – Work Order + Completion Certificates from the Client OR Work Order OR Work Order + Phase Completion Certificate from the Client for Bidders / Self certified Phase completion certificate by authorised signatory		
15	Supporting documents for PQ 1.7 – Affidavit signed by Authorized Signatory/ies of Sole Bidder in the format prescribed in annexure that they are not under a declaration of ineligibility, ban or blacklist (Annexure 5)		
16	Supporting documents for PQ 1.8 – OEM MAF (Annexure 16)		
17	Supporting documents for PQ 1.8 – OEM Undertaking (Annexure 17)		
18	Supporting documents for PQ 1.9 – Copy of CMMI Certificate by Sole bidder		
19	Supporting documents for PQ 1.9 – Copy of ISO 9001 Certificate by Sole bidder		
20	Supporting documents for PQ 1.9 – Copy of ISO 20000 Certificate by Sole bidder		
21	Supporting documents for PQ 1.9 – Copy of ISO 27001 Certificate by Sole bidder		

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S.N.	Document required	File Name	Page No.
22	Supporting documents for PQ 1.10 – Valid Goods & Service Tax (GST) Registration Certificate for Sole Bidder		
23	Supporting documents for PQ 1.10 – Valid Goods & Service Tax (GST) Registration Certificate		
24	Supporting documents for PQ 1.11 – Board Resolution / Power of attorney in favour of Authorised Signatory for Sole Bidder (Power of Attorney: Annexure 15)		
25	Supporting documents for PQ 1.11 – Board Resolution / Power of attorney in favour of Authorised Signatory (Power of Attorney: Annexure 15)		
27	Supporting documents for PQ 1.13 – Certificate from HR department of Sole Bidder		
28	Supporting documents for PQ 1.14 – Letter / Undertaking pertaining to Sole Bidder / Lead Bidder's facility located within Mumbai Metropolitan Region (MMR) or undertaking that the Sole Bidder/Lead Bidder shall open the indicated office within 15 days of being awarded the contract		
29	Supporting documents for PQ 2.1 – Purchase order copies/agreement copies of OEM Tool OR Work Order specifying value of licenses OR OEM Self Certification by authorized signatory is to be provided + (Annexure 16 and Annexure 17)		
30	Deviations related Certificate from the Sole Bidder (Annexure 6)		
31	Total Responsibility Certificate from the Sole Bidder (Annexure 20)		
32	Summary of Work Experience/Project Execution Experience (Annexure 10)		
33	Credential Summary (Annexure 11)		
34	Any other documents		

17.24 ANNEXURE 26 – Technical Bid Checklist

S.N.	Document required	File Name	Page No.
1	Technical Bid Covering Letter (Annexure 21)		
2	Supporting documents for TQ 1.1 - Certificate from Chartered Accountant in practice mentioning the annual turnover for past 3 years ending as on 31 March 2025		
3	Supporting documents for TQ 1.1 - Copy of the audited Balance sheet, for the concerned years for Sole Bidder/Aggregate turnover		
4	Supporting documents for TQ 1.2 - Work Order + Completion Certificates from the client OR Work Order + Phase Completion Certificate from the client		
5	Supporting documents for TQ 1.2 - Work Order + Completion Certificates from the client OR Work Order + Phase Completion Certificate from the client		
6	Supporting documents for TQ 1.2 - Work Order + Completion Certificates from the client OR Work Order + Phase Completion Certificate from the client		
7	Supporting documents for TQ 1.2 - Work Order + Completion Certificates from the client OR Work Order + Phase Completion Certificate from the client		
8	Supporting documents for TQ 1.2 - Work Order + Completion Certificates from the client OR Work Order + Phase Completion Certificate from the client		
9	Supporting documents for TQ 1.2 - Work Order + Completion Certificates from the client OR Work Order + Phase Completion Certificate from the client		
10	Supporting documents for TQ 1.3 - Work Order + Completion Certificates from the client OR Work Order + Phase Completion Certificate from the client		
11	Supporting documents for TQ 1.4 - Copy of the valid CMMI certificates issued by authorized competent authority for Sole Bidder		
12	Supporting documents for TQ 2.1 – Copy of Technical Presentation		
13	Supporting documents for TQ 2.2 – Understanding of Requirements		

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S.N.	Document required	File Name	Page No.
14	Supporting documents for TQ 2.2 – Proposed Technology Solution		
15	Supporting documents for TQ 2.2 – Overall Approach and Methodology		
16	Supporting documents for TQ 2.2 – Handholding, Training and Capacity Building		
17	Supporting documents for TQ 2.2 – Proposed Project Plan (Annexure 23)		
18	Supporting documents for TQ 2.2 – Proposed Resource Deployment Plan (Annexure 24)		
19	Supporting documents for TQ 3.1 – Purchase Order Copies OR Agreement Copies OR Work Order specifying value of licenses for Project 1 for OEM Tool, Scope of Work (from RFP or agreement or similar document) + (Annexure 16 and Annexure 17)		
20	Supporting documents for TQ 3.1 – Purchase Order Copies OR Agreement Copies OR Work Order specifying value of licenses for Project #n for OEM Tool, Scope of Work (from RFP or agreement or similar document) + (Annexure 16 and Annexure 17)		
21	Supporting documents for TQ 3.2 – Response to Functional Requirement Specifications provided in this RFP		
22	Supporting documents for TQ 3.3 – Certificate from the core solution OEM and Hardware OEM (Annexure 16 and Annexure 17)		
23	Supporting documents for TQ 3.3 – Certificate from the Cloud Service Provider		
24	Supporting documents for TQ 3.4 – Undertaking submitted by OEM (Annexure 16 and Annexure 17)		
25	Supporting documents for TQ 3.5 – Purchase Order Copies OR Agreement Copies OR Work Order specifying value of licenses OR OEM Self Certification by authorized signatory along with Case Study. The case study should older than the RFP published date.		
26	Supporting documents for TQ 4.1 – Submission of CV of Project Manager as per TQ		

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S.N.	Document required	File Name	Page No.
27	Supporting documents for TQ 4.2 – Submission of CV of Solution Architect as per TQ		
28	Supporting documents for TQ 4.3 – Submission of CV of Data Architect as per TQ		
29	Supporting documents for TQ 4.4 – Submission of CV of Data Engineer as per TQ		
30	CV's of 50% of resources as proposed in resource deployment plan		
31	Compliance Certificate (Annexure 21)		
32	Any other documents		

17.25 ANNEXURE 27 - Change Control Note

Change Control Note		CCN Number:	
Part A: Initiation			
Title:			
Originator:			
Sponsor:			
Date of Initiation:			
Details of Proposed Change			
(To include reason for change and appropriate details/specifications. Identify any attachments as A1, A2, and A3 etc.)			
Authorized by Purchaser	Date:		
Name:			
Signature:			
Received by the Bidder	Date:		
Name:			
Signature:			
Change Control Note		CCN Number:	
Part B : Evaluation			
(Identify any attachments as B1, B2, and B3 etc.)			
Changes to Services, payment terms, payment profile, documentation, training, service levels and component working arrangements and any other contractual issue.			
Brief Description of Solution:			
Impact (also include analysis and confirmation of any negative impacts/ consequences):			

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Deliverables:	
Timetable:	
Charges for Implementation: (including a schedule of payments)	
Other Relevant Information: (including value-added and acceptance criteria)	
Authorized by the Bidder	Date:
Name:	
Signature:	
Change Control Note	CCN Number :
Part C : Authority to Proceed	
Implementation of this CCN as submitted in Part A, in accordance with Part B is: (tick as appropriate)	
Approved Rejected Requires Further Information (as follows, or as Attachment 1 etc.)	
For Purchaser and its nominated agencies	For SI

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Signature	Signature
Name	Name
Title	Title
Date	Date

17.26 ANNEXURE 28 - End-of-sale of OEM tool

(To be provided on OEM's Letter Head)

This is to certify that if any of Third Party Tool supplied by us for this project reach end-of-sale subsequently, we ensure that we will support the product/solution for the Term of the Contract.

(Authorised Signatory)

Signature:

Name:

Designation:

Address:

Seal:

Date:

(In case an OEM tool is being used, the Annexure 28 is to be signed by authorized personnel from OEM's end. In case an Enterprise Open Source or Bespoke Software is being proposed, the Annexure 28 is to be signed by Lead Bidder)

17.27 ANNEXURE 29 – Declaration from OEM

<< A notarized affidavit on a non-judicial stamp paper of INR 100/- by Authorized Representative and
Signatory of the Applicant with his/her dated Sign and Seal >>

AFFIDAVIT

To
The Managing Director,
Maharashtra Information Technology Corporation Limited,
3rd Floor, Apeejay House, Churchgate,
Mumbai – 400 020

Ref: RFP Ref No: _____

**Subject: Self Declaration of providing correct information via Self Certification as a response to the Request
for Proposal (RFP) for Selection of System Integrator for Implementation of Maharashtra RTS Aaple Sarkar
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Dear Ma'am,

We, _____ ("OEM") having registered office at _____, who are established and
reputed developers of _____ ("Software") do hereby declare that all the information provided by
us as a response to this RFP via self-certifications is true and correct to the best of our knowledge and belief.

Name of Authorized Representative: _____

Designation of Authorized Representative: _____

Signature of Authorized Representative with company seal: _____

Verified by: _____

*(In case an OEM tool is being used, the Annexure 29 is to be signed by authorized personnel from OEM's end. In case an Enterprise Open
Source or Bespoke Software is being proposed, the Annexure 29 is to be signed by Lead Bidder)*